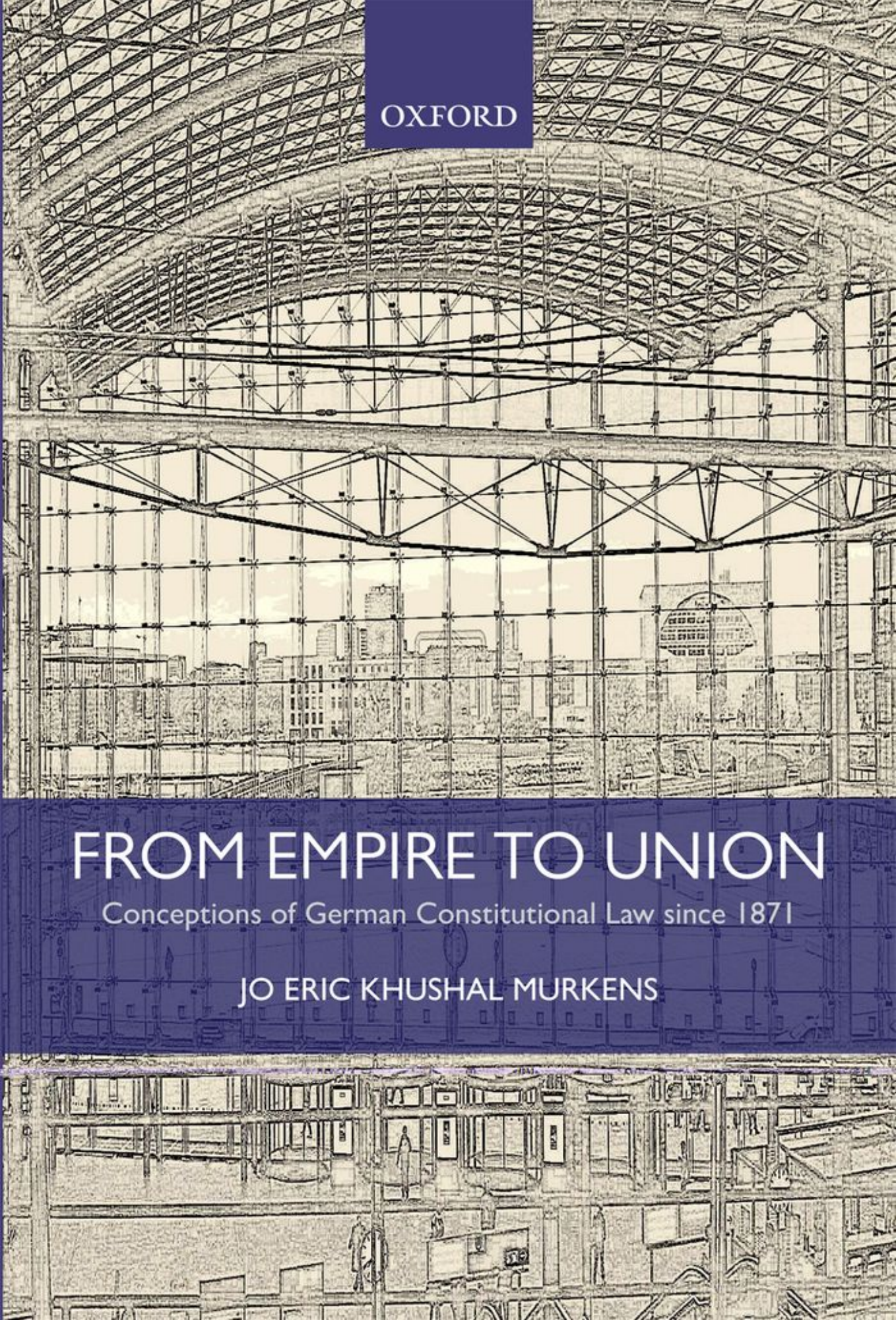

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FROM EMPIRE TO UNION

Conceptions of German Constitutional Law since 1871

JO ERIC KHUSHAL MURKENS

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Conceptions of German Constitutional Law since 1871

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OXFORD
UNIVERSITY PRESS

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Great Clarendon Street, Oxford, OX2 6DP,
United Kingdom

Oxford University Press is a department of the University of Oxford.
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First Edition published in 2013

Impression: 1

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British Library Cataloguing in Publication Data
Data available

ISBN 978–0–19–967188–5

Printed in Great Britain by
CPI Group (UK) Ltd, Croydon, CR0 4YY

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Acknowledgements

This book examines the constitutional relationship between Germany and the European Union as mediated by certain constitutional concepts that originate in the nineteenth century yet formed the basis of the *Lisbon Treaty* decision by the German Federal Constitutional Court in 2009. I conducted research at a variety of institutions and libraries, and benefited in no small measure from the resources of the Institut für Staatsphilosophie, and the (now defunct) Law Center for European and International Cooperation (RIZ), both at the University of Cologne. However, it was during short post-graduate research visits and then during an extended period at the Max Planck Institute for Comparative Public Law and International Law, Heidelberg, that I made most progress. I am very grateful to Armin von Bogdandy for the invitation, the financial support, and his enthusiasm during my four-month stay in 2011.

The present work builds on the doctoral thesis I completed at the European University Institute in Florence. The thesis was funded by two scholarships, from the German Academic Exchange Service (DAAD) and from the European University Institute, which I gratefully acknowledge. Much broader than the present book, the initial inquiry focused on *Contested Constitutional Concepts: State, Constitution and Sovereignty in Germany and the United Kingdom, and the European Challenge*, and was expertly supervised by Neil Walker. The thesis was successfully defended in August 2005 and was awarded a Special Distinction by the European Group of Public Law.

This book was finalized at the London School of Economics and Political Science. Martin Loughin has been a source of consistent encouragement and his feedback has been invaluable. I could not have asked for a more cordial environment within which to work, and I wish to acknowledge the geniality of my friends and colleagues in the Department of Law.

I owe a special debt to Jürgen Bast, Roger Cotterrell, Otto Depenheuer, Eric Heinze, Stephan Hobe, Christian Joerges, Matthias Kottmann, Rainer Nickel, Peter Ramsay, Christoph Schönberger, Robert Schütze, and especially Jochen von Bernstorff and Rüdiger von Krosigk who followed the book from its inception to completion. Thanks are due to the two anonymous reviewers of the manuscript as well as to Alex Flach and Natasha Flemming at Oxford University Press. I must also express gratitude to Devereux C. Josephs

who assisted me with intricate German translations, to Sophia Coles, and, finally, to the library staff at all of the above institutions.

For the most part only original German works have been cited even where a published translation exists. All translations from those works are my own. This includes Carl Schmitt's *Verfassungslehre* since the translation published in 2008 was not available at the time of research. Where I resort to an existing translation (as, for instance, with Jürgen Habermas and Niklas Luhmann), I refer to the original source as well. In translating I decided to leave certain words that are particular to the German constitutional tradition in the original. Translations of *Rechtsstaat* or *Staatenverbund*, for example, would have resulted in an unacceptable loss of meaning that is intrinsic to the concepts. By contrast, words like *Reich* or *Grundgesetz* are easily rendered as 'Empire' and 'Basic Law'.

The Federal Republic of Germany is usually shortened to 'Germany', and the Federal Constitutional Court to 'the Court', purely for the sake of easy reading. Otherwise abbreviations have been kept to a minimum.

Articles in the Basic Law are subdivided by a Roman number (e.g. I) for sub-paragraphs, followed by an Arabic number in brackets (e.g. 2) to indicate the sentence.

The book is dedicated to Romie Singh and Hans Mürkens.

Jo Eric Khushal Murkens

London, Florence, Heidelberg
June 2012

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Wie jede Blüte welkt und jede Jugend
Dem Alter weicht, blüht jede Lebensstufe,
Blüht jede Weisheit auch und jede Tugend
Zu ihrer Zeit und darf nicht ewig dauern.

Hermann Hesse, *Stufen* (1941)

Introduction

The year 2009 witnessed two significant constitutional events in Germany. First, the German constitution, the *Grundgesetz* (GG), celebrated its 60th anniversary. Proclaimed on 23 May 1949, it marked the hour of birth of the Federal Republic of Germany, but had originally only been intended as a provisional constitutional document (a basic law) for the territory occupied by the Western allies. It became the formal constitution for Germany with reunification in 1990 although it kept its interim name *Grundgesetz*. In theory, and in contrast to civil and criminal law which enjoy greater continuity with the German Empire, German constitutional law can be understood without reference to the period before 1949: the Basic Law is supposed to satisfy in doctrinal terms all the practical functions of a constitution as well as the legitimacy demands placed on a constitution. It is, however, illusory to think of the 146 articles of the Basic Law as self-explanatory. As of 2011, the decisions of the Federal Constitutional Court (the Court) were contained in 126 volumes,[1] and neither the constitution as a whole nor the content of the individual provisions can be fully understood without reference to the Court's constitutional jurisprudence—not to mention the countless authoritative *Kommentare* on the Basic Law. It is, therefore, the central thesis of this book that the provisions in the Basic Law that mediate the constitutional relationship with the European Union, as well as the scholarship that comments on that relationship, can only be understood accurately if the inquirer is aware of the assumptions of national legal actors that underlie the central constitutional concepts that are internally contested.

The synthetic inquiry of doctrine (law) and scholarship (traditions) culminates in a critical discussion of the decision, also in 2009, of the Second Senate of the Court that declared the German statute approving the Treaty of Lisbon compatible with the Basic Law. Like its earlier decision on the statute approving the Treaty of Maastricht in 1993, the decision and underlying legal reasoning split constitutional law scholarship. Although the Court held

[1] Noted by Vorländer 2006: 256. Usually two or three volumes are added every year.

unequivocally in both cases that the respective Treaty was compatible with the Basic Law, the Europhiles were enraged and the Europhobes delighted. The criticism was damning and the praise was flattering. Former Advocate General at the European Court of Justice Carl Otto Lenz criticized the Court for its 'partial and restrictive interpretation' of the Basic Law which 'obstructs or prevents the realization of the goals of a "unified Europe"'.[2] By contrast, former Federal Constitutional Court judge Paul Kirchhof celebrated the decision as 'a landmark for the democratic constitutional state, which gives a democratic impulse to the European Union, and gives citizens more security in relation to German and European law'.[3]

How is this discrepancy between decision and reception possible? The headlines, the headnotes, and the *ratio decidendi* of the cases are evidently the least interesting bits of the story. Simply understanding the combination of legal outcome, legal reasoning, and legal doctrine will not give the interested observer of German constitutional law all the tools necessary to decode the Court's jurisprudence. Nor will digestion of the vast amount of scholarly literature that has accumulated around both cases, much of it written by scholars fluent in English. To understand the Court's decisions fully, constitutional law needs to be 'historicized'. The historicization of constitutional law is an attempt to trace the genesis of constitutional ideas and to identify the lasting influences of their intellectual origins and later developments on contemporary constitutional law. Although German scholars have already tried to historicize extant public law for domestic purposes (see e.g. Möllers 2000; Wahl 2006), no one has tried to understand historically the concepts that mediate the constitutional relationship between Germany and the European Union. A historical understanding of that relationship is if anything even more important since the law that regulates it is directly exposed to questions of ultimate authority, constitutional identity, and national sovereignty. It is the doctrinal legal questions, as well as the historically contingent extra-legal influences that have now twice dominated constitutional complaints in the Court in Karlsruhe. This is the premise of this book, which will take the reader back to the origins of modern public law starting in 1850, through to the disputes over methodology and direction in the Weimar Republic, to the post-war reception and development of constitutional law

[2] C.O. Lenz, 'Ausbrechender Rechtssakt', *Frankfurter Allgemeine Zeitung*, 8 August 2009; see also Jestaedt 2009; Classen 2009; Halberstam and Möllers 2009; Nettesheim 2009; Ruffert 2009; Schönberger 2009; Tomuschat 2009.

[3] Paul Kirchhof, 'Demokratie in Europa', *Frankfurter Allgemeine Zeitung*, 4 July 2009; see also Grimm 2009; Baumgart 2009; Gärditz and Hillgruber 2009; P.M. Huber, 'Wer das Sagen hat', *Frankfurter Allgemeine Zeitung*, 10 September 2009; Schorkopf 2009.

and theory, and to its application to the law of the European Union in the 1990s and 2000s.

Methodologically, this book is a study by indirect methods, using primary and secondary legal sources, into the genesis as well as current understanding and operation of the constitutional law that provides the foundation for the reception of European Union law in Germany. It is not sufficient to ask whether constitutional law can still be conceived without reference to the process of European integration or, conversely, whether European Union law can be adequately theorized and practised without reference to domestic constitutional law. Nor is it sufficient to conclude that the two disciplines are contingent upon each other and that the state is not replaced, but complemented by the European Union (see e.g. Pernice 2007: 225). Instead, the relation between German and European constitutional law, and the constitutional concepts that mediate that relation, need to fall within a wider frame of reference than legal doctrine. It must be possible to identify, accommodate, and explain the views of elite legal actors (judges and scholars) who work with a particular legal tradition and whose views are, therefore, politically, historically, and sociologically contingent. The objective of the present inquiry is to 'bring to consciousness the assumptions secreted within [the] conceptual structures' of national legal actors, and to 'subject these structures and assumptions to scrutiny with such canons of rationality as consistency, coherence and contradiction' (Loughlin 1992: 35–6). The present inquiry is a synthetic study of jurisprudence and legal doctrine, thought, and practice; it is a study not only about law, but about cultural understandings of law. Since there is no neutral language of constitutional law, scholarly and judicial opinion can only be understood 'if we understand the political tradition within which the writer works' (*ibid.*: 230; see also Bartelson 1995: 247).

This book's analysis is divided into three parts. Part I deals with the emergence and rejection of constitutional law as a positive discipline. Contemporary German constitutional law scholarship tends to conceptualize the Basic Law, and by extension the legal character of the European Union, with terms that stem from nineteenth century monarchical constitutionalism (state, sovereignty, constitution, democracy, *Staatenbund*, *Volk*). As befits the nineteenth century, these terms claim to be binding, unitary, and absolute. However, the claims made in the name of the 'state', the 'constitution', 'sovereignty', 'democracy', 'identity', and 'fundamental rights' (concepts that are integral to the Court's decisions in *Maastricht* and *Lisbon*) do not refer to neutral *concepts*, but to a particular *idea* of state, constitution, sovereignty, and so on. A huge problem for doctrinalists is that those concepts, not to mention the ideas underpinning them, are either not mentioned in the Basic

Law (sovereignty; identity), or are not given a substantive meaning (state), or are open to various understandings (democracy). Far from being clear-cut, these concepts have always been ambiguous and their precise meaning has always been disputed. The language of constitutional law has always moved between political realism and legal formalism, and between fact and norm. This tension was at the heart of the 'struggle over methods and aims' during the Weimar period and remains significant today. As Jacobson and Schlink remind us: 'Weimar is the only period in German history before the Federal Republic, apart from a few months in 1848, when theorizing about the law of the state took place in a democratic political context' (Jacobson and Schlink 2000: 3). The historical excursion is, therefore, a vital element of the entire project. As von Bogdandy has noted:

> . . . modern constitutional studies in Germany cannot be properly understood without a grasp of *Staatssouveränität* or without understanding state legal positivism and the Weimar dispute over legal method. (2009: 366)

The purpose of the historical inquiry is not to discover the historical period in which these concepts first emerged, but rather to identify the intellectual origins of contemporary understandings of constitutional concepts (see Bartelson 1995: 7–8). The concern is not with pre-modern ideas of the state but with the way that a scholastic legal understanding of the concepts of state, constitution, and sovereignty are used in constitutional law discourse (see also Möllers 2000: 9–11). For this reason it is not deemed necessary to engage in detailed historical research before the failed revolution of 1848—the date of conception for legal positivism and the *Allgemeine Staatslehre*. Legal positivism marked its 'hour of birth' with the founding of the German Empire in 1871 (Ehmke 1962: 41), and provided the focal point for the major scholars of the Weimar Republic. Hans Kelsen, Carl Schmitt, Rudolf Smend, Hermann Heller, and other scholars will not be discussed for purely historical reasons; they are discussed because their constitutional interpretation throws light on current understandings of the German constitution. How were constitutional concepts of state, constitution, and sovereignty understood in the Weimar Republic? To what extent does their understanding of those concepts continue to resonate in contemporary debates? The analysis assumes the authority of law and reveals the depth of the philosophical, political, and legal disagreement over those concepts. In order to be comprehensive, the analysis will not only examine the formal meaning of constitutional concepts (doctrine), but also explain how the concepts have been interpreted (scholarship).

The purpose of Part II is to discuss the scholarly struggle to discern the correct foundation of the constitution, and the correct perspective of

scholarly legal exegesis (*Dogmatik*). Three modalities of constitutional argument are identified in Germany: i) state-centred (*Staatsrecht*); ii) constitution-centred (*Verfassungsrecht*); iii) European public law-centred (*Ius Publicum Europaeum*). They are identified not as schools, but are developed as ideal types or, better still, as modes of constitutional thought. They are supported by, and can be used to construct, an ideology, i.e. a set of legal and political values that is internally consistent and externally distinct from rival ideologies. Since each modality is based on and invokes law which necessarily claims to be rational, authoritative, and coherent, each school of thought claims to represent the only legitimate means of interpreting the German constitution.

The ideological element makes law contradictory and manipulable, and turns the relation between Germany and the European Union into a platform of contestation. But to say that law can be reduced to politics, that law is 'politics by other means', or that law masks political power is a step too far. It does not account for the formalist foundation of law as a coherent and self-reflexive discipline, as a platform of stability. The outcome of my research suggests another conclusion, namely that the study of these methods of constitutional argument and their underlying political commitments shows that constitutional law in general, and German constitutional law in this case, is the amalgam of formal coherence (text or doctrine) and material indeterminacy (scholarship) (Luhmann 1983: 130; 1988: 13), which 'permits an ideological presence in law without converting law into politics' (Bobbitt 1991: 24).

Part III contains a doctrinal discussion of the key sections of the Basic Law, including their interpretation by the Court. The manner in which the Court has exercised judicial control since its creation in 1952 is generally regarded has having had a transformative effect on constitutional law (Schlink 1989; Wahl 2003; 2006). Chapter 7 contains an analysis of the judicial reasoning of the Court in the *Maastricht* and *Lisbon* cases that brings together the historical and doctrinal arguments in the previous Parts. My argument is that the Court channels Germany's relation to the European Union through four constitutional concepts (*Staatenverbund*, sovereignty, democracy, and identity). Problematically, the Court does not reveal expressly the constitutional provenance of those concepts. As noted above, 'democracy' is the only one of those concepts that is constitutionally protected by the Basic Law. However, it is not the inclusion of the *concept* that is controversial, but the *idea* or specific interpretation of that concept by the Court. In the *Maastricht* and *Lisbon* cases, constitutional review is not captured solely by the Basic Law's commitment to the *Rechtsstaat* (e.g. in Article 20 III GG, which ties the legislature to the constitutional order, and the executive and judiciary to positive law and justice). Instead, the concepts that are used as conduits of

analysis have a meta-constitutional or pre-legal quality. They are contested, but system-definitive. The point that emerges most strongly from the discussion relates to constitutional law as *political* jurisprudence. In the face of internal diversity, the Court supports its own ideological reading of the Basic Law with one-sided and biased references to legal scholarship that derives limits to integration from the political, pre-constitutional existence of a state and a people (as opposed to the text of the Basic Law itself).

The worst that can be said about the Court's use of these concepts is that it is anti-positive, meta-constitutional, and arguably anti-democratic. The coupling of political ideology with constitutional legal doctrine, ostensibly underwritten by the Basic Law, reified by orthodox constitutional scholarship, justified with references to the pre-constitutional existence of the state, and given credence by the authority of the Court, discredits the integrity of constitutional law as a set of norms and as a scholastic discipline. Instead of producing a coherent, rational, impartial, and apolitical answer, the legal system repeatedly produces and justifies decisions that are internally inconsistent, constitutionally tendentious, and ideologically driven.

However, it also needs to be appreciated that constitutional law cannot fully be postulated in abstract and general terms, but is also characterized by its close nexus to national politics: constitutional law is constitutive of, and constituted by, political power. Constitutional law does not operate with concepts that are objective, neutral, or descriptive, and any meaningful analysis has to embrace the official legal texts (law) as well as the interpretation of constitutional law (scholarship), which is always controversial, contested, and contingent upon meta-constitutional values. The debates in this book range from the Weimar discussions about the law of the state; the tensions between reality and law, fact and norm, substance and form; the evolution of post-war perspectives on state, constitution, and sovereignty; the relation between the national and non-state legal orders (be they of the supra- or international kind); finally, to the assertion of the Court as the final arbiter internally (over the Basic Law) but also externally (in relation to its rival, the European Court of Justice). These debates are not merely essential to the understanding of Germany as a modern democratic *Rechtsstaat*, but have fundamental, even universal significance as well, for the evolving understanding of statehood in Germany, and for the rationality, integrity, and autonomy of constitutional law as a discipline.

PART I
CONSTITUTIONAL LAW AS A DISCIPLINE

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1

The Emergence of Constitutional Law as a Positive Discipline

> [Jurists] want to treat and 'construct' the state 'juristically', which is about the same as eating a Beethoven sonata with spoons
>
> Ludwig Gumplowicz (1907: 450)

In the beginning was the state. The state has formed the object of 'scientific' analysis of its general principles and theoretical foundations since the early seventeenth century (*ius publicum universale*). The first work on the general law of the state, *Discursus Septimus Epitomen Jurisprudentiae Publicae Universae continens* by G. Brautlacht, was published in 1620. Universities started to teach *Allgemeines Staatsrecht* from the end of the seventeenth century on the basis of Aristotle's *Politics* (1996), natural law (in so far as it pertained to the sphere of the state), and contemporary West European constitutional thought (Kuriki 1974: 557). An encylopedia entry by A.F. Schott in 1780 defines *Allgemeines Staatsrecht* as:

> . . . the epitome of those general principles of natural law that relate to the institution of the state and the resultant rights and obligations between the regent, the entire people, and the individual subject, irrespective of the particular individual state. (Schott 1780: 37 *et seq.*)

Although the eighteenth century sees references to *Staatslehre* and *Staatsverfassungslehre* (Stolleis 1992: 122), it is not until the middle of the nineteenth century that *Allgemeines Staatsrecht* takes a new turn. In the age of enlightenment and revolution, its natural law roots increasingly incriminated the discipline—there could be no such thing as a general law of the state rooted in natural law philosophy! The law relating to the state and the administration divided into two separate spheres. The first discipline was doctrinal and positive (*Staatsrechtslehre*) and focused only on the legal nature of the state, its constitution, institutions, functions, structure, and relation with other states (Jellinek 1921: 8–9; Badura 1998: 207, notes 21 and 22). *Staatsrechtslehre* shed its philosophical and historical roots and became a

descriptive and empirical discipline. Thus reduced, the positivism of *Staatsrecht* developed in the aftermath of the failed revolution of 1848 which ended the prospect of a united and democratic German nation-state.

The second discipline (*Staatslehre* or *Staatswissenschaft*) was concerned with the historical origin of the state, its political and social history, its demise, specific forms of statehood, and the relation between state and law. It was a descriptive science that subdivided into a social, philosophical, and ethical theory of the state (*Staatslehre; -philosophie; -ethik*), whose objective it was to capture the attributes of the state. *Allgemeine Staatslehre* had already replaced *Allgemeines Staatsrecht* at the universities of Freiburg and Würzburg in the first half of the nineteenth century and was on an expansion course throughout the second half (Kuriki 1974: 559). It borrowed heavily from its eighteenth century precursors (e.g. *Natürliches* or *Allgemeines Staatsrecht*, *Staatslehre, Staatsverfassungslehre*) (Stolleis 1992: 122).[1] But, crucially, it no longer served political ends (as had been the case prior to 1850), and instead focused analytically on the positive law of the state in combination with the disciplines of politics and legal philosophy (Riedel 1963; Kuriki 1974; Friedrich 1985: 15; Stolleis 1992: 121–86). It is in German law faculties (Heidelberg, Tübingen, later elsewhere) that the *Allgemeine Staatslehre* took shape as the now classic constitutional law discipline that went beyond law and looked at the timeless foundations of the state by embracing Aristotle's *Politics*, Hegel's philosophy of the state, and (initially) the historical school of law.

Intriguingly, it was the state (rather than the constitution, legal sovereignty, or the people) that emerged as the central constitutional concept in all the great historical works of the first half of the nineteenth century. The concept, as Georg Jellinek noted critically, was 'still rooted in Antiquity' which was 'only able to conceive the state [*Staatsleben*] as an unbroken entity' (1921: 67). The rise of the *Allgemeine Staatslehre* was assisted by three broader developments as well. First, sociology emerged as a discipline in its own right under Auguste Comte (1798–1857), Herbert Spencer (1820–1903), and John Stuart Mill (1806–1873). Second, the old concept *Staatslehre* was reduced to 'statecraft', or the exercise of political power, which created a space for an *Allgemeine Staatslehre* (von Mohl 1859: 539; 1966). Third, public law emancipated itself from the historical school of law, closely associated with Friedrich Carl von Savigny (1779–1861) for whom law was not the arbitrary product of the will of the law-maker, but a meaningful product of the spirit of the people. The *Allgemeine Staatslehre* borrowed the

[1] On public law before the nineteenth century see generally Stolleis 1988.

'juristic method' and the *Wissenschaftlichkeit* from civil and private law proclaimed by G.F. Puchta (1798–1846) and C.F. von Gerber (1832–1891), which allowed it to develop into an autonomous discipline and self-standing *Wissenschaft* that excluded all non-legal considerations. The juristic purity of public law positivism was characteristic of the 'scientific' age, and was purportedly based on concepts that were either true by definition or independently verifiable. This positivistic mind-set became well known as *Begriffsjurisprudenz* (Geis 1989: 91; Schröder 2008: 162–3).

The constitutional branch of legal (*staatsrechtlich*) positivism reached its 'finest hour' (Korioth 2000: 42) in the years following the formation of the German Empire from 1867 to 1871. It strove to conceive Bismarck's *Reichsverfassung* (the first constitutional code to apply to all of Germany) as positive law (*Gesetz*) and to establish *Staatsrechtslehre* as an exact science that produced predictable and logical results through legal exegesis. This was all the more necessary, as well as harder to achieve, because of the arbitrariness, philosophical bias, and political prejudice which had characterized the earlier form of *Staatswissenschaft*. Its unstable roots, between 'science' and politics, are reflected in the juxtaposition of norm and reality. This recurring dualism ruptures legal scholarship in the late nineteenth and early twentieth centuries. It is a key characteristic of modern law (Habermas 1992; 1996) as well as a dominant theme of this book.

Legal-constitutional positivism had fully matured by the turn of the century, by which time *Allgemeine Staatslehre* had become the common title for a number of classic works from Georg Jellinek (1921) to Hans Kelsen (1925), and by countless others in between. It was the standard-bearer for scholars attempting to follow, distinguish, or distance themselves from that tradition (see Chapter 2). Carl Schmitt's major work was provocatively entitled *Verfassungslehre* (1928) and purported to be a systematic (as opposed to general) theory of the Weimar constitution:

> A particular view of 'positivism' serves to drive fundamental questions of constitutional theory from the realm of *Staatsrecht* into general *Staatslehre*, where they occupy an unclear position between state theory generally, and philosophical, historical, and sociological matters. (Schmitt 1928: vii)

Hermann Heller's *Staatslehre* (first published in 1934, republished in 1971a) also does away with the ambition to be 'general': the state is an historical construction of political reality. Heller was less concerned with doctrinal, positive constitutional law (but see his writings in 1971: 281–417) and more with a break from the Imperial *Staatsrecht* whose methodology was 'unpolitical' (*ibid.*: 3–30). As a result, Heller is seen as a representative of the *Allgemeine Staatslehre* which defines itself as a discipline 'not through the

generation of abstract and conceptual definitions of the state, but through its distance to individual phenomena that is achieved through theory, ideal-types, and comparative approaches' (Voßkuhle 2004: 3).

Today the *Allgemeine Staatslehre* is a bit antiquated as a term and as a discipline, and its future is uncertain (Hofmann 1999; Schönberger 1999; Möllers 2000: 418). Hennis noted its 'total demise' in the 1960s (Hennis 1963: 11). One reason has to do with an inability to exert influence and attract a following: according to Korioth, 'not a single book was written after 1945 with the stated objective of devising a new principled approach to the problems of the state' (Korioth 1990: 283; Hesse 1987: 58).[2] Another problem is presentational: the discipline cannot be defined by translation or linked to an international counterpart[3] since any such attempt would fail:

> . . . to capture a field devoted to a quest to understand the proper role in public life of the state bound by the rule of law, a field which rejects any strict academic division between legal studies, political, social, and economic theory, and philosophy. (Dyzenhaus 1998: 1)

It is suggested that the most appropriate way of tackling the complicated subject-matter of the 'state' is to view it not as a specific phenomenon fixed in time and space but as an abstraction or an argument (Möllers 2000). However, discussing the existence of the state in abstract terms cannot mask the disagreement as to its content: there is no universal concept of the state which is valid for all social disciplines (Badura 1998: 99). It is, therefore, up to each interpretative model to mould it and imbue it with meaning. The conflicting methods will be discussed in Chapters 3 and 4.

For the time being, it is necessary to return to the development of legal positivism in the second half of the nineteenth century whose aim it was to depoliticize, formalize, and theorize public law (see generally Wilhelm 1958: 70–87, 88–156; Stolleis 1992: 277, 282). 'Positivism' took at least three different forms (see Ott 1976; cited in Caldwell 1997: 3). The first variant, sociological positivism, identified law with social practice and treated it as fact. The new discipline of 'sociology' analysed the reality of state and society in terms of their empirical reality, and law as a particular articulated form of

[2] This is not quite accurate, and Voßkuhle counts 12 books (a vanishing number) that have appeared in the past 50 years with the title of *Allgemeine Staatslehre* (2004: 2, note 2). For attempts to rejuvenate the discipline: von Arnim 1989; Häberle 1996: 271: 'The "Allgemeine Staatslehre" will probably continue to exist even after the "State" has disappeared'; Schuppert 2003 [different name (*Staatswissenschaft*), but same ambition]; Voßkuhle 2004.

[3] Which is seen as further evidence of the contemporary decline of *Allgemeine Staatslehre* as discussed in the Introduction: '. . . why should one even bother about a concept that doesn't even seem to have a proper English name'?, asks Drechsler (2001: 107).

authority, of interest only as a product of society. The theory of the state was the theory of social organization. According to Marck (1925: 151–2) and Jöckel (1930: 200–1), the state existed as a social-empirical reality. As a result, the *Allgemeine Staatslehre* was the proper subject-matter of sociology and not the juristic method. A concept of the state which induced its formal structure only from the written constitution, written laws, and court judgments was an impoverished theory which did not describe the reality of the state. All norms counted as law, regardless of whether they were written or unwritten, or whether they were enforced by state officials or private persons, provided only that they could be effectively enforced (Caldwell 1997: 3). In its extreme form, the state became a real-life character with a biological organism (von Gierke 1902; 1915; see generally Badura 1998: 115–16). Alexander Hold-Ferneck described the state as a '*makroanthropos*' and '*Übermensch*' (1926: 18, 68), which in daily parlance was often personified by caricatures, such as John Bull, Marianne, and Uncle Sam (Badura 1998: 107). From a legal perspective states did not behave very differently from people: people make contracts, states make treaties, people fight, states declare war, and so on. The problem with sociological positivism was that, since it was geared towards finding facts and drawing connections, it could not establish the veracity and validity of its own values (which was the preserve of philosophy). This failure fuelled the importance of legal(-istic) approaches which formed the second and third variant of positivism.

The second variant, statist positivism, identified the theory of law with the norms correctly enacted (and posited) by a legal authority. *Staatsrecht* was particularly affected by the growth of legal positivism and the juridical method in the middle of the nineteenth century (Stolleis 1992: 423). A law was a law not if the norm could be effectively enforced, but if it was recognized as valid within the legal system. Whereas sociology of law stood 'outside' the object (law/state) that it observed, legal positivism took an 'internal' perspective on what the legal actor determined to be a valid and binding norm (Hart 1994: 57). The idea of the traditional liberal *Rechtsstaat*[4] was borrowed in the late nineteenth century by Otto von Gierke and Rudolf von Gneist and reconceived as the link between state and society and the unifier of law and the state. Positivism's main ambition was to overcome the situation which existed prior to 1871, where political conviction and philosophical ideals blurred legal analysis, and to confine political debate to other arenas such as administrative law, social, and labour law and the Anglo-

[4] Which Kommers rightly translates as 'a state governed by the law of reason' rather than the clumsy terms 'law state' or 'a state governed by law', or the misleading term 'rule of law' (1997: 36).

German naval rivalry (Caldwell 1997: 3). The legal discipline was depoliticized by making it scientific, i.e. systematic, logical, and conceptually concise. Clear dividing lines were being drawn between positive law on the one hand and highfalutin 'preludes in the philosophical sky' (Carl Friedrich von Gerber, cited in Stolleis 1992: 423) on the other. Even though the methodological tools in the construction of legal argument were still being borrowed from philosophy (legal positivism used the framework of natural law for the codes of the bourgeois constitutional state but no longer gave naturalism any substantive meaning), law gradually became morally and intellectually autonomous, and came to be recognized as a technical instrument of rational government for modern states.

The final variants, 'legal scientific' and statutory positivism, were prominent during the German Empire. They conceived statutes as the highest expression of the state's will. Carl Friedrich von Gerber (1823–1891) and Paul Laband (1838–1918) were the key representatives of this school. Gerber's *Grundzüge eines Systems des deutschen Staatsrechts* was published in 1865 and 1869. Laband's three-volume *Staatsrecht des Deutschen Reiches* was published between 1876 and 1882, and became the standard reference work that 'completely dominated more than a generation of German publishers' (Triepel 1927: 9). A fourth volume was added and it went through five editions (by 1911), which was 'undoubtedly an unusual achievement' (Friedrich 1986: 199). Although von Gerber and Laband tend to be mentioned in the same breath, Friedrich emphasizes the differences between the two scholars. Gerber's contribution lay in reconceptualizing *Staatsrecht* in general terms. His system consists of concepts and rules that illustrate, rather than derive from, the legal order (the 1871 Imperial Constitution and properly enacted statutes). The state is the highest personality within the legal order, whose personal will (*Staatsgewalt*) equated to the right to rule (*Herrschen*): *Staatsgewalt* is 'the will-power of an ethical organism conceived in personal terms' (von Gerber 1880: 19). The role of constitutional law (*Staatsrecht*) was to determine the structure and legal limits of state power (von Gerber 1869: 1–8, 190–214): '*Staatsrecht* is the theory of state power' (*ibid.*: 3). Gerber's theory is best described as 'legal scientific' (*rechtswissenschaftlich*) positivism (Friedrich 1986: 205–6).

Laband's *Staatsrecht*, by contrast, is the systematic analysis and exegesis of positive Imperial public law. It seeks to conceptualize only the rules that are contained in positive law and is typical of the 'statutory positivism' that prevailed at the turn of the century (Friedrich 1986: 206). In methodological terms, statutory positivism sought to derive what was 'right' from the statute via a purely conceptual juristic method (*Begriffsjurisprudenz*) which banned historical, political, philosophical considerations from the analysis of state

law.[5] Legal analysis had to be juristic and logical. The positivist method could be summed up in a few pithy sentences, which Laband did in a famous passage:

> The scientific task of the exegesis of a specific positive law lies in the construction of legal institutes, in the deduction of individual rules from general concepts and, on the other hand, in the generation of consequences based on these concepts. Apart from the investigation of valid positive rules of law, this is a purely logical activity. No other means than logic can solve this task; to this end it cannot be replaced by anything; all historical, political and philosophical observations—as valuable as they themselves are—are without relevance for the exegesis of concrete legal material . . . (Laband 1911: ix)

Laband goes on to pre-empt any criticism that he is trying to shoehorn *all* legal scholarship into the paradigm of legal *Dogmatik*. That is not so, and he can absolutely understand if scholars, instead of doing *Dogmatik*, prefer to explore law historically or comparatively: '. . . but what I cannot accept as valid is when scholars attempt to use legal exegesis for purposes that go beyond the conscientious and complete determination of positive law and attaining a logical mastery of law through concepts' (*ibid.*).

This classic statement on the task of legal doctrine distinguishes between two processes of legal knowledge. The process first, inductively, constructs general legal concepts and institutes. It then, deductively, systematizes positive law under general headings. The first process is decisive, which explains why Labandian positivisim is 'constructive'. Inspired by the science and methods of German private law (Wilhelm 1958), Laband's legal order has no gaps and can be systematically constructed through a combination of formal legal concepts and logical rules of law. The activity is 'logical' and 'terminological'—material aspects are banned from the juristic construction.

Although positivism itself was not a new phenomenon, Laband's radical application of positivism to a legal area that had hitherto always been conceived in combination with other state-oriented disciplines was new. Methodologically, statutory positivism made an incision by rejecting the historical method of German *Staatsrecht* as well as two forms of positivism: sociological positivism (which took account of social norms) and legal positivism (which recognized a hierarchy of laws). Gerber also rejected the historical method because the constitutional constellation in Germany, including the role of existing institutions, had radically changed after 1871. As a result, he argued, it was not appropriate to base legal argument on the

[5] Cf. the historical school of jurisprudence of Savigny (1814) and also Gerber's system of *Staatsrecht* which was based on a material theory of the state.

status quo ante—the feudal and patrimonial state (von Gerber 1880: 9, 10 note 2). Gerber's methodological critique and ahistorical doctrinal insights, although without wider significance at the time (Stolleis 1992: 337), paved the way for Laband's systematic positivist programme. Laband's achievement was to consolidate a distinct body of public law with its own juristic method (Friedrich 1986: 197; Möllers 2008: 17) and to emphasize the legal character of public law (Schwinge 1930: 7).

Laband's positivism ensured that law, history, and philosophy would in the future take on independent and separate forms. His juristic method was attractive for both positivists and anti-positivists alike. On the one hand, Hans Kelsen would later extend the rejection of historical aspects to target all 'sociological' theories of the state, which Heller criticized as 'the logical consequence of an anti-sociological and alien (*Wertfremd*) programme of Labandism' (Heller 1971: 15–16). Laband's theory represents the starting point for the foundational controversy that will be explored in this chapter and the next. On the other hand, anti-positivists were able to latch on to Laband's rejection of a hierarchy of legal norms. It must be borne in mind that the constitution of the Empire contained only laws of organization (basic rights were not added until the Weimar Constitution). According to Laband, the state produced the articles of the constitution and statutory law but the former were logically no 'higher' or better protected than the latter.[6] Based on the legal person in civil law, the state was a moral person with rights and obligations (which served the dual ends of monarchic legitimation and mystification). The 'will of the state' was central to its administrative competences (*Staatswillenspositivismus*: see critically Brunkhorst 2003). State power was pre-constitutional that was only limited, and not constituted, by law. 'The constitution is not a mythical power which hovers above the state but, as an act of state, is equal to all other laws and changeable according to the will of the state' (Laband 1911a: 39–40, 200). This explains why Imperial *Staatsrecht* had no conception of a material constitution, and no theory of the primacy of the constitution (Wahl 1981: 493; Starck 2007: 32–3).

Substantively, therefore, legal positivism was not ideologically neutral or apolitical: on the contrary, it was clearly motivated by the conservative desire to retain the existing social and political situation of the Empire, especially the monarchic executive (Caldwell 1997: 13, 29). This created a tension

[6] This is also true as a general description of nineteenth century German constitutional law. The constitution was not conceived of as *lex fundamentalis*. This explains why Germany did not produce its own theoretical basis for the constitutional review of statutes (the Federal Constitutional Court was modelled on the US Supreme Court: see Wilms 1999: 1527), and why basic rights—until 1949—did not impose legal limits on the law-maker (see Wahl 1981: 491).

between law as a positive discipline (formalist, 'scientific') and the role of law in its social context: the state was a *Machtstaat* which developed into a 'juristic person' with its own (fictional) personality and will. 'The legal articulation of state power is rule [*das Herrschen*]' (von Gerber 1880: 21). Rule may be limited by the material and legal constitution (*ibid.*: 33–44), but it still created a relationship of subordination. The state was a sovereign monolith, and state power was embodied solely by the monarch (not parliament) (*ibid.*: 77–82). The people and communities were 'objects' of rule, and the 'citizen' was a 'subject' (the two concepts were coterminous) who had to obey. Laband's depoliticized and logical methodological convictions also disguised the very political implications of his theory. The political neutralization (in the name of legal positivism) of constitutional law, that was after all the outcome of political will and determination, could only lead to its fossilization. Laband and von Gerber were open supporters of the constitutional monarchy whose survival they sought to secure and legitimate through a biased interpretation of law (see Stolleis 1992: 276–8, 335–6, 347; Caldwell 1997: 13–39; Böckenförde 1981a: 211–20, 226–42; Rennert 1987: 23–35; Kelly 2004: paras. 42–4).

After 1871, the *Allgemeine Staatslehre* experienced a phase of stagnation which lasted until the turn of the century. Commentators spoke of a 'complete drought' (Gumplowicz 1907: 20) or lamented the fact that 'virtually nothing had happened for decades on the general theory of the state in Germany' (Bornhak 1896: Introduction). Stolleis draws attention to Hermann Rehm's *Allgemeine Staatslehre* (1899) as a representative work in this period. Although Rehm appreciates the independence and autonomy of the *Staatsrechtslehre* as a result of the positive segregation of law, politics, and history, he nonetheless analyses the 'essence' [*Wesen*] and 'totality' of the state with reference to historical, political, and comparative legal sources. The preference for constitutional monarchy and the dualism of Crown and Parliament solve the political problem and stifle the *Allgemeine Staatslehre's* potential for creativity and innovation. 'In this manner, the *Allgemeine Staatslehre* completely lost its normative claim vis-à-vis positive *Staatsrecht*' (Stolleis 1992: 441). It became an 'assisting science' (*ibid.*) that either delivered on depoliticized legal theory (regarding legal validity or the logical coherence—*Stufenbau*—of the legal order: see Merkl 1968), or explained the development of the state historically based on a Hegelian or teleological vision of the progressive enrichment of human powers throughout history.

By the turn of the century, the integrity of constitutional law as a discipline was in crisis. The concept of the 'state' was the subject of purely sociological analysis (Gumplowicz, Ratzenhofer, Oppenheimer) and of fused legal and sociological analysis (Triepel, Kaufmann, Smend). The latter authors were

united in the conviction that a purely legal element did not suffice to conceive the state, and that recourse to politics, sociology, history, and comparative law was necessary in principle. Stolleis notes that, in this early period, even Carl Schmitt had not yet made up his mind. Although Schmitt introduces his key concepts (decisionism and exception) in his second book (Schmitt 1912), his *Habilitation* thesis (Schmitt 1914) distinguished between law and state in neo-Kantian fashion. In those early days, both routes (decisionism and normativism) seemed open to Schmitt (Stolleis 1992: 449). The *Allgemeine Staatslehre* needed a unifying thesis to prevent itself from falling apart. That unifying or synthesizing thesis was provided by Georg Jellinek right at the start of the new century.

I. Georg Jellinek (1851–1911)

The argument of the present chapter is that the emergence of constitutional law as an autonomous discipline culminated in the publication of two seminal works. The high point of Wilhelmine *Staatslehre* was undoubtedly Georg Jellinek's *Allgemeine Staatslehre* (1921), first published in 1900. It was an attempt to overcome and replace Labandian formalism (Friedrich 1986: 212) which finally broke the deadlock that had persisted throughout the second half of the nineteenth century. Jellinek accepted the need for a differentiated juristic method, but rejected both a scientific sociological approach (of which Max Weber was the latest exponent)[7] and a scientific legal approach (Laband) as erroneous approaches. The historical and ontological existence of the state ('*Das An-sich des Staates*') could not be answered by legal positivism (Jellinek 1905: 21), and the legal nature of the state could not be answered by sociological positivism. The state could neither be understood in purely normative-juristic terms nor in purely socio-politico-historical terms. The state could only be conceptualized by a custom-made 'two-sided' theory of the state (*Zwei-Seiten Lehre*), which was a 'synthesis'[8] whereby the state could be the identical subject-matter of both analytical approaches (Jellinek 1880: 50 *et seq.*; 1882: 9 *et seq.*; 1905: 17 *et seq.*; 1921: 10 *et seq.*). Jellinek distinguished between a social, empirical theory of the state (*soziale Staatslehre*) and a juristic, normative theory of state law (*juristische Staatsrechtslehre*). This distinction had methodological repercussions for the academic disciplines: whereas the object of analysis of the social theory of

[7] Jellinek and Weber communicated with each other during their time at the University of Heidelberg (Korioth 2000: 45).

[8] See Friedrich 1986: 212; Stolleis 1992: 450; cf. Möllers 2000: 34–5.

the state is human relations (such as exist between the governors and the governed) and the factual-historical union of people, the juristic theory analyses the state as a legal subject that is based on law and justified by its guaranteeing of the legal order (1921: 11, 334 *et seq.*). The state can be analysed from parallel perspectives that are, nonetheless, methodologically distinct:

> An amalgamation of law with its pre-legal elements should not occur in a scientific description of the theory of the state. (*ibid.*: 11–12)

It is important to note that Jellinek does not produce two different concepts of the state but one concept which reveals the dual nature of the state (Badura 1998: 108). The state, like a coin, has two sides, and a comprehensive theory of the state (that embraces both sides) is the foundation of all theoretical study of the state (Jellinek 1921: 12). The identification of the state at the intersection between fact and norm is a distinction that continues to reverberate in constitutional law discourse today. The concept of the state contains factual-political and normative-legal elements. The ideological recourse to extra-legal elements in the analysis of constitutional concepts, however, raises methodological issues and is open to criticism particularly from the positivist camp. On the one hand, Jellinek's concept of law is a unitary concept that is the same in all acknowledged areas of law (1880: 1). It is not contingent on material (cf. Savigny), rational (cf. von Mohl), or natural law (cf. Pufendorf) elements but is grounded in the people as an organized unity and, hence, the state. The state is the legitimate law-making organ because it posits law according to the 'sovereign will of the totality' (1880: 2). Jellinek refers to Hegel (1991: §333) who claims that laws are only valid if they can be traced back to the will of the state, in other words, if they are the result of an empirically verifiable law-making process (Jellinek 1880: 3).

But, on the other hand, Jellinek's separation does not go far enough. His juristic concept of the state is ultimately contingent on sociological pre-conditions (Badura 1998: 208). In an important paragraph Jellinek concedes that:

> [However,] the theoretical basis for the juristic conception of the state is the indisputable natural, historical phenomenon of a people settled within the boundaries of their territories and governed by a ruling class, which characterizes all communities of mankind that are termed states in learned discourse. (1905: 21)

The state, according to Jellinek, is made up of more than law. It consists of territory, people, and effective government (*Staatsgebiet, Staatsvolk, Staatsgewalt*),[9]

[9] This triad has also formed the core of the guidelines for the recognition of new states in public international law since they were included in the definition of Article 1 of the Montevideo Convention on Rights and Duties of States (26 December 1933, L.N.T.S, vol. CVXV, at 25).

and is prior to anything else an untamed sovereign socio-political unit. The natural existence of the people is transformed into a legal existence as *Staatsvolk* (1921: 263). As a legal concept the state is an organic union equipped with political power to organize the community of people (*Volksgemeinschaft*).[10] The state is not identical with the law but with the people that it represents who in turn identify themselves with the state and from whom the *Machtstaat* demands obedience (*ibid.*: 183). Only later does it develop its normative potential through self-commitment (*Selbstverpflichtung*) to law (1882: 34; 1905: 195; 1921: 367 *et seq.*). Every law is a self-limitation of the will of the state (1880: 27). Jellinek here resorts to pre-legal categories (power, people, territory) on which to ground his factual concept of state. Only later does the state evolve into a polity with legal personality that can enter into legal relations with other states (1905: 28).

The main difficulty with Jellinek's theory is the incommensurability of Weber and Laband (Breuer 1999) which results in a methodological impurity that stems from his attempt to harness a social scientific *Staatslehre* and a normative *Staatsrechtslehre*. The juristic method deals with the legal norms that regulate the state's institutions and tasks (Jellinek 1921: 138). However, the finely-balanced relation between the is-condition (what actually happens in the state) and the ought-condition (his normative legal theory) is conceptualized by 'the normative power of the factual' which transforms factual power into legal power (*ibid.*: 338 *et seq.*) and understands the basis of the creation and validity of law as socio-psychological. But this is where the theory comes undone. Having carefully separated the juristic and sociological method in neo-Kantian fashion, Jellinek ultimately tends towards the monistic assertion of the sociological method (Friedrich 1986: 213; Badura 1998: 208) and undermines the integrity of the juristic method. The state is a meta-juristic concept that links up with (and doubles up) a sociological concept of state (Jellinek 1921: 182 *et seq.*). In the final analysis, the concept of law is based on a non-juristic, substantive concept of state (Möllers 2000: 23). Law is nothing but a 'factual exercise' (Jellinek 1921: 339): the continuous and repetitive nature of the exercise transforms the habit into a legal norm.

Jellinek's premise that the individual fields of empirical and normative research had to be separated made perfect sense. Throughout the nineteenth century, distinctions had been made between a descriptive, natural theory of the state (state history), an evaluative, future-oriented 'politics', and a normative theory of the state that dealt with 'contemporary, valid law' (Stolleis

[10] The term was discredited only after the National Socialist regime.

1992: 453). In other words, the state had been isolated from and opposed to society (which was regulated by private law) and the legal order. It had routinely been understood as a pre-legal, natural phenomenon which, even in the course of the nineteenth century when it became bureaucratized, institutionalized and equipped with *raison d'état*, relied on the sovereign to intervene in constitutional conflicts or to fill lacunae in the law. 'The lesson of the nineteenth century was that the state could breach laws and could subsist on the basis of power alone, without law' (*ibid.*: 453).

As mentioned above, the highpoint of the *Allgemeine Staatslehre* was reached by Jellinek in 1900. His is the starting point for any contemporary inquiry into the nature of the state, or more precisely, into which method correctly captures the nature of the state. By identifying and isolating the two sides of the state, Jellinek accentuated the existing boundary lines and, more significantly, ensured that the entire public law debates of the future would fall within the arc of the *Allgemeine Staatslehre* that captures the tension between is and ought, facts and norms, politics/power and law, realism and idealism, legality and legitimacy, and state and constitution. The distinction is not just one of methodology; it is epistemological and existential, ingrained and ideological. As the opening citation by Gumplowicz suggests with a hint of exaggeration, the schism runs as deep as the distinction between a Beethoven sonata and something that can be eaten with a spoon.

Hans Kelsen's *Allgemeine Staatslehre* (1925) is usually safely ignored in this context (Morlok 1988: 24; Geis 1989: 92) as it expressly does not share Jellinek's dual conception of the state and instead favours a 'strictly juristic theory of the state' (Kelsen 1925: viii). But the focus of the present chapter is not to chart the development of the *Allgemeine Staatslehre* specifically, but to analyse the emergence of constitutional law as an autonomous discipline. In light of that agenda, Kelsen's contribution to constitutional theory needs to be included. After all, it was Kelsen's *Allgemeine Staatslehre* that was the catalyst for an unparalleled 'struggle over methods and aims' and resulted in a variety of methodological concepts and approaches (see Schwinge 1930; Smend 1994: 121, 620–35; Scheuner 1972; Friedrich 1977; Heun 1989; Geis 1989; Stolleis 1999: 153 *et seq.*; Jacobson and Schlink 2000: 3; Schulte 2005).

II. Hans Kelsen (1881–1973)

If one considers the lasting and continuing impact Kelsen's theories have had throughout the world (see *Schriftenreihe des Hans Kelsen-Instituts* 1978),

which is reflected by the many foreign language translations of his works,[11] and by adulatory statements such as by Kunz,[12] Moore,[13] and Hart,[14] it may come as a surprise to learn that they were not very influential on post-war German legal theory.[15] One reason may be that he lacked immediate influence. Due to his Jewish ancestry he was 'put on leave' by the University of Cologne in April 1933 and asked to retire in September (Stolleis 1999: 283). To its credit, the law faculty (with the exception of Carl Schmitt) protested.[16] Kelsen moved first to Geneva (1933–35) and then Prague (1935–38) before emigrating to the United States of America where he taught at Harvard Law School (1940–42) before settling in Berkeley (1945–52).

A more fundamental reason for his lack of influence is that Kelsen's ambition in the inter-war years to depoliticize jurisprudence and democratize politics conflicted with the anti-positive direction of German legal science and the anti-democratic direction of German politics.[17] Willibalt Apelt notes that the legal discipline had begun to renounce its constitutional task of interpreting 'the formulated words and thought processes faithfully and in modest submission to the legislator' and had instead set out to infuse the process of textual interpretation with 'their own ideas on contemporary constitutional law' (1964: 417). The work done by the late nineteenth century positivists to establish constitutional law as an autonomous discipline with its own juristic method was being undone. As Kelsen wrote in the Preface to the *Pure Theory of Law:*

> Jurisprudence had been almost completely reduced—openly or covertly—to deliberations of legal policy, and my aim from the very beginning was to raise it to the level of a genuine science . . . (1934: ix; 1992: 1)

It is against the background of law-making through political interference and political bias in legal interpretation that Kelsen's pure theory of law must be understood. The relation between state and law—the focus of the traditional discipline of *Allgemeine Staatslehre*—may have reached a high watermark

[11] The languages into which the 'Pure Theory of Law' has been translated include Japanese and Korean.

[12] For whom Kelsen is the 'jurist of the century' (1952: 119); see also Dreier 1993.

[13] 'Kelsen's insights, retooled and refined, have become indispensable parts of world-wide scientific jurisprudence' (Moore 1978: 210; cited in Dreier 1990: 16).

[14] '. . . the most stimulating writer on analytical jurisprudence of our day' (Hart 1983: 308).

[15] Kelsen's work experienced a renaissance that began with the publication of Horst Dreier's *Rechtslehre, Staatssoziologie und Demokratietheorie bei Hans Kelsen* (Dreier 1990) who tries to integrate Kelsen's theory with contemporary theories on law and state.

[16] For a brief overview in English of the developments leading up to Kelsen's suspension see Rüthers 1999.

[17] On Kelsen's theory of democracy see Kelsen 1929 and now Groh 2010: Chapter 4.

with Jellinek's two-sided theory of the state as a legal institution as well as a social construct. But Kelsen rejected the dualist analysis on the grounds of scientific methodology: the state was an object of legal science and could not, therefore, be analysed from two completely different perspectives. The first side of Jellinek's dualism (legal positivism) drew on Carl Friedrich von Gerber and Paul Laband whom Kelsen cited with some approval (1925: vii), although he mainly disapproved of the ideological and authoritarian undercurrent in Laband's work.

Kelsen's first major publication *Hauptprobleme der Staatsrechtslehre* (his *Habilitation*, first published in 1911) is not a textbook in the tradition of German *Staatsrechtslehre* but a critique and reconfiguration of legal theory that derives from an epistemological definition of law. With that book, Kelsen single-handedly sounds the death knell for Labandian positivism[18] which uncritically equates the legal system with the sum total of laws that are posited and enforced by the state. Kelsen further rejects all theories of law which resort to empirical, ethical-political concepts in the determination of the law that stem ultimately from the subjective will of the individual jurist and lead to a reduction in objectivity (1923: 508 *et seq.*).

As Kelsen repeatedly emphasizes, positive law is not 'a complex of "is"-facts' and the state is not 'the epitome of factual power relations' (1968a: 337; 1930: 11[19]) which precede the law. Instead, from a science of law perspective, the state is identical with the law. The question whether a singular object (the state) can be the subject of two different scientific methods is answered in the negative (1923: 395–6; 1925: 7, 76; 1928a: 115). Jellinek's error, he claims, was to draw normative conclusions from sociological facts, and to make sociological claims that did not correspond to real-life facts. The factual unity of the state, for instance, was pure fiction (1923: 177). Kelsen solves the problem of having two such heterogeneous sides of the same coin by arguing that the central problems of state theory are juristic.

The displacement of the political, Kelsen asserts, could only succeed through 'objective' concepts. Basic principles such as the systematic understanding of the unitary legal order, logical coherence, and non-contradiction were to enable a higher level of abstraction, putting the analysis of law on a par with the natural sciences (Dreier 1990: 104–12). Kelsen departs from the 'constructivist juridical method' initiated by von Gerber and finalized by Laband, and he deconstructs their forms of applied ('legal scientific' and

[18] In a letter to Renato Treves on 3 August 1933 Kelsen wrote that the *Reine Rechtslehre* was also written 'im Kampf gegen den Labandismus'; published in Paulson 1992: 56. This achievement is further acknowledged by Kaufmann 1960: 199–200; Heller 1971: 15 *et seq.*, 24; Smend 1994: 124.

[19] The state is 'not a creation of nature but of the mind'.

statutory) positivism. Backed by neo-Kantian thought, Kelsen's presentation of law as a normative science is based on a distinction between the natural sciences (*Naturwissenschaften*) and the sciences of the mind (*Geisteswissenschaften*) or culture (*Kulturwissenschaften*).[20] Whereas the former is concerned with material facts ('is'), the latter deal with meanings and values ('ought'). At first sight this seems to preclude a normative science of law. How can meanings and values form the basis of a science? Are natural law, moral maxims, and religious postulates susceptible to scientific study? In order to make law a self-sufficient system Kelsen needs to close it off not only from the natural sciences but also from other normative claims. This produces the most accurate description of Kelsen as a 'deconstructive normative positivist' (Jestaedt and Lepsius 2006: vii *et seq.*): deconstructive (in relation to applied positivism), positivist (because law cannot be explained in naturalist, moral, or sociological terms), and normative (because law cannot be explained in natural science terms).

Kelsen's solution is to replace metaphysical ideas with transcendental concepts and to establish a science of law as a *pure* normative discipline which can be derived and systematized from a posited basic norm (*Grundnorm*), i.e. the ultimate and highest ground of validity of the legal system (1916; 1925: 84, 249, 321; 1928a; 1934: 66–7; 1992: 58). Kelsen's *Allgemeine Staatslehre* (1925) was 'one of the, if not the, most important books that unleashed the famous controversies about methods and aims in Weimar public law theory' (Lepsius 2004a: 34). Compared to the anti-positivism of his time (see Chapter 2), Kelsen's theory is dematerialized and formalist. It is dematerialized because his scientific analysis does not allow for an inquiry into the content of law in general and the basic norm in particular. It is 'formalist' not in the sense of supposing that law is formal or attending only to formal aspects of law, but in the sense of being abstract and general. According to neo-Kantianism, science has a pure element (which develops a priori forms) and an empirical element (the forms describe the object of sensation), whereas for the empiricist, the external world is the seat of knowledge which the mind reflects. Kant inverted this claim by making the human mind the seat of knowledge which the world reflects: the mind orders the experience of the world. Since law is not a natural science whose categories and concepts are innate, the science of law must first create legal concepts and reveal the methodology according to which they have been

[20] Such questions of classification were a dominant theme from the turn of the century, and they were vital for the self-understanding, methodology, and outcome of the various disciplines. The disagreements over form and method in the Weimar Republic continue to influence the disciplines (and law especially) until this day (Rennert 1987; Prisching 1988; Lepsius 1995).

created. Together they form a method of legal interpretation. There are two ways of legal interpretation which both presuppose the concept of law: either legal concepts and legal methodology are formed and informed by extra-legal considerations, or they derive from positive law alone. Both approaches agree on the need to have precise legal scientific terms. As Leibniz formulated it: 'Mathematicians calculate with numbers, jurists with concepts' (cited in Badura 1999: 137–8).

For Kelsen the first option is not an option. Scientific legal concepts must be developed from positive law alone if only to achieve a degree of independence from their historical meaning. These legal concepts are variously described as *formal* concepts (*Rechtsformbegriffe*), *ontological* concepts (*Rechtswesensbegriffe*), or as concepts which *presuppose* the normative order of law (*Rechtsvoraussetzungsbegriffe*). The concepts are identical. Kelsen defines law as a normative order in order to distinguish it from the cause-and-effect relationship of a natural order.[21] A law of nature dictates, for example, that a body expands if it is heated. This is a fact. But the same link between cause and effect cannot be made for the legal order. A law of laws does not dictate that a person who steals *will*—as a matter of course—be punished (if he is not caught, he will not be punished). Kelsen illustrates the normative force of law with the 'legal proposition' (*Rechtssatz*), i.e. an 'ought' category for the interpretation of legal norms.[22] In contradistinction to a law of nature, the legal proposition is that a thief *ought to* be punished (Kelsen 1925: 51; 1928a: 76). The charge is not a command (which only applies to moral norms) but a compulsory act (*Zwangsakt*), i.e. a hypothetical 'ought' connection between the fact and the legal consequences which Kelsen describes as an 'imputation' (*Zurechnung*) (1934: 22; 1992: 23).

The impetus behind the pure theory of law is to free the science of law from any form of animism and naturalist thought. There existed amongst anti-positivists at the time a naïve and primitive tendency to view the state as a natural occurrence and explain it through a theory of animism. Animism

[21] The word 'norm' (from the Latin *norma*) has two meanings. The first is descriptive of a situation or of behaviour which is 'the norm' or is 'normal'. The second is prescriptive, and applies to legal or social norms, which need to be analysed in terms of 'ought' (Stewart 1990: 279). Kelsen adopts the latter interpretation. Kelsen is not interested in why the bulk of people regularly act in a certain way, but how they ought to act according to the legal order (Kelsen 1923: 345).

[22] It is difficult to translate *Rechtssatz*. Anders Wedberg translates it as 'rule of law in a descriptive sense' (Kelsen 1961: 45–6) which is confusing. Literally it means 'legal statement' or 'legal proposition'. Bonnie L. Paulson and Stanley L. Paulson translate it as 'reconstructed legal norm' (Kelsen 1992: Chapter 3). It is a mixture of both: a reconstructed legal proposition based on existing statutes that set out the conditions under which the state acts (Kelsen 1923: iii).

suggested that a soul, spirit, or deity was responsible for the existence and function of natural phenomena. Trees grow and rivers flow:

> ...because there is an invisible dryad in the visible tree, a nymph in the river, answered the primitive Greeks, who created the god Helios behind the sun and goddess Selene behind the moon, thus personifying these things. (Kelsen 1948: 377; see also 1928: 18)

Kelsen sought to describe the state and the law as a normative order in order to contradict the unsophisticated view of the state as a moral community and the law as the quintessence of moral demands (1928a: 77). The subject-matter of Kelsen's project was also its central problem. 'One of the most difficult tasks of a general theory of law is that of determining the specific reality of its subject and of showing the difference which exists between legal and natural reality' (1961: xiv). Kelsen does not tire of repeating that the pure theory of law is limited to the systematic understanding of positive law. Law can only be understood on its own terms. Its evaluation, on the other hand, is a matter of political morality. The methodological separation of law and morality prevents an extra-legal or anti-positive foundation of law. Positive law does not stem from moral, natural law, or metaphysical sources but is 'posited' by a human legislator, i.e. the product of human acts. So what are the scientific terms with which law can be understood?

1. The state

The argument of the present chapter is that the emergence of constitutional law as an autonomous discipline culminated in the publication of two ground-breaking works. Jellinek's *Allgemeine Staatslehre* has already been considered as the synthesis and epitome of Wilhelmine public law scholarship. The second book, Hans Kelsen's *Allgemeine Staatslehre* (1925), has a clearer claim to be the high point of constitutional law as an autonomous and juristic *system*. Simply put: the state is law, and with that radical premise constitutional theory in 1925 reaches 'the apotheosis of pure conceptuality' (Geis 1989: 93). It also had a unifying force in that Kelsen's premise was roundly rejected by his principal colleagues (see Chapter 2). For Smend, the formalism of Jellinek and Kelsen represented 'an on-going, highly significant critique, but at the same a progressive depletion of meaning which ultimately culminates in the deliberate vacuity of Kelsen's *Allgemeine Staatslehre* of 1925' (Smend 1994: 124).

Kelsen's *Allgemeine Staatslehre* is 'a theory of the positive state' (1925: vii). The title itself is curious and 'misleading' for a book that sets out the choices as lying between a *pure* theory and a *general* theory and concludes that, in any

case, a general theory of the state is impossible (Heller 1971: 17; Smend 1994: 124). The state exists by virtue of its legal order with which it is implicitly identical—notwithstanding Kelsen's attempts to draw a distinction between state as a legal person and law as a normative system (Kelsen 1923: x–xii). Kelsen is clear 'that no piece of the state falls outside the law and no piece of the law falls outside the state' (1928a: 88). Kelsen's *Staatslehre* is a (positivist) *Staats*rechts*lehre* and a (pure) *Rechtslehre* (1928a: 217). This is a rejection of the Hegelian division of the state into a social and a legal concept as a result of which the state is a political community that is responsible for the creation and enforcement of laws. Following Kant, the 'spiritual reality' of the state is limited to the normative order which it constitutes, and is divorced from human action. Sociological, political, or other factors, in other words the entire second side of Jellinek's theory, are irrelevant for Kelsen's juristic analysis of the state. This distinction is important. Kelsen does not deny the existence of a socio-political perspective of the state. In fact, Kelsen also developed a sociological concept of the state (1925: Chapters 1 and 2; 1928a: Chapters 1 and 2). The point is that the existence of sociology and politics is of no interest to the lawyer. Kelsen does not claim a monopoly over the general concept of the state for the discipline of *Allgemeine Staatslehre*. He claims a monopoly over the juristic-legal concept of the state for *Allgemeine Staatslehre*. In juristic terms, the state is conceived solely as a normative and logical order. In short: the state is the legal order (Kelsen 1925: 16, 1928a: 75, 114; 1934: 115, 117; Dreier 1990: 208) The state is not social reality, i.e. a factual link in the chain of cause and effect, but the area in which the legal order is valid. Contrary to Carl Schmitt (for whom the state is the representative of the union of the people), the state is the representative of the legal system. Contrary to Georg Jellinek, the legal order does not require a pre-legal, Wilhelmine *Machtstaat* in order to be assertive. For Kelsen the power of the state lies in the power of positive law (1925: 17; 1930: 4), and law is the existential form of the state (1925: 74–5). The sovereign state is 'the highest, presupposed order which cannot be deduced from any higher order' (1928: 9–10). Its properties are uniqueness (*Einzigkeit*) and unity (*Einheit*) by which Kelsen means the supremacy of one legal order over other legal or moral orders, and the impossibility of contradiction with another order (*ibid.*: 187–8). The legal order is no different from other systems since every system claims to be the only valid unit (*ibid.*: 189).

Kelsen's analysis of the way the state ought to act and the underlying hypotheses according to which it logically ought to make decisions are philosophically opposed to an analysis of the way the state acts and decides as a matter of fact (1928a: 75). The state is customarily viewed as the personification of the legal order, as a 'person' that combines the plurality

of people into a unit. For Kelsen, this duplication is unnecessary. The legal order and the state are identical. Every state organ requires authorization by the legal order to act on behalf of the state (i.e. to carry out the legal order). The authorization turns the act into a legal act. An act carried out without authorization is not a legal act. Referring to King Midas in analogy, everything the law addresses takes on legal character (1967: 278).[23] The state is nothing other than a 'metaphor for an indispensable construction' (Dreier 1990: 210), or in Kelsen's own words a 'mental creation' [*gedankliche Schöpfung*] (1928a: 214), 'an aid to thinking' [*Denkbehelf*],[24] or a 'cognitive tool' [*Erkenntnismittel*] (1925: 76).

The identity thesis (of law and state) was subject to immediate criticism (see Kaufmann 1960: 198; Jöckel 1930: 130–41). To the extent that Kelsen's concepts were abstract they were also impracticable; and Kelsen's critics also queried the 'purity' of the concepts. The concept of the state was not a scientific or formal concept that preceded law (*Rechtsform-* or *Rechtsvoraussetzungsbegriff*) but a specific or material emanation (*Rechtsinhaltsbegriff*) of a concrete legal order. They were not transcendental legal concepts but empirical and generic concepts of legal science; they did not precede the state but emanated from it. Kelsen responded that the criticisms would be true for *specific* state theory. However, he was concerned with the *general* theory of the state whose subject-matter was the a priori logical assumptions and conditions of positive law. Instead, the concept of the state was an ontological one (*Rechtswesensbegriff*) or a scientifically hypothesized one (*Rechtsvoraussetzungsbegriff*). The essence of Kelsen's state concept is aseptic and artificial. It is not a community of fate (*Schicksalsgemeinschaft*), nor is it defined by common heritage or by bonds of national solidarity (*Volksgemeinschaft*). In the same way that God unifies and embodies nature, the state represents 'the abstract unity of the legal order' (1968: 180), which is not to say that the state is deified. On the contrary, 'the deification of the state' (1928a: 250) is countered by composed and detached analysis of the state in profane and demythologized terms (Dreier 1990: 224–5).

Kelsen purifies constitutional law as a system by depoliticizing its key concepts and reducing them to their core juristic meaning. The (formerly political) state is legalized and identified with the legal order. The legal system has to be coherent, logical, and free from non-legal sources, which means that legal norms can only be derived from other legal norms (and are not the result of ad hoc political decisions). The key concepts of Kelsen's legal system

[23] It is no coincidence that Hans Kelsen, one of the authors of the Austrian Constitution of 1920, saw no need for a constitutional preamble which commonly referred to God.

[24] Translation by Ian Stewart in Kelsen 1986: 117.

(sovereignty, constitution, *Grundnorm*) are discussed in the following paragraphs. They are the backbone of the claim that Kelsen established constitutional law as an independent and autonomous discipline.

2. Sovereignty

Kelsen's main objection to the concept of sovereignty is that, unless it is defined juristically for scientific purposes, it is a malleable and polemical term that can be abused for political purposes (1928: 1; 1970: 164–5). It is this particular conception of state-centred sovereignty that ought to be radically repressed (1928: 320) and not the concept as a whole. In terms of legal theory he argued that it would be a mistake to eliminate 'sovereignty' from modern constitutional law discourse simply because one of its many definitions equates it with absolute and unlimited state power which is contrary to the modern understanding of *Rechtsstaat* (1928: 2–3). Unlike nineteenth century, imperial *Staatsrecht* which did not have a theory of the primacy of the constitution, the constitution according to Kelsen claims legal sovereignty: first, it takes primacy over the democratic process by providing and protecting procedural, institutional, and fundamental norms which are removed from the legislative reach of parliament; and second, it takes primacy over all other legal measures which are, after all, the expression of popular sovereignty. In other words, within the legal system the constitution is paramount. The concept of sovereignty itself is the expression of an indispensable question of constitutional theory. Kelsen defines it as a *Rechtsformbegriff* and as such a 'necessary concept' (1928: 3; note 2) in the sense of being necessary to describe formal properties of the (unitary and hierarchically structured) legal order rather than substantive properties of the state.

> [State sovereignty means] that the legal order of the state is not only the highest order, embracing all other orders as delegated constituent orders and determining their spheres of validity while not itself determined by a higher order; it is also the sole order, because it excludes all other forms. (Kelsen 1925: 109)

The concept of sovereignty allows Kelsen to construct law logically by tracing:

> . . . the individual legal norm of a decision, administrative act, or legal transaction to the general norm of a law, which derives from the more general norm of the constitution, which in turn can be traced to the highest norm which represents the logical source, a juristic hypothesis of constitutive authority . . . (1928: vii)

Sovereignty is, therefore, not a fact. And it is not defined by power. Kelsen attacks the views of Ferdinand Lassalle, a founder of German Social

Democracy, who assumed that the constitution was ultimately rooted in power and not norms. Kelsen responded that on its own a bayonet is nothing more or less than a bayonet. It only comes to embody state power by virtue of an empowering legal norm of the legal system which accords it legal significance (1928a: 89–90). Sovereignty is a supposition, a necessary logical assumption of a highest hypothetical norm that does not determine the substantive content of the constitution (this is the task of the constitutive authority), but unites laws in one and the same system. The state is the personification of the total legal order with which it is identical.

Kelsen is well aware that most scholars have a different image of sovereignty, namely as a bundle of competences. The material concept (*Rechtsinhaltsbegriff*) of sovereignty, which is geared towards social reality and is based on the existence of an army and of state power (Kelsen 1925: 113), is methodologically prohibited ('monstrous nonsense').[25] Sovereignty, Kelsen notes, is a classic example of *Methodensynkretismus*, i.e. 'the fatal fusion of moral-political and juristic, but also juristic and psycho-social observations' (*ibid.*: 114). Sovereignty thus conceived is the result of political abuse with a legal term. Every state is politically dependent on other states and as such not conceivable as the highest, unlimited entity (Kelsen 1928: 6–7).

3. Constitution

Kelsen's *Pure Theory of Law* is not just a theory of the normative state but also a theory of positive law (1934: 1; 1992: 7). The validity of a legal norm, as has already been stated, cannot be derived from a higher, transcendental legal order (such as divine law), or by reference to politics or ethics. The constitution is the set of problems that relate to the creation of the internal order. The constitution is the highest norm of the national legal order that regulates the process of law-making, and as such no different (due to its legal properties) from any lower ranking norm. There is no difference between a theory of the state and a theory of the constitution. The object of both is the validity and creation of the legal order. The fact that the state makes law means that the law regulates its own law-making process (1925: 45).

For Kelsen, the concept of the constitution is secondary. The power of the state is the effectiveness of the legal order. Kelsen is not at all concerned with the political legitimacy of the state. He does not seek to ground the legitimacy of the constitution in the pre-legal existence of a biological or psychological unit known as the 'nation'. Consistent with the identification of state and

[25] Kelsen 1928: 6–7.

law, the people are 'a purely normative unit', i.e. a juristic unit on whom the legal order confers rights and obligations. 'The theory of the *Staatsvolk* is a legal theory' (1929: 15–16; 1925: 149; 1928a: 84–6). He criticizes the common view at the time which viewed the state (the political community, a body of individuals) as something different from the law (the social order, a system of norms). 'The old fiction of a social contract' according to which the citizens decide the form of state rule is rejected (1948: 380). The legality of the constitution cannot be derived from the pre-legal will of a homogeneous people (1928a: 141–2; 1925: 250–1), partly because the people are not a homogeneous unit—they are 'almost always divided into antagonistic groups of interest' (1948: 380)[26]—but principally because it is the state that determines the validity of the law. In other words, the state and the law create their own legitimacy.

4. The foundation of the constitution

Kelsen searches for the objective ground of validity of the legal norm. Since the ground of validity cannot be the norm itself, it must be found in a higher norm, i.e. the next one up. This potentially infinite process of regress reaches an end not with God or nature, but with an assumption which the legal order makes in order to claim objective validity. Kelsen chooses the basic norm (*Grundnorm*),[27] a *Rechtsformbegriff* which is 'something logically essential to explain the practice of legal scientific discourse' (Harris 1971: 117, note 57a). In the same way that a theologian does not question the existence of God but presupposes it, for Kelsen the existence of the basic norm is an 'indispensable precondition' (1968a: 288). However, the basic norm is not an imperative. People do not obey coercive commands because of the basic norm. On the contrary, the basic norm transforms subjective acts of will (which are not laws properly so called) into objectively valid legal norms (i.e. normative 'ought' propositions).

> . . . the pure theory of law does not claim: the law is an objectively valid order because of the assumption of the basic norm which stipulates that one must act according to the historically first constitution; instead: law can only be viewed as an objectively valid order if one assumes that one ought to act according to the historically first constitution, i.e. under the assumption of the basic norm. (Kelsen 1966: 547–8)

[26] And even if the people do have certain common interests that is not necessarily constitutive of a 'community'. 'The fact that several individuals have an interest in common does not constitute a community any more than the fact that they have dark hair in common' (Kelsen 1948: 380).

[27] The concept of the *Grundnorm* changes in Kelsen's later works (post 1962). The following paragraphs focus on his early understanding with which the *Grundnorm* is associated today.

The basic norm establishes and sustains the normative system of law by ensuring the link to the historically first constitution. This in itself was not new: Kant had located the authority of the legislator and positive laws in superior natural law (Kant 1956: 331; 1996: 17). But Kelsen's basic norm attains a higher level of abstraction. The validity of legal norms within the system is not determined by an inquiry into their content (i.e. ethical or political considerations) but by an inquiry into whether the norm was properly 'posited' based on the criteria of validity of a higher norm. It may bestow highest power on an autocrat or on the people (Kelsen 1925: 249–50). The basic norm sits at the top of the legal hierarchy. 'It is valid not as a positive legal norm—since it is not created in a legal process, not issued or set—but as a presupposed condition' (1934: 66; 1992: 58; see also 1961: 116[28]). Nor is the basic norm another source of law: according to the pure theory of law, 'only one law exists, the positive law. The basic norm which the pure theory of law formulates is not different from positive law but is its ground of validity' (1960: 443). It is the 'point of departure' in the 'chain of creation' of legal norms (1992: 56). Like an umbilical chord, it connects the ideational system of norms (law or state) with reality (Ehmke 1953: 29): all norms are logically connected with each other and can ultimately be traced back to the basic norm. Laced with sarcasm, Heller praises Kelsen's basic norm, which contains all the possible variations (including slavery, see Kelsen 1928: 45), as the 'most splendid specimen of a norm that any jurist has ever discovered!' (1971: 116).

III. Conclusion

Kelsen's radicalism becomes apparent when one considers the intellectual traditions which he eschewed. According to the nineteenth century German *Historical School of Law* under Friedrich Carl von Savigny, law was not the expression of scientific systematization and rational process as the Enlightenment had expounded but developed 'in indissoluble communion with the entire past' (1815: 3). It was the historically determined expression of national culture and an organic product reflective of the spirit of the people just like language, poetry, and religion (see Zweigert and Kötz 1998: 138–9; Zimmermann 1996). The problem Kelsen faced was how to develop a system of objectively valid legal norms that could not be traced back to meta-legal

[28] 'The basic norm is not created in a legal procedure by a law-creating organ. It is . . . presupposed to be valid . . . '

authorities such as God, nature, history, sociology, or politics. By presupposing the basic norm Kelsen attempted to explain both the validity and the effectiveness of law (Caldwell 1997: 93) by reducing all state theoretical problems to problems of validity and to the creation of the legal order.

In terms of validity, German public law scholars were provoked and irritated by Kelsen's 'pure' and formal concept of sovereignty. Hermann Heller (1891–1933), who was together with Kelsen one of the few outspoken social-democrats amongst constitutional lawyers in the Weimar Republic,[29] was also Kelsen's strongest and most polemical critic. In 1926 Heller famously concluded that since Kelsen's theory bracketed out questions of fact, power, and sociology, it amounted to no more than 'positivism without positivity, a *Staatslehre* without the state, and a legal science without law' (Heller 1971: 24; 1971a: 147).[30] As such, 'Kelsen's supposed emancipation from the political reality of the state kept the politics, but not the state, and was not neutral (*wertfrei*), but worthless (*wertlos*)' (1971a: 150).

Heller's wordplays are, alas, better than the substance of his criticism. Kelsen does have a concept of the state, namely the legal order: the state is a *Gedanke* (a concept of thought), specifically an *Ordnungsgedanke* (a concept of order: Kelsen 1928a: 91). If anything, Kelsen theorizes the state without the (social) *Staatslehre* but with his own brand of *Staatsrechtslehre*. But Heller does not accept Kelsen's *Staatsrechtslehre* either (1971: 17). The state, according to Heller, is not a normative order or a concept of thought, but a dynamic and tangible object of human reality and culture (1971a: 110, 132), and the organized unit in which final decisions are made and take effect (1971a: 339).[31] In Heller's theory, the state is bound not only by positive law but also by legal principles rooted in history and culture, and accepted in society (1971: 10; 1971a: 291). It follows that the *Allgemeine Staatslehre* is necessarily a *Hilfswissenschaft* that serves the discipline of law, economics, history, and philosophy like an unskilled assistant serves his master (1971a: 119; see also 1971: 24–5). The (political) constitution is based on norms that have only partially become law. The '*Staatsverfassung* establishes a totality in which normality and normativity, as well as legal and meta-legal normativity, are mutually complemented' (1971a: 367). The meaning of the individual rule can only be grasped within the context of the entire dynamic political

[29] Heller's scholarly work cannot be divorced from his political activism (Waser 1985).

[30] Kelsen subsequently adopted and utilized the central point of Heller's criticism. He welcomed the development of a *Staatslehre ohne Staat* (i.e. his *Rechtslehre*) which he compared to the science of psychology (that was no longer based on the notion of a soul) and physics (that after the theory of relativity no longer required a concept of force). The sciences are unified by the elimination of substantive concepts from the logic of their disciplines (1928a: 206–8).

[31] '*Der Staat als organisierte Entscheidungs- und Wirkungseinheit.*'

ambience/constitution, i.e. nature, culture, anthropology, geography, nation (*volklichen*), economy, social, meta-legal, and 'that part of the surrounding world for which, or against which, the legal constitution forms a totality' (1971a: 369).

Even Heller's legal constitution is not a pure norm (see Kelsen) or an existential decision (see Schmitt), but the expression of physical and mental power relations. Heller's endeavour to develop a material theory of the state as a historical construction of political reality is, according to Stolleis, 'perhaps the most important attempt of this kind in the Weimar Republic' (1999: 183). In certain extreme situations the state must go beyond positive law in order to impose legal principles for ethical or political reasons. The state is the highest polity (Heller 1971a: 356). The influence of international organizations on the state is not relevant for Heller as they do not threaten its sovereignty (1971a: 120, 141)

Stolleis points out that even though Kelsen's thesis spoke to jurists on an intellectual level, it did not reflect the experiences they had made with the pre-legal, nineteenth century *Machtstaat*. They were mystified by Kelsen's identification of law and state, and by his suggestion that the state is a *Rechtsstaat* simply by virtue of being a state. The same uncertainty surrounded Kelsen's claim that legal norms could only be derived from other legal norms: a thesis that contradicted the experience of the nineteenth century in which political decisions had very quickly been accepted and had taken on legal character (Stolleis 1996: 453). Logical coherence of law was not seen as the only or the most important aspect which was juristically relevant (von Simson 1965: 58). In fact, Kelsen's colleagues felt that the reduction of central terms such as sovereignty to their logical meaning was unbearable (von Bernstorff 2002: 65).

Kelsen is criticized on all fronts. On the one hand, he is criticized for reducing state power to a normative category that 'pays too little attention to circumstances that concern the making or origin of laws (rather than what laws say and whether they are recognised as authoritative and by whom . . .)' (Hart 1983: 313). But on the other hand, he is also criticized for making state power dependent on effectiveness and functionality of the legal order (Badura 1998: 146–9) which he could not explain on its own (scientific) terms. Since he could not explain the establishment of the political order in pure, juristic terms, Kelsen had to avail himself of a second, material concept of the state (*Rechtsinhaltsbegriff*), which appears *deus ex machina* without revealing its provenance but certainly is not covered by the pure theory of law. Public international law, for instance, determines the creation and demise of states and incorporates a material concept of law. 'Public international law recognizes an "authority" as a state if, *inter alia*, this authority is habitually able to

enforce its norms' (Kelsen 1928a: 104–5). Similarly, Kelsen invokes effectiveness (i.e. the content of the basic norm) as a condition (not as a substitute) for validity:

> . . . the content of the basic norm depends on a certain material fact, namely, the material fact creating that system to which actual behaviour (of the human beings addressed by the system) corresponds to a certain degree. (1934: 68; 1992: 59)

The ability to enforce norms implies a degree of effective (factual) state power which Kelsen's pure theory of law could not resolve and did not address. For some critics the introduction of empirical concepts such as effectiveness compromises the entirety of Kelsen's formal logical structure. Far from being only a 'system of norms', Heller highlights Kelsen's own inconsistencies when the latter refers to the state as a 'collective', a 'social community', 'final point of attribution', a 'unit of order', a 'logical principle', and finally a 'social association' (Kelsen 1923: 132, 266, 268). Heller concludes caustically that 'these exemplary products of "pure method" should suffice!' to expose the Achilles heel in Kelsen's work and thought (Heller 1971: 21–2; see also Kaufmann 1960: 193; Jöckel 1930: 162; Badura 1998: 146–9).

In response it might be argued that the issue of effectiveness is 'the least important of the conditions' for the existence and identity of legal systems (Raz 1979: 43). It is merely a component of the totality of the legal order (Möllers 2000: 47). Yet the observation that even the legal order must somehow have been created raises a fair point and is of interest to state theory. Kelsen is charged with acknowledging a material (though not legal) prerequisite of the state as a legal order, namely that it is an *order*. The sovereignty of the state depends on the state's (extra-legal) ability to create and maintain order (von Simson 1965: 58).

> The content of law reflects the extra-legal, ethical and social normative assumptions which, together with the legal order, must influence the state—even if it was nothing other than a legal order. (Badura 1998: 147)

In other words, the state transcends the formal structure of a normative system and is affected by socio-political power considerations, the cultural level of society, or a specific 'idea' of law that lies beyond the legal order. These extra-legal aspects would also explain the historically different state formations.

Is it possible that Kelsen, having painstakingly separated law from fact, spirit from nature, and is from ought, suddenly recognizes (without being able to control) positive law as a 'brutal socio-political fact' (Schmitt 1934: 29) and a 'tautology of raw factuality: something is valid if it is valid and because it is valid' (Schmitt 1928: 9)? As Dreier remarks, this criticism fails to note that the

basic norm was not designed scientifically to hem in the arbitrariness of law but only ever intended 'to draw attention to the special methodological need for justifying the validity of positive law' (Dreier 1990: 53). Socio-politico-cultural characteristics of the state are questions of fact which are of no concern to Kelsen's normative theory of law.

Unconvinced, Badura argues that Kelsen does not establish the correctness of the juristic treatment of the state but assumes it (Badura 1998: 146). Even if Kelsen's supposition, that the state is an order which guides and forms the behaviour of its citizens, were correct it would not suffice to equate the value system with the legal system. Badura is not persuaded by Kelsen's argument that the legal order produces the criteria for the state on its own (Kelsen 1930: 38). What about 'identity'? The state is an order but it is not only a *legal* order. In real life people are guided by a system of belief or ideology that is broader than law. In response the point should be repeated that Kelsen does not insist on the juristic method as the only way to analyse the state. There is a sociology of the state. But the legal concept of the state cannot be defined by having recourse to non-legal aspects. The state cannot be broader than the legal order because it is the validity of the legal order which determines whether something belongs to the state, and empirical facts do not.

It should also be repeated that Kelsen does not represent the German mainstream. His legal positivism came under fire from colleagues such as Rudolf Smend, Carl Schmitt, and Hermann Heller, who became the sources of inspiration for the two principal constitutional methods in post-war Germany. But Kelsen's method is the clearest from which to analyse and understand the discipline of *Staatsrecht* in his day and in ours. *Staatsrecht* is special because it is not defined by a 'pure' juristic understanding but by extra-legal notions of the state. Kelsen's structure can be used as a template for criticizing the practice of *Staatsrecht* which doubles the state up with the constitution and the pre-legal *Machtstaat*. According to Kelsen's pure theory of law, the state is constituted only by the constitution. By reverting to the pre-legal concepts of state, constitution, and sovereignty, *Staatsrecht* is (according to Kelsen) dabbling with ideology which is methodologically wrong.

2

The Rejection of Constitutional Law as a Positive Discipline

> It is not scholarship but politics that rails against the Pure Theory of Law with the accusation of formalism. And with this argument, the Pure Theory of Law cannot be refuted by scholarship, by a differing scholarly position; it can only be shouted down by politics with this slogan.
>
> Hans Kelsen (1929a: 1726; translation in Jacobson and Schlink 2000: 83)

The one and a half decades of the Weimar Republic (1918–1933) were characterized by a remarkable degree of activity in the field of constitutional theory. Although the German nation state had managed to survive and continue, its first democratic constitution of 1918/19 had given it a new form of government which marked a caesura with traditional perspectives and institutions. Gerhard Anschütz opened his commentary on the Weimar Constitution with the observation that: 'The constitution has changed, the state has remained the same' (1921: 1). This tension between continuity and change gave rise to novel approaches that touched upon the methodological foundations of public law theory. How would the *Staatslehre* which had modelled itself on the constitutional monarchy after 1848 adapt to new circumstances? Could juristic positivism be applied to a democratic state? Should the constitution stand back from the political process and allow it to function according to its own procedures? Or should it take on a controlling function to prevent, for instance, 'parliamentary absolutism' (see generally Scheuner 1972: 349–50)?

Given that the objective-analytical pretensions of von Gerber and Laband's juristic positivism had seminally defined both legal method and concepts in the last third of the nineteenth century, it was ironic that it was the second (sociological) side of Jellinek's dualist theory that found more widespread reception amongst lawyers and amongst some of the key figures in constitutional theory during the Weimar Republic. The theories it inspired are linked together by a common political conception of the state which is

emphatically anti-positive. They are divided, however, by differing conceptions of the *Rechtsstaat*. Mathias Eichhorn identifies a number of reasons for this. They stem partly from Georg Wilhelm Friedrich Hegel (1770–1831) and the statist and anti-liberal elements in his *Grundlinien der Philosophie des Rechts* (finalized in 1820 and published in 1821) which continue to influence the conception of the state. In addition, Eichhorn stresses that Germany was an authoritarian and monarchic state until 1918, and attributes significance to the fact that German unity in 1871 and democracy in 1919 and 1949 were not the result of revolutions (Eichhorn 2001: 59).[1]

Hegel rejected social contract theory for three reasons that are relevant here. First, Hegel was not interested in the legal authority of the state to make constitutions and grant rights to and impose duties on individuals. The people were already constituted—otherwise they would have been an atomized heap of individuals who set out to give themselves a constitution (1991: §273). Hegel was concerned that the principle of atomicity, i.e. abstract individuals who are removed from a social context, subverted freedom in modern society. An atomized group of individuals could not constitute a state as a 'substantial unity', which is the condition for a constitution (*ibid.*: §258). A constitution is not a thing that can be constructed but something that exists and lies above the sphere of things created.

Second, for Hegel the history of the world is the development of the global spirit towards higher spirituality, ethics, freedom, and reason.[2] The state is at the apex of this development. It embodies higher spirituality and rationality because it unites a community of people under the rule of reason. It does so by expressing the customs and consciousness of the individuals, i.e. the values, practices, and traditions of a culture (*ibid.*: §274). The constitution is not a document or formal contract, but a *Volksgeist* or the expression of social cohesion that embodies this 'spirit'. In Hegel's words:

> The state is the actuality of the ethical Idea – the ethical spirit as substantial will, *manifest* and clear to itself, which thinks and knows itself and implements what it knows in so far as it knows it. (*ibid.*: §257)

Third, the state evolved from the despotic state into the Greek *polis*, the Roman state, the monarchy of the Middle Ages, and finally into the modern

[1] Eichhorn ignores the extent to which the November revolution in 1918 brought an end to the German Empire. For contemporary commentators the events of November 1918 were comparable to the revolutions in England, France, and America (see Wehler 2003: 195–7). On the other hand, Germany's industrial and democratic development was already too advanced for the revolution to have a full impact (see Winkler 2000: 380–1).

[2] For a brief discussion of Hegel in this context see Dyson 1980: 127–9. For an in-depth discussion of the influence of Hegel on Carl Schmitt see Kervégan 1992.

rational and limited constitutional monarchy, or the nation state. The state and its constitution are primarily 'political' in character (*ibid.*: §267), i.e. the political constitution (norms, institutions, and customs that generate legitimacy and meaning) exists behind the legal constitutional text. The development of the state is a development of greater freedom. For Hegel the idea of the nation state is absolute:

> The nation state [*das Volk als Staat*] is the spirit in its substantial rationality and immediate actuality, and is therefore the absolute power on *earth*; each state is consequently a sovereign and independent entity in relation to others. (*ibid.*: §331)

The early works of Heinrich Triepel (1868–1946), Erich Kaufmann (1880–1972), and Rudolf Smend (1882–1975) are linked by a joint belief that the juridical analysis of the state was insufficient, and that political, sociological, historical, and comparative arguments could not be dismissed out of principle (Stolleis 1992: 448; Korioth 1992). Heinrich Triepel is a representative of the dominant tradition that seeks to guide scholarship away from narrow juristic constructions and towards recognizing the political background of rules, concepts, and institutions. He argues that *Staatsrecht* cannot be studied without taking account of the political. It is 'political law' which conceives the legal order as an integrating and integrative part of the state. Law cannot be viewed in isolation from the reality of the state, or the constitution as a whole (Triepel 1927: 19 *et seq.*, 37; see also Smend 1994: 82, 238). Smend's *Verfassungs und Verfassungsrecht* and Schmitt's *Verfassungslehre* were both published in 1928. Although the two publications are very different, they both brought about 'a decisive turning point regarding new thoughts and approaches' (Scheuner 1972: 352). Together with Heller's *Staatslehre* (1934)[3] these works were also reactions to, and rejections of, Kelsen's *Allgemeine Staatslehre* (see Chapter 1). The anti-positivist scholars are united in their rejection of legal positivism and formalism, and in their material treatment of constitutional law as a discipline that can only be understood in its social, historical, and political context. They also benefit

[3] Hermann Heller's work is not considered systematically here, principally because his influence on post-war German state/constitutional law and constitutional theory is significantly less than that of Kelsen, Schmitt, and Smend. For Möllers, of all the Weimar scholars who are cited by post-war legal scholars, Heller is the most loved in political terms but the one with the least influence in legal terms (Möllers 2005: 422). His influence on post-war German political science, by contrast, was far more significant, and he has been described as the 'father' of the modern scholastic discipline (Groh 2010: 143). English language publications exist on Heller's influence on e.g. the social rule of law (Scheuerman 1994: Chapter 2), fascism and political culture (Kennedy 1985: 109), and legal and political philosophy (Dyzenhaus 1997: Chapter 4; Caldwell 1997: 127–32, 137–44). Heller also wrote a handful of encyclopaedia entries in English on Georg Jellinek, Friedrich Julius Stahl, Political Power, and Political Science (reprinted in 1971a).

from the fact that they were more commonly read and cited than Kelsen (Mehring 1992: 81), which explains their immediate influence on the understanding of the state post-1945 (see Chapter 3).

I. Carl Schmitt (1888–1985)

Carl Schmitt's theory is important for the intellectual continuities that filter into contemporary constitutional discourse (see Chapter 3). Some have suggested that Carl Schmitt's answers are no longer relevant today (von Simson 1989: 189; cf. Mußgnug 1988). That might be true to the extent that Schmitt's analysis in *Verfassungslehre* of a specific concept of sovereignty, namely the 'sovereign dictatorship' of the political people and the self-determination of the nation (Schmitt 1928: 231), was developed in and should be confined to the Weimar Republic. But if one considers the scholars who studied under him and the numerous academic newcomers who read his re-published works, and who either visited Schmitt at his home in the German village of Plettenberg after the war[4] or communicated with him by letter,[5] it is clear that Schmitt had long-term effects on German legal scholarship as well as legal personalities. Ernst Rudolf Huber and Ernst Forsthoff, two of his early students, were influential constitutional scholars after the war. Otto Kirchheimer and Franz Neumann, who were Jewish social democrats, went into exile.[6] After the war Ernst-Wolfgang Böckenförde, a Catholic social democrat and later judge at the Federal Constitutional Court, was a visitor at

[4] Schmitt was not offered a university position after the war because of his endorsement of the Nazi regime between 1933 and 1936. He was, therefore, confined to giving private seminars at his home which he renamed San Casciano after the village south of Florence to which Machiavelli was banished by the Medici in 1513 and from where Machiavelli wrote his principal works. In point of fact, Machiavelli's manor house is actually located in San Andrea in Percussina.

[5] See Günther 2004: 112–14.

[6] In 1962 Kirchheimer blocked George Schwab's doctoral thesis on Schmitt's political ideas, thus contributing to the 'indignant ignorance' regarding Schmitt's work (Voigt 2001: 25). Schwab proceeded to write another doctoral thesis and publish his original one. He is the translator of *The Concept of the Political* (first published in 1976) and *Political Theology* (1985). Whether Neumann knew Schmitt is harder to establish. Although Neumann registered for Schmitt's seminars in Winter Term 1930/31, Summer Term 1931, and possibly in Winter Term 1931/32 (see Mehring 2009: 229, note 41), it is not clear how intensively he participated in them. Neumann was at the time working as a solicitor in Berlin, together with Ernst Fraenkel, specializing in labour law whilst also teaching part-time in two places: he taught labour law and economic law at the *Deutsche Hochschule für Politik* (today the *Otto-Suhr-Institut* at the Freie Universität Berlin) from 1929 to 1933, and labour law, economic law, and sociology of law at the *Akademie der Arbeit* (today: *Europäische Akademie der Arbeit* which is still based on the campus of the University of Frankfurt) from 1926 to 1932 (see Intelmann 1996: 19–61; my thanks to Jürgen Bast for this reference).

Schmitt's home and liberal interpreter of his work. Other visitors include Joseph H. Kaiser, Theodor Maunz,[7] Helmut Quaritsch, and Joseph Isensee (Voigt 2001: 21).

This would explain why today the dominant *Staatsrecht* discipline employs terms that are typical and reminiscent of Carl Schmitt's constitutional understanding (see Chapter 3). Schmitt does not begin his analysis with the state but digs deeper in search of a social and political level that precedes the state. Unlike the nineteenth century positivists, Schmitt does not engage in *Begriffsjurisprudenz* but in *Begriffssoziologie*, i.e. 'political theology' which unearths the political content of legal terms (Schmitt 1934). Whereas Jellinek separates clearly the two sides of the state so that the juridical claim on the state is balanced out and controlled by the sociological side of the state, Schmitt's premise of the state is its factual existence and its ability to assert its legitimate will ('decisionism') over legality in situations of emergency.

1. The state

According to Carl Schmitt, juristic thinking cannot describe the processes of the state or the constitution. Whereas Kelsen's analysis of the 'legal order' puts the emphasis clearly on 'legal', Schmitt's analysis revolves around the concept of 'order'. Order is not created by legal rules but by the political existence of the state. Whereas Kelsen had demystified legal science through a process of purification, Schmitt re-mystifies the state as a polity that is instilled with the autonomous will of the people and that is capable of exceptional action in exceptional circumstances. The myth is the presupposition of Carl Schmitt's concept of the state (Mehring 1992: 8; Voigt 2001: 35; Speth 2001: 119). The state is not an abstract, de-materialized and de-politicized concept but a primordial and concrete concept which taps into a rich history and philosophy.

Schmitt's concept of the state is defined by three traits. First, it clearly draws on Hegel's philosophy that regards the state as the highest form of a people's ethical unity. Schmitt's Hegelian understanding of the state is evident from his first major work, his *Habilitation* of 1914 entitled 'Der Wert des Staates und die Bedeutung des Einzelnen' [*The Value of the State and the Significance of the Individual*]. Second, by attributing sovereignty to the state Schmitt finds a neat solution to the unresolved conflict in the nineteenth century between the sovereignty claims of the monarch and the people (see Chapter 5). Finally, Schmitt conceives the state with reference to

[7] For a brief summary of Maunz's controversial career see Stolleis 1998: Chapter 12.

the European political history of the sixteenth to twentieth centuries (Schmitt 1958: 375) which ended the religious civil wars, declared religion to be a private matter for citizens, and assumed the responsibility to declare war and maintain peace. Until the twentieth century the state had been the dominant paradigm which had formed the juristic concepts, which in turn had assumed the state as the model of political unity. By modelling his conception of the state on a nineteenth century ideal, the weakened assertiveness of the state during the Weimar Republic inevitably appeared as the result of a process of continual decline (Günther 2004: 36). Alas, (Schmitt wrote in the foreword to the second edition of *Concept of the Political* in 1963):

> The epoch of statehood is now drawing to a close. This fact is no longer open to debate. And with it, the entire superstructure of state-related concepts, erected by a Eurocentric science of international and public law in over four hundred years of intellectual labour is passing as well. The state as the model of political union, the state as the holder of the most astonishing of all monopolies, namely that of political decision-making, this magnificent achievement of European form and Western rationalism, is being dethroned. (Schmitt 1963: 10)[8]

Left to its own devices, Schmitt laments, the state no longer succeeds in doing what it is supposed to do: secure political union. Germany's political union is defined by the struggle with Versailles, Geneva, and Weimar which imposes limitations on state sovereignty (Schmitt 1988; Mehring 1995: 202). The state concept (i.e. the autocratic-monarchic state of the Wilhelmine Empire) had lost its centrality and become fragile in the Weimar Republic. This has repercussions for constitutional law and in particular for *Staatslehre* (i.e. political, i.e. meta-constitutional law) which is being replaced by *Verfassungslehre* as the *Leit* discipline. It is no coincidence that in 1928 both Schmitt and Smend publish books that, at least according to the respective titles, deal with the theory of the constitution rather than with the theory of the state.

Why does Schmitt affirm the state as the decisive unit if the epoch of statehood is drawing to a close? The object of Schmitt's critique is the customary equation of the political with the quality of the state (*Staatlich*), whereby state-related matters appear as political and vice versa. In a first move, Schmitt separates the state from the political, which Max Weber had understood as power and Heinrich Triepel as state power (Schmitt 1963: 21, note 2): the loss of spiritual roots and structural principles had rendered the

[8] Note on translation: *Der Staat als das Modell der politischen Einheit* is ambiguous and could mean either 'the state as the model of political unity' or 'the state as the model political unit'. Since in Schmitt's writing it probably means both (the two concepts are largely identical for him), I suggest 'the model of political union' as an alternative. Schwab translates *politische Einheit* as 'political entity' (see Schmitt 1996).

established conception and the reality of the state problematic. To counteract the demise of the state's life support, Schmitt proffers that 'the concept of the state assumes the concept of the political' (1963: 20). The thrust of Schmitt's colourful opening sentence to *Der Begriff des Politischen*[9] fortifies the state-in-decline by linking it with the *brutum factum* of the political which precedes the state and allows for the state to be reconceived ontologically in political terms (see generally Hofmann 1995: 102–4). 'That the *state* is a unit, indeed the decisive unit, is due to its political character' (Schmitt 1963: 44).

But the state is also conceived as 'the political status of the people' (*ibid.*: 20). Having initially bid adieu to the state Schmitt now, in a second move, desires to link the two concepts up again (Meier 1988: 542, 548)—this time firmly anchoring the state in the timeless concept of the political, which is defined as the union of the people which in turn is understood in a nationalistic sense. Schmitt's nationalism stands in stark contrast to the etatism of the Weimar Republic (Mehring 1991: 203), and the concept of the political has to achieve what—at least according to one strand of German constitutional theory—the state used to achieve on its own (Schönberger 2003: 23). The political comes to life in historical terms (as the foundational moment of the polity) and in conceptual terms (in the metaphysics of the absolute unwritten constitution). The ambiguity is reflected in the opening sentence of the political concept as the precondition of the state concept.[10] So although Schmitt ostensibly ties the state to a particular historical epoch, he also works within a statist tradition that continues into the twentieth century, and is a torch-bearer for Hegel's philosophy of the state. For Hofmann, *Der Begriff des Politischen* should be counted among Schmitt's 'most brilliant and significant achievements, even though in technical terms it is actually the most deficient' (Hofmann 1995: 102). It is not surprising that his theses

[9] Carl Schmitt developed *Der Begriff des Politischen* in the spring of 1927 and first presented its theses in a lecture series on 'Probleme der Demokratie' at the *Deutsche Hochschule für Politik* in Berlin in the Summer Semester of 1927 (Hofmann 1995: 101; Kennedy 2004: 122; Mehring 2009: 200–4). The first short version of *Begriff des Politischen* was published in 1927 (republished in Schmitt 1988: 75–83)—the same year as Heidegger's *Sein und Zeit*—and predates *Verfassungslehre* (1928). It is the key to understanding Schmitt's theory of the state (Böckenförde 1988: 283). A related idea of the state as the political union of the people can be found in Laski's *Studies in the Problem of Sovereignty* (first published in 1917): 'It would be no inapt definition of politics in our time to term it the search for social union' (Laski 1968: 3). Schmitt was familiar with Laski's work but does not acknowledge him on this point.

[10] In a letter to Schmitt on 4 September 1932 Leo Strauss noted that the opening sentence was ambiguous since the assumption of the political did not clarify whether the political was constitutive of the state or was only its condition (printed in Meier 1988a: 132–3). For Strauss, relying on the etymology of 'political—polis', it could only be the condition of the state and not its constitutive principle.

resonated in the legal academy (and beyond) of the 1920s and reverberate still in the Federal Republic (and beyond).

Problematically, Schmitt's state concept requires external assistance to secure the task of the political union of the people. In particular it needs 'union from above (through command and power) and union from below (from the substantial homogeneity of a people)' (Schmitt 1988: 139). The static union from above (*Befehl, Macht*) is threatened by pluralistic, dynamic, or federal conceptions of state power based on a treaty or political compromises, which are institutionalized by parliamentary democracy, and which ruin the state as a closed and introspective unit. Pluralistic conceptions of the state mean the rule of social groups. For Schmitt 'the enemies of the state are those who want to make it the subject-matter of agreement: liberals, intermediary powers, Jews, parties etc.' (Speth 2001: 125). To counteract the centrifugal force, the union from below cannot be a dynamic process of integration (cf. Smend 1928) but must be a static condition, namely the homogeneity of the people (see Schönberger 2003: 24–5). The state is 'the foundational and comprehensive unit of a substantial, ontological, essentially public order'. It must be conceived 'always in connection with a . . . static concept of order. As soon as so-called dynamic conceptions, of whatever kind, begin to dominate the concept loses its meaning' (Schmitt 1988: 51–2).

Schmitt's underdeveloped premise, that the state comes before the law, is the inverse of Kelsen's postulate that the law establishes the state. The law as 'higher' law pre-dates and exists independently of the state (see also Hold-Ferneck 1926: 64). The dialectic of neo-Hegelianism focuses on the union which consists of law and state. Without its hold on the political the 'classical profile' of the state is crushed (Schmitt 1988a: 271). Law and state mutually reinforce each other, although they are not identical. The constitution can be replaced without disrupting the continuity of the state. Schmitt's constitutional theory is the sum of law (1928: 123 *et seq.*) and politics (*ibid.*: 221 *et seq.*). The constitution presupposes the state and controls it (*ibid.*: 200). Conversely, within the constitutional order the preservation of state union takes place outside the concept of the *Rechtsstaat*. The state is a pre-legal polity which takes on legal forms through the formation of political union. 'Every legal norm requires a fundamental political decision of the holder of constitutive power, i.e. the people in a democracy or the monarch in a true monarchy' (*ibid.*: 23). In other words, not only the state but also the form of the state are *prior* to the original constitutive act (Möllers 2000: 65–6). The pre-legal structures of legitimacy demarcate the outer limits of constitutional change (Schmitt 1928: 102–3).

2. Constitution

Written in little more than four months in the summer of 1927 (Mehring 2009: 204–6), Carl Schmitt's *Verfassungslehre* professes to be a systematic analysis of the Weimar Constitution (1928: ix), in the sense of analysing an 'empirical type' (rather than a normative system) of the modern constitutional state (Mehring 1991: 204). Monarchical *Konstitutionalismus* ended in 1918 and was replaced by mass democracy, and this development, and tension, is reflected in the new Constitution and in Schmitt's analysis. Yet, in spite of its title, Schmitt's underlying purpose 'ran towards a reconstituted unified theory of the state in an age when the state appeared to have lost its integrative and representative functions' (Müller 2003: 29).[11] It is the constructive, legal-theoretical counterpart to the *Concept of the Political* (Hofmann 1995: 124). The concept of constitution, like the concept of the political, is yet another lens through which to analyse the state. 'The word "constitution" must be confined to the constitution of the state, i.e. the political union of a people, if an understanding is to be possible' (Schmitt 1928: 3; see also 93, 125, 205). The modern constitution is a limitation that links up with the political form of the state.

The 'constitution' (*Verfassung*) is the total condition of political union and social order of a specific state. According to Schmitt, the constitution does not refer to a system of legal norms which regulates the formation of political will and the exercise of state power, but refers in an overarching sense to the concrete political condition of the individual state.[12] It is an articulation of a political way of being. 'The state does not have a constitution . . . the state is constitution . . . ' (1928: 4).[13] Schmitt does not accept Kelsen's equation of the constitution with the normative legal order of the state, which ignores its factual, sociological side. For Schmitt all constitutional aspects, such as union, order, goals (*telos*), life, soul, are factual. The concept of the constitution is rooted in a sphere that lies beyond the positive, written constitutional text. The constitution is the state's '"soul", its concrete life and its individual existence' (*ibid.*: 4). It is valid because the German people gave itself the constitution (*ibid.*: 10).

[11] In 1927 Schmitt wrote to his publisher: '"Positive" *Staatsrecht*, in the way Anschütz understood it, is no longer sufficient; *Allgemeine Staatslehre* is no longer useful, because the state no longer exists' (Rieß 2007: 213; Mehring 2009: 214).

[12] The German word '*Verfassung*' means both 'condition' (as in: to be in good condition) and 'constitution'. The pre-legal dimension of Schmitt's absolute constitution is supported by dual meaning of the German term.

[13] '*Der Staat hat nicht eine Verfassung, . . . sondern der Staat ist Verfassung.*'

Schmitt develops his concept of the constitution in three stages. He begins with an 'absolute concept of constitution' (*ibid.*: §1) in opposition to Kelsen's normative constitution. 'In truth a constitution is binding because it stems from a constitutive force (i.e. power or authority) and is posited by its will' (*ibid.*: 9). The operative word is 'will', which cannot exist in a vacuum but presupposes the political union of a body able to express its will. Schmitt then develops a 'relative concept of constitution' (*ibid.*: §2) by which he means the plurality of constitutional laws and norms that are united in a constitutional document. If the absolute constitution of the state exists prior to its written constitutional document, then the manner and form of the constitutional document need to be fixed by a democratic decision. To this end, Schmitt develops a third 'positive concept of constitution' (*ibid.*: §3) according to which the people gives itself a constitution based on a 'conscious' (*ibid.*: 21) and 'political' decision (*ibid.*: 76). The constitutional document is nothing more than 'a series of written constitutional laws' (*ibid.*: 16). The union of the German Empire cannot be induced from the 181 articles of the Weimar Constitution for these can be changed without the state, i.e. the political union of the people, having to change. Instead, the constitutional document presupposes the political existence of the German people (*ibid.*: 10), or the absolute constitution from which it derives validity (*ibid.*: 22).[14] The essence of the constitution cannot be found in a law or in a norm, but in the political decision of the constitutive power (*ibid.*: 20, 21). Hence, Schmitt's theory is commonly known as 'decisionism'.

> As a normative regulation, every law, even the constitutional document, ultimately requires in order to be valid a preceding political decision which is made by a politically existing power or authority. Every existing political union has its value and its 'right to exist' not in the rightness or utility of its norms but in its existence. Whatever exists as a political entity is, considered from a juristic viewpoint, worthy of existence. Therefore, the 'right to self-preservation' is the condition of all further discussion; it seeks to preserve primarily its existence, 'in suo esse perseverare' (Spinoza); it protects 'its existence, its integrity, its security and its constitution'—all of which are existential values. (*ibid.*: 22)

[14] The distinction is anti-positive but accepted today (according to one strand of constitutional interpretation) so that 'unconstitutional constitutional law' is a possibility (Hofmann 1995: 126, note 9; Kommers 1997: 48, esp. note 90). Schmitt's distinction must not be confused with the distinction between material and formal constitutional law, or a sociological inquiry into the real (political) constitution as opposed to the written constitution. Schmitt's search is for the 'final and highest reality', it is ideological and spiritual: the conscious and contradiction-free collective decision on the manner and form of political unity (Hofmann 1995: 126–7).

The political union 'exists' beforehand. 'Exist' is the operative word. In Hegelian terms, the state is the reality of the substantive will (Hegel 1991: §258). Schmitt further narrows down and defines the substantive will as the political existence of the people, which precedes the constitution. 'Political existence' is permanent and ranks 'alongside and above every derivative constitution and every constitutional determination under the constitution' (1928: 91). Rejecting social contract theory as the source of the constitution and the political union of the people, Schmitt is only able to claim that the *Volk* 'constitutes itself' (*ibid.*: 50) in 'conscious identity with itself' (*ibid.*: 63). 'What does not exist politically cannot express its will in a conscious decision' (*ibid.*: 50).

It is important to note here that Schmitt discards any legal definition of union (*ibid.*: 8), which means that the *Volk* is not a *pouvoir constituant*. Like the monarch, it is only the 'subject or medium' of the constitutive power (*ibid.*: 21, 59, 92–3, 103–4). The *pouvoir constituant* is identified by, or replaced with, an existing and assumed constitutional power that is omnipotent and whose decisions determine the limits of *constitutional* power (*ibid.*: 21, 23). The 'decision' becomes tantamount to the political constitution, and the existence of the people becomes 'political existence' which is the operative concept behind Schmitt's entire constitutional theory. It is stronger than Hegel's will: the constitution is not a means in itself but is designed to organize a peaceful society in which people can live in freedom, security, and dignity.

Heller observes that whilst this may be political theology, it does not qualify as state theory (1971a: 394). Although Schmitt powerfully evokes the rhetoric of emergency powers and related mythology, underneath it all lies the old assertion of a higher order law, the will of the state, and the existence of a meta-legal order that trumps the legal order (Schmitt 1934: 18). Moreover, the boundary lines between order and chaos, legality and legitimacy, are ultimately too flimsy in Schmitt's theory. The culprit (the concept of the political) is—as will be seen in the next section—clearly designed as a higher realm of legitimacy to undercut the logic of liberalism and legalism.

3. The foundation of the constitution

That Schmitt fudges the end result is clearly seen in relation to the ultimate foundation of the constitution. Like Kelsen, Schmitt examines the pre-constitutional moment in search of its legitimacy. Both reject social contract theory as the constitutional moment (Schmitt 1928: 13–14,

62). But where Kelsen creates a hypothetical basic norm which upholds the validity of the constitution, Schmitt makes two presuppositions: first, the presence of a people; and second, the political existence of that people:

> [The Weimar Constitution] presupposes the entire German people as a unit, which has an immediate capability for action that is not first mediated through social group organizations; it can express its will and at the decisive moment can secure its wholeness and integrity in spite of pluralistic divisions. (1996a: 159; see also 1928: 61)

This citation encapsulates Schmitt's constitutional theory with its emphasis on the unified will of a pre-existing people. Schmitt is not concerned with legality (the search for the final grounds of legal validity) but only with the factual existence of the state, i.e. the political union of the people, which is legitimate if it exists (in the sphere of the political). It cannot be analysed in normative terms of justification or legal legitimacy (Schmitt 1928: 89; Hofmann 1995: 130). Schmitt reduces the concept of state to a matter of fact and to a question of power. To this end Schmitt assumes the factual existence of the people as a homogeneous and organic unit (1934: 62) which can only be achieved through the 'exclusion and elimination of the heterogeneous' (1991: 14; see also 1988: 59).[15] To identify the heterogeneous Schmitt introduces the distinction between friend and enemy of the state (1928: 214; 1963: 26–8), which will be discussed below.

Second, where Kelsen assumes the *Grundnorm*, Schmitt assumes the political union of the people (as the medium of constitutive power). Whereas for Kelsen the written constitution is the highest norm of the legal order, for Schmitt it is not a means in itself but is designed to organize a peaceful society in which people can live in freedom, security, and dignity. The 'concept of the political' (Schmitt 1963: 20) enables those in power to override the written constitution on the grounds of higher motive, namely *raison d'état*. Political power not only pre-exists but also legitimates (Badura 1998: 202).

Schmitt can now replace the liberal constitution as the highest norm with a theory of a higher realm of legitimacy that makes it difficult for the constitution to offer the kind of guarantees it is normally expected to do. Schmitt's concept of the state is a concept of (political) legitimacy. The state is not the subject matter of 'scientific'-systematic considerations but of assumed and asserted considerations (the union of the people is 'presupposed' and

[15] '*Ausscheidung und Vernichtung des Heterogenen*'. This is a chilling suggestion, all the more so because of Schmitt's association with the ruling Nazi party after 1933. Writing in 1926 Schmitt gave two illustrations of what he meant by the successful exclusion of heterogeneous elements: first, the radical resettling of Greeks in Turkey, and the strict Australian immigration policy. However, Schmitt's suggestion is so flexible and open that it remains chilling.

'present'). The condition of political union is 'the specific entity of a people' (1996: 19). Kelsen who had been battling this kind of juristic fiction since 1911 (Caldwell 1997: 101) criticized Schmitt's notion of the constitution as:

> . . . a condition, the condition of the *unity* of the German people. What this *unity*, which has a substantive and not some merely formal character, consists of is not defined any more closely. It cannot be anything but a condition desired only from a definite political point of view. *Unity* as a wished-for ideal of natural law thrusts itself into the place of the positive-legal concept of the constitution. (Kelsen 1930a: 625; translation by Caldwell 1997: 115–16)

But what is the exact ingredient that guarantees the unity of the people? A degree of homogeneity was widely assumed to be critical to unify the nation. For Heller, social homogeneity is one of the most important conditions for an effective democracy. Only homogeneity can cope with tremendous tensions, tremendous religious, political, economic, and other antagonisms (1971: 13). Heller advocates social class struggle to overcome social disparities. Kelsen (1929: 4–5) views freedom and sameness as the main conditions for democracy.

Schmitt goes further than that. For him a 'friend' is a member of the homogeneous *Volk*. Homogeneity is the essence of the political existence of the people and may be based on a single factor, such as religion, class, or race (1928: 227). Political union is constructed by the ability to distinguish between friend and enemy, and to demand of citizens to kill and die in the name of the state (Schmitt 1963: 46; 1988: 67–74; Caldwell 1997: 101–2; Speth 2001: 125). If the people permit outsiders to tell them who their enemy is and whether to fight their enemy, they lose their status as a politically free people (Schmitt 1963: 48). A state is only a state in Schmitt's sense if it is 'the decisive political unit' (*ibid.*: 46). Its union is based on certain competences like the decision to wage war.

> War, the readiness of combatants to die, the physical killing of human beings who belong on the side of the enemy—all this has no normative meaning, but an existential meaning only, particularly in a real combat situation with a real enemy. There exists no rational purpose, no norm no matter how true, no program no matter how exemplary, no social ideal no matter how beautiful, no legitimacy or legality which could justify men in killing each other for this reason. If such physical destruction is not motivated by an existential threat to one's own way of life, then it cannot be justified. Just as little can war be justified by ethical and juristic norms. If there really are enemies in the existential sense as meant here, then it is justified, but only politically, to repel and fight them physically. (1963: 49; 1996: 48–9)

War can never be justified by legal norms, visions of justice, or economic prosperity but only by 'an existential threat'. War is nothing less than a fight

for survival. If this sounds chilling it is intended to be. The premise of Schmitt's political theology is anti-liberal.[16] Liberals are concerned with economic competition, Schmitt with political struggle. Liberals are concerned with dialogue, public reason, and reasoned debate, Schmitt with the political 'decision'. For liberals the relevant entity is 'society' (to which the state is subordinate), whereas for Schmitt there is no such thing as 'political society', there is only political union, i.e. a political community (Schmitt 1963: 45, 60–1). Liberalism is caught up with notions of liberal individualism and does not create political union. Liberalism has created 'a system of inhibitions and controls by the state which cannot be described as state theory or as a political principle of construction' (*ibid.*: 61). On the contrary, he writes that liberalism has 'changed and denatured all political conceptions in a peculiar and systematic fashion' (*ibid.*: 68), principally by ignoring the concepts of state and politics, and war and peace. Liberals avoid or obscure the paramount question of power, they neutralize it with a purely formal notion of rights enshrined in a written constitution. In short, liberals replace the concept of the political with the dynamic of 'perpetual competition and perpetual discussion' (*ibid.*: 71).

4. Sovereignty

Unlike Hans Kelsen's normative inquiry into the nature of sovereignty, Carl Schmitt's query is a purely factual one: *quis iudicabit* (1928: 49)? And yet, Schmitt maintains that sovereignty is a 'basic concept of jurisprudence' (1934: 26). Legal orders are based on a decision and not on a norm. At a meeting of German public law scholars (*Staatsrechtslehrer*) in 1924 Schmitt introduced the notion of the state of emergency which, on his definition, transcended the written constitution. Schmitt accepts that 'the constitution defines the normal order of the state' (1924: 91). His interpretation of the 'norm' is descriptive of one which governs the situation which 'is the norm'. But he is not interested in normal circumstances for 'the normal proves nothing, the exception proves everything; not only does it validate the rule, the rule above all lives off the exception' (1934: 22). It is in exceptional circumstances where the normal order of the state is suspended, that the entire constitution is at the disposal of the sovereign who can use his powers of 'dictatorship' and take 'concrete measures' (under Article 48(2) of the Weimar Constitution) to reinstate normality (1924: 130; 1928a: xiv–xvi,

[16] For a general discussion of Schmitt's anti-liberalism see MacCormick 1997; Dyzenhaus 1998a.

135, 194; 1985: 5).[17] Citing Hobbes—out of context—Schmitt affirms the dictum: *auctoritas non veritas facit legem*—'It is not Wisdom, but Authority that makes a Law' (Hobbes 1971: 55).[18] Schmitt here reveals another paradox: although the state of emergency cannot be rooted in a norm, it is nonetheless rooted in law, and law is rooted in the state of emergency (Hofmann 2005: 176).

Schmitt observes that the central problem for sovereignty is its association with factually and legally highest might (1934: 26). Schmitt distances himself from Bodin's notion of sovereignty as a perpetual power, Vattel's understanding of sovereignty in public international law, and the Kelsenian equation of the state with the legal order. These formulaic definitions, he says, are far too hazy to express adequately a political reality (*ibid.*). Schmitt's anchor for sovereignty is neither the divine monarch above the legal order, nor the pre-legal constitutive power of the sovereign people, but the state in the tradition of the nineteenth century (Hofmann 2005: 175). Unlike the monarch, the state is not permanently above the law, but can step outside the legal order in a state of emergency. Whether Schmitt's new approach adequately expresses a political reality is also doubtful on Schmitt's own terms: but then again, he did not intend, nor did he end up writing, an everyday theory of state sovereignty and he did not write an *Allgemeine Staatslehre*.

It is unclear to Schmitt how the norms of a legal system could govern a state of emergency when such an 'exception' could not be anticipated or 'codified in the existing legal order' (1985: 6). All the constitution is able to do is determine who decides in a situation of conflict. In the final instance it is the decisions of the sovereign that make the difference. Hence, 'sovereign is he who decides on the, and in a, state of emergency' (1934: 11).[19] Schmitt

[17] Cf. Heller for whom Schmitt's understanding of all law as situational demonstrates a 'total lack of understanding'. 'The validity of a norm assumes the general, normal condition for which it was calculated, and a completely incalculable situation of emergency cannot be assessed normatively' (1971a: 223).

[18] In the *Dialogue*, from which the citation is taken, Hobbes is concerned with defining law as commands and prohibitions by a human legislator (authority) and with reducing the influence of the common law (wisdom) which is authoritative only to the extent that it can be reconciled with natural law (1971: 55, 69, 96). According to Hobbes, the sovereign is not subject to positive law, but he is subject to natural law which is morally binding (Hobbes 1991: II, Chapter 26, para. 4). Natural law was an important limitation in Hobbes' day. Schmitt, however, is not concerned with this or any other limitation.

[19] '*Souverän ist, wer über den Ausnahmezustand entscheidet*'. The translations by Schwab (1985: 5), 'he who decides on the exception' and by Dyzenhaus (1997: 42), 'he who decides on the state of the exception' are to some extent misleading as they do not convey the ambiguity of the *Ausnahmezustand*. Literally translated the *Ausnahmezustand* is the state of emergency which was defined in Article 48 Weimar Constitution as the situation 'where public security and order are seriously disturbed or endangered within the Reich'. In the event that the state can no longer exercise its basic

is neither concerned with the legitimacy of the sovereign's powers nor with its legal limits, but with the subject of sovereignty (*ibid.*: 16), i.e. the political sovereign. Since its powers cannot be deduced from an abstract norm, let alone constitutionalized, the sovereign is necessarily outside the legal order. In concrete terms: 'the state suspends the law in the exception on the basis of its right of self-preservation' (1934: 18; 1985: 12).

Schmitt insists that the state, whose existence 'is undoubted proof of its superiority over the validity of the legal norm' (1934: 18; 1985: 12), and order (as opposed to anarchy) and the decision have juristic meaning and must be part of the scientific study of law. These elements create the 'normal situation', and the person or body who definitively decides on the status of that normal situation is sovereign (1934: 19). Sovereignty is not a standard concept of state theory (as it is for Bodin) or a formal property of the constitution (as it is for Kelsen) but a 'liminal' or 'borderline concept' (*Grenzbegriff*), i.e. a concept 'pertaining to the outermost sphere' (*ibid.*: 11).[20]

5. Critical assessment

One cannot help but notice that Schmitt's constitutional analysis is blinkered and that his analysis of the state is inherently negative. Kelsen replies to Schmitt's *Hüter der Verfassung* (1996a) by pointing out that Schmitt sees parliament as the greatest danger to the constitution, and not abuses of power by the executive. In consequence, the Schmittean guardian of the constitution need only scrutinize parliamentary law-making (Kelsen 1930a: 583). Moreover, the existence of the state's political union is defined by inherently adverse capabilities, namely the ability to identify the enemy and the realization of homogeneity by eradicating heterogeneous elements. The friend/enemy distinction ultimately undermines the political union it is supposed

functions, the President of the Reich, under Article 48, 'may take the measures necessary for their restoration, intervening in case of need with the help of the armed forces' (translation in Hucko 1987: 160). However, Schmitt is no positivist and his state of emergency obviously exceeds Article 48. According to Schmitt the state of emergency is not merely a transitory phase but the precondition for the state of normality and the basis for a politics of authenticity. 'The exception is that which cannot be subsumed; it defies general codification, but it simultaneously reveals a specifically juristic element—the decision in absolute purity. The exception appears in its absolute form when a situation in which legal prescriptions can be valid must first be brought about' (Schmitt 1985: 13). Elsewhere Schmitt (1963: 39) describes the exception as essentially concerned with 'the case of conflict' ['*Das, worauf es ankommt, ist immer nur der Konfliktsfall*']. N.B. the inaccurate translation by Schwab in Schmitt 1996: 39 as 'the possibility of conflict'.

[20] '*Diese Definition kann dem Begriff der Souveränität als einem Grenzbegriff allein gerecht werden. Denn Grenzbegriff bedeutet . . . einen Begriff der äußersten Sphäre. Dem entspricht, daß seine Definition nicht anknüpfen kann an den Normalfall, sondern an einen Grenzfall.*'

to underwrite. This ability is not a recipe for the creation of internal order but a recipe for conflict amongst peoples. Moreover, as Di Fabio points out, the identification of the enemy leads to a process of intensification (the clearer the image of your enemy, the more political and freer is the people). Since, on the one hand, the consequence of having a concept of an enemy is the 'eventuality of struggle' (Schmitt 1963: 33), meaning war, and on the other hand, the inability to determine the enemy costs a political group or a people its political existence, only the people that are prepared to wage war are truly free (Di Fabio 2001: 124). The effect of Schmitt's constitutional analysis and the purpose behind the concept of the political is the same: they both 'devalue the written constitution' (Thoma 1929: 43), and discredit liberal constitutional law and its guarantees of freedom and property (Di Fabio 2001: 125).

Schmitt's concept of the state has ecclesiological overtones: the sovereign is the omnipotent creator of all law, and 'sovereignty' is a secularized theological concept.[21] At the core of Schmitt's analysis is the distinction between the absolute concept of constitution which is rooted in political legitimacy, and the merely liberal-legal 'constitutional document' which is nothing but a construct of compromises and contradictions. The political process (crisis, state of emergency, struggle, friend-enemy relations) is superior to constitutional norms. Schmitt's pattern of argumentation is consistent, but formulaic and repetitive. Although it seemingly proceeds in stages, Schmitt's theory essentially revolves around instilling basic constitutional elements with the higher legitimacy of the substantive constitution. This is so in relation to the *decision* which is promoted as the constitution in the political sense; the institutional core of the democratic state (in *Verfassungslehre*); the basic rights of the constitution (in *Legitimität und Legalität* (1932)); the meta-legal existence of the state (in *Hüter der Verfassung* (1996a)); the allegiance to the *Führer* (in *Über die drei Arten des rechtswissenschaftlichen Denkens* (1934a); observation by Brunkhorst 2003: 373).

The end result is a dangerous fudge. It is, for instance, not clear what the people have actually decided (dictatorship, democracy?). Schmitt's *decision* is a purely formal concept, not a normative benchmark to address the core or the essence of the constitution. Horst Ehmke later remarked critically that it would have made more sense to equate not the decision with the constitution, but the constitution with a decision (1953: 37). Although Schmitt's method separates the (internal) foundations and institutions of the constitutional order from the (external) technical and changeable elements of constitutional

[21] See Schmitt 1934: 49: 'All pithy concepts of the modern *Staatslehre* are secularized theological concepts'.

law, the distinctions he makes between state and legal system, political constitution and positive constitutional law, meta-legal right or justice (*Recht*) and positive law (*Gesetz*), order and law, legitimacy and legality, decision and norm are invariably biased in favour of the former (Gusy 1997: 441; Stolleis 1999: 105, 110 *et seq.*; see also 103, 113, 189): the state must be able to protect its foundations by making 'decisions'.

There is undoubtedly a seductive and reassuring quality to Schmitt's 'strong arm' of the law. But does it tell us anything about the intrinsic quality and integrity of law? For Neumann 'decisionist legal thought has, in fact, nothing to do with law. . . . In this kind of legal thinking, law is nothing but a technique for translating political will into legal form' (1986: 285). Ehmke makes an important point just by looking at the contents page of *Verfassungslehre*. 'Concept of constitution'—'absolute constitution'—'relative constitution'—'positive constitution'—'ideal constitution'. Schmitt's constitutional theory, he points out, is in reality a theory of constitutional *terminology*. 'The terminology constitute Schmitt's reality. If the terms no longer fit, his entire world collapses' (Ehmke 1953: 52).

The distinction between the political and the legal in constitutional analysis lies at the heart of Schmitt's theory and is also essential for the understanding of the dominant, non-positive interpretation of constitutional law in the Federal Republic of Germany post-1945 (see Chapter 3). The distinction opens the concept of the state up to the concept of the political, and the concept of union up to material requirements such as homogeneity. Caldwell notes that 'the notion of the state as substance created an undercurrent in Schmitt's work . . . that threatened to break through the surface of "normal" legal discourse' (1997: 97). Di Fabio describes graphically how Schmitt's definition of the state as the political status of a people 'placed a dogmatic figure in the juristic system which began a destructive operation like carcinogenic tissue in the organism of the law' (2003: 43). Hennis too argues dramatically that Schmitt destroyed 'normal' legal discourse by putting an explosive device in the constitutional document which not only blew up the bourgeois compromise solutions but also the entire *Rechtsstaat* (1999: 491). Dictatorial power was not legitimate to bridge an abnormal situation but to save the 'genuine substance' of the state. The state is like the church in former times, an institutional bulwark to protect its substance, which is today reflected in Article 79 III GG (known amongst non-positivists as the 'eternity' clause, or by Luhmann as 'provisional eternity').[22]

[22] Luhmann 1965: 185.

Schmitt's observations depicted a bygone era, that of the monarchy prior to the nation state and the constitution. They stem from a time when it was common practice to define the state in socio-historical terms, the constitution in material, non-positive terms, sovereignty as highest might, and *Volk* as a political and homogeneous unit. It is a static view of constitutional concepts which can be criticized on its own terms: state powers are codified in the constitution which is a living document that diminishes if not eliminates the idea of a political sovereign and is general enough to accommodate heterogeneous elements in the population.

II. Rudolf Smend (1882–1975)

Rudolf Smend was a member of the law faculty at the Friedrich-Wilhelms-Universität (which was renamed Humboldt Universität in 1949) in Berlin until 1935. He was ousted by Reinhard Höhn, a 'career-driven and robust' member of the SS (Stolleis 1999: 257; see also Hueck 2003), for his unwillingness to endorse the Nazi regime, and demoted to calmer waters in Göttingen. The British occupying power made him rector in 1945, and Göttingen became the first German university to re-open after the war. Smend belongs to a rich tradition of Protestant intellectualism that can be traced back to Luther, Goethe, Schiller, Hegel, and Bismarck. It not only claims to be the rightful heir of freedom of thought and German idealism but also to be endowed with the proper national instinct (Stolleis 1999: 174). The history of ideas was more a matter of intuition than of scholarly analysis. If Smend's background is borne in mind it comes as no surprise that Smend was challenged and provoked by Kelsen's *Allgemeine Staatslehre* (Smend 1994: 124; Korioth 2005: 322). Smend proceeded to dismiss Kelsen's theory of state, law, and constitution as 'positivistic formalism, which is basically only useful as a mental aid for bureaucrats' (Smend 1994: 356).

In *Verfassung und Verfassungsrecht*, originally published in 1928,[23] Smend shifts the focus of analysis from the state to the (positive) constitution and to (non-positive) constitutional law (1994: 120). Smend reacts to Kelsen's reduction of state to norms by removing the methodological prohibition against including history, politics, and ethics in the interpretation of norms (*ibid.*: 124). In consequence, Smend's definition of the state expressly

[23] Excerpts from this work have been translated into English and are published in Jacobson and Schlink 2000: 213 *et seq.* The only other secondary literature that exists on Smend in English is Landecker 1950: 39; Butz 1955: 44–6; Caldwell 1997: 121–6, 133–7, 141–4; Stolleis 1998: Chapter 5; 2004: Chapter 5.

includes material, i.e. social and psychological, elements in order to discover the meaning and content of the constitution. His social scientific/*Geisteswissenschaftlich* (rather than juristic) methodology, which in Kelsen's own words represented 'a counterweight to the Viennese school' (Kelsen 1930: 3; on the method, see Rennert 1987), derived from the phenomenological method of Theodor Litt, a Hegelian. In the Hegelian conception the state had to be *more* than law, had to exist *prior* to the law, had to be *deeper* rooted than a norm (Stolleis 1999: 174). Smend locates the reality of the state in the 'purpose' or 'spirit' of the political entity. The price to be paid for this approach is that constitutional concepts, such as state and constitution, as well as 'juristic', 'sociological', and 'theory of state' become amorphous concepts whose relation with each other was ambiguous (Badura 1977: 310). Although the title of Smend's principal work suggests that he is primarily concerned with the tension between the formal (positive) constitution (*Verfassung*) and the material (legitimate) constitution (*Verfassungsrecht*), his concept of the constitution occupies much of the space usually inhabited by the concept of the state.

Smend's work is also a reaction against Schmitt whose static view of social homogeneity and union of the German people created antagonism, enmity, and mistrust against the civic *Rechtsstaat*. By laying down the foundations of a social scientific theory of the state he wants to achieve both theoretically and practically what Schmitt assumes: the political union of the people (Hofmann 1995: 115; Di Fabio 2001: 124–5).

> In the parliamentary state the people as such do not pre-exist in a political sense, and are not then further politically qualified in elections and cabinet-formations—but they exist as a political people, as a sovereign association of will, primarily because of the respective political synthesis in which they are time and again brought into existence as state reality. (Smend 1994: 155)

1. The state

According to Smend the state is neither an *Übermensch* or pre-legal substance (*contra* Schmitt) nor is it a motionless, legal person that produces laws, diplomatic acts, or decisions. Its theory also amounts to more than a science of norms (*contra* Kelsen). It is an anthropomorphic body which lives and exists through the process of constant renewal and renewed perception.[24] Its 'life', in other words the reality of state practice, is best captured by Ernest Renan's late-nineteenth century idea of the state as a *plébiscite de tous les jours*

[24] For criticism see Kelsen 1928: 19, 23, 44; Merkl 1927: 160, 169.

(Smend 1994: 136). The word 'life' (*Leben*), which stems from romantic state theory (Badura 1998: 185), is central to Smend and conveys that the state is not a static body politic which churns out individual laws, judgments, and administrative acts, but that it is actively involved in a process of functional renewal for which Smend patents the term 'integration'. Integration is not a scientific method but an on-going process (Smend 1994: 476). Integration is not just the object of analysis but also a social goal and a process that involves a duty on behalf of citizens and institutions to act in a manner that facilitates the process of unity and integration. The individual is automatically and necessarily involved in the process (*ibid.*: 138–9, 171). Indeed, as Landecker points out, Smend 'seems to postulate integration as an ultimate value for a society' (1950: 41) which not only takes place within the confines of the nation state.

The German Empire of 1867/71, which could only have had the form of an association not of a state (Smend 1994: 229), is viewed positively because it was 'essentially a system of functional integration' (*ibid.*). In 1916 Smend wrote of 'unwritten' federal rights and duties in 'Unwritten Constitutional Law in the Monarchic Federal State' [*Ungeschriebenes Verfassungsrecht im monarchischen Bundesstaat*] (*ibid.*: 39–59), which was a precursor to his theory of integration. At the top is the general principle of 'federal comity' (*Bundestreue*) which is a constitutional commitment to 'federal state cordiality/courtesy (*bundesstaatliche Höflichkeit*) between central government and the individual which exists even though it is not positive constitutional norm' (*ibid.*: 55–6). Post-1945 the Federal Constitutional Court used the concept to describe the relation between the federal government and the *Länder*.[25]

The state is not a natural assumption but a 'cultural achievement' (*ibid.*: 134), which is internally ordered and shaped by law, and externally governed by the orders which regulate human co-existence (*ibid.*: 369). The state is an assignment, a project in which people realize their life chances and engage in political action through the use of power and law. 'The state is not an instrument, a means to achieve certain ends, but a living body and an end in itself, which can only be understood historically, philosophically, and anthropologically' (*ibid.*: 520). Although Smend recognizes that the state is situated between fact and law, he is not content with Jellinek's theory which is

[25] BVerfGE 1, 299, at 315 (*Wohnungsbauförderung*): '*Der im Bundesstaat geltende verfassungsrechtliche Grundsatz des Föderalismus enthält deshalb die Rechtspflicht des Bundes und aller seiner Glieder zu "bundesfreundlichem Verhalten"; d. h. alle an dem verfassungsrechtlichen "Bündnis" Beteiligten sind gehalten, dem Wesen dieses Bündnisses entsprechend zusammenzuwirken und zu seiner Festigung und zur Wahrung seiner und der wohlverstandenen Belange seiner Glieder beizutragen*'.

split into two incoherent parts. Smend is interested in the specific reality of the state which can only be understood by its 'integration system' (*ibid.*: 171).

2. Constitution

In order to act and to pursue its tasks effectively the state must first be organized. It is organized by virtue of its constitution. The constitution is the functional, legal instrument of integration. It stimulates and channels the process, develops the political system, and turns values into norms. But Smend is sceptical as to the integrative value of positive law (Smend 1994: 158, 175, 201, 522). In any case, law (*Recht*) is not identical to positive law (see also Badura 1977: 316). The exercise of state power must be more deeply rooted than positive law. Aside from its organizing function, the constitution has a second, 'integrating' function, the creation of the state's reality through a constant and active process of renewal.

> The constitution is the legal order of the state, more precisely the life through which the state has its reality, namely its integration process. The point of this process is the constant creation of the totality of the life of the state, and the constitution codifies the individual sides of the integration process. (Smend 1994: 189)

Smend's contribution to the Weimar debate is that he subordinates the constitution to the process of integration. The constitution is not merely a norm, but also reality, or 'integrating reality' (*ibid.*: 192). It has a limited normative function as its laws cannot solve the integrative problems of the state as a whole (*ibid.*: 484). According to Smend, the basic rights are an expression of a particular culture and system of values (*ibid.*: 265)—a view which was endorsed by the Federal Constitutional Court in the 1950s. The material constitution (unlike the positive legal order) is dynamic and elastic, and must be allowed to progress without formal constitutional amendment so long as it conforms to the spirit of the constitution. Constitutional life, the constitutional dynamic post-enactment, is marked by perpetual change and a 'fluent development of validity'.[26] As a result, the positive constitutional text must be interpreted in the context, and not in isolation, of the material constitution. This approach gives the entire constitution its unity and coherence of purpose (*ibid.*: 233–42).

This additional, elastic constitutional interpretation, which deviates greatly from other kinds of legal interpretation, does not require special authority (*ibid.*: 190). Integration factors, i.e. different types of formal

[26] Smend 1994: 242: '*fließenden Geltungsfortbildung*'.

processes and content that reveal the reality of the state, become central to Smend's constitutional understanding. There are three forms of integration, namely i) personal, ii) functional, and iii) substantive.[27] Together they constitute a unitary 'life or integration system'.

Smend's concept of 'personal integration' covers a spectrum of integrative roles from the leadership of an individual to the office as an institution. Prominent personalities of the state, such as the government leader, party leaders, and the head of state have an integrating function according to the constitution. The integrative function of state organs is ostensibly removed from individuals. However, Smend transforms the concept of office into a category of 'personal integration' (*ibid.*: 148) whereby its integrative strength rises and falls with the aptitude of the office holder.

Functional integration occurs through law-making, courts, and administration, and associated procedures with integrative functions: such as elections, parliamentary debates, forming the cabinet, plebiscites (*ibid.*: 148; 154; 205). Consistent with Smend's conception of integration, the significance of these procedures lies not in their representing public opinion in a legally binding manner but in their effectiveness as tools of integration. Smend engages in an interesting re-write of nineteenth century German constitutional history. Whereas, for instance, the exercise of political power or 'dominion' (*Herrschaft*) was *the* decisive legal factor of a state in the German Empire (see Chapters 1 and 5), for Smend political power is a mere sub-category of integration. In functional terms political power has the capacity to integrate and is further justified by its realization of irrational values, which accord it legitimacy, and rational values in the form of administration (*ibid.*: 157–8).

A similar restructuring of received theory occurs in Smend's third category of substantive integration, which is more concerned with the goals and values of the state, such as fundamental rights, constitution, preamble, territory, flag (*ibid.*: 160, 215, 217). Common values are the glue by which a group is held together, and their 'symbolic manifestation . . . facilitates their integrative effect' (Landecker 1950: 44). Whereas material considerations, such as state territory or history, had been deliberately excluded by von Gerber and Laband, they are reintroduced as an elementary part of substantive integration. The state is not assumed in the realization of these goals; the state is the result of the realization of these goals (Smend 1994: 160).

[27] '*Die personale, die funktionelle, und die sachliche Integration*' (Smend 1994: 142, 148, 160). Landecker translates these factors less strictly literally as 'integration through persons, integration through procedures, and integration through values' (1950: 42).

In sum, law is separate from and diametrically opposed to the political constitution. Unlike Heller and Schmitt, Smend does not view the state as a self-binding entity that exists prior to, and has primacy over, law (*ibid.*: 368, 524). The existence of law does not depend on the existence of the state. Conceptually, the state cannot be separated from the legal order which it establishes.

3. Critical assessment

According to Smend, the real constitution is not made up of the formal, written norms of the positive constitution but of the living values and institutions that underpin the 'true' constitution. The nature of these values (elections, state flag, party leaders) is conservative and bourgeois. Smend completely sidesteps the issue of sovereignty which formed the heart of the argument between Kelsen and Schmitt.[28] As was noted above, Smend rejects both Schmitt's concept of a pre-legal, political sovereign as well as Kelsen's hypothetical basic norm. Smend's conception of integration—his contribution does not really qualify as constitutional theory (Korioth 2005: 327)—is unable to reconcile the absolute image of sovereignty that both Schmitt and Kelsen take. The true constitution is the result of a continuing (ad infinitum) integration process; it is more a spiritual or dynamic phenomenon that disregards firm reference points such as *Volk* and *Raum* (critically Huber 1935: 23–7). As a result, Smend's elasticity and adaptability on the matter paved the way for democracy after 1945 (the notion of integration is reform-friendly and adaptable to changes in public opinion). He became the principal theorist of the *Grundgesetz* long before it had been conceived (Schönberger 2000: 666). However, it also paved the way for anti-liberalism which emphasizes the natural law assumptions of his organic theory and may justify 'unrestrained terror' (Caldwell 1997: 137). Kelsen thought that Smend was a *Staatstheologe* whose theory of integration had produced a 'fascist state'. It was, furthermore, an anti-constitutional, anti-parliamentary, and pro-dictatorial piece of polemics targeted at the Weimar Constitution (Kelsen 1930: 35, 56, 58; Caldwell 1997: 126; see generally Korioth 2005).

Smend's bid can be summed up in one sentence: a state is a state if it integrates. Its unity is not pre-supposed and defended by excluding heterogeneous elements (cf. Schmitt). Instead, the sense of community must be constituted and reconstituted through personal, functional, and technical

[28] See Caldwell 1997: 137, note 100: although Smend refers to 'sovereignty' at several places in *Verfassung und Verfassungsrecht* (see 1994: 139, 155, 195–6) he does not substantiate the concept in theoretical terms.

input. The state is not conceived in abstract theoretical terms, or even in purely legal terms. Instead, it is a social reality made present by the representatives of the state or the symbols of the state. Smend is not concerned with a legalistic analysis of the foundations of the state but with laying down an unequivocally political standard to constitutional law (Caldwell 1997: 6). Contrary to Schmitt's premise of the decision and the exception, Smend's starting point is harmony and normalcy which he tries to remove from the polarizing battle of words, concepts, and opinions of the Weimar years. Instead of ratcheting up conflicts in the manner of Schmitt, Smend seeks to resolve them (Günther 2004: 33, 42).

> The theory of integration results in a theory of the state which, most significantly, can omit at a minimum the organization and the legitimacy of the state by means of other values, in particular legal values and assert its validity through the elasticity of the system of integration factors, for all cultural systems and any arbitrary 'fundamental variables' or 'primary factors'. (Smend 1994: 186)

Instead of focusing (like Schmitt and Heller) on the sovereign 'decision' as the core of the problem, Smend seeks to reveal the sociological reality of that decision as a form of political self-determination (*ibid.*). Society will have achieved its ontological task of integration if it achieves consensus and harmony. His approach seeks to protect the unity of the state against pluralism as well as totalitarianism (Smend 1994: 516).

The values of the Enlightenment, rationality, and progress had at best come to a dead end and at worst suffered total collapse after the experiences of World War I. Smend's conception of integration is a deliberately irrational (at least in part) response to rationalism. It is not a paradigm of solid analytical concepts, but the 'theoretical counterweight to pluralism, party fragmentation, and class struggle' (Korioth 2005: 324); in other words a theory of evaluation and balancing and, ultimately, inconclusiveness. In Kelsen's words, Smend's main work suffers from:

> . . . a complete absence of systemic unity (consistency), a certain hesitancy of opinion that avoids clear and unambiguous decisions, expresses itself preferably in vague insinuations, and burdens every half-way concrete position with cautious qualifications; and consequently, an obfuscating, extremely laborious style of writing that comprises far too many foreign words whose meanings are half obscure. (1930: 2)

Smend's romantic concept of the state, which relies on an intuitive and descriptive understanding, prevents the development of clear-cut scientific concepts. In damning indictments, even friendly critics conclude that Smend's understanding has 'no specific juristic diagnostic value' and fails to add to the store of legal knowledge (Korioth 1990: 163; Hillgruber 2006:

67). In particular the notion of 'life' with its naturalistic and metaphoric connotations is a problematic term to use in scientific analysis (Badura 1998: 186) and a marked throwback to the *Staatslehre* of a bygone era (Kelsen 1930: 26–7). The definition of the state as process and of the state's existence as 'life' leads to an evaluative way of thinking about positive law (Smend 1994: 233–4) and, in the final analysis, to state theory as ideology (Badura 1998: 190).

Smend's concepts of 'constitution' and 'integration' are also vague and inconsistent. The constitution is described both as a set of normative rules (*gesetzliche Normierung*) that govern the integration process, and as the expression of real political life: the constitution is not merely a norm, but also 'integrating reality' (Smend 1994: 189–92; criticism in Kelsen 1930: 60–6; Caldwell 1997: 133–4). In other words, the integrative value of the constitution is more important than its legal value. 'Integration' is defined in the foreword as an *einigender Zusammenschluß* (1994: 120), which can be translated as a 'unifying fusion' (Caldwell 1997: 124) or, more poignantly as a 'unifying union'. This neoplasm exposes the nebulosity of Smend's integration theory: 'integration' can only mean the union of people, but since it describes a formal process it does not say anything about the particular characteristic of the state as the system of integration. In Kelsen's trenchant words, 'only the foreign expression conceals the vacuous triviality of the phrase' (1930: 46).[29]

For all its analytical weaknesses, the concept of integration was highly successful and 'resonated in the dis-integrated political culture of the Weimar Republic' (Caldwell 1997: 124) and beyond. Where Kelsen produced black and white, Smend produced shades of grey; where Kelsen's constitution was a 'normative rock', Smend's constitution was 'political driftwood' (metaphors in Hillgruber 2006: 70; see also Korioth 1990: 80). This elasticity was instrumentalized by actors across the political spectrum. As Stolleis notes:

> . . . the impressive store of knowledge and the verdicts on neo-Kantianism, liberalism, relativism, legal positivism, and the 'Viennese School' turn the book [*Verfassung und Verfassungsrecht*] into a clever pamphlet from which National-Socialist theoreticians of the *Volksgemeinschaft* benefited as much as the indisputable democrats of the Bonn Republic. (1999: 175)

Writing in 1956, Smend insisted that the background of his theory of integration was the 'chaos of the sickly constitutional state of the 1920s, out of which emerged a desire to offer in contrast the original healthy sense of the life of the constitution' (1994: 481). Smend's reception in post-war

[29] The word 'integration' stems from Herbert Spencer's sociology and refers to the socialization or collectivization of a plurality of individuals into a social unit (see Weber 1922).

Germany was highly successful. His students included Wilhelm Hennis, Horst Ehmke, Peter Häberle, and Konrad Hesse, later a judge of the Federal Constitutional Court (see Chapter 3). Rudolf Smend filled the gaping hole left by Carl Schmitt who was discredited, Hermann Heller who had died, and Hans Kelsen who had gone into exile and whose normative theory had in any event not found widespread favour in Germany among legal scholars.

III. Conclusion

The positivism of the late nineteenth and early twentieth centuries created a dualism by which form was separated from content, standards from facts, and principles from reality. These spheres are incommensurable, static, and based on 'a false dualistic premise' (Brunkhorst 2008: 491) that has permeated German public law discourse since the Empire.[30] The discussions and debates in the Weimar Republic hardly ever focus on democratic institutions and procedures (Schönberger 2000: 667). Instead, the state is conceived either in pure normative terms or in crude factual terms. But is the contrast between reality and law, fact and norm, is and ought etc. a semantic distinction or a categorical (either-or) antithesis? If it is the latter, then the state can only be conceived *theoretically* as pure fact or pure norm. This leads to the identification of law with power and power with law (as Kelsen and Schmitt show). However, neither approach captures the state's experience in its real-life *context*.

There were three, or maybe four, main constitutional schools in the Weimar Republic. The pure theory of law (Hans Kelsen), decisionism (Carl Schmitt), the concept of integration (Rudolf Smend), and, to a lesser extent, Hermann Heller's socio-cultural theory of the state. Isensee is incisive in the way he contrasts Schmitt and Smend.

> Both relativize the written constitutional document, either by superimposing the 'positive concept of constitution' (Schmitt) or by conceiving the constitution as one amongst many factors of the integration process (Smend). For Schmitt, the Archimedean point is the decisionism of the constitution, for Smend it is the reality of life in the state. Schmitt fortifies the legal validity of the constitution by removing those parts that determine its identity from constitutional amendment; Smend weakens it by making the interpretation and application of individual constitutional provisions dependent on their integrative effectiveness. Under Schmitt's theory the constitution becomes legally rigid and politically resistant; under Smend's theory, it becomes legally flexible and politically disposable. Schmitt's constitutional theory is based on

[30] On the nineteenth century, see Schönberger 1997; on the Weimar Republic, see Lepsius 1994; Gusy 1997; 2000; and generally, Brunkhorst 2003.

the constitution, Smend's theory is based on the state. There is a certain paradox that the Schmitt-school kept the idea of the state alive while the Smend-school abandoned it to construct the *Leitbild* of a state-less constitution. (2010: 218)

Heller, Schmitt, and Smend attempted to integrate social reality into the concept of the constitution (see Pernice 1995). Central terms of constitutional theory like *Verfassungswirklichkeit*, *Verfassungswandel*, and 'material constitution' are evidence of this tradition (Laband 1895; Jellinek 1906; Hesse 1973; Forsthoff 1976; Böckenförde 1991: 141–56). Hennis argues that these terms are typical of a 'German problem' (1968: 24 *et seq.*),[31] but in truth they capture phenomena that exist elsewhere too, e.g. with respect to the relation between a supreme/constitutional court and parliament (Jestaedt 2002), the method of constitutional interpretation, the validity of customary constitutional law (Tomuschat 1972), and the limits of constitutional change (Hesse 1973; for further references see Voßkuhle 2004a: 450). The materialization of the concept of the constitution in this way arguably makes it harder to distinguish it from the state. The constitution is not the text but the condition of society as a whole, i.e. the substantive 'political' state. The constitutional text is merely the juristic and institutionalized form of a prior political condition. The concepts of state and constitution become interchangeable (Möllers 2000: 141 *et seq.*; 2003: 12). It is here that German theory makes the supposedly necessary connection between the state and the constitution which is of central importance in relation to the European Union (see Chapters 4, 6, and 7).

The central charge in the following chapters will be that the dominant (anti-positive) tradition smuggles extra-legal (political) interests into the discourse in order to promote as legally necessary what is politically desired. In order to do so the state is defined in pre-constitutional terms, sovereignty is viewed not as a property of the legal order but of the state, the constitution is regarded not as an autonomous order with a value of its own (*Eigenwert*) but as a subset of the state to which it must defer, and the *Volk* is viewed in sociocultural terms rather than juristically. The difference between legal positivism and anti-positivism is ultimately ideological.[32]

[31] Even though the term *Verfassungswirklichkeit* is untranslatable, it describes a situation which does exist in other countries. As Hennis notes, while theoretically speaking the Queen could dismiss the Prime Minister and most of the judges, and could declare war or sell the Channel Islands to France, in constitutional practice (*Verfassungswirklichkeit*) she could not even appoint her son to the Order of the Garter without first asking the Prime Minister (Hennis 1968: 12).

[32] Kelsen also suspects that the fierce criticism against his pure theory of law has less to do with 'sober motives of political inquiry' than with 'political motives—that is, motives highly coloured by the emotions' (1992: 2; 1934: iv).

The ideological purpose behind contemporary constitutional law is also visible in relation to its treatment of the past. In the long citation above, Isensee points to a paradox or irony which is that the traditional state-centric tradition builds on the anti-positivism of Schmitt by accentuating the factual political power of the state (as opposed to the absolute constitution), whereas the modern constitution-centric tradition builds on Smend's integration theory to emphasize the authority of the constitution (instead of the state). The debate will be recited but not resolved.

Analytically, the present inquiry is sensitive to politically inspired argument in legal discourse, and legal formalism and positivism provide a useful bulwark against the 'higher' political-moral argument which supposedly trumps law. The formalist benchmark allows us to ask questions that are uncommon in German constitutional scholarship. How much traditional theory remains in the Basic Law and Germany's constitutional culture? Is the constitution sovereign today? And what is the constitution? Is it the constitutional document (the Basic Law) which is the sum total of all fundamental laws? Or do pre-constitutional notions exist which must be taken into account? These questions are of central importance to the relation between Germany and the European Union. Are the newer constitutional values and amendments strong enough to meet the demands of the European Union? Or is there a danger that the Basic Law will itself become an obstacle to further integration? It is important to be aware of the conflicting traditions because they contain the implicit and explicit assumptions of the Basic Law, and are commonly referred to in contemporary legal argument.

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PART II
CONSTITUTIONAL LAW AS A METHOD

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3

Staatsrecht and *Verfassungsrecht*

> Even the constitutional state is state.
>
> Josef Isensee (2004: para. 1)

> [The popular sovereign] does not exist because no one believes in the dogma of sovereignty.
>
> Gerd Roellecke (1991: 2442)

I. Internal Interpretations of the Constitution

Post-war constitutional scholarship was characterized by the reception of the different Weimar schools of thought from which it sought orientation and inspiration (Roellecke 1987: 100). Weimar state and constitutional theory lay in ruins, and so it must be appreciated that retrospective guidance could not have resulted in a coherent theory for the modern constitutional state (Ehmke 1961: 3–4). Although commentaries on the Basic Law abounded, Hennis noted the futility of the search for the 'spiritual volume' as well as the 'near-complete absence' of original efforts in constitutional theory (1963: 11–12; see also 1959; Lepsius 2004: 374; Möllers 2000: 129 *et seq.*; Schulze-Fielitz 2002: 57). Post-war constitutional scholarship was not only incoherent, it was also predominantly anti-positive (Smend 1994: 634), as is illustrated by the premise of the Basic Law which was to overcome the constitutional branch of legal (*staatsrechtlich*) positivism (Heun 1989: 377; Zajadlo 1987). The uncorrected republication of Schmitt's *Verfassungslehre* in 1963, not as an historical document, but as a statement on contemporary scholarship was symptomatic of the dearth of contemporary theory.

This chapter seeks to bring together two rival spiritual foundations of the Basic Law in the form of ideal-types that represent different methods of analysing what in Anglo-Saxon countries is known as constitutional law: *Staatsrecht* (literally: state law) and *Verfassungsrecht* (literally: constitutional law). The former has no counterpart in common law countries nor, indeed,

in most other countries (Schönberger 1999; Möllers 2000: 1; 2008: 10; Jouanjan 2004), and the distinction between *Staatsrecht* and *Verfassungsrecht* is unclear even within Germany. Often the terms are employed synonymously to describe the positive constitutional law of the state (see e.g. von Bogdandy 2009: 385). At other times, the two disciplines are treated like concentric circles: all constitutional law is state law but not all state law is constitutional law. Depending on what scholars want to emphasize, *Staatsrecht* either encircles constitutional law (Stern 1984: 10) or is encircled by constitutional law (Hesse 1994; 1995). In that respect, the difference between *Staatsrecht* and *Verfassungsrecht* is reminiscent of Kelsen's distinction between the primacy of international law and the primacy of national law (Kelsen 1960a): whatever attempts are made to identify a legal-analytic distinction between the two disciplines, the emphasis on either 'state' or 'constitution' is ultimately a political or ideological one.

Traditionally, the discipline *Staatslehre* focused on all questions relating to 'the state' (see Chapter 1). After 1945 it also dealt with the entire political-administrative system (political parties, interest groups, media), i.e. the traditional Anglo-American field of political science (von Arnim 1987: 481; 1989: 157; Badura 1998: xii; Quaritsch 1994: 362; Zippelius 2007[1]). The 'state' became part of general social theory and part of the material, meta-positive constitution. It contended with, and was embraced by, all the other disciplines that also deal with the state in that broad sense (chiefly political science, but also philosophy, theology, sociology, European and public international law, economics, business studies, and history). This cross-disciplinary dialogue and the materialization of the constitution led to two consequences. First, it led to the demise of the juristic discipline *Allgemeine Staatslehre* (see Chapter 1). Second, it produced an 'integrative' and 'contextual' (but not 'inter-disciplinary') jurisprudential method that was informed by meta-constitutional values (political science, philosophy, theology etc.)

The social power of constitutional law has always been reflected in the *Allgemeine Staatslehre*: it soaked up the issues ignored by legal positivism and maintained their relevance for legal science (Schmitt 1928: ix). However, it was precisely this ideological over-loading of the concept of the state (by which political, economic, and ethical questions could be transformed into questions of constitutional interpretation) that ultimately led to the 'total demise' of the *Allgemeine Staatslehre* as a discipline (Hennis 1963: 12; see also

[1] Zippelius's book has gone through 16 editions from 1969 to 2010 and has been translated into three languages. Krüger's book (1966) is a successful exception to the general rule (six editions from 1975 to 2003).

Morlok 1988: 26). In addition, its central plank (the impermeable state) lost some of its unrivalled potency during the Weimar Republic when the Weimar Constitution of 1919—the first German constitution to claim to be the result of popular sovereignty—attracted the attention of *constitutional* scholars. From that moment on 'the end of statehood' was being predicted by a number of authors beginning with Schmitt who noted in 1963 that the epoch of statehood was drawing to a close.[2]

The demise of the *Allgemeine Staatslehre* was directly related to the rise of *Verfassungsrecht* which in turn led to the ideological over-loading of the concept of constitution in material terms (Voßkuhle 2004: 4). This was to some extent necessary as questions regarding the role of the state in an age of privatization or the generation of legitimacy within the European Union could not be answered with reference to the Basic Law alone (Voßkuhle 2004: 3). In consequence, inherently political questions were handed over to the Federal Constitutional Court to the detriment of parliamentary democracy (Badura 1998: xiii). There is an anti-positive tendency in post-war Germany to conceive the state and the constitution in material terms and to expose them to history, philosophy, economics, and sociology—albeit mercifully not on the same scale as in Weimar.

The objective of this chapter is to examine how the concept of the state in the late twentieth century waxed and waned, and even swayed between 'apotheosis and apocalypse' (Merten 1996: 25).[3] To do so, we need to gain a better understanding of the two ideal-typical concepts, *Staatsrecht* and *Verfassungsrecht*. It is the argument of this book that the difference between the two terms is not merely semantic as suggested above, but that they represent two conceptually radically different methods of theorizing the constitutional branch of public law. Whereas *Staatsrecht* offers a pre-constitutional and state-centred interpretation of constitutional law, *Verfassungsrecht* in both its formal and material facets embraces the totality of written and unwritten legal norms on the foundation, organization, and competences of the state, and the role of the citizen in the state (e.g. citizenship and voting rights on which the Basic Law is not silent but not

[2] '*Die Epoche der Staatlichkeit geht zu Ende*' (Schmitt 1963: 10; see also Forsthoff 1971 whose first chapter contains nostalgic 'Memories of the State' [*Erinnerungen an den Staat*]; see now Siekmann 1997; Hofmann 1999: 1965; Denninger 2000: 1123; Steiger 2002).

[3] The legal reincarnation of the state concept has been accompanied by an inverse discourse in the social sciences. Luhmann (1970: 154) wrote in the first edition of *Soziologische Aufklärung* in 1970 that 'the state has remained a very indefinite category which is of little analytical use' ('*Staat ist eine sehr unbestimmte, analytisch wenig brauchbare Kategorie geblieben*'). But with the publication in 1985 of 'Bringing the State Back In' by Evans, Rueschemeyer, and Skocpol, the state seems to have retaken centre-stage in political theory (see also Dearlove 1989; Rockman 1990: 25; Voigt 1993).

specific either). The two methods of constitutional analysis emerged in the 1950s and 1960s and are clearly based on Carl Schmitt's concept of the *decision* and on Rudolf Smend's concept of *integration* (see generally Günther 2004; Möllers 2000: 126–7). Essentially, the Schmittian paradigm seeks to defend the concept of the state against contemporary challenges whilst the Smendian paradigm gradually replaces the authoritarian, nineteenth century model of the state with a more nuanced pluralist framework that focuses on political community, society, and an integrated Germany in the Europe Communities and then Union.

The absence of Kelsen and Heller can be explained: both were 'notoriously disinterested' in constitutional interpretation, which, combined with Kelsen's emigration and Heller's death, contributed to their loss of post-war influence (Möllers 2005: 422). That lack of interest was shared by a significant number of post-war German public law scholars who were neither Schmittians nor Smendians but saw their role as receiving and commenting on legal doctrine (parliamentary statutes and judicial decisions) as handed down by the legislature and the courts in 'black letter' fashion. Stolleis notes that Friedrich Giese (1882–1958) and his student Friedrich Klein (1908–1974), the early commentaries on the Basic Law, and the early editions of the journal *Archiv des öffentlichen Rechts* did not replicate the heated discussions of Weimar about method and theory. Instead they painstakingly wrote about the new institutions, crisis management, and conflicts between old law, the law of the occupying forces, and new law (Stolleis 2009: 75).

> In the constitutional legal scholarship of the Federal Republic, the legacy of Weimar public law theory [*Staatsrechtslehre*] is not primarily the vehement discussions on methodology but rather the new, pragmatic insights into the problems of the relation between constitution, constitutional law, and constitutional life. (Friedrich 1977: 161)

Nonetheless, in so far as 'state' and 'constitution' were discussed in theoretical terms, the argumentative fault-lines were familiar. Frieder Günther traces this schism back to 'consensus liberalism' and the moderate understandings on state interventionism that developed in the Roosevelt era in the context of the New Deal and were imported into post-war Germany through US-American ideas about law and order. Coupled with Anglo-Saxon liberalism, in which the 'state' plays a minor role, this migration of Western ideas led to a 'mixed culture' that consisted of domestic traditions as well as of Western-Atlanticist ideas, and cannot be understood as pure Americanization (Günther 2004: 12–13). The traditional nineteenth century image of the state as a neutral, sovereign, and substantive unit that is superior to societal and individual interests, and which is conceived in terms of government and administration,

is now contrasted with a Western-pluralist conception of the state as a functional entity that facilitates political decision-making in the name of society and in the name of the people. The all-importance of the state has been replaced by the all-importance of the individual citizen and her civil, political, and procedural rights that are guaranteed by the constitution.

One conclusion in this chapter will be that the concept of the state has not become obsolete simply by virtue of being opposed by a rival constitutional interpretation. The old dichotomy in German constitutional theory between 'is' and 'ought', fact and norms etc. continues (helpfully or not) under different headings such as *Staatsrecht* and *Verfassungsrecht*, constitution as a framework order [*Rahmenordnung*] or as a basic order [*Grundordnung*],[4] *Volkssouveränität* and *Verfassungssouveränität.* This discussion is important for the wider sociological thesis of this book that:

> ... the extent to which the Constitution affects or should affect the legal order as a whole is determined substantially by how players in the political process interpret the significance of the constitution. (Folke Schuppert 1998: 20)

This insight will be applied in the next chapter regarding the legal relation between Germany and the European Union which also depends to a large extent on how it is understood by legal actors. The national dichotomies will reappear at the supranational level in modified form (*Staatenverbund* and *Verfassungsverbund*, identity and integration etc.).

1. *Staatsrecht*

The continuities between Carl Schmitt's *Verfassungslehre* and post-war *Staatsrecht*-thought are especially visible in relation to i) etatism and decisionism (which are discussed in the following paragraphs) and ii) a theory of representation (that will be discussed in Chapter 4 in relation to the European Union). However, as we will see below, Schmitt was unable to prevent the general reception of Smend and Heller's understanding of state and constitution, especially in the area of social welfare and individual rights protection by the Federal Constitutional Court (Häberle: 1975a: 688). The central *Staatsrecht* claims reincarnate Schmitt's concepts of etatism and decisionism, according to which the 'existential' state frames the entirety of public law with the express aim of identifying and protecting the state as a homogenous unit (Möllers 2000: 231–5).

[4] On this specific distinction see Böckenförde 1991: 197–9; and criticism by Alexy 2002: 390 *et seq.*

a. The state as organized power distinguished from society

The analytical separation of the (political) state from (private) society is the product of European modernity (see Hegel 1991: §260, §183; Heller 1971a: 6, 205–6; Böckenförde, 1973: 10). This distinction is not merely an abstract one, but the product of historical fact. The process of industrialization meant that the state, from the 1870s onwards, was forced to regulate social welfare, to intervene in the economic area and, in this way, to link itself up with society. In a series of articles and contributions, Ernst-Wolfgang Böckenförde argued that state and society should be *distinguished* (rather than separated), and that this distinction is constitutionally necessary (1973: 8; see also Forsthoff 1971: 21 *et seq.*). Left to its own devices, society tended towards social injustice, self-destruction, and totalitarianism. To organize itself autonomously, the political decision-making function of the state needed to be independent. State and society are, therefore, not completely separate, and their relation is determined by the 'organized affective union' (Heller) of the state. The state creates order and freedom by intervening in society and by trying to counteract social injustice. In turn, society affects the state's structures through elections and through civil servants. The state personifies a higher being in Hegelian terms: 'the activity of the state cannot be separated from its being . . . which lies in the existential and meaningful content of its activity which it develops' (Krüger 1966: 674; see also 1973: 285, 293 *et seq.*).

The historically-contingent relation between state and society has implications for the understanding of the constitution. According to Böckenförde, who is a former judge of the Federal Constitutional Court and a liberal interpreter of Carl Schmitt's work, *Staatsrecht* is necessarily broader than *Verfassungsrecht*. The subject-matter of *Staatsrecht* are 'the legal forms, the legal rules and the legal institutions that relate to the state as an organized and effective unit of action, and the exercise of its sovereign decision-making powers' (Böckenförde 1991: 11; see also Isensee 2004: para. 185). *Staatsrecht* regulates, co-ordinates, and limits the exercise of sovereign decision-making powers for an unlimited duration. Yet what characterizes *Staatsrecht* as a constitutional interpretation is its inclusion of sovereignty by reference to political dogma, i.e. the main ethical-legal and political-legal principles and decisions which underpin the concept of the state. It is important to note, and Böckenförde emphasizes this, that these principles and decisions precede the scientific analysis of the state, and are not produced by it (Böckenförde 1991: 21).

The intellectual continuities with Carl Schmitt's thought run deep, and his concept of decisionism helps to understand the premise of *Staatsrecht*. His

rejection of the positivist equation of the formal and the material constitution by drawing a distinction between the absolute and the positive constitution was picked up on by the first generation of Schmitt scholars such as Ernst Forsthoff and Werner Weber (the latter also belonged to the first batch of editors of *Der Staat* in 1962). Weber adapted better to new life under the *Grundgesetz* than Forsthoff in that he accepted the Basic Law as the form of the political community. However, decisionism was still an important factor, and Weber used the state of emergency/exception as the most appropriate approach to conceive the constitutional order of the Bonn Republic (1949: 22–3). The downside of decisionism is that it undermined the Basic Law and prevented the state (by delegating this power to the Federal Constitutional Court in Articles 18 and 21 II GG) from taking measures in exceptional circumstances to protect the unity of the people and prevent civil war. Like Forsthoff, Weber was 'the prototype of a conservative etatist' (Günther 2004: 139). Both noted critically how the substantive state was being dissolved by societal forces who made recourse to state power (Weber 1949: 15–20; 1957: 29–47; 1969), and that the Basic Law was an obstacle in practice because it had collapsed the distinction between the exceptional and the normal (Weber 1949: 22–3; Forsthoff 1971: 58–74, 119–46, 166–7; Schneider 1951: 131–2, 142–7).

Ernst Forsthoff went a step further than Weber. Forsthoff was 'without a doubt Carl Schmitt's most important and most influential pupil' (van Laak 1993: 240). Forsthoff borrows Schmitt's distinction between constitution and constitutional text (1963: 385; 1971: 70–1) which provides solid evidence that the conception of decisionism as raw political state power, which enjoyed meta-positive and anti-democratic legitimacy, was still publishable in the 1970s. Founded on a mere 'situation' or 'condition', the Basic Law was devoid of the requisite political elements that Schmitt had conceptualized. Pre-legal *Staatsrechtswissenschaft* (focus on 'state'), Forsthoff complained, had been reduced to legalistic *Rechtsstaatwissenschaft* (focus on 'law') which is wrong-headed since statehood properly conceived could not be equated with *Rechtsstaat* (Forsthoff 1976). Once conceived as the cloak of statehood (i.e. sovereign power), the *Rechtsstaat* was now autonomous. The result was a *Rechtsstaat* that was 'introverted' and 'temporary' (1971: 46–7, 71) and a (political) state that was dead (*ibid.*: 25) because it could not strip itself of the cloak.

Forsthoff reduced the Basic Law to a positive constitutional text and measured it against a nineteenth century constitutional benchmark (*ibid.*: 62). The idea that the positive constitution was *the* constitution was derided as a legal ideal, as a 'cosmic egg from which all else derives, from the Criminal Code to the law regulating the production of medical thermometers' (*ibid.*:

144). Applied to the reality, the Federal Republic suffered from a 'birth defect' and did not represent such a proper state which had to be more 'and something other than the normative terms and claims contained in its constitution' (*ibid.*: 47, 55, 105, 106).[5] Forsthoff lamented that industrial society had replaced the state as the social core. The first chapter of *Der Staat der Industriegesellschaft* (1971) was a nostalgic retrospective entitled 'Memories of the State' and its centre (i.e. sovereignty). The politics of decisionism were entirely absent in the new constitutional order, and Forsthoff's expression of grief reads like a post-Hegelian swan song full of bitterness and sadness (Stolleis 2009: 75).

b. The state exists prior to the constitution

Whereas for Weber and Forsthoff the Basic Law was an obstacle, for the second generation, especially for Böckenförde (1970: 79–81; 1988: 283–8) and Dieter Grimm (1969; 1972), it was the medium. The constitution was not viewed as the foundation of the state, but it gave the state a certain form, guided its action, and conferred legitimacy. Böckenförde does not equate the formal and material elements of the constitution. Not all elements of the material constitution are codified, and not all norms of the constitutional text are covered by the material constitution (e.g. nationality laws, electoral laws, norms regulating the civil service). *Staatsrecht* relates to the pre-existing material constitution, whereas constitutional law is the law of the formal constitution, i.e. the constitutional document (Böckenförde 1991: 12; Isensee 2004: para. 188).

The state is not a subsystem of society but ranks above it. The state is not a legal unit but an animated body that comes to life and organizes political power. It is an organization of power, rule, and authority (*Herrschaftsorganisation*: Kirchhof 1992: para. 31). As a result, the order that it regulates is an antecedent and binding normative order (Böckenförde 1991: 20). Since the state exists in substance outside the constitutional order, the constitution and the political form of the state can change whilst the state continues (Böckenförde 1999: 138–9). As a result, Germany is a state irrespective of the Basic Law. 'The constitution shapes and strengthens an antecedent power and structure into a constituted state, thus contributing to the continuity of the community' (Kirchhof 2004: para. 25). All the Basic Law does is translate statehood into positive terms for the constitution and define it.

[5] For a contemporary restatement of this thesis see Depenheuer 2009 in which he argues that the constitution has become a substitute for the state.

> The constitutional law-giver does not determine the existence or the demise of a state, but its organization, its modes of action and its future development. The laws of the constitution assume the state and re-arrange it. (*ibid.*)

The constitution relates to the state in the same way that form relates to substance, exterior to interior, the garment to the body (Gusy 2007: 45). Consistently with that interpretation, the constitution is only one, albeit an essential, element of modern statehood (Haltern 2005, 50–1; Gusy 2007: 41; Isensee 2010: 200). The term 'constitution', as Kirchhof explains in Smendian terms, 'includes the claim to a comprehensive basic order of public [i.e. state-based] life, which renews itself from within, takes on new tasks independently and empowers the corporation that it constitutes for autonomous, further development' (Kirchhof 2006: 769; Smend 1994: 187–97). It is 'ultimately the state that determines the scope and reach of its content' (Isensee 2010: 200). *Staatsrecht* refers to the constitution merely to interpret and explain the concept of the state. It roots the legitimacy of the constitution in the power of the state to serve the law which is used to protect individual rights and freedoms, public security, and the existence of the state (Isensee 2004: paras. 4–5; 196; Kirchhof 2010: 77). As a result, the constitution relates empirically to a factual condition (the order of the state) (Isensee 2004: para. 177) as well as to a normative condition 'that finds its object of reference and its pre-condition in the pre-existing state' (Kirchhof 2010: 77).

Böckenförde reformulates the political concept of constitution at the intersection of fact and norm in 'arguably the most quoted sentence in post-war German political thought' (Müller 2003: 4): 'the liberal, secular state lives off the preconditions which it cannot itself guarantee' (Böckenförde, 1991a: 112). But the sentiment and the sentence are ambiguous. It can either mean that the state, i.e. *any* state, lives off certain preconditions that it cannot guarantee. That is Grimm's understanding who concurs that the constitution structures the political process, guides the public and provides social and political stability 'not by itself, but by drawing on social prerequisites that it can itself no longer guarantee' (1997: 245). Accordingly, the constitution derives its legitimacy not from a content-independent *Grundnorm* but from social assumptions and political culture.

Böckenförde's sentence could also mean that the secularized state is not able to guarantee liberty solely by means of public law (Böckenförde 1991a: 113; observation by Schröder 2010: 873). The foundation of the legal order solely on the protection of individual liberty is inherently unstable, as it becomes subject to a daily plebiscite (*Renan*). Indeed, Böckenförde draws on religious motivation and commitment to secure the pre-constitutional foundations of the state given the religious and cultural pluralism in the twenty-

first century. The state will flourish if Christians accept the secular state and decide to maintain it as a guarantor of peace (1991a: 113; 2002: 34 *et seq.*). Böckenförde cites Hegel: 'The moral life of the state and the religious spirituality of the state are thus reciprocal guarantees of strength' (Hegel 1991a: §552). Kirchhof also draws on the renewal of the conditions for the constitution by the state (through legislation, public finances, and education) as well as the economy, cultural institutions, and society (Kirchhof 2010: 73).

However, as Böckenförde also argues, it is not just the content that distinguishes *Staatsrecht* from other areas of law but also its 'structural particularities'. Underpinning Böckenförde's analysis are four assumptions of *Staatsrecht* as:

- *fundamental law*: it self-regulates the requirements, forms, and procedures of law-creation, sets up principles and limits on law-creation by the state, and controls the manner and form of the application and enforcement of law through state organs.
- *political law*: it is the legal discipline that is closest to and directly intertwined with politics. By determining how political power is exercised, and limiting it, *Staatsrecht* is an integral part of the unity of the state which it both structures and regulates. 'It is not by coincidence, but by design, that the foundational state and constitutional concepts, such as democracy, *Rechtsstaat*, federal state, the free and democratic basic order, are politically and ideologically laden concepts' (1991: 15–16).
- *fragmentary and incomplete*, at least in large parts: constitutional law generally speaking only picks out and regulates those aspects of the state that it deems particularly important, whilst other (self-evident) aspects are left unregulated. 'What ought to be valid is here tacitly assumed' (*ibid.*: 16–17).
- a *legal framework*: state practice is given room to manoeuvre in the knowledge that not all aspects of political life can be regulated in detail (for more detail see *ibid.*: 14–18; Isensee 2004: para. 190).

The point to take from this section is the conceptualization of the state in terms of pre-constitutional power, rule, and authority, and of the constitution as political law (see also Triepel 1927; Smend 1994: 82, 238; Voßkuhle 2007). Sovereignty ultimately resides with the authority that is capable of taking political decisions without a proper legal basis. After all, the modern state is equipped with 'full discretionary power (*carte blanche*) to find appropriate solutions for specific situations' (Isensee 2004: 116; see also Krüger 1966: 827 *et seq.*).

c. The constitution as a framework order

The previous two sections established the existence of a tension within *Staatsrecht* between first generation Schmitt scholars (like Forsthoff) who view the Basic Law as a threat to the state, and second generation Schmitt scholars (like Böckenförde) for whom the Basic Law is a civilizing force for good. Isensee's criticism of the Basic Law is framed in terms not dissimilar from Forsthoff. The philosophical objection is that Hegel's notion of *Sittlichkeit* has shifted from the state (where it originally belonged) to the constitution and its values of freedom, equality, and dignity. The practical effect on the legal and political order is that the constitution has transformed from a 'legal framework order to a universal programme of integration', the 'unlimited, virtually omni-competent *Totalverfassung* for state and society'. The constitution is interpreted as a 'declaration of faith' (*Glaubensbekenntnis*), a 'basis of hope' (*Hoffnungsbasis*), and denounced with so many -isms that the terms require no translation: *Verfassungsmoralismus*, *Verfassungspietismus*, *Verfassungsmessianismus*, *Verfassungszelotismus* (Isensee 1986: 19–24). Isensee's point is that a discourse which is grounded in the concept of constitution rather than state and power turns the constitution into a 'political bible' which 'inspires anarchic idealism and the utopia of an authority-free discourse' (2004: para. 17). Isensee also criticizes the Federal Constitutional Court for its tendency to ignore the existence of *Staatsrecht* when it searches for 'immanent limits to the constitution' (*verfassungsimmanente Schranken*) only within the constitutional text (for references see Isensee 2004: para. 190, note 399).

Yet other *Staatsrecht* commentators (of whom Böckenförde is the clearest example) have noted that the Basic Law, far from being the legal steamroller Forsthoff and Isensee make it out to be, is sparing with its regulations. Concurrent with Napoleon's understanding (*Une constitution doit être courte et obscure*), the Basic Law is only a framework constitution (*Rahmenordnung*), a set of general rules which regulates the basic relation between citizen and state by providing a space for the legislator to enact specific laws. It is neither the foundation of the legal order, and as such the source of every governmental measure, nor itself an ideologically charged normative order of the community. Its fragmentary nature is designed for practical, political needs. It is a framework constitution, a set of general rules comparable to the Civil Code (the *Bürgerliches Gesetzbuch*) which has gaps and does not exhaust the legal order. It assumes 'a general competence of the state to act in the common interest' (Badura 2001: 898).

But the conception of the Basic Law as a framework is ideologically charged, and it produces two consequences. First, by virtue of being incomplete and fragmentary, the constitutional text can be supplemented by 'foundational normative impulses' and 'the constitution-shaping foundational decisions as per Carl Schmitt' (Böckenförde 1991: 216 *et seq.*). However, the meta-constitutional supplements are not clear and unambiguous. They create a space that is unregulated by the Basic Law. This in turn opens the door to the realm of the 'political' and the 'decision' which provides for political and legal development by the democratic institutions as well as, *in extremis*, for the sovereign in situations of crisis.

The second consequence is that, at the everyday level of interpretation, the framework constitution requires an active constitutional jurisprudence. In practice this shifts the onus of decision-making onto the Federal Constitutional Court whose interpretative resources are partly legal (international law, comparative law) and partly non-legal (history, empiricism, a certain 'idea of man') (Herdegen 2005: 178). Although the Court is endowed with indirect legitimacy,[6] the recourse to meta-constitutional sources undermines the democratic political process (Böckenförde 1991: 197) and creates a legitimacy deficit (Abromeit 1995: 61). Germany ends up looking not like a 'parliamentary legislative state' but like a 'constitutional adjudicative state' based on the will of the constitutional court (Böckenförde 1991: 190). The true 'guardian of the constitution' is no longer any sovereign body or person, like a directly elected president (see Schmitt 1996a), but the Federal Constitutional Court that has in fact transformed into the 'Master of the Constitution' (Depenheuer 2009: 23).

d. Critical assessment

Anti-positive constitutional theory assumes the factual existence of the state. To get the message across, post-war *Staatsrecht* scholars (consisting of Ernst-Wolfgang Böckenförde, Helmut Quaritsch, Joseph H. Kaiser, Ernst Forsthoff, and Herbert Krüger) found an outlet in the journal *Archiv für Rechts- und Sozialphilosophie* and later in a new journal and a handbook. The new journal, with the provocative title *Der Staat*, was established in 1962 by Roman Schnur and Böckenförde to make a contribution to '*Staatslehre*, public law, and constitutional history',[7] and to act as a counterweight to the *Archiv des öffentlichen Rechts* that was edited by Smendians (Stolleis 2009:

[6] Federal Constitutional Court justices are elected, with a two-thirds majority, jointly by the *Bundestag* and the *Bundesrat*.

[7] Carl Schmitt kept his distance but advised and supported Roman Schnur in his editorial capacity (Günther: 2004: 122).

74). Consciously named after the entity that was best placed 'to recognize the political order of the state . . . as one of the most important guardians of personal and political freedom and to protect it from certain external and internal dangers'.[8]

The renaissance of *Staatsrecht* can be traced to a number of developments in the late 1980s and early 1990s. Lietzmann highlights the annual conference of the *Vereinigung der Deutschen Staatsrechtslehrer* in 1990 (the function of the state in the *Verfassungsstaat*) and 1991 (on the loss of external sovereignty to the European Communities). The concept, essence, and substance of the state, and the related fear that the core functions of statehood were gradually being eroded, returned to prominence in the academic presentations (Lietzmann 1994: 87). In particular, Isensee's presentation (1990) owed a huge debt to the rejuvenated and uncritical reception of Carl Schmitt. Also, a new inter-disciplinary journal entered the market in 1990 (and ceased publication in 1998) with the title *Staatswissenschaften und Staatspraxis* which again indicates that the 'state' was increasingly being used as shorthand for the political system.

The conferences were preceded by the highly acclaimed *Handbuch des Staatsrechts* which was first published in 1987 and is edited by Josef Isensee and Paul Kirchhof. The statistics are mindboggling. It has involved 132 authors (roughly a third of all constitutional scholars in Germany) in ten volumes (eight are in their third edition) with almost 12,000 pages. It contains the biggest discussion by far of the state. The theme of the *Handbuch* was:

> . . . to reach beyond the law of the Constitution to its normative surrounding . . . Therefore, the *Handbuch* deals with legal sources outside the Constitution that are significant for the organization and function of the state as well as for the position of the individual and non-state groups . . . *Staatsrecht* is to be conceived as organic law that derives its validity from legal development. (Isensee and Kirchhof 1987: vii)

The first edition of the handbook was published in a series from the late 1980s to the early 1990s 'at the zenith of the Federal Republic of Germany, but also at a time when certain indubitable assumptions underlying this work were vanishing' (Di Fabio 2003: 62). The concept of 'state' assumes a unity and closure 'which according to all empirical insight could no longer be verified' (Hesse 1987: 64). Möllers reckons that the relevance of the *Handbuch* is gradually fading and that it should be viewed 'as a monument to a scholarly and political generation rather than as a new state-theoretical blueprint' (Möllers 2008: 67).

[8] The Editors, 'Zum Geleit' (1962) 1 *Der Staat* 1–2.

To set the tone of contributions and volumes that follow, Part I ('Prerequisites of German Staatsrecht') contains no fewer than seven long contributions on 'historical constraints/conditions' [*Vorgaben*]. This is part of the programmatic bias of the project. In that respect it is also noteworthy that Isensee's foundational contribution on '*Staat und Verfassung*' (2004) contains only two references to Hans Kelsen in footnotes 325 and 338 (a single reference in the first edition was observed by Schulze-Fielitz 1999: 242). Further, it is significant that basic rights, which have formed the foundation of the German constitutional state since 1949, were acknowledged in a single volume (VI) in the first edition, and relegated to two volumes (VII and VIII) in the third edition. It is no exaggeration to say that the structure of the *Handbuch* 'reflects the constitutional tradition prior to 1949' (Schulze-Fielitz 1999: 248).

Schulze-Fielitz points out that the selection of contributors in the first edition was biased in favour of elder, established scholars from southern universities. Heidelberg, Bonn, Cologne, Freiburg, Munich, Tübingen are overrepresented, whilst northern universities (Kiel, Gieβen, Hanover, Hamburg, Bielefeld, Marburg, Bremen) and eastern universities (Frankfurt/Oder, Jena, Rostock, Greifswald) are either underrepresented or not represented at all (Schulze-Fielitz 1999: 245–6). Schulze-Fielitz wonders out loud whether this reflects a tendency to exclude scholars with a certain (progressive) academic profile. Unsurprisingly, not a single chapter focuses on the Basic Law. Instead, the unity that is created through 'deliberately limited variety' (*ibid.*: 247) focuses on the antecedent state; pre-constitutional targets and goals of the state; the pre-constitutional idea of a commonwealth; the meta-constitutional right of the state over emergency laws. The Isensee/Kirchhof project is, as Preuss (1989) and Hofmann (1999) note critically, a deliberate attempt to revitalize the concept of the state, to emphasize that reports of the its demise are greatly exaggerated, and to go against the current trend of neglecting a priori targets and goals of the state. Authors such as Klaus Stern, Isensee, and Kirchhof constantly refer to the pre-constitutional tradition as the foundation of constitutional doctrine. Isensee's centrepiece (2004), as well as the entire *Handbuch des Staatsrechts*, confirm the 'state' as the dominant term of political perception and of constitutional theory.

Isensee's influential contribution begins with the sentence 'Even the constitutional state is state' (2004: para. 1). Like Carl Schmitt's lionized opening lines, it is not an innocent statement but a statement of intent. Isensee is not analysing the state in abstract, universal, or theoretical terms (*ibid.*: para. 2; cf. Breuer 1998), nor is he only addressing the specific state of the Basic Law (cf. Stern 1992). Isensee's concept of the state is phenomenological, pre-constitutional, polemical, and contrary to positive law. The German state

cannot be understood with sole reference to the Basic Law. It requires an ontological analysis: 'Germany is state' in the same way that, say, 'God is great'. The state is 'an all-encompassing idea that is neither empirically verifiable nor practically relevant. Only institutions, norms, acts, and processes are relevant which either embody or are attributed to this idea' (Isensee 2010: 206). The dividing line between 'state' and 'constitution' is maintained, and the state is defined variously as:

- a unit of power, decision-making and peace that precedes the constitution (Böckenförde 1999: 136);
- the subject-matter and pre-condition of the constitution (Isensee 2004: para. 1; Murswieck 1993: 162) without which the constitution is non-representational and meaningless;
- 'phenomenological, pre-constitutional basic type' that is distinct from the 'modern state' (Isensee 2004: paras. 60–1).

The word state knows no synonym. It cannot be replaced by rule, power, republic, political unit or system, government, governance, networks, or related concepts. These terms offer only a partial perspective (Isensee 2010: 207). For a full perspective, the state avails itself of the constitution as a framework order. As noted above, the written constitution is also confined to offering only a partial, i.e. one-of-many-possible, answer to questions of constitutional conduct and political order. This method lies behind the programmatic title of a recent *Staatsrecht* publication, *Verfassungstheorie* (Depenheuer and Grabenwarter 2010), that at the very least bears a strong titular resemblance to Schmitt's pathbreaking *Verfassungslehre.*

e. Conclusion

Staatsrecht is as an untamed and 'impure' body of law whose object of analysis (the state) is a veritable Leviathan whose constitution is nothing more than a collar and a leash on a useful but dangerous animal (Schulze-Fielitz 1993: 95–6). *Staatsrecht* emphatically distances itself from a logical-formal analysis of law that would not do justice to the underlying dogmatic assumptions. Its association with politics, with the concept of the political, and with sovereignty makes it impossible to interpret and apply *Staatsrecht* and its 'public field of reference' (*öffentliches Beziehungsfeld*) in positive legal, politically-neutral (pure), and universal terms.

The interpreters of *Staatsrecht* and its dogma must bear in mind that its rules and decisions are a normative answer to particular political and politico-social problems, which are fixed and employed as a stabilizing and structuring element for political life and the political process; they are, moreover, an expression of central political

ideas and conceptions of order, a fallout of political confrontation and, sometimes, political compromises. (Böckenförde 1991: 25)

The *Staatsrecht* discussion is reminiscent of Schmitt for whom it was 'political law' (see also Isensee 1992). The state is best placed to resolve political and social questions, and of freedom, through the sovereign decision. To serve those ends, it needs to be separated or distinguished from society so that the state is not influenced by society. This conception of the state privileges the executive (government and administration) over parliament, courts, political parties, and other associations that challenge the state's sovereign decision-making capacity. And it discredits the *Eigenrationalität* and *Eigenwert* of constitutional law more generally.

In relation to scholarship and theory, the purpose of the concept of the state is 'to grasp unrealized constitutional aspirations and to declare them as scholarly themes' (Lepsius 2004: 373). In relation to sovereignty, *Staatsrecht* analyses the validity of law through the eyes of the institution that has the power to make and suspend it. Law becomes subject to the dormant threat of suspension and ultimately dependent on a political decision over its validity. *Staatsrecht* prefers to locate sovereignty in meta-constitutional, pre-legal (state) power, in the one who decides on the exception, who can take charge of the executive in times of crisis, and who can enforce laws with military might if need be. In relation to the constitution, its authority is qualified by the question of power which cannot be bracketed out from legal discourse. The 'ontological existence' (*seinsmäßige Gegebenheit*) of the people is seen as having 'preponderance' over the legal provisions of the constitution (Böckenförde 1988: 290), and the legal part of the constitution and its guarantees are said to be dependent on the existing political unit and form (*ibid.*).

By referring back to Schmitt's concepts of decisionism and etatism, and his understanding of representation, the Schmitt-school preserved traditional aspects of state-centred public law thought that were incompatible with a Western/transatlantic pluralist premise. (Günther 2004: 127)

Yet it would be myopic and misleading to equate the two discussions. Contemporary *Staatsrecht* moderates Schmitt's nationalism with Böckenförde's etatism (Mehring 1991: 203–4; 1995: 197). Böckenförde accepts Schmitt's political analysis of the state as an essentially appropriate, if insufficient, theory of the modern democratic state. He accepts the legitimacy of Germany as the guarantor of peace, and the final authority of the absolute constitution. Every constitution, he says, presupposes a state. It is impossible to avoid the question about the highest authority or power in the state (1999: 133 *et seq.*). The Federal Constitutional Court is ultimately merely an organ

of state that is dependent upon the recognition by other organs of state, therefore it cannot itself be sovereign. The rival theory *Verfassungsrecht*, which raises the constitution to the highest norm and places ultimate authority in the Basic Law and the Federal Constitutional Court, is living in denial by ignoring or circumventing the power question. The question of power is the Achilles heel of *Verfassungsrecht* (Böckenförde 1999: 133–4), and the strength and weaknesses of the alternative constitutional interpretation will be addressed in the following section.

2. *Verfassungsrecht*

Although German legal history is littered with theories of the state, it never produced a theory of the constitution (Dau-Lin 1932; Grimm 1972; and now Schönberger 1999; Lepsius 2004). The German concept of *Konstitution* or *Verfassung* traditionally captured the pre-constitutional, i.e. political condition of the state (Grimm 1991: 111), whereas the modern reading continues to draw on the constitutional model that developed in the eighteenth century in the United States of America and France respectively (Maddox 1982: Grimm 1991: 31–66). The modern constitutional model made three distinct normative claims. First, it expressly protected certain individual rights against the state.[9] Second, it not only constituted but also limited state power, for instance by separating the organs of state.[10] Finally, the constitution claimed to be a higher-order law in the sense that the constitutional norms enshrined in the written document would take precedence over ordinary laws in the case of conflict.[11] The French/American idea of the

[9] See the Ortes Concord in Massachusetts of 21 October 1776: '...we conceive that a Constitution in its proper idea intends a system of principles established to secure the subject in the possession and enjoyment of their rights and privileges, against any encroachments of the governing part'.

[10] The Constitution of Virginia of 1776 provided: 'The legislative, executive, and judiciary department shall be separate and distinct, so that neither exercise the powers properly belonging to the other; nor shall any person exercise the powers of more than one of them, at the same time'. And Article XXX of Part First, Massachusetts Constitution of 1780: 'In the government of this commonwealth, the legislative department shall never exercise the executive and judicial powers, or either of them; the executive shall never exercise the legislative and judicial powers, or either of them; the judicial shall never exercise the legislative and executive powers, or either of them; to the end it may be a government of laws, and not of men'. See also The Federalist No. 47 (in Hamilton et al. 1974). See also Article XVI of the French *Déclaration des Droits de l'homme et du citoyen*, 26 August 1789: '*Toute société dans laquelle la garantie des droits n'est pas assuré, ni la séparation des pouvoirs déterminée, n'a point de constitution*'.

[11] Steinberger argues that the English conception of 'fundamental law' was the inspiration for the continental variant of supreme and overriding law (1974: 30 *et seq.*). As John Marshall found in *Marbury v. Madison* (5 U.S. (1 Cranch) 137, 2 L.Ed. 60 (1803)): 'Certainly all those who have framed written constitutions contemplate them as forming the fundamental law of the nation, and

constitution evolved from an empirical concept describing an is-condition to a normative concept describing an ought-condition. It regulated the set-up and legalized the exercise of state power as well as entrenching the relation between state and society. On this view, the constitutional state is the result of the transformation of sovereignty from the sovereign person (the prince or the monarch) into a model of democracy where sovereignty lay with the people, and then, finally, into a Germanic model of constitutional sovereignty (Vorländer 2000: 378). In consequence, not even the people are absolutely sovereign in the constitutional state. They are *pouvoir constituant*: the people exercise their sovereign powers in the unique act of creating the constitution; but once the constitution is properly enacted the sovereign disappears, the constitution itself takes on sovereign character, and the people become *pouvoir constitués* (Kriele 1971: 59). They do not (*pace* Renan and Smend) exercise a *plébiscite de tous les jours*. The constitution becomes self-supportive: it alone is the foundation and prerequisite of the state.

This novel, constitution-centred method needed to be conveyed by a new generation of scholars. In terms of language, style, and content Rudolf Smend's *Verfassung und Verfassungsrecht* (1928) was not accessible to post-war students of law. It was not until the 1960s that the relation between state and constitution was revisited and dominant Schmittean assumptions challenged by the 'Freiburg school' consisting of Horst Ehmke (1962: 23 *et seq.*) and Konrad Hesse, formerly a judge of the Federal Constitutional Court. Hesse's *Grundzüge des Verfassungsrechts* ('Essential Features of Constitutional Law') was first published in 1967 and is now in its twentieth edition. The book was well-received[12] and became a bestseller as a student textbook (Günther 2004: 309). Frieder Günther makes two important points about the Smend-school. First, 'the mentality of the Smend-school corresponded to the political climate of the late 1960s' (*ibid.*: 309). And second, although Smend's pupils did not follow their teacher to the letter and also came up with answers that differed greatly from Smend's conclusions during the Weimar period, their entire project can be read as an attempt to replace *Staatslehre* with a contemporary and consensus-based *Verfassungslehre* (Günther 2004: 160, 169; Korioth 1990: 293–308; Ehmke 1953: 11–12, 54).

consequently the theory of every such government must be that an act of the legislature repugnant to the Constitution must be void'.

[12] Scheuner praised the book as an 'essential step forward in constitutional theory' (1967: 283).

a. The state fulfils a social function for the political community

Verfassungsrecht deposes only the centrality of the state, without ridding itself of the concept entirely. The *Totalstaat* experience in the Third Reich had made all human activity subject to the authority of the state and, in consequence, forever tarred words like *Reich, Vaterland, Volk*, and *Gemeinschaft*. *Staat* was the only term that could be re-imagined as 'democratic state' (Stolleis 2009: 74), which explains why it succeeded in retaining some sort of relevance and utility after 1945. The term 'state' features in the Basic Law, but not prominently. Doctrinally, the word appears rarely and peripherally, and only in the following provisions referring to:

- School education: Article 7 I GG (supervision of the state); Article 7 IV GG (private schools require the approval of the state);
- Foreign relations: Article 32 I and III GG, and Article 59 I GG second sentence mention 'foreign states';
- Liability for violation of official duty: Article 34 I GG.

Some terms are given substantive meaning such as federal state (Article 20 I GG), state power (Article 20 II); *Rechtsstaat* (Article 28 I GG), and 'Member State' (Article 23 VI GG; Article 28 I GG). At other instances aspects of the state are regulated, such as 'state authority' (Article 20 I GG), the exercise of state powers (Article 30 GG), or its protective and supervisory powers regarding family life (Article 6 I and II GG).[13] But on the whole the 'state' keeps a low profile, and the same is true of national sovereignty (see Chapter 5). As far as the Basic Law is concerned the Federal Republic is not a state by virtue of an assumed pre-constitutional dimension. The idea of a political sovereign outside or above the law is not a theoretical premise of the German *Rechtsstaat* where 'law has to be explained in terms that do not presuppose the prior existence of an absolute political sovereignty' (MacCormick 1999: 128).

Within public law scholarship, the concept of 'state' appears in a number of guises:

- As a 'monosyllabic, solitary, and unitary state' (Frankenberg 2010: 66–7), i.e. the body politic that is legally and politically constituted;
- as an aspect of that society, e.g. as an 'institution' (Di Fabio 1999);
- as the link, the 'structural coupling', between the legal and the political systems (Luhmann 1995: 470; 2004: 404);

[13] See generally Siekmann 1997: 351; Isensee 2004: para. 147.

- as a juridical concept that acts as a source and reference point for collectively binding decisions (Luhmann 1995: 423; 2004: 368); or put differently, as an 'argument' [i.e. criterion, construct, or concept] of legal exegesis and reasoning (Möllers 2000);
- as a hyphenated entity with a qualifying adjective: e.g. *Bundesstaat, Rechtsstaat, Sozialstaat, Verfassungsstaat* (Voßkuhle 2001: 498–9; Frankenberg 2010: 69).[14]

The question that separates *Staatsrecht* from *Verfassungsrecht* is whether substantive statehood exists beyond the form of the constitutional state. In short, whereas *Staatsrecht* claims that the existential and homogeneous state is identified and protected by public law, *Verfassungsrecht* claims that it is illegitimate for public law doctrine and scholarship to base constitutional argument on the extra-legal, pre-constitutional substance of the state (Gusy 2007: 46). Böckenförde's distinction between state and society was challenged by the *Verfassungsrecht* method. Whilst it was agreed that the complete fusion of state and society was the analytical pre-condition for totalitarianism, the total separation of state from society would result in state power that was at once superior to and alienated from society (Ehmke 1962: 25; Hesse 1975: 439). If the state is conceived in unitary, substantive, and meta-constitutional terms, the penetration of a pluralist society, which is dominated by social and economic groups, into the state's sphere is necessarily viewed as a threat to sovereignty (Weber 1958: 50).

Both Ehmke and Hesse invoke Heller's conception of the state as the organized unit in which final decisions are made and take effect [*organisierte Entscheidungs- und Wirkungseinheit*] (Heller 1971a: 339). For Ehmke, both state and constitution are 'human' and 'political' associations which, for practical purposes, can be reduced to one and the same association (Ehmke 1962: 24–5, 44). State and society contribute to the 'good order of the polity and to the realization of the common, internal and external, assignments' (*ibid.*: 44). Likewise, Hesse also views the state in functional terms as a 'social body of activity' (*gesellschaftliches Handlungssystem*) that can be reduced to the actions performed by society. In what has been described as the 'official response by the Smend-school' to Böckenförde's views (Günther 2004: 317), Hesse argues that:

> ...all contemporary conceptions of the state, that are based on the existing, meta-societal, substantive unit of the older *Staatslehre*, fail to spot the reality of the modern

[14] This is also reflected in the various post-war perceptions of the modern state as *Sozialstaat* (Forsthoff 1954); *Justizstaat* (Marcic 1957); and *Verwaltungsstaat* (Sultan and Abendroth 1955). See generally Scheuner 1962.

state. The unit that is described with the term 'state' comes to life solely through collective human action. It is a political unit of activity and final judgement, in other words a functional unit. It is 'generated' [Krüger 1966: 619] by society and must be maintained through social co-operation. (Hesse 1975: 439)

The modern state—institutionalized and tamed—fulfils a social function for the political community: it has to a large extent become part of the 'self-organization of modern industrialized society', e.g. through structuring the social-market economy, welfare provision, and social justice. This has resulted in a corresponding reduction 'in its character as a pre-existing association of power and will (*Herrschafts- und Willensverband*)' (Hesse 1959: 18). The state has to create:

> . . . a unifying order (*einheitsbildende Zusammenordnung*) of the forces, dynamics and understandings in relation to factual tasks of which only a small part can be achieved through sovereign power. This is the situation of the modern state. (Hesse 1959: 45)

The state is the product of political processes in modern pluralistic society that consist of different groups, opinions, interests, aspirations, and the resolution and regulation of conflict (Hesse 1994: para. 5; Scheuner 1954: 49–53, 225–7). It solves problems through compromise, not on the basis of a Schmittian decision. This endeavour is an on-going and indefinite process (see generally Smend 1994: 136 *et seq.*) that is necessary for the unity of the state which must be secured and maintained, rather than assumed (Ehmke 1953: 61; Hesse 1959: 17–20; Bäumlin 1961: 18–19, 37–8; Scheuner 1962: 247–60; see generally Korioth 1990: 282–9; Möllers 2000: 237–40). Unlike the etatism of *Staatsrecht*, 'the essence of the state . . . is not defined by ontology, but by its *assignment* [*Aufgabe*]' (Scheuner 1962: 255; Hesse 1995: 9). Scheuner makes the same point about the 'essence of the modern constitution' which is also not determined by its form (e.g. documentary constitution, higher-order law etc.) but through its content (e.g. 'the fundamental principles of the state' and 'a fixed corpus of enduring values') and its assignment (to ensure their enduring validity) (Scheuner 1951: 133). The legal order is not an abstract order, but an order filled with 'rightful' content which makes the order legitimate (see also Bäumlin's *Idee des Richtigen*: 1961: 17).[15] Hesse notes that the criteria for the 'rightful' order are not

[15] The *Staatsrecht* response was predictable. Kaiser complains that 'basic rights . . . are primarily a legal matter, and I don't think one should understand the protection of basic rights in the *Grundgesetz* as a catalogue from which one can, like in the Bible, find a reason for every witticism': J.H. Kaiser in response to Häberle 1972, at 157; see also R. Herzog in response to Häberle 1972, at 148. Forsthoff laments the disappearance of the state and the promotion of basic rights to 'norms of absolute value' per se (Forsthoff 1963: 392).

just established tradition but also historical experience that has shown what is not 'right' and should not be considered as law (1995: 10).

b. The law and constitution replace the theory of the state

The premise of *Verfassungsrecht* is the radical claim that the constitution constitutes the state, i.e. it replaces the state as an a priori value (Ehmke 1953: 78; Hesse 1995: 10; Scheuner 1951: 132). In other words, in a constitutional democracy there is no space for *raison d'état* but only for *raison constitutionelle* (Adolf Arndt, cited by Häberle commenting on Ress 1990: 129), and 'constitutional law has to underwrite itself' (Hesse 1994: para. 19). Ultimately the force of constitutional law depends on the voluntary submission of every state organ to the constitution, and the recognition of their responsibilities in conformity with the constitution. The image of a 'guardian of the constitution' (see Schmitt 1996a) either above or outside constitutional law not only conveys a false image of a constitutional custodian in the final instance but also, according to Hesse, fails to identify the crux of constitutional law (Hesse 1994: para. 19).

The constitution saturates the entire legal order by setting up the organs and entrusting them with different, defined, and delimited areas of competence as well as delegated powers required for the correct exercise of those functions (Hesse 1994: para. 7). The constitution is not a purely normative order: 'It would not be sensible for the science of public law to deal with unreal norms or with a norm-less reality' (Hesse 1959: 12, 41). Nor is the constitution (*pace* Böckenförde) a framework order whose validity rests on a pre-constitutional power or authority. Instead, it is a foundational legal order of the polity (*rechtliche Grundordnung des Gemeinwesens*), i.e. the norm which not only establishes all forms of state authority (see Kägi 1945) but also affects all aspects of the legal order of the polity (Hesse 1994: para. 10), including the 'public interest'.[16] In short, the constitution derives its validity through its concrete realization in everyday life (Korioth 1990: 301).

The constitutional objective is no longer the vague and potentially anti-constitutional concept of 'integration' (to be secured through constructive individual responsibility), but legal certainty, stability, and the protection of individual rights. Smend himself repositioned his theory of integration after 1945 (see generally Korioth 1990: 228–40; Hennis 1999). The notion of 'fluent development of validity' (Smend 1994: 242), which required the positive constitutional text to be interpreted in the context of the material

[16] It is noteworthy that Peter Häberle replaces the outdated and prior-political conception of a 'public good' with the 'public interest' which is derived directly from the constitutional text (Häberle 1970).

constitution, was replaced with strict legality as the 'pressing imperative of constitutional morality' (Smend 1953: 569).

> According to the *Grundgesetz,* the constituent power [*Verfassungsgesetzgeber*] must speak clearly, which means that the interpretation of the *Grundgesetz* has to be meticulous and cautious so that the citizens of the Federal Republic are able to rely on the words of the *Grundgesetz.* (*ibid.*)

The constitutional values of certainty and consistency had become more important than 'integration' with its anti-positive goals and connotations. This shift legitimated the Basic Law in its own right, which provided the legal framework and developed its own integrationist properties (see Hesse 1951/52; Ehmke 1953; Scheuner 1951: 151, 154). In his inaugural lecture at the University of Freiburg in 1959, Hesse spoke of the 'normative agency/power of the constitution' [*die normative Kraft der Verfassung*]. For Hesse, the success of integration was 'necessarily a question of law' (1994: 16).

c. The constitution is the basic legal order of the entire political community with a comprehensively guiding function

The *idea* of the constitution changes under *Verfassungsrecht* from regulating the state to regulating society (Hesse 1994: 17). The all-encompassing nature of the state (see Schmitt and the early Smend) has been replaced by the all-encompassing nature of constitutional rights (Ehmke 1961: 18). Scheuner and Ehmke understand the constitution as 'self-contained whole' (Scheuner 1954: 20) and as a 'unit' (Ehmke 1962: 46; see generally Korioth 1990: 282 *et seq.*; Möllers 2000: 237–9). For Hesse the unit is expressly not closed (neither logically nor hierarchically). The constitution determines the guiding principles around which political union should take shape and the state should act, as well as the procedures according to which conflicts within the community can be resolved (Hesse 1995: 10). The constitution is not conceived, as it is for Böckenförde, as a framework order that *codifies*, but as a basic order that *regulates*—often in general and vague terms—what it considers to be important in and for a pluralist, open, and free society consisting of groups and individuals.

> For these reasons, the constitution does allow for different political conceptions, and the pursuit of political objectives. It can take account of changed technical, economic, or social circumstances, and can adapt to historical transformations, thereby securing a basic requirement of its own existence and effectiveness. (Hesse 1994: para. 16)

Smend and his followers promoted the constitution to the basic legal order of the polity, and subordinated the previously overarching state to the constitution (Ehmke 1953: 78; 1961: 24; Hesse 1995: 10). Taking a swipe at his

rival Carl Schmitt, the normative re-orientation of Smend's post-war theory of integration rejects:

> ... every constitutional theory that is orientated at an existing facticity behind or above the Constitution, be it in the sense of reserving a meta-constitutional 'sovereign decision', be it in the sense of contrasting 'pluralist' constitutional life with a randomly assumed static unity of whatever kind. (Smend 1994: 478–9)

Horst Ehmke spent time in Princeton and Berkeley as part of his studies, and was influenced by Ernst Fraenkel, a political scientist from Berlin who had emigrated to the United States and had returned in 1951. Fraenkel's theory of 'neo-pluralism' was designed to integrate the Federal Republic into the community of Western democracies (Fraenkel 1964). He did not understand the public good as an abstract and pre-determined concept (cf. Rousseau and Schmitt), but as the result of a discursive process of diverging interests. This approach is based on interaction between, and not a separation of, state and society—an approach that is also reflected in Wolfgang Abendroth's *Das Grundgesetz* (1966). Abendroth drew on his academic position as political scientist and on his education as lawyer to produce a critical introductory text that sought to replace the established methods in both disciplines with a more finely tuned response that is appropriate for the legal interpretation and socio-political analysis of the Basic Law (Abendroth 1966: 11, 13–14).

In 1975, Peter Häberle wrote a path-breaking article in which he developed a form of constitutional interpretation that was open towards a pluralist conception of society and democracy (Häberle 1975). The constitution neither conserves nor works with pre-fabricated concepts (of state and people), but seeks to construct, in dynamic and contemporary fashion, what *Staatsrecht* assumes: the political union and the legal order of the state (*ibid.*: 5). The political union of the people, like the state and state power, cannot be assumed as pre-existing—as it was in Jellinek's day and as it is in the dominant *Staatsrecht* tradition described above.

Intriguingly, *Verfassungsrecht* has no concept of sovereignty. With the constitution deposing the state and regulating a pluralist society, the traditional definition of 'sovereignty' as *puissance absolue et perpétuelle* (Bodin) invokes the spectre of the authoritarian and absolutist *Machtstaat* that uses law in the interest of power, and is easily portrayed as conflicting with the *Rechtsstaat* principle. As Franz Neumann notes, 'both [sovereignty and the rule of law] ... are irreconcilable with each other, for highest might and highest right cannot be at one and the same time realized in a common sphere' (1986: 4). The concept of sovereignty has come to be associated with the pre-modern, unconstituted state with undomesticated powers: it is antithetical and extrinsic to the Federal Republic after 1945, and anathema to

constitutional law (Abromeit 1995: 49). Contemporary constitutional law either does away with the idea of a sovereign state altogether or modifies its definition as 'a monopoly of decision-making within a consistent system of competences' that makes do without an omni-competent body (Kielmannsegg 1977: 240). Given the nuanced nature of interdependence and global economic ties, and given also the need for European integration and international openness (Articles 23 I, 24, and 25 GG), 'sovereignty' today is both unrealistic and undesirable (see generally Chapter 5).

For this reason, the German post-war experience witnessed a paradigmatic shift from Carl Schmitt's absolute constitution, which presupposes the state, to the constitutional state (*Verfassungsstaat*), which places the state under the constitution and supposedly does away with old-fashioned sovereignty (Kriele 1981: 111–16). However, as with the state (which is redefined as *Rechtsstaat*), *Verfassungsrecht* does not discard the concept of sovereignty altogether, but re-imagines it as *Verfassungssouveränität*—a concept that does not stem from revolutionary or monarchic traditions but from *Rechtsstaat* traditions. To illustrate: whereas the process of constitutional interpretation involves potentially all organs of state, all public bodies, all citizens and groups, the final authority lies with the Federal Constitutional Court. In other words, *Verfassungssouveränität* takes the form of *judicial sovereignty*. Sovereignty does not mean *de facto* state power but *de jure* final decision-making authority. It is from this context that the second opening citation of this chapter derives:

> [The popular sovereign] does not exist because no one believes in the dogma of sovereignty. Nowadays, constitutional law must be backed up by justificatory norms, which is a consequence of the fact that constitutions are not valid as customary law but as positive law which can be changed at any time. (Roellecke 1991: 2442)

The absence of an extra-constitutional holder of sovereign powers depoliticizes constitutional law without necessarily legalizing politics. It is not that Martin Kriele's view of the state is neutral or apolitical, but that his view of the parliamentary-democratic decision-making procedures is functional. A parallel with Smend and his students can be made out—although Kriele was not one of them (Günther 2004: 307–8)—to the extent that Kriele also wants to break with the continuing, traditional elements of *Staatsrecht* which cannot be reconciled with a Western conception of democracy.

Kriele's starting point is the equation of popular sovereignty (as expressed in a parliamentary democracy) with the Anglo-Saxon concept of 'rule of law' rather than the received concept of *Rechtsstaat* (Kriele 1971: 49). *Rechtsstaat* should no longer be interpreted as the traditional nineteenth century concept (which prioritizes legality) because it lacks any connection to the realization

of its substantive components (to prevent arbitrariness and substantively to preserve freedom, justice, and legal certainty) through institutions (which prioritize legitimacy). The task of politics is to provide social and political stability in changing circumstances. The role of constitutional law is to create the legal structure for decision-making procedures by the state.

However, the removal of an extra-constitutional sovereign appears to create a void. If the constitution legitimates all state power, constitutes and binds all state organs (see Articles 1 III; 20 III GG), and prohibits any organ of the state from claiming sovereignty for itself in a state of emergency, the original question of *quis iudicabit* remains unanswered. Logically, there are two possibilities: either the constitution itself provides for a final decision-making instance in the case of a state of emergency, or it does not. In the first case, the owner of the constitutional power in the case of conflict is not just the servant but becomes the master of the constitution. In the second case, where the constitution neither makes allowance for an antecedent people whose unity it is the task of the state to maintain, nor for an extra-constitutional dimension on which an organ of the state could base a claim of sovereignty or derive exceptional powers, some political power (even one not anticipated by the constitution) will take over and claim final decision-making authority over content, application, and enforcement of the constitution (Böckenförde 1999: 134). Heller's definition of sovereignty consists of both the legal and the political ability to resolve conflicts (1971: 97 *et seq.*), but the legal ability does not exist in the modern state:

> Either it is a legal ability, in which case it is included in the positive law; the decision is not taken contrary to positive law but on the basis of a positive-legal enablement according to which certain norms of positive law are temporarily suspended—a legal procedure. Or the decision really is taken against positive law, in which case it is not a 'legal' ability but the factual power to transcend and replace the law, thus a crime, *coup d'état*, revolution, or the use of the democratic *pouvoir constituant*. In short, the constitutional state has no sovereign: instead, in historical and conceptual terms, it refers to the structure of state sovereignty as the totality of state organs and *Staatsrecht*. (Kriele 1981: 116; see also 1971: 60)

Stefan Oeter also argues that the concept of sovereignty should be eliminated from the discourse of constitutional law and public international law. So long as the concept is retained, it makes it impossible to conceptualize the European Union and to integrate it in the dynamics of national constitutional law (1995: 704–6; see also Everling 1993: 943).

Böckenförde's criticism of *Verfassungssouveränität* is that the beauty of its internal logic is maintained only for as long as no serious conflicts within the state arise, and only for as long as the content and validity of the constitution

do not become problematic in themselves (1999: 133–4). In the final analysis, the power over the last word on the content, applicability, and enforcement of the constitution is not spoken for. Citing Carl Schmitt's notion that the sovereign is defined by his capacity to decide over the situation of emergency, Böckenförde argues that sovereignty has not disappeared, and has not been replaced by the constitution, but:

> ... is potentially preserved and finds its concrete holder, whom it always needs, in that particular body that is effectively able, in the case of conflict and as the final authority, to decide on the content and application of the constitution. (*ibid.*: 134)

Isensee concurs that the question of sovereignty can be held 'in abeyance', but only as a matter of politics and not of law (see also Schmitt 1928: 371 *et seq.*;[17] cf. Steinberger 1989: 968; Lerche 1993: 141). A legal case of abeyance would have to be grounded in a legal norm which would be binding on both the national and the European legal orders, however no such norm exists (Isensee 1997: 1265). Internal sovereignty (the prerequisite for the constitution) is not a juristic concept and it is not part of law. It is existentially a political category of power (Isensee 1992: para. 75; 1995: paras. 87–8).

II. Conclusion

The late nineteenth/early twentieth century divisions and dualisms in relation to the state (practice and theory, fact and norm, social science and legal positivism, politics and law, state and constitution, power and authority) continue to divide the theory of the state. As a normative theory of constitutional legitimacy the *Verfassungsrecht* idea of constitutional sovereignty has its merits. It ties the state to the democratic form of government ('*kraft Anordnung der Verfassung*') and ties the concept of constitution to positive constitutional law. The constitution is the apex norm of the state and, therefore, the parameters of the state are confined by the parameters of the constitution (Arndt 1963: 25). The primacy of the constitution means that *Staatsrecht* cannot protect what is not covered by the *Grundgesetz*. But as descriptive social and political reality that explains the conditions of state and constitution, *Verfassungsrecht* ignores power relations and hierarchical structures that exist *prior to* the legal constitution, and which appear to make it an

[17] 'The question of sovereignty is a question of deciding an existential conflict. There are several methods of peaceful conflict resolution, but if the facts of the case require a decision—and only this case is relevant here—then the political conflict cannot be resolved by a judicial process. ... As soon as the case is governed by a valid, recognized norm it does not lead to a real conflict.'

unworkable theory of the state. By way of contrast, the *Staatsrecht* conception of sovereignty is based on a differentiation between state and form of government (*Staatsform*); meta-positive and positive law; legitimacy and legality; constitution and constitutional law; the permanency of the state versus the transient constitution. In other words, subtracting the political preconditions from positive constitutional law creates a sovereignty problem for *Verfassungsrecht*. As a result, its failure to theorize political sovereignty (i.e. power) can only result in a flawed and unworkable theory of the state.

Niklas Luhmann's social theory (system theory) offers a way out of the archaic dualisms. The constitution can in fact solve the sovereignty problem and, unlike in *Staatsrecht*, does so not to the detriment of the law but with the help of the law. Luhmann explains the rise of modern constitutions historically. The separation of religion, law, and politics, and the dissolution of classic natural law after the Reformation, destroyed the former justifications for law and politics. The new justifications could only be self-referential: politics is based on politics, law is based on law. The function of politics is to make and implement collectively binding decisions. In order to avoid arbitrariness, politics is coupled to law (through the instrument of the constitution) whose role it is to stabilize normative expectations (Luhmann 1995: 131–43; 2004: 147–56).[18] By counter-balancing the one-sided analyses of Kelsen, Schmitt, and Heller and the indistinctness of Heller, Luhmann's analysis of the constitution overcomes the traditional and antagonistic dualisms.[19] Law and politics are structurally coupled by, and communicate with each other through, the instrument of the constitution. The constitution is not only the apex of the legal system but also an instrument of, and therefore dependent upon, politics. The relevance of this for the problem of sovereignty is addressed in Chapter 5.

For all the effort that goes into presenting the above theories as the legally correct way of interpreting the law, the difference between *Verfassungsrecht* and *Staatsrecht* is not ultimately legal-analytical but ideological. As noted in the conclusion to the previous chapter, the difference rests on a false distinction between reality and law, fact and norm, is and ought etc. The ambiguity in concepts like 'state' (is it a legalized part of the legal order? Is it a precondition of the legal order?), 'constitution' (is it the Basic Law? Is it a meta-constitutional concept that cannot be reduced to positive constitutional

[18] The same relation is expressed slightly differently by Grimm for whom law renders political decisions rational, binding, and executable, which facilitates economic and social processes. Law is 'congealed/frozen/concrete politics' (*geronnene Politik*) (Kelsen 1968b: 620; Grimm 1969: 502) whose own responsiveness and legitimacy is secured through procedural laws and participatory rights.

[19] For an excellent piece on Kelsen and Luhmann, see Dreier 1983.

law?), as well as in the union of the people (which is either assumed or assigned), was traced directly to Schmitt and Smend in Chapter 2. The post-war *Staatsrecht* method ideologically utilizes the dualism to couple 'democracy' and 'constitution' to the existentialist state. By giving the state an 'existentialist' property, *Staatsrecht* 'crowns the state as the *meta-physical constitutional pre-requisite* prior to and above the law' (Brunkhorst 2008: 492).

Staatsrecht is explicitly political law. The links between contemporary constitutional law and the Weimar discourse are evident, and will be brought to bear again in relation to the European Union. For Carl Schmitt the state was the political union of people, and the constitution the political decision over the manner and form of union; for Rudolf Smend the state was the reality of integration, and the constitution was the legal order of the process of integration; for Hans Kelsen the constitution constitutes and closes the legal order of the state with which it is identical. Adopting these understandings in contemporary constitutional law discourse is not a matter of choice but of creed; a carefully constructed argument built around the union of the state as opposed to its openness to other legal systems reflects not only legal reasoning but also political rhetoric and ideology. The traditional interpretation operates with the paradigm of the state, the progressive interpretation with that of the constitution. The state is either 'existential' or 'institutional', either absolute and meta-positive or positive and adaptable.

German constitutional scholarship is not marked by general agreement on its fundamental concepts—state, constitution, sovereignty, people—but by a deep ideological rift. The doctrine of the impermeable pre-legal state which used to be an 'indubitable assumption' now is the subject of constitutional analysis and debate. The state's function today is social, economic, and ecological. The state is 'not dead but de-mystified' (Hofmann 1999: 1069), 'The state-theoretical paradigm of the big Leviathan is over and done with' (Hofmann 2005: 186). It competes with a more liberal and open paradigm of the constitution as the linchpin of the legal order (as rejected by Isensee 2004: para. 6). The reasons for the change from state to constitution have been well rehearsed in political theory: the concept of the state has suffered from historical misuse; the notion of independent states is out of touch with the reality of interdependent states and networks of civil constitutions; the modern state has witnessed internal pluralization and external integration, and is committed to universal human rights (Teubner 2004; Hobe 1998a; Vesting 2003; 2004; Habermas 2000).

> The 'state' . . . seems to be the fading, theoretically redundant term for a system of action which once emerged with the irredeemable pledge to set up and secure the 'total rationality' of society through its decisions. (Hofmann 1999: 1069)

The fear that the static state will be replaced by a dynamic and pluralist constitution is, of course, anticipated by Carl Schmitt and permeates his *Concept of the Political*. But the obituaries of the state may have been written prematurely. Isensee notes that although the state was 'out' yesterday, today it is 'in' again (Isensee 2010: 232) and cites a growing body of literature in support (Evans et al. 1985; Schuppert 1989; Voigt 1993; Haack 2010).

The resurrection of archaic definitions and the attempt to save the state is unacceptable to a constitution-centred interpretation that has abandoned substantive and pre-legal definitions of state, constitution, and sovereignty. But their replacement with a 'practical-intuitive understanding of the state' (Möllers 2000: 173; also Hofmann 1999: 1067) is similarly unacceptable to the dominant state-centred interpretation. The Basic Law embodies all the complaints of the *Staatsrecht* tradition and all the commendations of the *Verfassungsrecht* tradition: in its substantive provisions, it does not use the state as pre-legal concept; in fact, it barely refers to it at all. The state is defined as the state as it emerges from the constitution. The point is that the concept of the 'state' is no longer the central and unifying concept it once was, but a 'normative vanishing point' (Möllers 2000: 239). The late twentieth century experienced a conceptual shift in public law debates from 'state' to 'constitution' which is heralded by Häberle as the end of the nation state and the global hour of the constitutional state (1992: 170).[20]

[20] Although note that Carl von Rotteck, and other contemporaries, had already in 1830 spoken of a 'constitutional age' that was defined by the enactment and reception of constitutional texts (1830: 172).

4

External Application to the European Union

> The idea of the parliamentary system in Germany will only assert itself fully and in perpetuity if the concept of *Volk* is successfully demythologized and the concept of the state successfully demystified.
>
> Ernst Fraenkel (1964: 27)

> As a consequence of the growing interdependence among all nations and peoples, the sovereign state that can exercise authority in splendid isolation is increasingly becoming an anachronism.
>
> Christian Tomuschat (1995: 20)

The effect of European integration was for a long time largely ignored by scholars of constitutional law (Dreier 1999: 677). This neglect is due to a number of reasons that range from the incremental and 'creeping' nature of European constitutionalization and integration to the international law foundation of the European Communities. In the 1960s, the field was surveyed by German private and economic lawyers who resurrected a brain-child of the Weimar Republic, 'ordo-liberalism'. It formed the basis of another Freiburg school which was founded by Franz Böhm, a lawyer, and Walter Eucken, an economist. According to ordo-liberal theory, the economic order did not exist independently of the social, the state, and the legal order. The task of the state's economic policy was limited to framing the economic order, as opposed to directing it, and protecting or promoting competition. Since economic freedoms were considered to be as integral to the protection of human dignity and as indicative of a free society as political freedoms, the economic constitution sought to reflect the ethical and political values of society. It aspired to its own legitimacy and desired the respect of the nation state (Joerges 2002: 10–11). Ordo-liberal theory also appeared to fit the European Communities, which had been conceived as a supranational economic constitution, at least as long as the focus had been on the economic content of the Treaty of Rome (the four freedoms, the removal of national barriers to trade, and the removal of distortions to competition).

For a while, in the 1960s and 1970s, it seemed possible to view the European Communities as an apolitical, technocratic, and 'purposive association of functional integration' (*Zweckverband funktionaler Integration*), a phrase that was coined by the doyen of Community law scholars, Hans Peter Ipsen (1972: 196 *et seq.*). At the time, the functionalist paradigm reflected Europe's own philosophy about itself (see Lindberg 1963; Haas 1968; Schmitter 1969: 161), and later the idea of the European Union as a 'regulatory state' (Majone 1994; 1998) is a natural successor to ordo-liberalism. The supranational bureaucracy dealt with objective social facts, depended upon expert knowledge and, most importantly, by solving problems that could no longer be dealt with domestically, did not interfere with national politics and national constitutions. As Ipsen noted, purposive associations were 'neither intended nor suited to replace spiritual, ideological or even mythical contents which the state is losing or has already lost' (1969: 14).

What the Freiburg School and Ipsen were able to do was to abstract economic and technical aspects from the hold of the state, and to treat them as semi-autonomous systems with their own institutions and rationality patterns that were not derivative of the national political system and the state-based concepts with which constitutional lawyers work: a supranational, functional, and technocratic bureaucracy was capable of legitimizing itself. Unlike the state, the European Communities did not have the power to generate new spheres of action (*Kompetenz-Kompetenz*) but only enjoyed *compétences d'attribution*, which had implications for traditional public law concepts such as accountability. As an 'attentive, democratically unsuspicious-looking Anglo-Saxon observer' noted: 'power which does not exist needs no control' (cited in Ipsen 1984: 25).

A similar, but different, approach was taken by Walter Hallstein, the first president of the Commission, who pioneered the European Community not as an economic or bureaucratic order but as a creation of the law, a source of law, a legal order, and a legal policy (1979: 53), and a legal community. European unity was not to be achieved through violence, force, or coercion—the traditional state method of enforcing law—but through the spiritual and cultural 'majesty of law' (*ibid.*). The activism of the European Court of Justice, whose reasoning in the early cases had been more political than legal, had by and large been accepted by the academic community as a contribution to the unfolding and consolidating legal community (Mancini 1989; Zuleeg 1994; cf. Rasmussen 1986). The characterization of the European Communities as a legal community was a way of constructing a counterpart, but not a competitor, to the nation state. The dominant interpretation (then and now) tends to view the state as the political unit which

precedes the positive constitution: the state is the polity which organizes the nation, i.e. the antecedent community of fate (*Schicksalsgemeinschaft*). The positive constitution is merely the result of the will of the state and the nation (von Bogdandy 2000: 226). Hallstein's originality, therefore, lay in separating the two traditional elements of statehood (the constitution and the nation) from the concept of the state which allowed him to present the European Communities as an artificial product of law to complement rather than rival the nation state.

The counter-theme in this book discusses law and legal order not on their own terms, but as part of a culturally-sensitive, sociological inquiry. In relation to the European Communities (and now Union), those insights are generated by the umbilical relation with the Member States. And the more the European Community was presented as a technocratic, bureaucratic, economic community or supranationally legal, the clearer it became that it 'fell within the disciplinary confines of [national] public law' (Joerges 2003: 190). As the commitments and competences of the European Communities grew, and began to compete with the constitutions of the Member States, the harder it became to uphold the characterization of the Communities as a purely purposive association.

But it was not until the 1990s that the European Communities for the first time clearly collided with the national constitutional debate.[1] It was German reunification in 1990 (when all of a sudden the entire *acquis communautaire* became legally binding on the former German Democratic Republic), the Maastricht Treaty in 1992 (in particular Economic and Monetary Union, and the competences in the second and third pillars), and the *Maastricht* decision by the German Federal Constitutional Court in 1993 that lifted the newly-created European Union out of low politics and into the scope of constitutional or high politics. Ossenbühl (1993: 637) compares constitutional scholars to sleeping beauties who were abruptly woken from their long hibernation (*Dornröschenschlaf*) by the Maastricht debate.[2] From a European ordo-liberal, functionalist, and integration perspective, the absence of

[1] See also the comment by Carl Otto Lenz (cited in Kirchhof 1991: 70) who in November 1990 said: 'If three years ago someone had proposed discussing [a possible conflict between Community law and German constitutional law], I would have replied that the topic is of no current interest'.

[2] As part of her doctoral thesis, Anna Katharina Mangold analysed the publication of articles on Community law in 13 German public law journals from 1950 to 2007. With one or two exceptions (e.g. *Neue Juristische Wochenschrift*) and one or two spikes (e.g. after the *Solange I* decision), Community law is largely ignored until about 1988 when publications on EC law begin to increase noticeably, and after 1990 when publications increase quite dramatically (Mangold 2011: 171–86). The Single European Act 1987 is often viewed as the catalyst for deeper European integration, but it did not form (again with one or two exceptions) the subject-matter of analysis by public law scholars (Mangold 2011: 237–41).

political control and correction at European level had led to greater institutional freedom to act and to increased autonomy of the Community legal system (which the European Court of Justice used to hasten the process of economic integration in the 1960s and 70s). However, from a national constitutional or democracy perspective, the European Union suddenly revealed dramatic legitimacy deficits. The 'non-political' institutions (the European Court of Justice, the Commission in its role as enforcer, and the new European Central Bank) were removed from ultimate political control by politically accountable actors. Moreover, structurally, the European Union lacked a strong collective identity (a *demos*) that supported collective majority decision-making (Scharpf 2004).

German public lawyers quickly resorted to their analytical tools (state, constitution, and sovereignty) to spurn or to secure the European achievements and aspirations with reference to the German constitution. No longer guided by the previously dominant philosophy of a functional association, the European Union was described as having reached 'dimensions of supranational statehood' (Ossenbühl 1993: 631), 'pre-statehood' (Di Fabio 1993: 197), as a polity that resembled a 'quasi state' (Schilling 1991: 52), or with 'characteristics similar to a state' (Rupp 1993: 40).

In a sense, the constitutional, state-theoretical discourse of the year 2000 was not very different from that of the year 1900. Georg Jellinek observed at the turn of the nineteenth century that the state could be the identical subject-matter of two different points of view, a legal and a social perspective. At the end of the twentieth century, it was the European Union that could be analysed from two diametrically opposed standpoints: one rooted in the tradition of the closed, introspective nation-state, and the other in the tradition of the emancipated, liberal, supra- and internationalized constitution.

I. *Staatsrecht*

The 1990s was the *Staatsrecht* decade. Its scholars were and continue to be preoccupied by two issues regarding Germany's legal relation with the European Union. The first issue is whether there are any constitutional limits to the 'process of creating an ever closer union among the peoples of Europe' (Article 1(2) TEU). The second issue is whether there are any constitutional limits or obstacles that would prevent Germany from participating in the European Union if it became a state. It is significant that *Staatsrecht* does not derive its answers from the Basic Law alone but from the socio-political underpinnings of the state and, although less significantly, from the origins of

the European Union in public international law (see Kirchhof 1991: 14;[3] Kokott 1994: 212; Schilling 1996: 403–9). Notwithstanding Germany's international openness in Articles 24 GG and now 23 GG, *Staatsrecht* continues to assume the 'sovereign, impermeable individual state' (Isensee 2004: para. 143) in relation to the European Union and in relation to the European Convention on Human Rights (for criticism see Frowein 1998), to which Germany could return once it has 'discharged its bid for integration' (Isensee 2004: 143). Moreover, the *Staatsrecht* answers reveal how the substantive concepts of constitution, state, and people are routinely conflated. Law (constitution) and politics (state) are not necessarily symbiotic, which exposes them to legal, political, and sociological claims that in turn render them open to abuse (see Möllers 2000: 424). According to the (circular) *Staatsrecht* method, the European Union cannot have a constitution because it is not a state, and it cannot become a state because it does not have a *demos*, i.e. no European people in the sense of a nation, which could generate a constitution.

According to *Staatsrecht*, constitutions form the legal basis of states and are inextricably linked to the nation state.[4] The constitution is associated with material content, namely the expression of a desire by a group of people to integrate as a nation and to give itself an identity based on fundamental values held in common. Contrary to statements by the European Court of Justice,[5] the German Federal Constitutional Court,[6] and many commentators[7] that the founding treaties already form a constitution, for *Staatsrecht* the treaties cannot represent a constitution as they derive their legitimacy from the will of the Member States (an external reference point) rather than from the European people (an internal reference point) (Grimm 2004: 75).

Having defined the constitution in terms which remain tied to the state, in other words, having raised the normative hurdle so high that nothing less than the Basic Law (or equivalent) can do justice to the concept of the constitution, *Staatsrecht* makes two claims in relation to the European Union. First, it claims that Germany is and will remain a state: in other words, Germany's statehood represents a red line for the transfer of sovereign

[3] 'The legal basis of the Community lies in a collective act of public international law.'

[4] Hence *Staatsverfassung*; see Kirchhof 2006: 768; 2010: 70, 77–9; Isensee 2010.

[5] Case 294/83 *Parti Ecologiste 'Les Verts' v European Parliament* [1986] ECR 1339.

[6] See e.g. 22 BVerfGE 293, at 296: '*[Der EWG-Vertrag stellt] gewissermaßen die Verfassung dieser Gemeinschaft dar*'.

[7] See e.g. Ipsen 1969: 6: 'de iure communitatis *every* act of Treaty implementation is the realization of constitutional goals, not of nation-state interests but of Community interests'; and Pescatore 1981: 319.

powers to supranational organizations. Second, it develops and asserts its own idiosyncratic theory of representation.

1. Statehood as a limit to integration

The idea of a substantive state is a *conditio sine qua non* for *Staatsrecht*. It is ostensibly based on a positive reading of Article 20 I GG ('The Federal Republic of Germany is a democratic and social federal state') which, according to *Staatsrecht*, commands statehood. Moreover, according to Kirchhof, Article 79 III GG (which, *inter alia*, safeguards Article 20 GG) protects the (unwritten) principle of the sovereign state from any modification that would '"touch" the substance and identity of the current constitutional order' (Kirchhof 2004: para. 83; see also Schilling 1991: 54; Isensee 2004: para. 197[8]). This suggests a positive law foundation in the Basic Law itself for limits to European integration. As Di Fabio argues (following Carl Schmitt), surrendering sovereignty would mean surrendering Article 20 II GG which would amount to 'a *constitutional elimination* through the substitution of the constitutive power' (Di Fabio 1993: 205; see also Schmitt 1928: 94, 99). Murswieck says that 'the decision to dissolve the state, e.g. through integration in a supranational federal state, would simultaneously be a decision to dissolve the *Staatsvolk*' (200: 163). The German state, in other words, cannot diminish or disassemble itself as this would be unconstitutional under Article 79 III GG:

> Participation in the de-statization (abrogation) of the Federal Republic of Germany is not sanctioned by the Basic Law; a participating state organ acts without authorization of the state constitution, thus without the power to bind this state. (Kirchhof 1992: para. 62)

However, the link between Article 20 I GG and statehood is controversial and the result of political interpretation rather than a constitutional requirement. Möllers (2000: 378) notes that Paul Kirchhof was one of the first to link normatively Germany's statehood with Article 20 I GG in further combination with Article 79 III GG. This allows Kirchhof, somewhat ingeniously, to find not one, but two positive constitutional provisions for his claim that statehood is continuing and irrevocable (Kirchhof 1999a: 226). Yet Kirchhof undermines his own position when he locates the ground of validity of European Union law not only in Article 23 GG, but also in the parliamentary Assenting Act (*Zustimmungsgesetz*) to the Treaty of Rome (as amended). The search for a positive law foundation suggests that the

[8] Article 79 III GG refers to the 'comprehensive protection of the identity of the constitution' ('*umfassende Wahrung der Identität der Verfassung*').

constitutional state is not omni-competent in a political sense, but that legal and political action require prior authorization through the constitution. This line of reasoning is disingenuous and not an argument that Kirchhof himself believes: it simply serves to disguise a politically-motivated argument (the protection of statehood from European integration) as constitutionally necessary.

More to the point, Kirchhof also argues that it is Germany's *pre-constitutional* statehood that places limits on European integration. This duality (between the constitutional text and the political state) can best be seen in the argument regarding the abrogation of sovereignty which cannot be explained in positive terms. Since no enabling norm providing for the de-statization of Germany exists in the Basic Law ('*Keine Ermächtigung zur Entstaatlichung*': Kirchhof 1993: 95; the word *Entstaatlichung* was coined by Krüger 1954), Germany's core statehood must perforce be protected pre-constitutionally. 'Germany's statehood is not at the disposal of the process of European union' (1992: para. 57; see also Isensee 2004: paras. 33, 40).

If this analysis is correct, then all references to the Basic Law (Articles 20 I and 79 III GG) in relation to statehood are red herrings. 'Either the Basic Law sets limits to integration, or it must also be possible for the virtually omni-competent state to dissolve itself' (Möllers 2000: 387). According to *Staatsrecht* logic, Germany's statehood is a constitutional prerequisite (*Verfassungsvoraussetzung*), an indispensable reference point that is antecedent and prior to the Basic Law (Kirchhof 1993: 82–3; term again coined by Krüger 1973a). Although Article 20 I GG ostensibly protects democracy, the *Rechtstaat*, and Germany's federal structure (which means that it falls under the protection of Article 79 III GG), the provision is also deemed by *Staatsrecht* to protect some form of 'statehood' as a socio-historical fact—even though the framers of the constitution would not have been aware of this limitation (Möllers 2008: 73).

In consequence, Germany's constitutional core is 'European law proof' (*europarechtsfest*) and can neither be revoked nor amended by European Union law (Kirchhof 1992: para. 59). Having situated the state before and above the constitutional document, limitations to European integration are intrinsic to both non-positive *Staatsrecht* and the Basic Law. The European Union cannot have a constitution because constitutions belong to the domain of the states, and the European Union cannot become a state because the principle of German statehood exists not only as a matter of constitutional law but also as meta-constitutional law, which means that it cannot be surrendered without affecting the substance and identity of the German state.

2. Representation and the role of the people

The first *Staatsrecht* argument against a European constitution, which derived from statehood, has been shown to be not watertight: its veracity depends on a particular reading of two constitutional provisions (Articles 20 I and 79 III GG) that is vigorously contested by German public law scholars. For this reason, *Staatsrecht* produces a second argument. After decisionism and etatism (which were discussed in Chapter 3), an existentialist theory of representation is also key to *Staatsrecht* thought (Schmitt 1928: 208–20; Forsthoff 1971: 82–104, 119–25; Böckenförde 2004). Unsurprisingly, it again moves *beyond* the language and limitations of the Basic Law. *Staatsrecht* points the finger at the lack of statehood (read: constitutional legitimacy) at European level whilst simultaneously positioning the *Volk* as a homogenous, political unit and as a higher value in the sense of a *volonté générale*.

A constitutional document can only be agreed on if there is a minimum amount of 'elementary statehood', such as territory and people (Kirchhof 2004: para. 69). The citizens of the state are tied to the life and fate of the state, and constitute a political community of fate that exists prior to the state (Böckenförde 2004: paras. 26–8). The nation is seen as the foundation of the constitutional state (Kirchhof 1993: 78) and as the constitutive power behind the legal order (Grimm 1997: 248; Murswieck 1993: 172–3; Kirchhof 2004: paras. 22–4; see also Beaud 1994: 209, 359 *et seq.*).

However, since primary European Union law cannot be traced back to an act taken by or attributed to a European nation (i.e. 'a pre-existing social substrate that could give it unity': Grimm 1997: 247), but only to the Member States who are the masters of the treaties, the European Union does not meet the first condition of a constitution (Grimm 1997: 248; Koenig 1998: 272). The concepts of state (*etatism*), constitution (*decisionism*), and nation (*representation*) are ideologically intertwined: 'a constitution cannot be conceived without a state' (Isensee 2004: para. 1), and a state requires a people, and not any kind of people but a *Volk*, or a nation, which the European Union in any case does not have, so therefore it cannot have a constitution.[9]

[9] Kirchhof is not always clear whether the structural absence of a *demos* is considered to be a temporal or a permanent problem for the constitutionalization of Europe, although some indication can be gleaned from statements made by Kirchhof in informal settings. Ulrich Everling, replying to Kirchhof's speech (Kirchhof 1991) said he preferred to leave the question regarding European statehood to his children, at which point Kirchhof interjected that his argument was limited to the next ten years (see the *Diskussion* in Kirchhof 1991: 43). However, in an interview with a student newspaper some eight years later Kirchhof gave no indication that the ten years were up. On the

It is here that *Staatsrecht* once more brings in the Basic Law, namely by interpreting the existence of *Staatsvolk* as the central element of 'democracy' which is constitutionally protected in Article 20 I GG. *Staatsrecht* links democracy with the people which it views as a homogeneous community/ unit of culture and responsibility which is the subject of the unconstituted pre-legal state (Schmitt 1928: 228 *et seq.*; Kirchhof 1992: para. 37; Kirchhof 2004: paras. 73–4) on whose basis democratic will is formed. As Schmitt said, 'the central concept of democracy is *Volk* and not humanity' (1928: 234). Once more, to some extent the *demos* argument is indeed backed up by the Basic Law which asserts that all state power emanates from the people (Article 20 II GG) which is to be exercised in elections and votes (Article 38 GG).[10]

But everything hinges on constitutional interpretation, and *Staatsrecht* and *Verfassungsrecht* (as will be analysed below) interpret 'the people' very differently. It is helpful to distinguish between two basic conceptions of *Volk*. The *Staatsrecht* position is monist (Hanebeck 2004) or etatist (Kottmann and Wohlfahrt 2009: 444; von Bogdandy 2010: 2) and conceives the German people as a particular collective. The people are a group of human beings that is either stumbled upon (*Staatsrecht*)[11] or constructed (*Verfassungsrecht*) as a unit. According to German *Staatsrecht* the constitutive power of the people must reveal the link to the people as an ideational or normative unit and, at the same time, the existing political unit (Badura 2004: para. 28; Böckenförde 2004: para. 7). 'The subject-matter of the constitution is not the state as an abstract model but the specific state of a specific people' (Isensee 2004: para. 133). Inspired by Rousseau and Siéyès, Schmitt conceived the *demos* in romantic and organic terms as the prerequisite of the nation state: the people exist before and above the constitution (1928: 238, see also at 79). The constitutive power (*pouvoir constituant*) has since the French Revolution[12]

contrary, he expressed his hope 'that we can pass the Basic Law on to future generations, because I am of the opinion that we have never before had such a good constitution. But I am not bold enough to claim that there is no alternative to the Basic Law. I would be careful with the argument that we are prescribing the Constitution to the people of the year 2100. Let us work together that your children can still enjoy this': in: *Der kleine Advokat*, January/February 1999.

[10] In principle popular sovereignty is effective because it precludes the existence of other sources of legitimacy. The stipulation that all state power emanates from the people is the Basic Law equivalent to the negative limb of Parliamentary sovereignty in the United Kingdom 'that no person or body [other than the Monarch, the House of Lords and the House of Commons acting together] is recognised . . . as having a right to override or set aside the legislation of Parliament' (Dicey 1959: 70; see also Roellecke 2000: 28).

[11] See e.g. Kirchhof 2004b: 981.

[12] See the Decree of the National Assembly of 21 September 1792: '*La Convention nationale déclare qu'il ne peut y avoir de constitution que celle qui est accepté par le peuple*'; cited in Hofmann 1995a: 21, note 18.

been defined as 'the people's power and authority (in the sense of a pre-constitutional power) to (legitimately) set up, sustain, and suspend the constitution's normative claim of validity' (Böckenförde 2004: para. 7),[13] which is understood by *Staatsrecht* as a unique (Schmitt 1928: 21, 75 *et seq.*; Kirchhof 2004: para. 22) and by *Verfassungsrecht* as a perpetual exercise of power (Smend 1994: 136; Kriele 1981: 28, 57; Hesse 1995: 16–17).

The *Volk* in *Volksouveränität* is not a juristic concept. The *Volk*-centric, monist reading of democracy is further evidence that *Staatsrecht* searches for and finds answers also outside the discipline of law. As regards the definition of a people, for instance, public international law (to use a legal source) usually requires nothing more than a 'permanent population' on the soil of the polity (Crawford 1976–77: 114–19). Moreover, as regards the limits to European integration, the evolution of the European Union into a federal state is neither expressly prohibited nor expressly permitted by the Basic Law (Siekmann 1997: 358). As the two *Staatsrecht* arguments show, limits to European integration do not derive from constitutional arguments alone (which are inconclusive) but from sociology and ideology.

3. The social glue

The unity of the state as a functional, organizational, and constitutional polity assumes the unity of the people. It is not clear what ingredient unifies the people. Joseph Weiler interprets the idea of 'relative homogeneity' as referring to an ethnic (*völkisch*) concept of people (1997: 268, 270–2). This reading is probably inaccurate, at least in so far as the relevant authors (principally Kirchhof and Isensee) do not explicitly refer to ethnicity as the sole criterion for homogeneity. However, it must also be conceded that these authors foster such speculation by resorting to homogeneity requirements as the basis of the *Staatsvolk*, or at least by not doing enough to refute them.[14] For Kirchhof, the state requires a *Staatsvolk* with a:

[13] This view is different from Schmitt's decisionism, according to which the constitutive power is the one that is capable of deciding on the concrete manifestation of the political union of the people (1928: 75–6). Böckenförde's concept of the constitutive power is a concept of legitimacy. The link with Schmitt—and, simultaneously, its distinction from legal positivism—is that the constitutive power is not identical with constituted state power but precedes it: the constitution assumes the state.

[14] Further evidence that certain *völkisch* ideas were anchored in the *Grundgesetz* and took on the mantle of official state ideology can be taken from Article 116 GG which regulates citizenship. Oberndörfer (1992: 25) speaks of 'an ethnic core of the Basic Law' ('*einem völkischen Kern des Grundgesetzes*').

> ... minimum level of homogeneity in the basic assumptions of the state, a clearly accessible legal language, economic, and cultural similarities or, at least, similar impulses, the ability of political discourse though pan-European media, leadership personnel that is known in Europe, and European parties. (Kirchhof 1992: para. 37)

Particular emphasis is placed on 'linguistic homogeneity [which] constitutes the German *Staatsvolk*' (Kirchhof 2004a: para. 82; Isensee 1995; see also Schmitt 1928: 231). Commonality of language is not required for its own sake, but in conjunction with a common conception regarding fundamental rights, statehood, cultural traditions, and the minimum conditions for the internal and external order of the state (Kirchhof 2004b: 981).

Isensee mentions the geographic and geopolitical position, historical roots and experience, cultural particularities, economic needs, natural and political necessities, as well as ethnic, linguistic, and religious commonalities. What Isensee also emphasizes is that none of these properties is absolutely necessary. The state does not derive its assertive powers from the mere existence of one or more of the above mentioned criteria, or from legal membership (citizenship) to the state alone, but from a subjective national awareness that makes the criteria politically operative, that generates solidarity amongst the citizens and creates something akin to community (see Isensee 2004: paras. 47, 123, 128).

According to Böckenförde (2004: paras. 59–80), democracy is based on certain socio-cultural assumptions, on unarticulated and pre-constitutional building-blocks. These are, *inter alia*, socio-cultural (emancipated social structures, absence of theocratic forms of religions, relative homogeneity within society), politico-structural (social subsystems must be governable through political decisions), and ethical (willingness to make political decisions based on common interests). In other words, the democratic state is rooted in substantive conditions, a certain amount of basic agreement on how to order state life, and the absence of extreme economic and social differences, but not in the people as an ideational, naturalist unit.

> [Relative homogeneity] is a socio-psychological condition in which the existing political, economic, social, and cultural differences and interests appear bound together by a common us-consciousness, by a common will that can be updated. (Böckenförde 2004: para. 63)

Grimm too refutes the position that democracy is only possible on the basis of a homogeneous *Volksgemeinschaft*, i.e. ethnic community, although democracy does require 'a collective identity' (Grimm 1997: 254). For the European Union to have a constitution and to function as a democracy it must have 'formed an awareness of belonging together that can support majority decisions and solidarity efforts, and [must] have the capacity to

communicate about its goals and problems discursively' (*ibid.*: 254–5). His main concerns relate to the healthy exchange of controversial opinions, the plurality of views, and the role of the media which, according to Grimm, cannot take place in a multilingual, multicultural, and multinational polity such as the European Union.

In summary, the substantive conditions of the state mean, at a minimum, that the people are rooted in a public sphere which also provides the ground for democratic civil society. Parliamentary representation is not a formal principle but is based on the common assumptions and values of public opinion. This view is not problematic for constitutional theory which is aware of cultural sources whence national constitutions derive their moral and political authority and stability (Cotterrell 1995a: 27; 1996: 131). According to Jürgen Habermas' discourse theory, differentiated social systems have to be anchored in a *Lebenswelt*. Without that attachment the specialized discourse would no longer be able to draw general conclusions, and would no longer be capable of rational argument. The present absence of a European civil society and the democracy deficit cause problems for discourse theory (Habermas 1992: 643 *et seq.*; 1996: 500 *et seq.*), although Habermas assumes that a European public sphere will develop in the future (1992: 650–1; 1996: 507).

At a maximum level, the substantive (democratic) requirements behind statehood are reminiscent of Hegel's idea of the state as an overarching ethical order, and this view does pose problems from a theoretical perspective. The state and the nation are traced back to the principles of the French Revolution and to antiquated images of the *Volk* as a relatively homogeneous political unit rather than to normative principles of freedom and self-determination of the individual; they are defined by pre-legal substance rather than by legal formalism. The concept of the political trumps the majesty of the law, the state squashes the constitution, and historical achievements triumph over future aspirations. As a result, socio-historical hurdles are raised so high that not even a constitutional amendment would sanction the transfer of all sovereign powers to the European level. German *Staatsrecht* scholars are motivated by throwing non-positive, ideologically motivated obstacles into the path of European integration.

4. Critical assessment

First and foremost, criticism must be raised against the ideological equation of state and constitution, and state and nation. Historically, there was never a moment which brought about the unity of the state. The concept of

statehood (from the early modern period) cannot be linked with the idea of a homogeneous people which appeared only much later. Analytically, 'the identification of state and constitution leads to a dead-end. Not only does it give a wrong answer, but it also answers the wrong question' (Möllers 2003: 21). *Staatsrecht* is not able to inquire into, and has no interest in addressing, the sociological conditions for a European state. It defines the relation between the state and the European Union using concepts that are state-centric. The conclusions are prejudiced by concepts that are self-referential as regards the *state*, rendering any 'scientific' analysis in relation to multilevel governance otiose.

The best illustration of the *Staatsrecht* bias is the reference to a homogeneous *Volk*, or at least the absence of an equivalent socio-politico infrastructure at European level. The French nation state is an example of one constitutional tradition; but the French (revolutionary) tradition is very different from the German (organic) tradition (see Möllers 2003; Vorländer 2007), and it does not necessarily equate the state and the constitution. A European *Staatsvolk* as conceived by *Staatsrecht* does not exist. But ought democracy theory to require that a people belong to a nation or be united by relatively static criteria?

Democracy is a fluid concept of constitutional law and political theory. From the ancient Greek philosophers to Rousseau, democracy was thought only to be viable in a city-state or small state. It was not until after 1776 that the United States of America confounded that understanding by showing that democracy could be instituted and practised in each Union state as well as across the Union as a whole. Similarly, to require a pre-existing, unreconstructed, homogeneous community/unit of culture and responsibility as the premise of democracy not only draws its assumptions from non-legal, meta-constitutional sources, but is also anachronistic. James Tully argues that 'the presupposition of shared implicit norms is manifestly false. . . . in any case of a culturally diverse society' (1995: 131). An alternative interpretation is that democracy in the twenty-first century requires a commitment to integration and a general agreement on fundamental rights as the guarantee of pluralism and diversity. Zuleeg has shown that a homogeneous people is not a prerequisite for democracy.[15] Democracy in the United States of America is carried out by a multiethnic, multicultural, and multireligious people (1997: 505). What needs to develop and mature are a European civil society, a European public opinion (identified as a 'pre-legal prerequisite' of democratic legitimacy by the Federal Constitutional Court in *Maastricht*), and a

[15] For ground-breaking research in political science which shows that stable democracies can be built around heterogeneous populations see Lijphart 1977.

Europe-wide debate as to how to tackle and solve political problems. Neither a common language nor common European media are a prerequisite. More important are the ability, the freedom, and the will to communicate.

Schmitt-inspired *Staatsrecht* theory cannot explain why non-state sources of law are considered binding. It does not, for instance, capture the legal reality in which European Union law (and human rights and international law for that matter) is routinely and successfully applied even against the will of governments. The sole contribution of state-centred legal theory is to say that the validity of non-state sources of law is contingent upon the consent of the German state: the legal validity of law is subject to the political power of the nation state to suspend it. A theory of law that focuses on the political power to suspend the law does not befit the modern state and pluralistic democracy which should be based on 'the will of free people and nothing else, not race, *Volk*, language, religion, geography, only on the will to a common state and its constitution' (Hennis 1999: 492).

II. *Ius Publicum Europaeum*

If the constitutional discourse of the 1990s was predominantly framed in terms of the *Staatsrecht* method, then the first decade of the twenty-first century witnessed a necessary and qualitative leap. The move was necessary because the constitutional images of the state had largely been unaffected by all the other wider social and political changes that had occurred since 1945 (Hobe 1998: 530). Jellinek's image of the state, for instance, endured even after more than half a century of international and European co-operation. Hobe points the finger accusingly at Herbert Krüger, whose *Allgemeine Staatslehre* (a second edition was published in 1966) perpetuated the state as a closed and impermeable polity. Other sources are, however, available, and the previous section detailed how after 1992 *Staatsrecht* analysed the object of the European Union introspectively on the basis of the closed and historically-defined categories of state, constitution, and sovereignty with predictable results for European integration. This section will examine the qualitative shift in the 1990s that changed the nature of the discourse. The European Union morphed from technical to political and from economic constitution to legal constitution. The new language of the discourse drew on the *Verfassungsrecht* method that derived its presuppositions from the liberalization or Westernization of public law that started under the Smend-school (see Chapter 3). Whereas *Staatsrecht* was a uniform method of constitutional interpretation, whose scholars used the same concepts to capture both national

and European phenomena, *Verfassungsrecht* opened up to, embraced, and gradually morphed into a European, and perhaps even international, method of legal interpretation.

With a separate cohort of scholars and a distinct body of scholarship a new, third constitutional method can be distinguished and given the name *Ius Publicum Europaeum*. Once again, the term is intended as an ideal-type or umbrella term that accommodates a number of scholars and ways of conceptualizing the relation between national and European Union law. It captures, for instance, Peter Häberle's *Europäische Verfassungslehre* (2011)—now in its seventh edition (note the usurpation and Europeanization of Carl Schmitt's famous title)—and his ambitious notion of 'common European constitutional law' which is directly inspired by the *ius commune*, the common European civil law from the thirteenth until the late eighteenth century, and which for him is much the same thing as shared *cultural* values (Häberle 1991). The integrative function of a constitution, which according to Rudolf Smend is the consensual basis of political union, identification and belonging, reappears as a value in the European constitutional debate.[16] The constitution is not merely an instrument of law but also of social integration. Legal argument is here constructed on the basis of anti-positive elements, such as a pre-legal image of a 'European *ius constitutionale*, a *ius commune europaeum*, a *ius publicum europaeum*' (Häberle 1994: 39), and substantive social and cultural values.

But, more importantly, the method *Ius Publicum Europaeum* that is developed in this section captures the significant conceptual developments at the start of the new century. In 2001, in a small but significant step for constitutional scholarship, the remit of the traditional state-centric journal *Der Staat* was expanded to include European public law.[17] At the same time, Armin von Bogdandy identified the need to adopt a new terminology by reclassifying the European Union in normative terms by divorcing constitutional concepts and institutions from their historical association with the state (von Bogdandy 2000). Research under the aegis of von Bogdandy and Jürgen Bast (2003; 2006; second edition in 2009) led to a systematic exposition of the most essential legal norms of the European legal order, or a

[16] Smend's third category of substantive integration (see Chapter 2) is concerned with the goals and values of the polity, which include fundamental rights, constitution, preamble, territory, flag (1994: 160, 215, 217). His constitutional theory is widely considered to be dated and so it is even more noteworthy that the European Communities, starting in the 1970s, chose the final (fourth) movement of the Ninth Symphony by Ludwig van Beethoven as its anthem (Clark 1997: 789), and in 1986 began to use the circle of gold stars on a blue background as its flag.

[17] (2001) 40(1) *Der Staat*. Interestingly, though, this formal change has not resulted in an increase in EU law-related articles, of which it has averaged three each year since 1991 (Mangold 2011: 183).

European doctrine of principles (although see also the earlier attempts by Frowein 1988 and Riedel 1998).

The method *Ius Publicum Europaeum* is defined by the following features. First, it creates a new 'European legal space' (von Bogdandy 2010; 2011) and a 'new public order' that cannot be captured with state-centric concepts and patterns of thought (Schuppert 2005: 9). That new legal space consists of a common body of law (its public law sub-division is here referred to as *Ius Publicum Europaeum*) as well as a 'new orientation' in European scholarship that attempts to 'identify dissimilarities and develop commonalities' and intends to discuss 'legally constituted rule and freedom' comparatively.[18] The idea of a 'European legal space' is, therefore, a constitutional innovation. By providing a constitutional and national history of Germany as well as potentially of all European states, the method *Ius Publicum Europaeum* intends to deepen the understanding of the complex common legal bond by enabling comparison and connections of constitutional law (thereby honouring the assignment stipulated in Article 6 TEU). To do so, the European legal space embraces both the common body of law (primary and secondary European Union law, and its unwritten general principles) as well as European legal scholarship. The synthesis of doctrine and scholarship is evident in the following statement of intent:

> The constitutional approach to EU law reads this 'primary law' as a framework for politics and contestation; it addresses the sources of legitimacy and the founding principles of the polity; it aims at inducing disciplinary self-reflection and self-awareness; it wishes to mediate between civic and legal-professional deliberations; and, last but not least, it systematises the cases and materials in light of constitutional theory and of established concepts of constitutional law. (von Bogdandy and Bast 2010: 1)

Second, it develops a new method of public law which is based on formalist, but given the context quite radical, principles that law (i.e. its creation, application, and interpretation) is capable of universal (i.e. rational and persuasive) application, and capable of structuring the European legal space (von Bogdandy 2010). Whereas the premise of *Staatsrecht* is pre-existing, pre-constitutional statehood, the premise of *Ius Publicum Europaeum* is the constructed post-national constellation. The method *Ius Publicum Europaeum* is a necessary and logical addition to the two older (and domestic) rival theories discussed in Chapter 3.

[18] 'Redaktionelle Mitteilung' (2001) 40(1) *Der Staat*; see also von Bogdandy et al. 2008: §39 para. 3.

Third, the method *Ius Publicum Europaeum* requires that public law scholars develop a sense and some knowledge about the public law of other European states (*Preface* to *Handbuch Ius Publicum Europaeum Vol. I*, 2008; von Bogdandy 2009: 366). Unlike *Staatsrecht* whose uni-disciplinary and introspective methodology uses the traditional, homogeneous concepts (state, constitution, *Volk*, sovereignty), the methodology of *Ius Publicum Europaeum* is interdisciplinary, multijurisdictional, comparative, and post-national.

Finally, and related to the first point, the new method seeks to develop systematically new constitutional law terms (*Leitbegriffe*) and to create an 'autonomous space of discourse and argumentation' (von Bogdandy 2000; 2008: paras. 20, 21). The method *Ius Publicum Europaeum* does not merely (negatively) set out to displace the unity and orthodoxy of *Staatsrecht*, it also wants to (positively) generate and facilitate genuine European legal scholarship through comparative law (Pauly 2008: para. 27; von Bogdandy 2008: paras. 3, 87; 2009). Its analytical lens is 'the tradition of liberal-democratic constitutionalism' (as opposed to, presumably, anti-liberal, pre-constitutional etatism), and its key concepts are presented in terms liberated from the state tradition: liberty, democracy, rule of law, and the protection of fundamental rights (von Bogdandy and Bast 2010: 1–2).[19]

The desire to develop and adopt new terms is not a new development. Chapter 3 showed that the political concept of state was unable to accommodate pluralism at the domestic level: *a fortiori*, Europeanization is viewed as a threat to the existing legal order. The concept of the state is a 'dichotomical *idée fixe*' [*dichotomischer Fixbegriff*] (Möllers 2000: 432) that demarcates final limits in black and white fashion, without recognizing intermediary steps in shades of grey (Lepsius 2004: 376). Domestically, the old language of the political was rivalled by the new language of law in the 1950s and 1960s. The Smend-school reversed the polarity of the language of constitutional law discourse as the word 'state' was, almost habitually, replaced with the word 'constitution'.[20] An early illustration is Ehmke's rejection of the *Staatsrecht* terminology (*Herrschaft*, order, command etc.) and, having realized that there was no German word to describe the institutional set-up of his human and

[19] These values were protected in the Treaty of Amsterdam under Article 6(1) TEU. The new Article 6(1) LTEU refers to the 'rights, freedoms, and principles' of the Charter of Fundamental Rights which, of course, enjoys the same legal status as the treaties.

[20] Unsurprisingly, Isensee is critical of the substitution of the concept of state, which can no longer be referred to in legal argument, with the concepts of 'democracy' and 'constitution' (2010: 224, 234–5).

political association, his borrowing of the English word *government* (Ehmke 1962: 45). Similarly, Brun-Otto Bryde observes that the component '-state' features in most foundational constitutional concepts of *Staatsrechtslehre* (*Rechtsstaat, Bundesstaat*) which automatically distorts their utility and insight at transnational level (Bryde 2003: 62). Instead of referring to state-based concepts, the method *Ius Publicum Europaeum* uses ostensibly 'neutral' concepts that shed the old ideology (*Staat, Rechtsstaat, Nation, Staatsvolk*) in favour of a new European/cosmopolitan one. Since the terms *Verfassungs*-staat*lichkeit*, *Rechts*staat*lichkeit* and *Sozial*staat*lichkeit* are unsuitable for non-state legal orders, their conceptual meaning is re-rendered directly in the new lingua franca as 'constitutionalism', 'rule of law', and 'social justice' (see e.g. Frowein 1999: 57).

The same re-interpretation occurs in relation to all central constitutional concepts. 'Democracy' no longer implicitly contains the state component. However, whereas *Staatsrecht* (as was discussed above) understands *demos* as *Staatsvolk* rather than 'of the people' (i.e. as a substantive concept that precludes the democratization of transnational processes), the method *Ius Publicum Europaeum* talks of 'a minimum level (a standard) of agreement regarding constitutional principles and fundamental decisions' (Ipsen 1990: 172).

> Democracy can only exist in the state, as a democratic state or, more precisely, as an element of the totality of the constitutional state or as one of the characteristics of the constitutional state. (Sternberger 1990: 26–7)

Whereas for Isensee and Kirchhof, the concept of constitution is inseparable from the concept of state, for von Bogdandy constitutional law 'is conceivable without the state, the nation, and an act which satisfies all requirements of the traditional concept of constitution'.[21] (The same is true for *Republik*: von Bogdandy 2005: 534). In short, whereas *Staatsrecht* insists on democratic constitutions rooted in the nation state, *Ius Publicum Europaeum* insists that the treaties and European Union law are functionally equivalent to national constitutions and national laws (Pernice 1999; 2000; 2001). The constitutional achievements and attributes of the European Union emerge as equal in kind to those of the Basic Law. Constitutional argument is expressly based on the Basic Law and the Treaties of Rome (as amended) whereas arguments derived from the political existence of the state are totally discredited. The state—once again—is the assignment, not the assumption.

[21] Preface to *Europäisches Verfassungsrecht* (von Bogdandy 2003).

1. The principle of open statehood

The domestic school of *Verfassungsrecht* has no objections to the expansion of its legal method into an area of European public law that is composed of, but not limited to, the law of the European Union, the Council of Europe, and the Member States. The low domestic profile of the state in the Basic Law is reflected in the preamble to the Basic Law which sets out Germany's commitment to European integration by playing 'an equal part in a unified Europe'. This commitment to 'open statehood' and 'international openness' (Vogel 1964: 62) is reflected at various points in the Basic Law even though it is never expressly mentioned. The terms were coined by Klaus Vogel in his 1964 monograph on the constitutional decision of the Basic Law for international co-operation. It was an attempt to break with the classic image of the closed, sovereign state based on commerce and trade as typified by Johann Gottlieb Fichte's *Der geschloßne Handelsstaat* (1922; first published in 1800). Yet, as Vogel points out, the acceptance of international law is only possible if the state not only co-operates on the surface but also integrates and submits itself to the law, if only in a limited way. Vogel argues that whether a state chooses open or closed statehood is a matter for its constitutional law as it affects the 'concrete form of existence' of the state (1964: 30). In other words, it is a conscious constitutional decision. Since international organizations have not grown organically but have been consciously created and posited, the integration of states has a dual legal effect. On the one hand the state integrates within the international regime and is subordinate to its laws. On the other hand, by playing a part in the realization of certain common goals the state also part-constitutes the international organization (*ibid.*: 31). Open or closed statehood is a description of a state's international outlook; but it neither enforces nor undermines the basic concept of statehood or sovereignty (*ibid.*: 32).[22] As a legal-sociological characterization the terms 'open statehood' and 'international openness' were a successful coinage and have largely asserted themselves in the constitutional literature. Although not part of the positive law (Tomuschat 1992a: para. 9), the principle of 'open statehood' offers a fresh and fundamentally new perspective of analysis that corresponds to the universalizable and forward-looking ambitions of *Ius Publicum Europaeum* and amounts to an explicit rejection of the state-centred worldview of *Staatsrecht* scholars (von Bogdandy 2008; Sommermann 2008).

[22] Ipsen adds that 'openness' also implies an openness as to the final form the European Union might take (1990: 172).

By revising our understanding of open states and their relation to international law, it becomes possible not only to secure the unity and sustained legitimacy of civil (public) law, but to contribute to the advancement of law in general and to society's understanding of itself through a reinvention of *ius publicum*. (Di Fabio 2003: 82)

The concept of the state, as understood by *Verfassungsrecht* and applied by the method *Ius Publicum Europaeum* in the international context, paves the path for European integration. With the emphasis clearly and firmly on the open constitution, the concept of the state sidelined, and the concept of sovereignty marginalized, the relation between Germany and the European Union emerges as axiomatic rather than problematic. The open state is no longer existential or institutional (see Chapter 3), but a 'member state' (*Mitgliedstaat*), *pari passu* with respect to the other Member States in a unified Europe (Klein 1991; Lenz 2005a).

As the constitution of a Member State of the European Community, the constitution must respect the limits drawn by European law, its content must take into account the interconnection with the common European constitution and must be made to correspond with the content of European law in order to bring Member State and European action into concordance. (Hesse 1994: para. 36)

And Rainer Wahl:

To be sure, Germany continues to be a state, but in many respects it is more accurate to characterize it as a member-state. Its legal order is no longer self-sufficient or autonomous. The law in a member-state is pluralized. The law that applies in Germany is not merely (exclusively) German law, but law that is derived from, composed of, and interwoven with multiple sources. This basic fact determines the starting point for virtually every legal area. There is no refuge any more for autonomous German law. Rather, the supremacy of Community law and a host of other indirect legal avenues to secure influence have become the normal condition. (2006: 95–6)

These statements are a rejection of the anti-positive *Staatsrecht* conception of the constitution and its personification of the state. They represent a no-nonsense, strictly legal approach to the state and the European Union. Doctrinally, the Federal Republic is a state solely by virtue of Article 20 I GG. But it is still not clear what exactly that provision protects. According to Kirchhof, as was discussed above, Article 20 GG protects introspective, pre-constitutional statehood and which it insulates from European integration and other international developments. But Kirchhof's reasoning is contested in constitutional terms by *Ius Publicum Europaeum*. In the same way that the modern liberal state draws on certain socio-political preconditions which it cannot itself assure, so the Basic Law does not protect

everything it assumes. Article 20 I GG defines Germany as a 'federal state' as opposed to a confederation. In other words, 'the object of protection are the constituent states not the collection of competences of the state as a whole' (Möllers 2000: 383; see also Fink 1998: 138–9). It is, accordingly, not self-evident from a textual analysis of Articles 20 I GG and 79 III GG that the mere inclusion of the word 'state' was intended to limit, or has the effect of limiting, the process of integration through the principle of statehood.

Devoid of mythical or utopian elements, the state—in an inversion of Ipsen's characterization of the European Communities—is viewed as a 'functional' or 'instrumental' association (*Zweckverband*) of citizens and is conceived in terms no different from the European Union (Pernice 2000: 213; Zuleeg 2002: 359). The rejection of further integrationist steps by *Staatsrecht* lawyers is seen as a defensive reaction. The question whether a core of German statehood exists which must be immunized from the process of integration is dismissed. According to Siekmann it is not possible to identify conclusively a necessary stock of tasks, a minimal level of sovereign rights, which cannot be traded, nor is it possible to identify individual tasks which must of necessity be dealt with by the state (Siekmann 1997: 356).

The European Union is analysed in the same matter-of-fact way as the state and the constitution. It is the institutional answer to a contemporary set of international problems that need solving, and is neither the realization of a given vision (Pernice 2000: 217), nor an 'alliance of love' (Tomuschat 1996: 1079). It consists of states that are necessarily open to the project of integration. Häberle coins the term 'co-operative constitutional state' (1978: 141), which is later modified by Hobe to 'co-operation-friendly constitutional state' (Hobe 1998). More cautiously Kaufmann speaks of the structural principle of 'integrated statehood' (1997: 814).[23] These are all variations of Vogel's principle of 'open statehood' which anticipated that the second half of the twentieth century was the age of the 'institutionalized co-operation of states' (Hobe 1998: 521). Since the ability to maintain peace and increase the state's own conflict-resolution potential could no longer be achieved in

[23] The concept of 'integrated statehood' is an attempt to conceptualize the efforts of sovereign states to create a self-standing organization which is nonetheless rooted in the Member States. It is a constitutional option of sovereign states to bind themselves in order to protect themselves from the adverse consequences of short-term action (Kaufmann 1999: 820). It is an interesting concept but one which, in spite of the initial attempt to tailor a concept of statehood to the contemporary demands of European and global interdependence, division of labour, and co-operation, ultimately still clings to the notion of sovereign statehood and the concurrent impossibility of a European federal state (*ibid.*). See also Scholz 2000: 30: the commitment to open statehood means that Germany should be a 'co-operative constitutional state' within a federation of nation states. It is a national constitutional state but is also open to international and supranational networks of competences.

isolation it was a rational choice to reach out and join forces with other states. Viewed that like, the European Union is nothing more than a 'relatively banal operation' whereby the 'final polished form of competences falls in favour of the Community [and now Union]' (Oeter 1995: 673). Is *Staatsrecht's* political/ideological objection to the European constitutional dimension (Schwarze 1993: 591), therefore, not an attempt to close the stable door after the horse has bolted? Has the integrated/open state not already triumphed over the unitary and introspective state?

2. The post-national constellation

The choice is as simple as it is ideological: either the constitution is tied to the political form of the state,[24] or it is understood as the basic legal order of a polity (Hesse 1994: para. 10). In the latter case, the constitution is disconnected from the territory of the state; it can proliferate and apply to *any* polity, from a state, to a social sub-system (Teubner 2004), to an international organization like the United Nations (Ross 1950; Dupuy 1997; Fassbender 1998: 529; Frowein 1992: 65; Preuss 2010: 35–46). The concept of constitution 'can also be applied to an independent inter-state or supra-state entity, which is organizationally and legally fully equipped' (Everling 2006: 703). A European constitution would 'create clearer structures enabling the institutions to fulfil their functions more effective[ly] and present an understandable organisation to the citizens' (*ibid.*: 706). Similarly, Zuleeg argues that 'the EU's constitution is composed of Treaty law and judge-made law' which is more extensive than national constitutions, and he finds 'good reasons' for referring to a 'constitution' for the European Union (2006: 819–20). Everling and Zuleeg view the European Union as a relatively autonomous legal order which produces its own rules and principles. As a result, 'the concept of constitution is meaningful in order to recognise, sort and compare these basic rules and principles' (*ibid.*: 804).

On this account there are multiple legal regimes within the overarching political society, each with a claim to authority and legitimacy. Ingolf Pernice's work on multilevel constitutionalism and the *Verfassungsverbund* (note the rejection of Kirchhof's *Staatenverbund*) is useful here to order and systematize the proliferation of constitutional regimes. In fact, various terms exist to describe the same idea of two or more constitutional levels. Pernice's concept of 'multilevel constitutionalism' (1999: 703; 2001a: 38; 2002: 511) consists of the

[24] Recall: 'the constitution cannot be understood without the state. This is its subject-matter and pre-condition' (Isensee 2004: para. 1).

national constituent constitutions (*Teilverfassungen*)[25] and the supranational complementary constitution (*Komplementärverfassung*)[26] which together make up the constitution of the European Union and are legitimized by the peoples of the Member States acting through their treaty-making institutions and procedures (Pernice 1999: 715; see also Häberle 2001). They represent one coherent system of constitutions, a *Verfassungsverbund*,[27] a 'fusion constitution' (*Fusions-Verfassung*),[28] 'interlocking orders of absorption' (*wechselseitige Auffangordnung*),[29] or what in Austria is known as a 'double constitution' (*Doppelverfassung*: Pernthaler 1997: 773 *et seq.*; Pernice 2001a: 32, note 76). Huber makes the incontrovertible and striking point that, although none of the national constitutional orders have expressly signed up to the interlocking of the national and the European constitutions, that model is nonetheless the 'determinative foundation' (*maßgebliche Grundlage*) of public law in the European legal order today (2008: para. 112).

Pernice is one of the strongest advocates of a uniform and federally-structured legal order where the national constitutions and European primary law are removed from the power of the state and housed together under a European 'constitutional compound' or 'association of constitutions' (2000: 214–15). The European constitutional system forms part of a 'normative pluriverse' (von Bogdandy and Bast 2010: 3) that consists of the interconnection of European Union primary law with national constitutional law (Grabenwarter 2010) and public international law (Uerpmann-Wittzack 2010). The normative pluriverse can also be conceived as a complementary constitution that derives its authority from national constitutions that remain the basis for the supranational construction (see Rodríguez Iglesias 1999), but not without certain changes.

> They are integrated into the European constitutional system whose material unity is expressed in the construction of one legal solution in spite of two formally autonomous sources of law. National constitutional law in its current form can only be understood with reference to the European constitutional level, while the European order can only function because of the democratic and *Rechtsstaat* structures of the Member States. (Pernice 2001a: 31; see also 1999: 712; cf. Kirchhof 1999a: 228)

[25] Frowein 1995: 318.

[26] Pernice 2000: 215; 2001a: 28; de Witte 1996: 13. Pernice calls the treaties an *Integrationsverfassung* (note Smend's key concept; see also Nicolaysen 2001: 187) which is rooted in the shared values of the Union as well as 'common European constitutional law' (see Häberle 1991).

[27] Pernice 1995a: 261–2; 1996: 26; 2000: 214–15; 2000a: 866; 2001a: 27; see also approvingly von Bogdandy 1999: 13; Peters 2001: 205.

[28] Ipsen 1969: 13.

[29] Huber 2001: 227; 2008: para. 109.

The complementary constitution also derives its authority from a European *contrat social* (Pernice 2000: 209; see also, allegorically, Weiler 1995: 413). Even though the treaties are formally documents of public international law, the procedure in Article 48 TEU transforms them, in substantive terms, into a 'common exercise of constitution-making power by the peoples of the participating State' (Pernice 1999: 717; 2000: 208; see also von Bogdandy 1999: 42–3). There is a legal relation not just between the states (*Staatenverbund*) but also, more importantly, between the treaty-based polity and the citizens of the Member States (*Bürgerverbund*: Pernice 2000a: 870; see also Everling 1994: 9) who acquire the status of Union citizens. No longer an economic pact or a neo-functionalist agreement, the successive treaties instead represent:

> ...a social or 'civic' treaty [which] constitutes, legitimates, organizes, and limits a new, original, supranational public power in the realization of certain tasks for the benefit of these citizens and their states, and thus attains constitutional law character. (Pernice 2000: 209)

Unlike the conventional view that regards the Member States as the subjects of European law, Pernice consistently points to the role of the citizens of the Member States in the European integration process. The treaties are not negotiated and signed by states qua states but by governments acting as representatives of their respective people. All treaties from Rome to Lisbon are the expression of a democratically legitimized consensus of the peoples of the Member States. Over time this constitutional basis has metamorphosed into an original European jurisdiction which is no longer secondary or delegated. By way of contrast, the Federal Constitutional Court in the *Maastricht* case, as well as Paul Kirchhof (1992: para. 65), claim that European law is received by national law through Article 24 I GG (now Article 23 I GG). For Pernice, the integration clauses in domestic constitutions allow the construction of a European constitution without eroding—*pace* Kirchhof—the validity of the national constitutions (2001a: 28, 31). The complementary European constitutional system does not replace national constitutions.

The idea of a *Verfassungsverbund*, which houses the complementary European constitution, promotes Europe's development from 'contract to status' (Häberle 1999: 16; see also Everling 1983: 173, 190; Steinberger 1991) and produces 'two different kinds of constitutional law', national and European. In the process of Europeanization the state constitutions have become 'fragmentary' or 'constituent' orders (von Bogdandy 2000b: 166). They do not control the totality of public powers that is exercised over the citizens but only that part that is not determined by European Union law. A case will

either be decided with reference to a provision in the Basic Law, or a European norm. 'The classic nation state is "suspended" in the European constitutional compound due to the constitutive treaties whose international law character is purely formal' (Pernice 2001a: 28).

It should be noted that Pernice assumes the existence of two autonomous legal systems only on a formal level. In material terms, because of the degree of intertwining and integration of the supranational with the national legal orders, he conceives them as a unified legal order (see also von Bogdandy 1999a). The *Verfassungsverbund* integrates the founding treaties and the national constitutions. Sovereignty is shared in a uniform, federal system (Pernice 2000: 216; 2001a: 38–9). National courts and administrations are not just national authorities but in terms of Community law and judgments also European authorities (Pernice 1999: 724–5).[30] The necessary interaction and co-operation in the legal, political, and administrative practice of the European Union promotes the spontaneous development of a common European constitutional law (Häberle 1991: 261 *et seq.*) as well as elements of a common political culture (Pernice 2001a: 32).

How successful is the idea of a post-national, complementary constitution? A generally accepted constitutional framework would need to i) preserve the integrity of the national legal order without insulating it from European Union law and ii) accommodate European Union law without incorporating and domesticating it. The idea of a complementary constitution shows an awareness of different forms of original authority which complement each other. Crucially, it allows for a recognition of legal pluralism from a national vantage point. European Union law is not a priori incompatible with the national constitution but genuinely *complementary* to the national constitution. This framework reinforces the necessary foundation and final authority of the state (politics) whilst simultaneously recognizing the authority of European constitutionalism (law).

Legal pluralism is not a phenomenon that is extraneous to the state, but is situated within the national legal order and ultimately limited by the political sovereignty of the state. Pluralism can only be effective if it is grounded in a common basis, i.e. 'a set of principles shared by all the participants that, while respecting their competing claims of authority, guarantees the coherence and integrity of the European legal order' (Maduro 2003: 524). The complementary constitution does not undermine national competences but

[30] See e.g. 'the national courts are, no less than the Court of Justice, Community courts'. See also Morlok (2000: 77) who argues for the existence of two constitutional courts: a national one and the European Court of Justice, 'who are both called on to exercise final decision-making authority within their respective jurisdictions and to resolve the difficulties of this double calling'.

enhances the national capacity to act (Dreier 1998: paras. 95–7; Schwarze 2001: 141; Maduro 2003: 524–5). It creates a mutual instance of influence and control by requiring both legal systems to be open to each other's interests.[31] In the same way that supranational institutions are legitimate 'as a correction of "nation-state failures"' (Joerges and Neyer 1997: 294; Maduro 2003: 523), so national constitutionalism acts as a significant corrective to the potential excesses of European constitutionalism (Maduro 2003).

3. The social glue

The *Staatsrecht* position is that the European Union cannot have a constitution because its public powers are mediated through the Member States, rather than derived from the people (Grimm 1997: 249).[32] This position is heavily criticized by *Verfassungsrecht*. It is emphasized that it is not the *state* which integrates in Europe but, according to the Preamble to the Basic Law, the 'German people' who 'promote world peace as an equal partner in a united Europe'. *Verfassungsrecht* and *Ius Publicum Europaeum* do not require a monist, homogeneous *Staatsvolk* as *pouvoir constituant*. These methods are not concerned with substantial sameness or unity, either assumed or aspired, amongst its people, nor do they have any truck with Hegel's mystified state. *Verfassungsrecht* depoliticizes the 'crypto-monarchic' concept of the people (Häberle 1975: 302) by stripping it of its substantive components and by debunking widely held assumptions about the relation between state, constitution, and *Volk*. The concept of *Verfassungssouveränität* means that either the principle of popular sovereignty is no longer tenable (see Chapter 3) or, at a maximum, that it refers to the democratic legitimacy of state power (which is indistinguishable from the source of the constitutive power). 'Which "people" legitimizes which constitutional act on which level of the state?' The question is easy to answer for the classic unitary state. But for federal systems (be it a federal state or an association of states like the European Union) the question is explosive (Oeter 1997: 50–1). How does the method *Ius Publicum Europaeum* defuse the homogeneity requirement of the *Staatsvolk* in the context of the European Union?

[31] See Weiler's principle of constitutional tolerance (1999: paras. 22 *et seq.*; 2000: 217–18).

[32] See also the *Maastricht* case: 'This readiness to accept obligations within the international community and within the narrower legal association of a community of particular States is a characteristic of a democratic *state* which—as the Preamble to the Constitution presupposes and Articles 23 and 24 expressly provide—wishes to participate in international institutions as an equal member, especially in the development of the European Union' (C I 2, para. 36; emphasis added); and Kirchhof 1992: para. 23: '*Deutschland soll als* Staat *an der Einigung Europas mitwirken*'.

First, unlike the materially-charged '*Volk*' in *Volksouveränität*, the post-national conception of *Volk* is a formal, juristic concept (Lepsius 2000: 374–6). It is individualist (not etatist: Kottmann and Wohlfahrt 2009: 444; von Bogdandy 2010: 2) and pluralist (not monist: Hanebeck 2004), and can be applied to the general principle of democracy, whereas the political concept of *Volk* applies to a specific notion of *Volksouveränität*. *Staatsrecht* uses ontological criteria in conceiving the people, whereas the juristic concept is geared towards the democracy principle as protected by the Basic Law: it addresses the integration of the community as a whole, whose laws and sanctions are respected, and it seeks to legitimize the relation between the people and the democratic form of government. This conception is also more appropriate in the context of European integration (von Bogdandy 2007: 35).

Second, the constitutive power of the people is not a pre-constitutional fact but merely a normative reference point. Put differently, the people are not the subject of the state but rather its object. The spiritual roots of the Basic Law's assertion that all state power emanates from the people (Article 20 II (1) GG) have to be distinguished from the *de facto* possession and exercise of state power (Mayer-Tasch 1991: 70). The constitutive power of the people is addressed in the Preamble and in Article 146 GG. But according to the *Verfassungsrecht* interpretation of Article 20 II (1) GG, the 'people' are not a *pouvoir constituant* but a *pouvoir constitué*, with no residual rights (Dreier 1987: 37; 1995: 1207): the people have only those competences which are defined in the constitution.

Third, cultural identity is not antecedent to democratic process as such a requirement would be incompatible with the idea of citizens as free and equal (Habermas 1997: 262–3). Instead of 'relative homogeneity' Habermas proposes 'a new level of social integration' whereby strangers create solidarity which is abstract and legally mediated through democratic citizenship. This form of social integration is dependent upon certain conditions:

> . . . in which an ethical-political self-understanding of citizens can communicatively develop and likewise be reproduced—but in no way a collective identity that is independent of the democratic processes itself and as such existing prior to that process. What unites a nation of citizens as opposed to a *Volksnation* is not some primordial substrate but rather an intersubjectively shared context of possible understanding. (Habermas 1997: 262)

In the same context, Ulrich K. Preuss wonders whether the concept of sovereignty is entering a third historical phase: having been characterized first by 'exclusive territorial control' (*Staatsrecht*), and then by 'collective self-rule of a multitude', i.e. 'We the people' (*Verfassungsrecht*), sovereignty is

likely to reconceive the idea of collective self-rule as 'the capacity of a collective to interact with other communities and share with them the control of their life conditions on a global scale irrespective of territorial boundaries' (Preuss 2010: 39).

Fourth, the constitutional requirement for a people with a common language, which helps to create and sustain the substantive union of the people, is rejected as mythical (Pernice 2000: 210).

> The decisive factor is not that an antecedent people, an antecedent 'nation', gives itself a constitution, but that the constitution represents the (at least in fictional terms contractual) instrument according to which the people of a bounded territory self-define themselves as *Volk*, nation, or citizens of a specific political organization. (Pernice 2000: 214)

In this context, Jürgen Habermas' desire to unite 'a nation of citizens' (as opposed to a *Staatsvolk* or *Volksnation*) through 'an intersubjectively shared context of possible understanding' (1997: 262) cleansed of politico-historical connotations is a significant advance. Rather than play two otherwise 'contradictory principles' off against each other, Habermas (2001a) fuses democracy (the unrestricted expression of popular sovereignty) and constitutionalism (the rule of law limits the people's sovereign self-determination), and offers an even more dynamic image of the constitution. Habermas argues that the principles are not in fact contradictory, but complementary and 'co-original'. In other words, they are interdependent (the existence of one necessitates the existence of the other) as well as independent (they do not impose limits on each other). Democracy and constitutionalism are reciprocally conditioned by human rights which link institutionally structured political decision-making with spontaneous and unorganized circuits of communication in the public sphere (Habermas 1992: 625; 1996: 485). Eschewing the *Staatsrecht* preoccupation with the people as the pre-existing political unit, and the *Verfassungsrecht* conception of the people as a purely normative reference point for original power, Habermas 'desubstantializes' the idea of popular sovereignty still further by removing the concept from the body of the people and dispersing it in deliberative procedures, or more precisely 'subjectless forms of communication that regulate the flow of discursive opinion- and will-formation' (1992: 626; 1996: 486). The institutionalization of procedures of rational collective will-formation (in other words 'proceduralized popular sovereignty') allows for universalist constitutional principles—that remain contested and controversial—to be routinely realized in ordinary legislation. As a result, the constitution is no longer static but becomes dynamic: even though 'the wording of norms has not changed, their interpretations are in flux' (1992: 629; 1996: 489).

The post-national conception of the people is the result of a radical shift in philosophical foundation from Hegel to Kant. By separating the binding validity of law from the binding validity of morality or ethics Kant became 'the founder of a liberal legal and political theory in Germany' (Ruzicka 1984: 595). The constitutional state defines itself through laws that are (externally) considered to be binding; the (internal) motivation for legal obedience is irrelevant. *Pace* Hegel, the state and the legal order need not be ethical themselves (and need not force people to be virtuous). The liberty of the legal order makes it possible to act in a way that conforms to law, by enabling ethical and autonomous behaviour, without one's conscience being convinced of the rightness of the law. Self-determination and happiness (*Glückseligkeit*) are key, as is the obligation to act rationally and not from fear of punishment. 'Right' is nothing more than 'the restriction of each individual's freedom so that it harmonizes with the freedom of everyone else (in so far as this is possible within the terms of a general law . . .)' (Kant 1964: 144; 1991: 73; see also Hofmann 2003: 166–7).

According to Kant, 'a state (*civitas*) is a union of a multitude of men under laws of right' (1996: 90, Part I, para. 45). The *Volk* is that body of people that is affected at the moment and in the future (von Simson and Schwarze 1994: para. 26; see also the same interpretation given to the equivalent provision in the Weimar Constitution by Anschütz 1921). Understanding the *Volk* in substantive terms is compatible with the pre-constitutional state, but not with the democratic *Rechtsstaat* (Lübbe-Wolf 2007) or the image of the state as a member state in the process of European integration. In contrast to Carl Schmitt's understanding of the state, at European level it is precisely the plurality of its peoples and their national and regional cultures which form the basis of its political unity (Pernice 1995: 112).[33] Similarly, Alexander Schmitt Glaeser argues that a constitution becomes meaningful not because of the existence of a *Volk* but because its norms are accepted as binding by those affected by them (2003: note 13).

The reference point of the democratic *Verfassungsstaat* is not the substantive *Volk* but individual, constitutionally-protected rights and freedoms. Fundamental rights are not designed to protect the unity but the diversity of people who are unified by a basic consensus on the constitutional values and principles which has been described as 'constitutional patriotism'

[33] The American conception of people is also plural. See the Virginia Declaration of Rights (12 June 1776): 'That all power is vested in, and consequently derived from, the people; that magistrates are *their* trustees and servants, and at all times amenable to *them*' (observed by Bryde 2005: 132).

(*Verfassungspatriotismus*). The phrase was coined by Dolf Sternberger in 1979[34] and made famous in 1986 by Habermas during the *Historikerstreit* (1987: 75; see also 1992: 642; 1996: 500) to describe a new form of 'post-national' belonging that included not just Germany but Europe as a whole. A similar idea is Weiler's 'principle of constitutional tolerance' (1999: paras. 22 *et seq.*; 2000: 217–18), by which European Union law is considered to be binding by the citizens of Member States, even though their own government may have disapproved of the legal measure.

Unlike the Federal Constitutional Court in the *Maastricht* and *Lisbon* decisions (see Chapter 7), and a number of eminent German academics such as Böckenförde (1999), Grimm (1997), and Kirchhof (1999b), the method *Ius Publicum Europaeum* does not conflate the related yet distinct concepts of state, constitution, and people. The conditions for and aspirations of a legally constituted community are not the imposed cultural, social, or even ethnic homogeneous elements of a people but rather the right and freedom to be different, the respect for human rights, and the autonomy to self-determine one's own life (Pernice 2001a: 25). 'Integration within the Union cannot and should not be the stimulus for unification, as understood by German *Staatsrecht* following Rudolf Smend' (von Bogdandy 1999: 52; 1999a: 890). The method *Ius Publicum Europaeum* is premised on, and is working towards, the demythologization of *Volk* and the demystification of *Staat*, i.e. the two conditions for full democracy identified by Ernst Fraenkel in the 1960s. It is supported by an irresistible philosophical force (the Kantian tradition), but it is up against an immovable object (a pre-constitutional and romantic image in law, politics, literature, and art).

4. Critical assessment

Until 1992, the completion of a United States of Europe formed part of the political manifesto of the natural ruling party, the Christian Democratic Union (CDU),[35] without ever becoming the subject of critical legal scholarship and constitutional theory.[36] That changed the minute the CDU took the idea off its manifesto; it changed with German reunification; it changed with

[34] See *Frankfurter Allgemeine Zeitung*, 23 May 1979; and his speech at the 25th anniversary of the 'Akademie für Politische Bildung' in 1982, published in Sternberger 1990: 13 *et seq.*

[35] Noted by C.O. Lenz, 'Ausbrechender Rechtssakt', *Frankfurter Allgemeine Zeitung*, 8 August 2009. The goal was eventually dropped because of political differences as to its realization, but not because it was deemed to be unconstitutional.

[36] It was noted in Chapter 3 that, after the Weimar experience and due to the dominance of the Federal Constitutional Court in the formative post-war years, the academy failed to produce a theory of the Basic Law—which is, of course, the root cause in the European context.

the Treaty of Maastricht and the *Maastricht* decision of the Federal Constitutional Court. German constitutional law needed a theory that was remote enough to respond self-reflexively and critically, but also not too remote to achieve that goal. The three possibilities were to conceive the European Union from the perspective of the state, from the perspective of the constitution, and from the perspective of the international order. The 1990s belonged to the *Staatsrecht* method: its output on *Maastricht* in the German and English language was prolific and dominant. The 2000s belonged to the method *Ius Publicum Europaeum*: it is the self-proclaimed constitutional law method for the inter-dependent, integrated, post-national, post-sovereign Member State of the twenty-first century. Together with the *Verfassungsrecht* method, it jointly covers all questions of national constitutional law and European constitutional law. But what is the underlying ideology of *Ius Publicum Europaeum*? And how successful can it be in deposing the historically dominant *Staatsrecht* tradition?

The new method is clearly ambitious and is supported by a broad network, for instance by a new association of scholars, the *Societas Iuris Publici Europaei* which is based in Potsdam and was established in 2003. Its goal is 'to discuss and to clarify questions of public law in Europe including its impact on the legal system as a whole' (see also Bauer 2007). Every method needs a handbook, and the *Handbuch Ius Publicum Europaeum*, edited by von Bogdandy et al. (2007; 2008; 2010; 2011), is a path-defining work. Its starting point is the constitutional law of selected Member States (but also of Switzerland) which is discussed in the form of a country report, usually by a professor of standing in the respective state. There is a clear case for suggesting that the *Handbuch Ius Publicum Europaeum* was not merely conceived to make European public law the subject-matter of scholarly legal and comparative analysis, but also to displace (ideologically, thematically, and physically) Isensee and Kirchhof's life work as the primary reference point for German public law scholars. A previous attempt, the *Handbuch des Verfassungsrechts* by Ernst Benda, Werner Maihofer, and Hans-Jochen Vogel (1994), had already tried to redress the balance by placing the constitution at the heart of the debate. The quality of the argument notwithstanding, it was a single volume handbook that tried to make the case against ten volumes on the other side.[37] The *Handbuch Ius Publicum Europaeum* is a heavyweight rival to Kirchhof and Isensee. Its underlying anti-Schmittian aim is to divorce national constitutional law from the political concept of the state and regard

[37] The spiritual successor is the second edition of Hoffmann-Riem et al. (2012). It comes in three volumes and over 4,400 pages, and integrates the administrative laws and procedures of Germany and the European Union. Thanks to Armin von Bogdandy for this reference.

it instead as the central ingredient of social, political, and legal pluralism. Ninety-eight authors contributed to the first five volumes (some contributions are co-authored). The estimate of the number of pages for the five volumes easily exceeds 5,000. The weight of *Ius Publicum Europaeum* suggests that legal analyses of the constitution, institutions, and legal sources of the German state no longer provide satisfactory responses for public law queries in the twenty-first century, and that the legal analysis of the constitution, institutions, and legal sources of other European states might hold the key.

The thesis that constitutions can be divorced from the nation state and can constitute supranational and international bodies is also not limited to the formal and founding documents. The method *Ius Publicum Europaeum* embraces the full range of constitutional issues. Another edited collection called *Europawissenschaft*, edited by Gunnar Folke Schuppert, Ingolf Pernice, and Ulrich Haltern and published in 2005, dedicates chapters to most of the following topics. It starts legal-sociological analyses on the meaning of Europe: European identity;[38] European society; and European public space,[39] which are not discussed as pre-existing social facts, but as elements of the democratic, post-national constitution. Linking up with political science, it discusses Europeanization as a progressive process of economic, political, and legal integration; European governance, and the representation of European Union citizens, interest groups, and the influence of sub-national entities in the political process. It has produced research on Europe as post-national political rule (*Staatenbund*, *Bundesstaat*, federalism, other); multilevel governance, multilevel constitutionalism, and legal pluralism (international law, European Union law, national law, regional law); the legitimacy and finality of political rule beyond the nation state; and the democracy deficit. Doctrinally, it assumes the autonomy and authority of European law when it analyses the relation between national and European Union law; the role of the Court of Justice of the European Union under the guise of 'multilevel constitutional jurisdiction' (Mayer 2010), as well as the development of basic principles of a European legal order; European legal culture; and sub-systems of law (European constitutional law, European administrative law, European economic law).

Nor is the extension to the post-national level limited to the concept of the constitution. Europeanization and globalization are challenges for public law as a whole—as a discipline, method, and practice (Ruffert 2004). The method *Ius Publicum Europaeum* conceives non-state sources of law as

[38] Korioth 2003; von Bogdandy 2003; 2005b.
[39] Häberle 2000; Habermas 1992; 1996; 2001b.

instruments of rule and integration, and it views the European Union as embodying a market without a state (Joerges 1997; Kirchner 2005), a legal system without a state (Zuleeg 1994; Pernice 2004; Mayer 2005), and as a political union (Preuss 2005). But how successful is it in deposing the traditional *Staatsrecht* method? Does the *Handbuch Ius Publicum Europaeum* provide a reliable conceptual resource for a new constitutional method? Is the method *Ius Publicum Europaeum* going to stray into constitutionally controversial territory by arguing for, say, the existence of government without a state?

The *Handbuch Ius Publicum Europaeum* ultimately falls between the stools of national constitutional law and national comparative constitutional law.[40] As a contribution to national law, it redresses the parochial and inward-looking approaches of traditional scholarship by showing that there is constitutional life beyond the state walls—but at a cost. Although the *Handbuch Ius Publicum Europaeum* has unprecedented breadth covering European public law doctrine and scholarship, it cannot match Isensee/Kirchhof's *Handbuch des Staatsrecht* in terms of national doctrinal depth, which reduces its importance as a standard reference work for German public law scholars. It is as a contribution to comparative constitutional law that the *Handbuch Ius Publicum Europaeum* is at its most convincing—however, no synthetic work can overcome the inherent practical and theoretical difficulties of comparative constitutional law (language obstacles, the bewildering scope of research and publications, and the polymorphism of European law and legal scholarship). Comparative analysis, if done fruitfully, needs to go beyond positive law to examine cultural assumptions, political contexts, historical experiences and conditions, and different political philosophies and legal theories. That diversity of legal pluralism needs to be identified and confronted by every comparative scholar. It most certainly cannot be reduced to a single country report in a handbook. There are no short cuts when it comes to comparative constitutional law, and the *Handbuch Ius Publicum Europaeum* is ultimately insufficient to provide all the resources for a new constitutional method.

As a method, *Ius Publicum Europaeum* is novel without being radical. Chapters 3 and 4 of this book demonstrated how the concepts of sovereignty and constitution were traditionally linked directly to the principles of statehood and territoriality (*Staatsrecht*) and then later linked to a demystified concept of the people (*Verfassungsrecht*). The method *Ius Publicum Europaeum* discusses the concepts of state, constitution, and sovereignty in the context of the European and international communities. It signifies a further

[40] Since all the reports were either written in or translated into German, one must assume that the main impact of the *Handbuch* was intended to be in the domestic arena.

shift on the continuum from sovereign state to member state, pre-legal to post-national constitution, introverted statehood to open, permeable, and integration-friendly statehood, and from the concept of the political to the methodology of comparative constitutional law as the ultimate reference point of constitutional law. But has it emancipated itself from the 'state' as the hub of political activity? Put differently and more radically: can or should constitutional law be conceived as an autonomous sphere and discussed on its own terms without recourse to categories of political theory? A number of progressive commentators draw attention to the dangers of giving up on the concept of 'state' too soon.

> The new 'open' statehood is a metamorphosis of the state form of human communitization that [continually] adapts to the evolving global, not the replacement of the state through structures that derive from diffuse political pluralism. The advocates of any theory that brands the state as an outdated political form perceive only the factual retreat of the manifestations of the nation state and diverse aberrations; they are demolishing bastions of freedom, equality, and welfare without being able to identify comparable guarantees. (Badura 2001: 902–3)

The transnational and post-sovereign efforts to develop a constitution beyond the normative foundations of the modern state have been complex and challenging (from the role of democratic legitimacy in the law-making process to the connection between constitutionalism and state or nation building). It is not clear from the method *Ius Publicum Europaeum* what the relationship is between (post-sovereign) constitutionalism and the political substrate of (national) democracy. It is instructive to turn to critical scholars who do not self-identify with the method *Ius Publicum Europaeum* for a clearer perspective on the viability of 'constitutionalism beyond the state' or 'government without the state'.

In the outgoing twentieth century, Helmut Willke (1992) analysed a fundamental structural shift from hierarchical to polycentric society. Hierarchy as a regulatory principle was being replaced by functionally differentiated subsystems. The state had historically been at the apex of a hierarchical order that was first based on power (police and military) to secure internal security and external peace, and later on money (social welfare and insurance schemes) to safeguard the economic and social common good. However, it was gradually being supplanted by a knowledge-based society (based on scientific and technological advances, and ecological security). The relation between politics and other social actors was now heterarchical and polycentric. Crucially, politics and the state are still vitally important, and Willke only revises the classic conception of the state as a 'mortal God'. He attributes a supervisory role to politics and the state in their relation with autonomous

and specialized functional sub-systems. The supervisory state allows the social sub-systems to self-regulate whilst guiding them in a rational discourse towards the public interest.

Ulrich K. Preuss' contributions seek to resolve the key tensions between *Staatsrecht* and *Verfassungsrecht*. Preuss resolves the dated dualisms, e.g. between democracy (Rousseau's popular will) and constitutionalism (the Federalists), by redefining them as two mutually supporting pillars. The key is not to conceive the *demos* as a gathering of atomistic individuals, since the old method is no longer suitable as a problem-solving mechanism. On the one hand, constitutions need to be conceived in denaturalized terms and applied to a corporate entity that is capable of making fair decisions: 'constitutions can create schemes of cooperation across physical, social, and cultural boundaries because they do not presuppose shared values or shared understandings of social practices' (Preuss 2010: 46; see also 1995: 18). On the other hand, the constitution and human rights exist alongside other pragmatic, scientific, and moral perspectives. What is society? What issues need to be regulated communally for society? What is the glue that holds society together in spite of its differences (Preuss 1994a: 10)? What is the moral dimension of scientific progress (Preuss 1995: 122)? If these are the big questions of today, they cannot be resolved by liberal democratic constitutions alone.

Günter Frankenberg's *Staatstechnik* (2010) also amounts to a contemporary affirmation of the state. '*Staatstechnik*' refers to the manner and form in which political power is exercised through political actors and institutions that operationalize 'procedures, norms, principles, knowledge structures, competences, calculations, strategies and tactics' (2010: 12). The pre-political instance that explains the modus operandi and the 'art of government' (Hobbes 1969: Chapter 28) and justifies the exercise of political power is unequivocally the state. Frankenberg examines a variety of methods as developed by Machiavelli (the attribution of *raison d'état* to the person of the prince), Hobbes (the creation of political authority through the social contract), Locke (the limitation of political authority through the rule of law and limited government), and Foucault (the critical analysis of the discursive and non-discursive techniques and practices of state power) before he concludes that the *Rechtsstaat* today is a template for institutional design and for a legally structured public order. The purpose of the state is, first, to provide a source for, and limit and legitimize, political authority; and second, to create and re-create perpetually the political community within which its members are socially integrated (Frankenberg 2010: 72; see also 1997: 74–5). Society forms the 'environment' of the state which, using primarily the instrument of

law, controls, supervises, protects, oppresses, governs, and steers society (2010: 14).

In sum, there are practical and ideological limits to 'government without the state' scholarship. A constitution can replace universal principles, which do not facilitate social consensus on scientific and technological progress, with 'moral reflection' and with a framework for a politics which is non-traditional and non-transcendental (Preuss 1995: 123). However, in return international law-friendly legal constitutionalism has to recognize the necessary political situation of the state and the reality of political power (Everson 2004: 136–8).[41] The constitutional state remains the normative ideal for the big questions (Dobner 2002; 2007). And, even today, sovereignty remains 'an indispensable category of international politics' (Preuss 2007: 315, 332). Even, or especially, a constitutionalized international community has to be premised on the equality of sovereign states. The neo-constitutional belief in 'morally reflexive constitutionalism' (Preuss 1994: 106 *et seq.*; 1995: 115), i.e. in decision-making procedures that are devoid of normative or traditional content, is unrealistic. To develop a constitution without an ethos and *telos* to justify it (Weiler 1995: 413 *et seq.*; 1997: 266) tells a one-sided story. Hence, constitutional law *without* state-based politics is no more an option than constitutional law *as* state-based politics.

Ius Publicum Europaeum does not seem to be heading in that direction (the volumes of the *Handbuch Ius Publicum Europaeum* expressly discuss constitutional law in the context of the state). But *Ius Publicum Europaeum* (the method and the handbook) is still a vulnerable mode of constitutional analysis. As a method of constitutional law, it strives to be authoritative, coherent, rational, objective, and 'scientific'. Yet, like a dissenting voice, it swims against the tide of orthodoxy and majority opinion. The condition of its existence (to say something new) is also its weakness (it is a long way from being accepted as authoritative). A discourse focused on the constitution from a comparative perspective does not provide a conclusive framework for the relation between legal orders. *Ius Publicum Europaeum* cannot provide *finalité* (substantively, procedurally, or methodologically) to the central constitutional questions of our day. It does, however, provide further evidence that the key constitutional concepts that mediate the relationship between constitutional law and the European Union remain vigorously contested at national level.

[41] Everson calls for 'the re-injection of . . . "political contention" into a sphere that is, to date at least, overly dependent upon the abstract principles of efficiency, effectiveness and economy' (at 137).

PART III
CONSTITUTIONAL LAW AS POLITICAL JURISPRUDENCE

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5

Sovereignty and Continuity

> The specific interpretation or supposed redefinition of the concept of sovereignty in ignorance of its many meanings does not enhance the persuasive power of the statement.
>
> Dieter Grimm (2009a: 13)

Part I dealt with the rise and rejection of constitutional law as a positive discipline after 1871 and during the Weimar Republic, and examined the forebears of contemporary constitutional discourse. Part II explored German constitutional law as a method, i.e. as a way of interpreting the Basic Law after 1949, and three modes of constitutional thought were discussed in relation (internally) to the constitutional text and (externally) in relation to the European Union. At the start of Part III, the present chapter presents a short historical (rather than legal) discussion of state 'sovereignty'. The concept was problematic from the outset, and much energy was invested in dealing with the problems of such a binary concept in a federal system. In the end, the concept of sovereignty was abandoned. Although it does not feature in any strong sense in the Basic Law, it does feature in the case law of the Federal Constitutional Court. The present chapter lays the historical foundations for the following Chapters 6 and 7 that deal respectively with constitutional doctrine (certain provisions of the Basic Law) and with the jurisprudence of the Court. So even though the chronology of events is broken and we return briefly to 1871, it is only a short excursion which is key for the internal coherence of Part III.

I. A Short History of Sovereignty

1. Legal doctrine

The language of positive law suggests that the role of sovereignty is negligible in German constitutional discourse. For socio-historical reasons (the Holy Roman Empire of the German Nation existed from 1495 to 1806 and

accommodated big principalities and imperial cities as well as small counties and towns, and struggled with denominational division and territorial fragmentation), the 'state' had never been tangible. Prior to 1871, the German state was a cultural idea rather than political reality (Lepsius 2004: 373). It therefore had to be conceived in theoretical terms first (Vollrath 2000: 592) and made visible. After its reception in the German language in the eighteenth century (Koselleck 1990: 3)[1] the concept of sovereignty was closely connected to the rise of the modern state which, in turn, was associated with the absolute and final legislative, executive, and judicative power of the monarch (highest might) rather than with the normative legal claims of a constitution (highest right). In addition, the French Revolution and the French Constitution of 1791 registered a claim to sovereignty by the people which could not assert itself in Germany where the proliferation of constitutions was the direct result of an endowment by the princes. *Staatslehre* developed an organic model of the state whereby the monarchy gradually handed power over to the state which, in Hegelian terms, was the embodiment of higher ethical values that regulated public life by securing the unity of all other political forces (see generally Böckenförde 1981; Wahl 1981a; Grimm 1993).

Sovereignty was not useful for the new conception of the state. By the end of the nineteenth century both the sovereignty of the monarch as a person (*Patrimonialstaat*) and the idea of the state as a 'moral person' had been replaced by the state as an association, or as an ideational unit (von Gerber 1880: 22 *et seq.*). Henceforth the state qua 'legal person' would be sovereign. The concept of *Staatssouveränität* mediated between the popular sovereignty of the German people (embodied by the *Reichstag*) and the monarchic sovereignty of the princes (embodied by the *Bundesrat*, the strongest political organ of the Empire). By presupposing a higher state personality the conflict was formally smoothed out. But *Staatssouveränität* was ultimately a 'term of embarrassment' (*Verlegenheitsformel*) that translated the dualism of popular and monarchic sovereignty into a dualism of state organs (Dreier 1987: 33; Quaritsch 1970: 495 *et seq.*).

> The issue of power that underpinned the dualism could be left unanswered so long as the social homogeneity of society and the general political stability, however it had been created, prevented a latent conflict from manifesting itself. (Dreier 1987: 33)

Sovereignty was also not useful to theorize the new institutional, federalist structure. The Federal Constitution (*Bundesverfassung*) of the German

[1] For an analysis of the origin and evolution of the concept of sovereignty in France and Germany from the thirteenth century until 1806 see Quaritsch 1986.

Empire of 1867 transformed soon after into the substantially identical Imperial Constitution (*Reichsverfassung*) of 1871. The German Empire was, according to the dominant opinion, a federal state (Nipperdey 1992: 85). To be precise, it was the result of an association of hitherto sovereign states in a federation with state character (Heinz 1994). As such, it had unitary as well as federalist traits. The individual states had *Hoheit*, i.e. they had their own administrative autonomy (competences, responsibilities, institutions) and their own political autonomy (over their respective constitutions, electoral law, and reform). But the individual states were no longer sovereign: the constitutions of the individual states were part of the *Gesamtverfassung* of the German Empire.

Although federalism was designed to integrate non-Prussian states into the Empire whilst at the same time limiting the Reichstag's control over the government (Caldwell 1997: 28), the link between the indivisibility of sovereignty and the holder of political power became strained. 'Public law scholarship barely knows a more multi-layered and controversial question than the one relating to sovereignty' (Baldus 1997: 381). The word 'sovereignty' was neither used in the Weimar constitution nor is it found in the Basic Law. Apart from its post-1871 appearance to identify statehood, it is only found in two important documents of international law post 1945. Externally Germany became a sovereign state with the *Deutschlandvertrag* of 26 May 1952 that was concluded between Germany and the three Western allies. According to Article 1 of the Treaty, 'Germany will possess the full power of a sovereign state over its internal and external affairs'. As a state with international legal personality it was free to enter into treaties with other states for the purposes of international law. Internally, however, the United States, France, and the United Kingdom reserved certain rights for themselves, in particular as regards the relationship between East and West Germany. Germany's exercise of sovereignty was limited by Article 2 by which 'the three Powers reserve their previously exercised rights and responsibilities regarding Berlin and Germany as a whole, including German reunification and a peace treaty settlement'. The second important treaty, the Two-Plus-Four Treaty, was signed on 12 September 1990 as a result of negotiations on Germany's reunification. In Article 7(2) Germany was granted full sovereignty without further reservations (see generally Bernhardt 1995). According to Denninger, the latter treaty concludes the public international law discussion of sovereignty. Although it may be possible to rethink sovereignty according to the practice of supranational politics, he doubts whether it will be possible think of sovereignty in national terms (2000: 1123).

2. Scholarship

From the perspective of legal scholarship, sovereignty can be understood in two ways: either, formally, as the highest and illimitable power (being sovereign) which identifies the factually highest ranking of a person or institution; or, materially, as a bundle of individual competences, powers, and responsibilities which flow from the existence of that institutional fact (the 'sovereign rights') and which can be parcelled out or 'transferred' to other polities. Applied to the German Empire, indivisible sovereignty could either reside with an abstract holder (the Empire), or it could be divided among many holders (the constituent states).

The first scenario, which focuses on the institutional and indivisible fact of sovereignty in Bodin's sense (either it exists or it does not), was and continues to be problematic for German constitutional law. Because of the indivisible nature of sovereignty, scholars were faced with the choice between separating the concept of the state from the concept of sovereignty, or giving the federal state a unitary quality which it did not have. Albert Haenel (1833–1918), for instance, attributed sovereignty exclusively to the federal state, and thought of it as a property that marked the state out from any other social organization (1892: 114–19, 802–3). In contrast, Georg Waitz (1813–1886), writing prior to the 1871 Constitution, sought to divide sovereignty between the federal level (*Bund*) and the constituent states which continued as sovereign entities (Waitz 1862: 153 *et seq.*): since there was no such thing as a non-sovereign state, both the federal/umbrella state and its constituent states had to be sovereign.

Max von Seydel (1846–1901) criticized Waitz for trying to square the circle by attempting to reconcile the concept of federalism with the concept of sovereignty, and dismissed his efforts as 'a hopeless enterprise' (von Seydel 1897: 6). Instead of analysing the federal state using the prism of sovereignty, von Seydel used the prism of state. The state was the highest embodiment of the general will and was defined as sovereign. The federal/umbrella state and the constituent states could not both be states. The only possible state forms were i) confederation of states and ii) unitary state (the form of a 'federal state' was a logical impossibility). It follows that von Seydel located indivisible sovereignty with the constituent states. The Empire was a confederation of states (*Staatenbund*), i.e. a creature of international law and not a federal state. Seydel's mistake was to think of the *Staatenbund* as a 'permanent' and 'constitutional' solution (1897: 5–6). Neither Waitz nor von Seydel's views garnered lasting support, but they remained an important challenge to the second conception of sovereignty.

The advocate of the second approach was the 'outstanding figure of *Staatsrechtslehre* in the decades after 1871' (Stolleis 1992: 341), Paul Laband (1838–1918). According to Laband, the personal sovereignty of the monarch had been replaced by the institutional sovereignty of the *Bundesrat* (the assembly for the ruling heads of the individual states and cities). He rejected the attribution of formal sovereignty to the Empire with legal personality and the exercise of sovereign powers to the organs of state (Emperor, *Bundesrat*, *Reichstag*). Although Laband and Georg Jellinek agreed that the formal concept of sovereignty was indivisible, they did not view it as an essential property of the state (Laband 1911: 17; Jellinek 1921: 769 *et seq.*) but ranked it alongside political 'rule' or 'dominion' (*Herrschaft*), i.e. the power to enact laws and to demand obedience from its subjects. The concept of 'dominion' is a key property of the state. Laband uses it, along with 'sovereignty' and 'state', to explain the nuances of the new federal system.

> The 1871 Constitution formed a sovereign state, the German Empire, while ensuring that entities like Prussia, although no longer sovereign, remained states by dint of their dominion over people. (Caldwell 1997: 29; Laband 1911: 72–5)

As a result, both Haenel, Laband, and Jellinek agreed that the constituent states were (non-sovereign) states and that the Empire was a sovereign federal state. Haenel also translated the concept of sovereignty into federal language with the notion of *Kompetenz-Kompetenz*, i.e. 'the highest and most comprehensive constitution-based power of the Empire' (1892: 793). *Kompetenz-Kompetenz* is a material conception of sovereignty that focuses on the content of state power (1892: 793–8).

It is important to note that the interpretation of the young Empire as a strong state was driven by the political (national-liberal, unitary) ideology of the *Staatsrechtslehre*. The aim was to contrast in polemical terms the new *Bundestaat* (strong and unitary) from the old *Staatenbund* (weak and fragmented) (Jellinek 1882: 298). The *Bundesstaat* was upgraded to, and measured against, a unitary state, and by the same token the *Staatenbund* was downgraded to a treaty-based structure in public international law (see generally Schönberger 2004). In this respect, German constitutional theory had been influenced by the US constitution and its reception through the work of de Tocqueville and the Federalist Papers: the sovereignty of the state had to be capable of being divided amongst the constituent holders of state power. From the federalist perspective it had to be possible to view sovereignty in relative terms, as an aggregate of competences. It had to be possible to parcel out rights and powers to the federal level.

So although sovereignty was variously described as a *Centralbegriff* (Preuss: 1889: 95) or *Grundbegriff* (Schmitt 1934: 27) or *Leitbegriff* (Ophüls

1965: 520), which suggests that it expressed 'a criterion for statehood' (Klippel 1990: 98), the federal nature of the German Empire made it impossible to locate unambiguously where and with whom ultimate authority lay, both doctrinally and scholastically. The compromise solution, which dates back to 1871, was to keep sovereignty in abeyance. The division within the German state was reflected in the sovereignty debate. Dividing or suspending sovereignty was not an option for legal positivists. Based on Bodin's theory of *suprema potestas*, positivism had to assume the indivisibility of sovereignty (Laband 1911: 73; Heller 1971: 92–9; Stolleis: 1992: 366–7). Since law was a normative unit and not a partial order (Kelsen 1925: 102 *et seq.*), it was not possible, in terms of legal theory, to divide sovereignty between the federal and the constituent state levels (*ibid.*: 198 *et seq.*). The existence of two original sovereign powers within one state would have denied the existence of a unitary basis of validity. Against this background, Kelsen's 'sovereignty of the law' has to be understood as one of the most specific German responses to the original dilemma of whether to allocate sovereignty to the constituent states or the federal level (Koselleck 1990: 3): it allows the state to be conceived as an abstract unit rather than as a political unit.

3. Politics

The dilemma regarding the locus of sovereignty was not decided in legal-theoretical terms but in political-empirical terms. Whether sovereignty was thought to reside with the state as an association or was thought to be shared between the federal and the constituent state levels depended on the political convictions of monarchic-unionists and of liberal-federalists. Since sovereignty was an enigmatic concept of 'ominous ambiguity' (Kelsen 1962: 279), it was naturally susceptible to the ideologies of commentators who tailored it to suit their political needs. For some it was a heuristic concept, for others a theoretical concept, or a normative concept, for others still it was a term of conflict and polemics (*Konflikt- und Kampfbegriff*) used in the struggle to centralize all power. This led to a politicization of the legal discipline. Unionist constitutional lawyers argued that the Imperial Constitution had brought the contractual relation between the constituent states and the Empire to an end and that, since sovereignty was indivisible, the federal state had assumed sovereign status (Oeter 1995: 666, with references). In contrast, federalist constitutional lawyers claimed that the Empire was still an association of states.

The Weimar Constitution of 1919 and the Basic Law of 1949 do not resolve the problem relating to the absolute and indivisible properties of

sovereignty. Under Article 1 II of the Weimar Constitution, 'state authority derives from the people'. Both the Weimar Constitution and the Basic Law recognize the people as the *pouvoir constituant*: the basis for sovereignty was no longer institutional (monarch or *Bundesrat*), but popular (*Volkssouveränität*) (Caldwell 1997: 1–12, 85–119; Kielmannsegg 1977; Lepsius 2000). But identifying the people in the Rousseau sense as *pouvoir constituant*, and conferring on them a universal competence to enact any law, does not resolve the political problem of sovereignty: either the democratic, sovereign, law-maker can not only set up a constitution but also violate its own basic laws (thus putting paid to the notion of the constitutional state), or the law-maker exercises its sovereignty within the limits set by (domestically and internationally protected) human rights.

The point to take from this brief section on sovereignty is the absence of sovereignty from constitutional doctrine and discourse. Sovereignty has never been part of the object-language of the system. Admittedly, it formed part of the meta-language of Hans Kelsen and Carl Schmitt, who produced idiosyncratic definitions of the concept (see Chapters 1 and 2), but their concern lay primarily with the conceptual relation between the state and the constitution. The marginalization of sovereignty can be explained by the complex configuration of political power (that began in 1871 and continues today), which has made it difficult if not impossible to locate sovereignty in a single organ or entity, and by the fact that Germany was under Allied occupation post-1945. Both aspects have prevented sovereignty from becoming part of the reflexive self-understanding of the system.

That said, sovereignty has post-unification managed to crop up in strategic places most notably in relation to the European Union to which sovereign rights are transferred (Chapters 6 and 7). Given the historical uncertainty regarding the relevance of sovereignty in a federal polity, the absence of agreement on the core competences that sovereignty symbolizes, and the absence of positive constitutional references to sovereignty in the Basic Law, one might reasonably ask what value there is in discussing sovereignty at all. It is suggested that sovereignty is important for three reasons. First of all, from a sociological perspective, what is important is that states claim that it exists and that this claim has legal consequences.

> As long as states claim a sovereign status and as long as this claim is accepted and acted upon, it is not very fruitful to discuss whether states, apart from the claims to sovereignty and their acceptance, are still really sovereign. (Werner 2001: 37)

Second, it is not only important to examine whether states and legal actors claim the existence of sovereignty, but more important to examine how sovereignty is interpreted. The dominant interpretation conceives sovereignty

as a political term which defines areas of competence. The dominant political interpretation of sovereignty as a bundle of competences means that competences can be divided (between the national and European levels). But this parcelling out of sovereign rights is interpreted as a loss of national sovereignty. For this reason, constitutional limits need to be drawn so that Germany can protect its irreducible core of statehood. Since the *Verfassungsstaat* makes no provision for the existence of a sovereign,[2] the concept of sovereignty is reduced to the political power to act in extraordinary circumstances, e.g. the political claim that Germany can withdraw unilaterally from the European Union (see Chapter 7). From a political perspective the aggregation of sovereign rights is everything; from a legal perspective that aggregation is nothing. If its value as a legal concept is nil, it can still be conceived as a 'historical concept' (Preuss 1889: 135), a relic of the constitutional struggles of the nineteenth century that is irrelevant to contemporary discourse as it fails to explain what it ought to both empirically (the allocation of political power) and normatively (the ultimate source of political power). It is not a criterion for German statehood. Sovereignty might retain currency only in legal theory terms as the institutional fact of being sovereign and as the legal competence to have ultimate decision-making powers over content and validity of legal norms. Sovereignty is about the right, and not the ability, to be sovereign. This 'purified' concept of sovereignty can also be used to capture the process of European integration (Baldus 1997: 390–1). Since final responsibility rests with the state, and by implication the people, the transfer of sovereignty was never understood as a concomitant loss but rather as an extension of Germany's ability to act and acceptance in an equal partnership (Di Fabio 2001; Schwarze 2001: 141).

Third, in social theory sovereignty has a potentially unifying force in normative terms, which can help it overcome its divisive nature in historical terms. Luhmann seeks to solve the sovereignty issue by introducing an asymmetry between two different bodies of law: constitutional law and other law. This distinction cuts short the infinite search for validity and justification criteria. Conflicts of laws which might have revealed the limits of sovereign decision-making (as was previously the case with the law of nature and the law of reason) are reconciled by the constitution. The constitution creates a hierarchy of norms and solves the problem of normal law to distinguish between lawful and unlawful (Luhmann 1990: 188). So, as an example, a conflict of norms between the federal level and the *Länder* would be solved by the Federal Constitutional Court on the basis of the Basic Law

[2] See Kriele's analysis in Chapter 3 which is accepted by Hillgruber (2002: 1073), whose defence of the concept of sovereignty is ultimately a political one couched in legalistic terms.

(and not on the basis of a federal threat to enforce law against the will of the *Länder*). Conflicts are solved through law and not at the expense of law.

But in solving one conflict of sovereignty, the constitution also creates another conflict of sovereignty: constitutions are documents that require interpretation (Luhmann 1995: 95). Can sovereignty be the object of analysis for constitutional theory? Or should legal scholars acknowledge that these matters exceed their juristic competence, hand them over to other social disciplines, and remain necessarily silent on the most important matter of legal politics? Sovereignty as the object of analysis of constitutional theory, i.e. regardless of how it is articulated within the respective systems, can be conceived as a unifying concept. 'Sovereignty is the concept by means of which modern political and legal philosophy elaborates the problem of the contingent *unity* of a political community' (Lindahl 2003: 88).[3] The basic idea is straightforward:

> The concept of sovereignty . . . refers to the unity of the system as a decision-making problem. Somewhere the system . . . provides for the possibility of independent, free and [non-]arbitrary decisions, and the system can only claim to be a non-contradictory . . . unit, if only a single such decision-making instance exists . . . (Luhmann 1990: 194)

But sovereignty, as Lindahl observes, can only ever be the expression of a *contingent* unity. Sovereignty is an example of 'a complex interweaving of ideological currents of thought in any given social context, often with incompatibilities and tensions between them' (Cotterrell 1995: 13). Sovereignty is an assertion not only of law's power but also of ideas, beliefs, values, and attitudes which are 'generated and sustained by the professional practices of law' (Cotterrell 1997: 22). These clusters of social experience are found not only in abstract legal doctrine but more importantly in legal practice, i.e. in the development, interpretation, and application of legal doctrine within the legal system. Sovereignty is a form of social power which is shaped by currents of thought and belief of the professionalized practices of national legal systems. But as a constitutional concept, as an element of positive law, and as a trump solution to political problems, sovereignty does not fit at all comfortably within Germany's constitutional history, or indeed its post-war constitutional and institutional set up.

Today the Imperial compromise and the tension between popular sovereignty and human rights still define German conceptions about the state—a

[3] See also Jackson 1999: 431: '[Sovereignty is] a basic element in the grammar of politics. It exists as a normative postulate or premise or working hypothesis of modern political life. It may not always be explicitly acknowledged as such and may, like an iceberg, be mostly hidden from view. But it silently frames the conduct of much of modern politics nonetheless.'

conception which is only made more complicated by the additional existence of supranational organizations and international law. German constitutional history is marked by a tension between legal theory and political reality. Bodin and Hobbes' theory of sovereignty for the early modern state make assumptions which are alien to the modern *Verfassungsstaat* that protects individual human rights. As a result, the search for sovereignty in the 1871 constitution pitted the Crown against parliament, monarchists against democrats, sovereignty of the princes against popular sovereignty, and the constituent states against the federal state (Baldus 1997: 381; Boldt 1990: 129 *et seq.*).

II. The Genesis of the Basic Law

The Basic Law came into force on 24 May 1949. It formed the 'temporal and spiritual centre' of post-war legal rehabilitation (Wahl 2006: 16). Even though it was drafted under the supervision of the allies in the immediate aftermath of World War II, the roots of the Basic Law reach back to the Enlightenment period (Würtenberger 1997: 127). It stands on the shoulders of three past national constitutions.[4]

- 1848: The so-called *Paulskirchenverfassung* was the first German constitution with fixed separation of powers and a catalogue of fundamental rights. It envisaged a constitutional monarchy but it never came into force. Friedrich Wilhelm IV, King of Prussia, rejected the decision by the Frankfurt Assembly to make him Emperor.
- 1871: The Imperial Constitution (*Reichsverfassung*) created a federal state headed by a monarch. Its strongest political organ was the *Bundesrat*. It did not contain a catalogue of fundamental rights.
- 1919: The Weimar Constitution (*Weimarer Reichsverfassung*)[5] included a catalogue of fundamental rights which was, however, only partially enforced (Schneider 2003: paras. 34–5). Germany was constituted as a democratic constitutional state with a parliamentary system of government modelled on the United Kingdom (Boldt 1987: 51–2).
- From 1933 onwards important parts of the Weimar Constitution were either suspended or rendered ineffective during the Nazi dictatorship.

[4] English translations of the Constitutions of 1949, 1871, and 1919 can be found in Hucko 1987.

[5] For detailed discussion of the Weimar Constitution see Apelt 1964; Koch 1984: Chapters 7–8; Boldt 1987; van Caenegem 1995: 270–91; and for its influence on the Basic Law: Perels 2001: 123.

In 1945, after the unconditional surrender of the German Empire, the Allies took over executive power. The division of Germany into zones took shape in 1947. The Basic Law was drafted only for the three Western zones. It was not a 'constitution' of a sovereign state (cf. the Imperial Constitution of the Weimar Republic), but a 'Basic Law' for a non-sovereign and divided country that set out basic laws for the regulation of state activities whilst falling short of constituting an all-encompassing contract.[6] It was only ever intended to serve as a temporary document to be replaced by a constitution upon national reunification. The Basic Law received its final form after deliberations by the Constitutional Convention at Herrenchiemsee and by the Parliamentary Council.[7] It was the product of positive and negative experiences. On the positive side, principles from the German liberal tradition (the parliamentary system and the law-making procedures were borrowed from the Weimar Constitution) as well as from the European and North American constitutional traditions flowed into the Basic Law (von Beyme: 1987; Hesse 1994a: para. 16; Pieroth 1989: 1333). The Federal Constitutional Court, for instance, was modelled on the Austrian Constitutional Court as well as the US Supreme Court, although it enjoys very different adjudicative functions (Wilms 1999: 1527; generally Kommers 1997: Chapter 1). It was anticipated by the Basic Law and established in 1951 by a federal act of parliament.

The negative experiences resulted in the Basic Law being designed to prevent the kind of abuse that was committed during the Weimar Republic. Three principal factors were identified that had failed the Weimar Constitution. The first concerned the powers of the head of state. In 1949 the office of *Bundespräsident* was given only limited powers compared to the office of

[6] Whereas the German delegates (the *Ministerpräsidenten* of the *Länder*) were anxious not to create a polity with state character and with a *Verfassung*, the Western Allies were equally careful not to downgrade the federal polity too much. They wanted a relatively strong German state with a 'constitution' (as opposed to a mere 'Basic Law'), and emphatically insisted on the need for a legitimating referendum. In the end the Allies persuaded the German delegates that West Berlin would be better served by a West German state than by 11 independent *Länder* governments. Having agreed on the need for a state, however, the German delegates then presented the draft constitutional terms to the Allies in the Aide-Mémoire. The German delegates had shrewdly translated the term *Grundgesetz* as 'Basic Constitutional Law' and had made provisions for the 'direct and indirect' acceptance of the document at some future stage. Appeased by the sight of the word 'Constitutional', the Allies accepted the Aide-Mémoire which formed the basis of the Federal Republic of Germany (Ehmke 1953: 80–1; Mußgnug 2003: paras. 28–32).

[7] The Parliamentary Council was established on 1 September 1948 to draft a constitution. It consisted of 65 voting members who belonged to the political parties: the CDU/CSU and the SPD were each represented by 27 members, the FDP had five, and the Deutsche Partei, the Zentrum, and the Communist Party each had two members. The Council was chaired by Konrad Adenauer who in 1949 became the first Chancellor of the Federal Republic (see Kröger 1989: 1318; Wernicke 1975–1999).

Reichspräsident in 1919 who in constitutional terms was the one who decided on the state of emergency (Schmitt 1924; 1996a; Boldt 1987: 52). He was able to issue emergency decrees (under Article 48 Weimar Constitution), take on full political power (which Paul Hindenburg did after the abdication of Parliament on 27 March 1930), and use military force (under Article 48 II Weimar Constitution: *Diktaturgewalt*) in order to restore law and order. The *Reichspräsident* also had the capacity to suspend basic rights (under Article 48 Weimar Constitution), that were in any event non-justiciable and non-binding on the executive, legislature, and judicature of the Weimar Republic. This had been the second problem of the Weimar Constitution: the absence of absolute values and untouchable fundamental rights that were placed beyond the remit of power politics. Basic rights were, therefore, deliberately positioned at the beginning of the Basic Law rather than at the end where they were placed in the Weimar Constitution (Dreier 1999: 669), and given irrevocable constitutional protection under Article 79 III GG. Finally, the principle of popular sovereignty was heavily circumscribed in the Basic Law after the use of plebiscites (Article 74 Weimar Constitution) and the direct election of the *Reichspräsident* (Article 41 Weimar Constitution) were seen as having contributed to the weakening and eventual collapse of the Weimar Republic. Article 67 GG effectively prevents power vacuums as the Federal Chancellor (who heads the Cabinet) can only be toppled by the *Bundestag* if an alternative Cabinet with the necessary majority is ready and waiting. Article 100 GG assigns the task of ensuring the constitutional compatibility of laws to the newly created Federal Constitutional Court. The Basic Law includes built-in legal safety measures to prevent the destabilization of state and government. Articles 20 I and 28 I GG contain the five fundamental principles that structure the German state and which are immune to constitutional change by virtue of the so-called 'eternity clause' in Article 79 III GG.

- democracy;
- formal constitutionality, or 'rule of law' in the German sense (*Rechtsstaatlichkeit*);[8]
- social welfare (*Sozialstaatlichkeit*);

[8] Whereas the United Kingdom tradition also conceives the rule of law as a 'government of law, not of men', the force of the rule of law is limited. For instance, although it embraces all organs of government it does not embrace Parliament itself. In contrast, the German concept of *Rechtsstaat* expressly limits state rule to protect the rights and freedoms of its citizens by law. All organs of state, without exception, are subject to the higher law of the constitution: see Article 1 III GG: 'The following basic rights shall bind the Legislature, the Executive Power, and the Judiciary as directly applicable law'; and Wahl 1981.

- federalism (*Bundesstaatsprinzip*);
- republicanism (*republikanische Staatsform*).

The acknowledgement of the German democratic tradition is an indication that the Basic Law was not written on a clean slate but is the result of historical experience. Despite the transition of the German state from monarchy to democracy to totalitarian state to republic, there is general consensus among public international lawyers that the legal personality of the German state has existed since the foundation of the North German Federation (*Norddeutscher Bund*) in 1866/67 (see Möllers 2000: 163 *et seq.*). Anschütz' distinction in Chapter 2 should be recalled between statehood which continues and constitution which expresses the political changes.[9] As a result, international law rights and obligations continued to be attributed to Germany as a legal subject independently of its constitutional changes. If this view is correct, the Basic Law did not create the German state in 1949 but reconstituted the existing state which was originally constituted as the North German Federation (*Norddeutscher Bund*) in 1866/67 and has ever since been recognized as a state by public international law. In fact, the Federal Constitutional Court has spoken of a partial identity of the Federal Republic with the German Empire which is a legal consequence of statehood.[10]

III. The Continuity of the State

If, according to the dominant tradition, the constitution is not in a Laband sense the sum-total of all constitutional laws that affect Germany but reaches beyond the positive constitutional text to incorporate an additional dimension of the state, then the relation between the absolute (non-positive)

[9] Anschütz 1921: 1: *Die Verfassung hat gewechselt, der Staat ist geblieben.*

[10] BVerfGE 36, 1 (*Grundvertrag*), at 16. For the continuity view see Fiedler 1970: 142 *et seq.*; Frowein 1990: 25; Kirchhof 1993: 74; Isensee 2004: para. 33. For the 'clean slate' view see Kelsen 1944: 693: 'Germany would legally be a new state. The new constitution of sovereign Germany would . . . be . . . the beginning of a new constitutional life', and 1945: 518; Grussmann 1993: 51 notes that the original validity of the Basic Law created a new *Grundnorm* which led to the 'revolutionary creation of the Federal Republic'; Wahl 2003: 415 speaks of '[t]he consciously posited and experienced new beginning of German statehood in the Federal Republic . . . ', and (*ibid.*: 422) of 'the birth of the legal order of the Federal Republic from the spirit of the basic laws'. It must be emphasized that the partial identity of the Federal Republic with the Empire is only true as a matter of international law. In two early decisions (BVerfGE 3, 58; *Beamtenverhältnisse* and BVerfGE 6, 132 *Gestapo*) the Federal Constitutional Court ruled that the Empire's relationship with civil servants ended on 8 May 1945. There was no state continuity in this respect as the Basic Law had created a new order.

constitution and the (positive) constitutional text, as well as between constitutional law (in this wider sense) and the Federal Constitutional Court, become interesting targets for analysis. An important element of Carl Schmitt's theory is the mythological foundation of the state. The Basic Law's preamble perpetuates rather than dispels the myth of popular sovereignty. The Basic Law does not create the German state, but establishes a new legal order for the pre-existing German state. As a result, the state is not just a functional association of people whose task it is to achieve arbitrary goals depending on the government-of-the-day or the political dominance of individual groups, but a historical power and tradition which is capable of creating myths (Schmitt 1988: 9–18). The state is matter, the constitution is form. For Schmitt, the continuity of the state is the result of the continuing political union of the people, and works to the advantage of democracy.

> It corresponds to the logic of a democratic constitution to adopt continuity in such cases. Consequential democratic theory does not know any other legitimate constitution as the one which rests on the constitutive power of the people. That is why it is possible to trace any constitution of substance to the explicit will of the people, whatever form government, i.e. the manner in which the will is executed, may take. (1928: 94–5)

The Preamble of the Basic Law traces its legitimacy back to the constitutive power of the German people: 'the German people, in the exercise of its constituent power, has adopted this Basic Law'. Article 20 II GG stipulates that 'all state authority is derived from the people'. Finally, and more indirectly, Article 146 GG proclaims that the Basic Law 'shall cease to apply on the day on which a constitution freely adopted by the German people takes effect'. The Basic Law confirms the people as the necessary holder of constitutive power.[11]

There are different ways of interpreting these statements. As a factual account of how the Basic Law was enacted they are inaccurate if not downright false (Mußgnug 2003: para. 97). The Basic Law was not adopted by the German people but by the Parliamentary Council and the *Länder*. Nor was the unity and freedom of Germany achieved 'in free self-determination'

[11] The constitutive power of the people has been the necessary source of constitutional legitimacy in democratic theory since the Virginia Declaration of Rights (12 June 1776: 'That all power is vested in, and consequently derived from, the people'). However, the *demos* can be expressed in different terms. The preamble of the Bavarian Constitution mentions '*das Bayerische Volk*', whereas the preambles of the constitutions for North-Rhine Westphalia and Rhineland-Palatinate speak of 'the men and women of the *Land* North-Rhine Westphalia' and 'the Volk of Rhineland-Palatinate' respectively, and the Hesse constitution opens with a reference to 'Hesse' as the source of the constitution's legitimacy (Böckenförde 1991: 98, note 19).

but under the supervision of the Allies. For Forsthoff, 'the Basic Law is not the result of a political decision, but the product of a situation or more accurately of a condition of unparalleled weakness as a consequence of the destruction of the lost war' (1971: 61).

However, the reference to the people could also be understood as a historical moment in which the people got together as *pouvoir constituant* in order to enact and hand over state power to the *pouvoir constitués*, even though such a moment never existed in reality. The most sensible interpretation, therefore, is normative: that all state power ought to be traced back to the people. The Preamble makes no claim to historical accuracy and, as Isensee notes, 'the point of the constitution is not to reflect reality but to shape it' (2004: para. 31). Whichever interpretation is chosen it is clear that the constituted state power is premised on basic principles which precede the constitution as opposed to being produced by it (Stolleis 2009: 71). According to Schmitt, the statements in the Preamble and Article 20 II GG, which were taken directly from the Weimar Constitution, are:

> . . . concrete political decisions which describe the foundation of the Weimar Constitution in positive law, namely the constitutive power of the German people as a nation, i.e. a unit capable of action that is aware of its political existence. (1928: 60)

The non-positive constitutional interpretation is backed up by the dominant argument in public international law that the legal personality of the post-war German state is identical with the pre-war German state because it declared itself to be so identical. Consistent with the declaratory theory, legal personality represents a formal decision to continue statehood which must be distinguished from cultural, linguistic, or other properties of the people. It was a decision of the Parliamentary Council after World War II to continue the legal personality rather than found a new state.

> The work of the Parliamentary Council, which was henceforth to shape the history of the Federal Republic for several decades, was not a revolutionary or even a principled or comprehensive restart, it did not break new ground, but it marked a return to the safe haven of the German and common European constitutional tradition. (Hesse 1994a: para. 16)

The formal continuity of the state in international law notwithstanding, and its anti-positive roots aside, Tomuschat (in a neat, synthesizing move) insists that the Basic Law did mark a new beginning in all other respects. To be sure, the Basic Law declined to finalize the spatial and personal basis of the state, and it did not come about through a consciously revolutionary act, but it did contain the specific characteristics of a novel constitution that expressly broke with its predecessors. The Basic Law is, therefore, 'more than a modified

reissue of the Weimar Constitution' (Tomuschat 1972: 84).[12] The resolution of the (doctrinal) legal continuity/discontinuity of the Basic Law as a politically stabilized new edition of the Weimar Constitution gives rise to the second (sociological) line of inquiry: what are the intellectual links between the pre-war constitutional tradition and post-war constitutional law jurisprudence?

[12] See also Mußgnug 2003: para. 63; cf. Roellecke 1991: 2445: The Basic Law is a 'reissue of the Weimar Constitution cleansed of political risks'.

6

The Interpretation of the Basic Law by the Federal Constitutional Court

> The [judicial] decision assumes the past as immutable and the future as changeable and *it therefore turns around the relationship of determination.* It cannot be determined by the past but attempts to treat the future differently; this, however, has no determining effect because there will be more decisions lined up in the future.
>
> Niklas Luhmann (1995: 309; 2004: 283).

I. Dethroning Constitutional Scholars

One of Rainer Wahl's important theses is that the political world and its political unit (i.e. the state) experienced a radical transformation in the second half of the twentieth century. A first phase post-1949 witnessed the creation, extension, and perfection of public law (Wahl 2003: 414–22). Constitutional law and administrative law achieved a degree of legalization and judicialization that was unequalled internationally. Germany developed its own brand of the Western constitutional state which emphasized *Rechtsstaat* principles and comprehensive legal protected (including individual) rights. Constitutional law was conceived both as foundational of and supreme within the legal system, in the sense that ordinary law derived its validity from the Basic Law (Wahl 1981).

In a second phase of public law, Germany's own brand of constitutional law and scholarship was radically transformed by Europeanization and internationalization (Wahl 2003: 422–31). The nineteenth century image of the closed, sovereign state based on commerce and trade was challenged and discarded by a constitutional decision in favour of 'open statehood'. The 'Copernican turning-point' of this decision was that the national legal order is now plural: the validity and correct interpretation of legal rules is no longer determined by national law alone, but with reference to other legal orders.

'European law cannot be conceived without reference to national constitutional and administrative law, and vice versa' (Pernice 2007: 226). German public law is not only defined by a captivating contest between 'state' and 'constitution', but is also situated in a captivating context of dual dependency on domestic constitutional law and European law.

The two characteristic processes of legal development over the past 50 years have been constitutionalization and Europeanization (Wahl 2006: 97–8). Whereas the Federal Constitutional Court (henceforth 'the Court') was a 'beneficiary' in the first phase, it was a 'casualty' in the second because it had to cede legal power to the European Court of Justice. The argument in the next chapter is that the Court tries to compensate (and maybe overcompensates) for the open texture of constitutional concepts with reference to meta-constitutional values (statehood, sovereignty, identity). The argument in the present chapter is that the Court counteracts by asserting its political power in relation to the Court of Justice. It is able to do so because the Copernican turning point was not matched by a reconceptualization of public law, especially the constitutional relation with the European Union. As a result, both chapters conclude with the observation that nineteenth century conceptions of state, constitution, and sovereignty survive into the twenty-first century and form the basis of the court's political jurisprudence.

This chapter will look at the way the Court has interpreted the provisions of the Basic Law that deal with European integration. In order to understand how the Court has received European Union law three questions need to be clarified. First, what is the constitutional foundation for European Union membership? The short answer is clear (first Article 24, then Article 23 GG) but unexciting as it fails to take account of their interpretation and construction by the Court. This is closely tied to the second question, namely the constitutional limits to European integration. The Court set limits in a series of decisions which will be examined in some detail. Do elements of the Basic Law's structure prevent national and European institutions from carrying through further legal integration at European Union level?[1] The final question addresses both the mechanism by which Germany could give itself a new constitution to overcome the limits (Article 146 GG), and the role of the Court in policing that mechanism. Is the Court the guardian only of the existing constitution, or does it also wish to police the process of enacting a new one? Answers to the above questions necessitate an inquiry not just into the case law of the Court but also into the genesis and gist of Germany's Basic Law. In order to obtain a sense of constitutional evolution, the present

[1] The converse question, whether structures of the European Union prevent national courts from offering constitutional protection, is discussed in Chapter 7.

chapter will proceed chronologically without, however, losing sight of the three guiding questions.

The sense of a new beginning, i.e. the near-complete absence of grand state theories from public law discourse, naturally affected the philosophy of the Court. Legal positivism was discredited as a method after World War II,[2] Hans Kelsen had gone into exile, Hermann Heller had emigrated to Madrid where he died in November 1933, and Carl Schmitt had been ostracized by the legal community. Neither Kelsen nor Heller had shown any great interest in the interpretation of positive constitutional law. Instead of grand theories, it was the Court's constitutional jurisdiction and its practical jurisprudence that defined the understanding of the constitution. The typical post-war public law scholar was neither a Schmittean nor a Smendean, and maintained a safe distance from the Weimar discussions (Möllers 2008: 33).

Between 1952 and 1962 the Court broke with the Weimar experience where the leading constitutional scholars (Kaufmann, Smend, Schmitt, Heller, Kelsen) had agreed that the Weimar Constitution had to be interpreted differently from the earlier monarchical federal state, and also from other federal laws, but had disagreed on a universally acceptable method of constitutional interpretation. Those scholars had been able to discuss such foundational questions of the discipline during the Empire and the Weimar Republic also because issues arising under the Constitution had hardly ever been litigated in a court of law. The establishment of the Court, the extensive legal protection in Article 19 IV GG (of individual rights against all public authorities), and the

[2] Positivism was seen as partly responsible for the collapse of the Weimar Constitution (note the broad reach of Article 48), and as a method used by the Nazis to legalize the persecution of Jews. The absence of an ethical moment in positivism offered no legal resistance to pernicious laws. The Nuremberg Laws of 1935, for instance, prohibited marriages and extra-marital sexual relations between Jews and non-Jews, and distinguished between 'subjects of the state' (*Staatsangehörige*), who had public duties, and 'citizens of the Reich' (*Reichsbürger*) who in addition had political rights. It later became clearer that the susceptibility to National Socialism was particularly strong with those scholars who had rejected legal positivism and normative jurisprudence in favour of a political *Machtstaat* and a factual jurisprudence regarding the state and the legal order (see e.g. Scheuerman 1996: 571). The identification of legal positivism and moral nihilism rests on the erroneous assumption that the acceptance of the validity of law necessarily implies an approval of its moral-ethical content (Dreier 1990: 229). Positive laws can still be the subject of moral criticism and debate. The legal-scientific legitimacy of a despotic state is achieved not only by classifying coercive commands as 'law' but by imposing an additional, absolute duty to obey the law (*ibid.*: 330). Hart makes the same point in his criticism of Gustav Radbruch's legal philosophy: 'For everything that [Radbruch] says is really dependent upon an enormous overvaluation of the importance of the bare fact that a rule may be said to be a valid rule of law, as if this, once declared, was conclusive of the final moral question: "Ought this rule of law to be obeyed?" Surely the truly liberal answer to any sinister use of the slogan "law is law" or of the distinction between law and morals is, "Very well, but that does not conclude the question. Law is not morality; do not let it supplant morality"' (1957: 618).

new significance of basic rights led to 'a triumphal procession of constitutional review' (Wahl 2006: 18). The nineteenth century consensus between sociological and legal positivism that normative assessments were 'unscientific' was rejected, and in the *Lüth* case (1958) the Basic Law was elevated to an 'objective system of values' not just for the state but for the entire legal order with a focus on 'dignity, freedom, and justice'.[3] The Court 'dethroned' constitutional scholars from their claim to authoritative constitutional interpretation by assuming that authority for itself with the strength and consistency of its *Bundesverfassungsgerichtspositivismus*: '*Karlsruhe locuta, causa finita*' (Schlink 1989: 163, 168; Jestaedt 2002; 2007: 249; Leibholz 1957: 116–17).

Nonetheless, it is arguable, at least in so far as the early years are concerned, that it was Rudolf Smend who emerged as the 'household god' (Hennis 1999: 486) of the Court. Smend's integration theory was inverted and subsumed within the final interpretative authority of the Court: post-1949, the state integrates through the normative force of the Basic Law. In 1962, Smend gave the keynote speech to mark the tenth anniversary of the Court (Smend 1994: 581–93). In a notable break with the thinking in Weimar times, he insisted that 'the validity of the Basic Law is defined in practice by the Court, and the role of the scholarly literature is to comment on it in that light' (*ibid.*: 582). The object and purpose of the constitution is also clear to Smend: 'The Federal Constitutional Court does not interpret and apply our Constitution as the standing orders for an economic and technical-administrative purposive association, but as rules for a good and fair life for the German people' (*ibid.*: 593). Smend acknowledges the additional importance of normative constitutional review by the Court (and not merely, as in the 1920s, the centrality of the constitutional text) in the ongoing process of integration and a reduced role for the academy (which is simply to systematize and complement the Court's case law).

An analysis of the Court's constitutional case law is, therefore, of particular interest to the question which elements of the German constitution the Court considers to be essential to the identity of the German state. Does the Court invoke 'suprapositivist' norms that are deemed to underlie the Basic Law (Kommers 1997: 42)? Since the Court draws on arguments based on 'history, structure, teleology, text, interest balancing, and natural law' (*ibid.*), and in light of the formal continuity of Germany's statehood in international law, can it be concluded that the Court is steeped in the non-positive German tradition of constitutional interpretation? If so, does a decision by the Court regarding the European Union not only involve the

[3] *Lüth*, BVerfGE 7, 198, 205; see Kommers (1997: 47–9); Di Fabio (2004).

application of positive constitutional law to the facts of the case, but also 'inevitably . . . a construction of deeper principles and displays the constitutional ethos and sensibilities of the Court and its judges' (Weiler 1997: 267)? This chapter will examine the constitutional assumptions underlying the Court's European jurisprudence and will throw light on its interpretation and understanding of constitutional law.

In its early cases dealing with the relation of Community law and German law, such as the *Lütticke* case[4] of 1971, the Court followed the position of the European Court of Justice which characterized the Communities as supranational and emphasized the autonomy of Community law. The Court also recognized the supremacy of Community law over national law. At first the Court's interpretation took the form of 'priority of validity' ('*Geltungsvorrang*') which meant that German law which conflicted with Community law was nullified.[5] But this caused some constitutional concern within Germany as the breadth of Community law that reached into the domain of national law did not correspond to sufficient depth regarding the effective protection of fundamental rights. In the later *Kloppenburg* case of 1987[6] the Court opted for 'priority of application' ('*Anwendungsvorrang*') according to which German law was still deemed valid but rendered inapplicable in the individual case. A detailed look at the Basic Law provisions providing for the transfer of sovereign rights to the European Union, and the relevant case law of the Court, cannot be avoided. It is a very technical discussion in part but one that is intended to illuminate the constitutional precincts of the German state in its relationship with the European Union.

II. Article 24 GG

Germany's constitutional commitment to European integration in the preamble and its declared belief in 'open statehood' made the legal system highly receptive to supranational law (Schwarze 1999: 637). Article 24 I GG, which codifies Germany's openness, provides for the transfer of sovereign powers to international organizations. In domestic terms, this was a constitutional novelty. It did not have a counterpart in the constitutions of 1871 or 1919. Within Europe, Germany's constitutional decision in favour of openness was less eye-catching. At the time of drafting the Basic Law in 1948/9, the

[4] BVerfGE 31, 145. [5] *Ibid.*, 174–8.
[6] BVerfGE 75, 223, at 244. See also *Nachtarbeitsverbot*, BVerfGE 85, 191, 204.

preamble to the constitution of the IV French Republic envisaged certain limitations to sovereignty in the interest of peace,[7] and Article 11 of the Italian constitution of 1947/8 envisaged limitations to sovereignty for the maintenance of peace and security within the framework of international organizations.[8] Germany's openness manifests itself in the preamble ('Inspired by the determination to promote world peace as an equal partner in a united Europe'), Article 24 GG (transfer of sovereign powers), Article 25 GG (incorporation of the general rules of international law into federal law), and Article 26 GG (ban on preparations for war of aggression). The end of national sovereignty in Europe, as Denninger observes, begins in 1949 with the Basic Law and not in 1992 with the Maastricht Treaty (Denninger 2000: 1123).

Although Article 24 I GG does not directly refer to Europe, it was deliberately designed in 1949 to pave the constitutional path for Germany's participation in European integration. It stipulates that 'the Federation may by a law transfer sovereign powers to international organizations'. The general wording of Article 24 GG has not been amended since its inception and remains valid law. However, today it no longer forms the constitutional basis for Germany's membership of the European Union. To that extent Article 24 GG was superseded by Article 23 GG in 1992 which was drafted specifically in light of the changes effected by the Maastricht Treaty. In order to understand the 1992 amendment it is necessary to examine briefly the constitutional dynamics of Article 24 GG. Both have been described as 'pivotal norms' and the foundation of the internationalization of the German state (Wahl 2003: Chapter 1).

According to Article 24 GG, a supranational organization is created by a treaty in international law; it fulfils tasks that traditionally belonged to the public powers of the nation state. In order to fulfil those tasks a transfer of sovereign powers is necessary. On a point of semantics, von Simson et al. (1972: 129)[9] and Badura (2003: para. 143) reject the term 'transfer' as it implies wrongly that the powers existed within one body and were then delegated to another. Tomuschat prefers the word *conferre* to *transferre* (1981:

[7] '*Sous réserve de réciprocité, la France consent aux limitations de souveraineté nécessaires à l'organisation et à la défense de la paix.*'

[8] '*L'Italia . . . consente, in condizioni di parità con gli altri Stati, alle limitazioni di sovranità necessarie ad un ordinamento che assicuri la pace e la giustizia fra le Nazioni; promuove e favorisce le organizzazioni internazionali rivolte a tale scopo.*'

[9] '*Es handelt sich dabei nämlich nicht um Delegation einer Befugnis, die früher bei der einen Stelle war, an eine andere Stelle, sondern um die Einbringung der Befugnis in eine rechts- und verwaltungsschöpferische Organisation, die etwas tun kann, was der Einbringende nicht hätte tun können. Das heisst also, um eine grenzüberschreitende Kompetenz, die neu geschaffen wird.*'

para. 15). According to these scholars, the sovereign powers of the European Union are new and original powers which do not (solely) derive from the aggregate of sovereign powers belonging to the Member States.[10] The European Union is a new public power that makes normative regulations and takes individual decisions based on original competences beyond the state border. The nature of Community competences has been expressed differently by the Member States. 'The "Belgo-German" formula provides for the attribution of powers or the transfer of sovereign rights, whilst the "Franco-Italian" formula allows for *limitations* of sovereignty' (de Witte 1998: 284). The Court in *Solange I* was more influenced by the philosophy of its French and Italian neighbours than by the text of the Basic Law, for it held that the effect of Article 24 GG was not a transfer of sovereign powers but a limitation thereof.

> Article 24 GG does not actually give authority to transfer sovereign rights, but opens up the national legal system . . . in such a way that the Federal Republic of Germany's exclusive claim to rule is taken back in the sphere of validity of the Constitution and room is given, within the State's sphere of rule, to the direct effect and applicability of law from another source.[11]

The constitutional significance of Article 24 GG can be seen in procedural terms. A transfer of sovereign powers[12] under Article 24 I GG requires only a simple federal law passed in the *Bundestag*. Such transfers need neither be sanctioned in all cases by the *Bundesrat*,[13] nor are they subject to the specific majority requirements in Article 79 II and III (amendment of the Basic Law). This is noteworthy since 'the transfer of sovereign rights involves an intervention in and a change to the constitutionally defined order of competences,

[10] For Tomuschat the source of the European Union's powers is 'both original and derivative' (1981: para. 16).

[11] *Internationale Handelsgesellschaft mbH v Einfuhr und Vorratsstelle für Getreide und Futtermittel* [1974] 2 Common Market Law Reports 540, at 550; BVerfGE 37, 271, at 280.

[12] If 'transfer of sovereign powers' is employed in the present inquiry it is because it is the term found in Article 24 GG. The 'transfer' is a useful legal fiction a) for the purposes of providing a constitutional basis for membership of the European Union and b) for understanding how the law-making powers of the German state (which is the foundation of its specific and individual identity) are said to be substantially diminished through membership of the European Union. That is not to say that the logic of Articles 23 and 24 GG corresponds to the way competences are in fact created: not all European Union competences existed in the same form at national level before they were transferred and are indeed original.

[13] The consent of the *Bundesrat* was only required for transfers of sovereign powers under Article 24 I GG in combination with Article 59 II GG by which 'treaties that regulate the political relations of the Federation or relate to subjects of federal legislation require the consent or participation, in the form of a federal law, of the bodies competent in such a case for the enactment of federal law'.

and thus amounts to a material change to the constitution'.[14] The absence of a specific majority requirement was a deliberate move by the Parliamentary Council in order to facilitate the transfer of sovereign powers for the purposes of international co-operation.[15] Article 24 GG was and is central to the integration-friendly position of Germany's constitutional order (Grewe 1954: 147).

III. *Solange I* (1974) and *Solange II* (1986)

The complete absence of express limitations in the Basic Law was addressed and redressed by the Court in *Solange I*[16] and *Solange II*.[17] Factually, both cases are near-identical and involve allegations concerning the violation of basic rights by a German authority applying secondary Community law.

In essence, the Court noted in the first case that, in the absence of a comprehensive catalogue of fundamental rights, the case-by-case protection by the European Court of Justice was insufficient. The Court argues that the catalogue of fundamental rights in the Basic Law is an essential and irrevocable part of the Basic Law.[18] It is part of the fundamental constitutional structure which cannot be watered down without reservation by Article 24 GG. In short, the founding treaties do not place the Member States at the mercy of the European Court of Justice. Open statehood does not mean open-ended statehood. The Court refers implicitly to Article 79 III GG as the outer limit of transfers of sovereign powers. Accordingly, the Court assumes for itself final adjudicative competence unless and until the Community passes a catalogue of fundamental rights whose standard of protection is equivalent to the Basic Law.

The Court frees up its interpretation of the Basic Law by falling back on established tools of legal interpretation as well as its own 'constitutional ideology' (Hase and Ruete 1982: 267). First, it holds that Article 24 GG

[14] *Eurocontrol I* (1981) BVerfGE 58, 1, at 36: '*Die Übertragung von Hoheitsrechten bewirkt einen Eingriff in und eine Veränderung der verfassungsrechtlich festgelegten Zuständigkeitsordnung und damit materiell eine Verfassungsänderung*'.

[15] See the report on the deliberations of the Parliamentary Council on Article 24 published in (1951) 1 *Jahrbuch des öffentlichen Rechts* (NF), at 228.

[16] *Internationale Handelsgesellschaft mbH v Einfuhr und Vorratsstelle für Getreide und Futtermittel* [1974] 2 Common Market Law Reports 540 (English version); BVerfGE 37, 271 (German version). For an overview of extra-judicial comment on the position of the European Court of Justice in the run-up to the case see Alter 2001: 87–98.

[17] *Re The Application of Wünsche Handelsgesellschaft* [1987] 3 Common Market Law Reports 225 (English version); BVerfGE 73, 339 (German version).

[18] *Solange I*, at 550 and at 280.

was not to be understood literally[19] but in the context of the constitution as a whole. Community organs may pass laws provided they do not compromise or undermine the German constitutional foundation.[20] Second, contrary to the unambiguously worded Article 24 GG, the Court claims that the provision does not in fact authorize the transfer of sovereign powers but instead opens up the national legal system to create space for the direct effect of Community law. *Solange I* was, therefore, a controversial case. Three judges of the Court, Rupp, Hirsch, and Wand, dissented and concluded that:

> Despite the lack of a catalogue of fundamental rights, the protection of fundamental rights guaranteed in the Constitution is also guaranteed in the legal system of the European Communities—though to some extent in modified form—through the case law of the European Court of Justice.[21]

Constitutional scholars were also up in arms about the decision which went against the grain of European law. 'The discussion of supremacy and fundamental rights is wrong in its reasoning and conclusions . . . as well as digressive, superfluous, and politically misguided' (Ipsen 1975: 1; see also Zuleeg 1975; Klein 1975). In particular, Ipsen rejected the parochial outlook of the Court which, he claimed, thinks '*grundgesetz-introvertiert*' (*ibid.*: 8).

After the *Solange I* decision several steps were taken by Community institutions to increase the protection of fundamental rights. The European Parliament, Council of Ministers, and the Commission issued a joint declaration on 5 April 1977[22] which underlined their commitment to fundamental rights as they emerge from the national constitutions. The preamble of the Single European Act 1986 included a reference to fundamental rights (which derived from the constitutions and laws of the Member States, the European Convention on Human Rights, and the European Social Charter), the Maastricht Treaty of 1992 made the protection explicit in Article F(2) EU

[19] *Ibid.*, 550 and 279: '*Das kann nicht wörtlich genommen werden*'. This kind of statutory interpretation is in stark contrast to the United Kingdom where the traditional rules of statutory construction focus on the letter of the law (see *Macarthys v Smith* [1979] 3 All ER 325, per Lawton LJ) but entirely consistent with the Court's own 'ideological' approach to constitutional interpretation. The Court sees itself as Germany's central institution of 'control and stability' whose main task it is to 'preserve the basic [political and constitutional] consensus in the Federal Republic' by resolving conflicts according to the 'universally accepted constitutional value system'. The methods of constitutional construction reflect this task. 'These have replaced traditional rules of interpretation, which were more text-oriented (literal, systematic, historical interpretation), by a loose discussion of "topics" enabling the courts to balance values and thus to respond in a flexible way to the dominant political discourse' (Hase and Ruete 1982: 271).

[20] *Ibid.*, 550 and 271, 279.

[21] *Ibid.*, 561 and 294.

[22] EG ABl. Nr. C 103/1; 27 April 1977.

(now Article 6 TEU), and the Charter of Fundamental Rights[23] consolidated European human rights protection. Moreover, the European Court of Justice began to develop general principles of constitutional and administrative law to boost the protection of individuals which now include human dignity,[24] freedom of expression,[25] freedom of religion,[26] the principle of equality,[27] the protection of privacy,[28] and the right to a fair trial.[29] The European Court of Justice bases its decisions on general principles of law which are protected by the constitutional orders of the Member States and international treaties for the protection of human rights[30] (for details see Cassese et al. 1991).

After *Solange I* and the greater fundamental rights protection at European level, the Court eased its controlling jurisprudence regarding the application and constitutional conformity of Community law. Its integration-friendly approach was also a reaction to the heavy criticism it received after *Solange I* (Kokott 1998: 88). In the *Vielleicht-Beschluss* ('Maybe Decision') of 1979,[31] the Court stuck to its 'multiple level' approach of basic rights protection, and refused to carve a deeper role for itself. If Community law and its interpretation by the European Court of Justice could potentially infringe nationally protected constitutional rights, then the Court might have expressed a vested interest in exerting procedural control over the decisions of the European Court. But this would have been a bridge too far, and the Court (in an *obiter dictum* that resulted in the case's soubriquet) left open the question whether the basic principle in *Solange I* would have unrestricted validity in the future, for that would depend on political and legal developments in Europe.[32] The full effect of *Solange I* was limited by the need for uniformity in interpreting and applying Community law.

From a national perspective, the process of 'creeping constitutionalism' by the European Court of Justice was a positive reaction to national concerns about fundamental rights as well as a negative invasion of traditionally nation

[23] [2000] OJ C364/01.

[24] Case 29/69 *Erich Stauder v City of Ulm, Sozialamt* [1969] ECR 419.

[25] Cases 43 and 63/84 *Heinrich Maag v Commission* [1985] ECR 2581; Case 159/90 *Grogan v The Society for the Protection of Unborn Children Ireland Ltd* [1991] ECR I-4685.

[26] Case 130/75 *Prais v Council* [1976] ECR 1589.

[27] Cases 17 and 20/61 *Klöckner v High Authority* [1962] ECR 325.

[28] Case 136/79 *National Panasonic v Commission* [1980] ECR 2033; Cases 46/87 and 227/88 *Hoechst v Commission* [1989] ECR 2859.

[29] Case 98/79 *Pecastaing v Belgium* [1980] ECR 691; Case 222/86 *Heylens v UNECTEF* [1987] ECR 4097.

[30] Case 44/79 *Hauer v Land Rheinland Pfalz* [1979] ECR 3727.

[31] BVerfGE 52, 187, at 202–3.

[32] *Ibid.*

state competences. On the one hand, the European legal order was gradually acquiring the level of fundamental rights protection demanded by the Court. Although technically an economic community that was still being described as a 'purposive association of functional integration' by leading German constitutional lawyers (see e.g. Scholz 1992: 2593), the European Court of Justice had quietly heeded the call for fundamental rights recognition in its case law. On the other hand, the European legal order was beginning to occupy a space that had hitherto been the exclusive domain of the state: the constitutional order. As one commentator famously put it:

> Tucked away in the fairyland Duchy of Luxembourg and blessed, until recently, with benign neglect by the powers that be and the mass media, the Court of Justice of the European Communities has fashioned a constitutional framework for a federal-type Europe. (Stein 1981: 1)[33]

In *Solange II* the Court expressly distanced itself from its earlier decision. The Court took into account the case law of the European Court of Justice since 1974 and the joint declaration by the European Parliament, the Council, and the Commission and the European Convention on Human Rights, and came to the conclusion that a level of protection had been achieved which was equal to the protection offered by the Basic Law in terms of 'conception, substance, and manner of implementation'.[34] Therefore, the Court would not assess the legality of Community law—at least so long as the current level of protection at European level is maintained.

Although *Solange I* and *Solange II* are factually similar, they differ in some significant respects. For instance, although the Court repeats its *Solange I* interpretation in *Solange II* that the transfer of sovereign powers is limited by the basic structure of each Member State's constitution, the Court no longer holds that the *basic rights* of the Basic Law are part of the fundamental constitutional structure. Only the *legal principles* underlying the provisions of the Basic Law on fundamental rights are described as indispensable[35] (observation by Kokott 1998: 90). It applies a looser standard regarding the material limitations of Article 24 GG which is more integration-friendly (this discussion will be picked up again below in relation to Article 79 III GG).

[33] Von Bogdandy makes the telling observation that ever since the publication of Stein's article the *American Journal of International Law* has, consistent with Stein's argument, not published any further contributions on the European Communities internal market (von Bogdandy 2001: note 42).

[34] *Solange II*, at 259 and 378.

[35] *Ibid.*, 257 and 376.

What is significant for present purposes, however, are the concepts of state and sovereignty that underlie the Court's reasoning in the *Solange* cases. The impact of European law on the national legal and constitutional order, and the perceived threat it poses to the integrity of the national order, is felt keenly if the state is viewed in unitary terms as an omnicompetent body that best serves the public interest when left to its own devices. Similarly, it will be recalled from the discussion in Chapter 5 that sovereignty can either be viewed holistically as sovereign *power* or as the complete aggregate of sovereign *powers*. If sovereignty is seen as absolute and indivisible then it is impossible to transfer or pool sovereignty. If, on the other hand, sovereignty is viewed in essentially relative terms, as any competence to exercise public (i.e. legislative, executive, or judicial) power (Randelzhofer 1992: para. 33), then it can be parcelled out to other states or international organizations (Fowler and Bunck 1995), resulting in a loss and/or limitation of sovereign rights (Kelsen 1925: 112).[36]

Von Simson has a different take on the correct interpretation of Article 24 GG. He has consistently argued that the state is a priori 'conditioned by supranational influences' (*überstaatliche Bedingtheit des Staates*). Limitations of national sovereignty and the submission to an international legal regime are not automatically perceived as a loss to the identity and structure of the national constitutional system (von Simson 1965: 186–7; von Simson and Schwarze 1994: para. 70; see also Häberle 1993). Indeed, the process and history of integration shows that states can transfer considerable powers to the European Union without losing their sovereign status. Being a member of the European Communities was never experienced as a loss of sovereignty but always understood as an extension of Germany's ability to act and acceptance in an equal partnership (Schwarze 2001: 141; cf. Mosler 1992: para. 1). Any loss that may have occurred was compensated by participation rights at European level, as enshrined in Article 23 II GG (Dreier 1998: paras. 95–7).

In sum, one might speak of a strategic dialogue by the Court in the *Solange* cases. It seeks to protect basic rights in co-operation with the European Court of Justice, each court exercising that protection in its own jurisdiction. But the Court does not interfere with the European Court of Justice by monitoring its jurisprudence. To be sure, the European Court of Justice has since 1974 taken quantitative steps to recognize certain fundamental individual rights. But there remains a qualitative difference in the way that fundamental rights are treated by the two courts. The European Court of Justice protects individual economic and social rights as part of the common organization of

[36] 'If sovereignty is understood as a material concept [*Rechtsinhaltsbegriff*] and as a bundle of competences or rights, then every international treaty means a limitation of sovereign rights.'

the market under the Treaty which is qualitatively different from the protection of fundamental human rights under the Basic Law. It was almost inevitable that the Court would, in an appropriate case, re-evaluate its power of final arbitration over a clash between fundamental norms of German and European origin. '*Solange III*' was a potential case in waiting and anticipated by Everling (1990: 195), Scholz (1990: 941), and Tomuschat (1990: 340). As recently as 2008, the President of the Court, Hans-Jürgen Papier, repeated the essence of *Solange II*, suggesting that the controversy surrounding ultimate fundamental rights protection was far from settled.[37]

IV. Constitutional Amendment in 1992

In the legal and political debate about Maastricht the integration-friendly *lex generalis* nature of Article 24 GG, although adequate as the constitutional basis of the European Communities, was deemed to be too broad in view of the changes brought about by the Treaty on European Union. The European polity was no longer a Community but a Union with clear exclusive competences in certain fields. Based on a view that equated sovereignty with a bundle of competences and an ability of the state to act on its own in all areas, the transfer of sovereign powers to the European Union with newly-gained authority was regarded as a threat to the sovereignty of the existing Member States (see von Simson and Schwarze 1994: paras. 120–1; de Witte 1998: 289). A new constitutional foundation for the European Union was called for in some quarters.

Yet the arguments about the generic nature of Article 24 GG and the state-like characteristics of the European Union were probably mixed with other fears. A close reading of Article 24 GG reveals that the provision could easily have continued to sanction the transfer of sovereign powers under the Maastricht Treaty (Schwarze 1993: 585; Everling 1993: 943). After all, it sanctions the transfer of sovereign powers only to international organizations, not to other states or supranational organizations that have assumed state character (Scheuing 1998: 166). Schwarze and Everling admit that the changes made by the Treaty were substantial (such as co-ordination powers in the area of foreign policy). But, crucially, the Treaty did not create a federal

[37] 'The Federal Constitutional Court has held, regarding fundamental rights protection under the Basic Law [*Grundrechtsschutz*] in relation to EC law, that it will only hold off for as long as the European level guarantees the equal protection of basic rights. This usually requires individual legal protection through independent courts that are equipped with adequate powers to review and decide'; 'Ohne Wenn und Aber', in *Der Spiegel* 3/2008, 24.

European state. To all intents and purposes the European Union remained an intergovernmental organization which would have been covered by Article 24 GG.

However, Schwarze and Everling overlook that the question whether or not the European Union was still an international organization according to Article 24 GG was not the real issue. The issue that preyed on the minds of public lawyers in 1992 was that Article 24 GG neither made structural demands on the international organization in question, nor protected the core provisions of the Basic Law. In order to fill this gap the Court had already come to the rescue by developing a theory of *controlimiti* ('counter-limits', i.e. fundamental principles of the constitutional order which could not be overridden by Community law) which it had borrowed from the Italian Constitutional Court (see La Pergola and Del Duca 1985: 609) and formulated in its *Solange I* and *Solange II* judgments of 1974 and 1986. As a result, Article 24 I GG did not permit the limitless transfer of sovereign powers to international organizations. The Court would call an end to the transfer where that would 'surrender by way of ceding sovereign rights to international institutions the identity of the prevailing constitutional order of the Federal Republic by breaking into its basic framework, that is, into the structure which makes it up'.[38] In other words, the quasi-positive legal concept of 'open statehood' was channelled by judicially-defined limits, articulated by the Court, that would come into effect where the *structure* and *identity* of the constitution is threatened. Since there was no explicit textual basis in the Basic Law for this form of channelling, Parliament saw fit to codify the inherent limitations set out by the Court's jurisprudence in a new constitutional provision.

The legal basis for membership was changed by the Act of 21 December 1992[39] because of two developments. First, German reunification in 1990 had freed up a constitutional provision.[40] The old Article 23 GG—a list of

[38] *Solange II*, at 257 and 375.

[39] 24 December 1992, I BGBl. 2086; English version in [1994] 1 Commercial Laws of Europe 1. Further amendments were made to Article 28 I (3) GG (right of European Union nationals to vote in local and municipal elections), Article 52 IIIa GG (Chamber for European Affairs in the *Bundesrat*), and Article 88 GG (transfer of powers to the European Central Bank).

[40] The Basic Law provided for two possible routes by which the German Democratic Republic and the Federal Republic of Germany could have been unified: either through accession (Article 23 GG) or through the making of a new constitution (Article 146 GG). Since Germany was not a sovereign state prior to unification, the Basic Law had never been its constitution, it had only ever been a basic law which, according to Article 146 GG was to 'cease to apply on the day on which a constitution freely adopted by the German people takes effect'. However, the Association of German Public Law Teachers (*Vereinigung der deutschen Staatsrechtslehrer*) agreed in an extraordinary meeting in 1990 that consent of the people would not be asked for in the event of Germany

the West German *Länder* that were subject to the jurisdiction of the Basic Law, to which 'other parts of Germany' could accede—was now redundant. Second, in light of the changes effected by the Maastricht Treaty a Joint Constitutional Commission (*Gemeinsame Verfassungskommission*) of *Bundestag* and *Bundesrat* met for the first time in January 1992. Two changes to the Basic Law were on the agenda, the one relating to voting rights for European Union citizens in local elections, the other relating to the role of the *Bundesbank*. It was also unclear whether Article 24 I GG was sufficient as a legal basis for the European Union as established by the Maastricht Treaty. As already noted, there were doubts as to whether it was still an 'international organization' that fell under Article 24 I GG or whether it was beginning to develop into a supranational organization with certain state characteristics (Scholz 1996: para. 3). To be on the safe side, the Joint Constitutional Commission drafted the so-called European Amendment to the Basic Law (*Europa-Novelle*). In the words of the Commission, Article 23 GG constituted, in conjunction with the preamble, a state objective (*Staatsziel*) that bound the federal state to work towards it.[41] The rationale behind Article 23 GG was, therefore, more explicit than the actual text. The aim of the provision was to 'document internally as well as to the partner states, which structures the Federal Republic seeks to attain in a unified Europe, and according to which rules further integration should proceed'.[42]

It might appear ominous that the 'Article of German unification' was replaced by the 'Article of European union'. But it was also a convincing way of persuading European neighbours, apprehensive about Germany's sudden expansion, that the process of German reunification would take place within the context of European union (Scholz 1996: para. 1). Article 23 GG is a novel and specific provision designed to cover both eventualities of European Union development as an international or as a supranational organization[43]

getting a new constitution. The rationale was that the validity of the *Grundgesetz* was not to be made dependent on a simple majority (Gornig 1990: 387–8), especially when 12 *Bundestag* elections in 40 years had repeatedly endorsed the Basic Law's fundamental legitimacy and the German Democratic Republic's accession to the Federal Republic of Germany had proceeded on a voluntary basis—which was again indicative of a general acceptance of the Basic Law (see also Kommers 1997: 30–1).

[41] State objectives, according to a report published in 1983 by an expert commission, are 'legally binding constitutional norms that prescribe the continuous observance or achievement of certain tasks . . . of state activity'. *Bericht der Sachverständigenkommission Staatszielbestimmungen/Gesetzgebungsaufträge 1983*; cited in Kaufmann 1999: note 3.

[42] BR-Drucks, 501/92, unter 1a der Begründung (Allgemeiner Teil); cited in Schwarze 1999: 640.

[43] *Bericht der Gemeinsamen Verfassungskommission* ('Report of the Joint Constitutional Commission'), *Bundestags-Drucksache 12/6000 and Bundesrats-Drucksache 800/93*, 5 November 1993, at 20.

(Scheuing 1998: 167; Di Fabio 1993: 193–4), although not the development of a supranational federal state (Everling 1993: 943; Breuer 1994: 420), a view which is only supported by a minority (Pernice 1993: 922 *et seq.*; Hobe 2000: para. 54).[44] Article 24 I GG remains a general enabling provision with respect to international organizations although its precise ambit is unclear (von Simson and Schwarze 1994: para. 142).

V. Article 23 GG

Unlike Article 24 I GG, the *lex specialis* nature of the new provision resulted in a cumbersome, multi-dimensional provision. The most important paragraph, Article 23 I GG, reads as follows:

> With a view to establishing a united Europe, the Federal Republic of Germany shall participate in the development of the European Union that is committed to democratic, social and federal principles, to the rule of law, and to the principle of subsidiarity, and that guarantees a level of protection of basic rights essentially comparable to that afforded by this Basic Law. To this end the Federation may transfer sovereign powers by a law with the consent of the Bundesrat. The establishment of the European Union, as well as changes in its treaty foundations and comparable regulations that amend or supplement this Basic Law, or make such amendments or supplements possible, shall be subject to paragraphs (2) and (3) of Article 79.

Whereas the other provisions of the Basic Law are short and taciturn, the new Article 23 GG has seven paragraphs in all that stretch across a standard page, and in addition refers to two external federal laws.[45] One commentator denounces it as a 'monstrosity' (Ossenbühl 1993: 630), another celebrates it as 'revolutionary' (Frowein 2001: 211). Its structure is certainly unwieldy. The first paragraph, cited above, describes the relation between Germany and the European Union and authorizes the transfer of sovereign powers. It must be distinguished from paragraphs II to VII which deal with the internal distribution of competences in the federal state, and determines who participates in the decision-making at European level. The latter paragraphs will not be dealt with at all here, whereas Article 23 I GG needs to be distilled word for word.

[44] See also Tomuschat in Gemeinsame Verfassungskommission, Stenographischer Bericht. 1. Öffentliche Anhörung, Grundgesetz und Europa, Berlin, Friday, 22 May 1992, at 54 *et seq.*

[45] *Gesetz über die Zusammenarbeit von Bundesregierung und Deutschem Bundestag in Angelegenheiten der Europäischen Union* (12 March 1993, I BGBl. 311); *Gesetz über die Zusammenarbeit von Bund und Ländern in Angelegenheiten der Europäischen Union* (12 March 1993, I BGBl. 313). They came into force simultaneously with the European Union.

The first part of the first sentence of Article 23 I GG begins by reiterating the objective of European integration set out in the preamble:[46] 'With a view to establishing a united Europe, the Federal Republic of Germany shall participate in the development of the European Union'. European integration which was merely authorized by Article 24 I GG has now been transformed into a constitutional commitment (Scheuing 1998: 168) and a state objective (Pernice 1998: para. 32; Sommermann 1994), albeit one that escapes closer definition. 'European Union' is a 'procedurally open term' (Scholz 1996: para. 12; Rojahn 2001: para. 12)[47] but it does preclude the backward development of integration, and in particular any move to dissolve the European Union or to withdraw from it unilaterally (Everling 1993: 942; Pernice 1998: para. 45; cf. Huber 1993: 33–4).

The second part of the first sentence is known as the structural guarantee clause (*Struktursicherungsklausel*),[48] i.e. the clause that prescribes certain material conditions to safeguard the structure of the Basic Law. It requires a European Union 'that is committed to democratic, social and federal principles, to the rule of law, and to the principle of subsidiarity, and that guarantees a level of protection of basic rights essentially comparable to that afforded by this Basic Law'. These structural principles that are stipulated with reference to the European Union are familiar from the core provisions of the Basic Law. At first sight the provision makes a structural demand on the European Union to conform to the listed principles. However, there is general agreement amongst German constitutional law scholars that the structural guarantee clause applies to those organs of German state power that participate in the development of the European Union (Randelzhofer 1992: para. 202; Scholz 1992: 2598; Schwarze 1993: 590; Scheuing 1998: 169; Streinz 2003: para. 17; not clear in De Witte 1998: 296–7; not highlighted by Kokott 1998: 92). This matches the formalist conception whereby the Basic Law is not viewed as an external limitation on the state (the state does not exist beyond the constitution), but plays a positive role in the generation and presentation of democratically legitimated state power through parliamentary law-making. The function of constitutional law is to

[46] The support for European integration in the preamble is more than a mere 'declaration of policy' but, according to von Simson and Schwarze (1994: para. 39), a 'binding constitutional commitment' (*verpflichtender Verfassungsauftrag*). See also BVerfGE 5, 85 (Ban of the German Communist Party) where the Federal Constitutional Court held that the preamble was of political as well as legal relevance.

[47] The preamble to the Treaty of Rome refers in French to '*une union sans cesse plus étroite entre les peuples de l'Europe*'.

[48] *Bericht der Gemeinsamen Verfassungskommission*, BT-Drs. 12/60000, 5 November 1993, at 20.

construct a political will, and not to represent the pre-existing, autonomous and substantive will of the state (Lepsius 2000), and to contribute to the realization of functional equivalence between the national and the supranational levels. The structural guarantee clause is a creative provision (*Gestaltungsklausel*) according to which Germany shapes its constitutional policies.

The second sentence of Article 23 I GG enables further integration (*Integrationsermächtigung*) (Sommermann 2008: para. 34). Although Article 23 I (2) GG was specifically drafted to facilitate political integration into an 'ever closer' European Union (Jestaedt 2009: 508), the new provision ultimately provides a more restrictive basis of membership than its predecessor. Unlike Article 24 I GG, the transfer now has to be sanctioned by the upper house (*Bundesrat*). Additionally, Article 23 I (3) GG states that the transfer must not violate the principles set out in Article 79 III GG.

The third sentence of Article 23 I GG is known as the constitutional safeguard clause for the German state (*Verfassungsbestandsklausel*; see Breuer 1994: 422). According to this provision, acts of integration that amend the Treaty, and 'comparable regulations that amend or supplement this Basic Law' are subject to Article 79 II (a two-thirds majority in the *Bundestag* and *Bundesrat*) and III (the 'eternity clause'). The constitutional safeguard clause (unlike the previous structural guarantee clause) does not refer to the European Union but to the German constitution. It is an expressly defensive provision (Breuer 1994: 422; Scheuing 1998: 172) which curtails 'the influence of European law upon the German legal system whenever it demands changes which the national system of checks upon constitutional amendments could not condone' (Kirchhof 1999a: 236).

This approach confirms the case law of the Court by expressly placing the transfer of sovereign powers under the watchful eye of Article 79 III GG, a clear indication that the protection of the state and national sovereignty is in its ascendancy vis-à-vis European integration. The extra constitutional hurdle constitutes a clear break with the hitherto integration-friendly nature of the Basic Law. According to Scheuing, Article 23 I (3) GG is a 'renunciation of the consciously open design of Article 24 I GG'. Everling (1993: 943) dismisses the third sentence of Article 23 I GG as 'a lapse in judgement' (*Betriebsunfall*).

In conclusion, integration clauses such as Article 23 I GG (or its Italian counterpart which limits national exercises of sovereignty) are a double-edged sword: Article 23 I (1) GG confirms Germany's constitutional decision to 'open statehood' by indicating 'the *direction* in which Community law should develop; the substantive values underlying the German Basic Law, referred to by the Court, could be achieved in similar fashion within the European

Community' (de Witte 1998: 290). But at the same time Article 23 I (3) GG codifies the *Solange* jurisprudence of the Federal Constitutional Court. The fundamental values and basic rights of the German legal order are now not only protected by constitutional jurisprudence but also by the Basic Law. Substantive limits to integration appear to have been set, and are justified by the perceived loss of sovereignty that is anticipated through further European integration, and by the constitutional need to seek dual majorities in both chambers in support of German participation. This is the point where the negative/protective limb of Article 23 I GG (the constitutional safeguard clause) clashes with its positive/creative limb (the structural guarantee clause); where Germany's introspective statehood clashes with the original constitutional premise of 'open statehood', and where the boundary between constitutional protection and obstruction of the process of European integration is blurred. Oppermann and Classen (1993: 12) talk of an 'obstructive article for Europe' (*Europa-Behinderungsartikel 23*), and Everling expresses his fear that Europe renationalizes and relapses into individual obsolete nation states (1993: 943).[49] Unless Article 23 I (3) GG was interpreted narrowly and restrictively, it would easily become a constitutional hurdle not only to acts of integration but also to integration itself.

It is this tension between the *constitutional* objective of European integration and the protection of Germany's *statehood* which underlies all analyses of the relation between national constitutional law and European law. The tension, left unresolved by the Court in *So long as* and *Maybe* decisions throughout the 1970s and 1980s had to resurface eventually, and as historical coincidence would have it the question resurfaced three years after German reunification and one year after the signing of the Treaty on European Union in the *Maastricht* decision.

VI. Article 146 GG and the '*suprema potestas*' of the Court

Before we turn to the Court's decisions in *Maastricht* and *Lisbon*, we need first to deal with Rainer Wahl's point, mentioned at the start of the chapter, that the Court was a 'casualty' in the second phase because it ceded legal power to the European Court of Justice. It is for that reason that the Court in *Maastricht* and *Lisbon* sought to bolster its legal reasoning with political

[49] See also Everling, *Zurück zum Staatenverein?*, in *Frankfurter Allgemeine Zeitung*, 15 October 1992.

substance. The resort to meta-constitutional, political principles enables the Court to assert its jurisdiction over the relation between national and European Union law (see Chapter 7) as well as its power in relation to Article 146 GG and the Court of Justice, with which the following paragraphs are concerned.

Article 146 GG is an oddity in the Basic Law. It provides that:

> The Basic Law, *which since the achievement of the unity and freedom of Germany applies to the entire German people*, shall cease to apply on the day on which a constitution freely adopted by the German people takes effect.

While the pre-1990 version of Article 146 GG (which was identical but for the absence of the italicized part)[50] made sense—it envisaged the eventual reunification of the two German states—parliamentary assent to the Unification Treaty (an instrument of public international law between the Federal Republic and the German Democratic Republic according to Article 59 II GG[51]) has arguably rendered the new provision obsolete.[52] If it was not used for the purpose for which it was designed, what is the objective of its continued inclusion?

Horst Dreier suggests that Article 146 GG not only served to reunify Germany (a function which is indeed obsolete now) but also serves to legitimate a new constitution: 'The end of the reunification question does not simultaneously mean the end of the constitutional question' (2000: para. 27).[53] Whereas the old Article 23 GG concerned the spatial validity of the Basic Law (a list of the *Länder* to which those of the ex-German Democratic

[50] The words in italics were inserted by Article 4(6) of the Unification Treaty of 31 August 1990 (BGBl. II 1990, at 889).

[51] 'Treaties that regulate the political relations of the Federation or relate to subjects of federal legislation require the consent or participation, in the form of a federal law, of the bodies competent in such a case for the enactment of federal law. In the case of executive agreements the provisions concerning the federal administration apply correspondingly.'

[52] This argument was developed by Isensee in several publications (e.g. 1990: 53; 1992a), and echoed by Roellecke 1991: 2444; Scholz 1991: paras. 1, 5); Kirn 1996: para. 4; von Campenhausen 2001: paras. 9 *et seq.*; Huber 2003: para. 7.

[53] The question whether the Basic Law has become the German Constitution will not be addressed here. The general assumption is that a constitution must be accepted by the people. Although the Basic Law provides for a formal constitutional process in Article 146 GG that option has not been exercised since 1990. In practice, the absence of a referendum on the Basic Law has not reduced its legitimacy. Commentators like to point out that the German people have accepted its general validity in numerous general elections since 1949. However, elections can only produce political legitimacy. Technically, Germany's 'Constitution' would appear to be the result of a 'miracle of transubstantiation: by means of an international treaty, and with the limitations of an occupied territory, the representatives effected the enlargement of the territorial jurisdiction of the Basic Law which, whilst retaining its outer form, transformed substantially into a Constitution freely adopted by the entire German people' (Hofmann 1995b: 160).

Republic were added in 1990), the other concerned the temporal validity of the Basic Law (Hofmann 1995b: 159). The second aspect has not been rendered meaningless by the first.

However, if Article 146 GG continues to have substantive meaning its relation with Article 79 GG needs to be clarified. The precautionary measures of Article 79 GG are notable only by their glaring absence:

> Where is the barrier against a legal revolution? Where is the prohibition not to interfere with the protection of human rights, the *Rechtsstaat* and democracy, and the principle of federalism? Nothing! Not even a two-thirds majority, in fact, not even a formal law is prescribed by Art. 146 GG. It is, rather, a switch with which all warning signs of Art. 79 GG can be switched off. (Roellecke 1991: 2443)

The continuous inclusion of Article 146 GG makes it 'an un-normal norm in a normal situation that contradicts Article 79 GG' (*ibid.*: 2444). Since Article 146 GG can achieve the legal revolution that Article 79 GG seeks to prevent, the former provision is, according to a substantial body of opinion, an 'unconstitutional constitutional norm' (*ibid.*; more references at Isensee 1992a: para. 60, note 120). Isensee graphically castigates the new provision as a 'contaminant' (*Fremdkörper*: 2004: para. 37) and as a 'time bomb in the constitutional cage' which facilitates the legal *coup d'état*.[54]

The proper response is, again, to separate the two provisions. Article 79 GG deals with constitutional changes by parliament (*verfassungsändernder Gesetzgeber*) to the constitutional document, whereas Article 146 GG envisages a completely new constitution from the *pouvoir constituant* (*Verfassungsgeber*). Article 146 GG provides for the exceptional case of the German people deciding on a new constitution (Wiederin 1992: 439–40; Isensee 1992a: para. 14; Dreier 2000: para. 38). That constitution need not be a national constitution: Article 146 GG would also legitimate a European one—a step which Article 79 III GG could not prevent (Dreier 1998: para. 46; 2000: para. 16).

The Court in *Lisbon* takes a slightly different view which also managed to raise a few eyebrows. It agrees that parliament is prevented from making changes to Article 79 III GG.

> The so-called eternity guarantee even prevents a constitution-amending legislature from disposing of the identity of the free constitutional order. The Basic Law thus not only presumes sovereign statehood for Germany but guarantees it.[55]

[54] Isensee, FAZ 28 August 1990, at 10 (*eine Zeitbombe im Verfassungsgehäuse*); cited in Wiederin 1992: 443.

[55] *Lisbon*, BVerfG, 2 BvE 2/08, judgment of 30 June 2009, para. 216; see also para. 375: 'an inadmissible curtailment of the statehood presupposed and protected by the Basic Law'; and Hillgruber 2004: paras. 40–1, 108. The state is not passive or helpless in relation to the pre-

However, since the values of dignity, freedom, and equality are universal, the Court, somewhat astonishingly, goes on to say that 'it may remain open whether . . . this commitment even applies to the constituent power', i.e. the German people.[56] This quote needs to be pored over word for word. The expansive reading of Article 79 III GG fits the Court's own understanding of popular democracy: after all, 'the violation of the constitutional identity codified in Article 79 III of the Basic Law is at the same time an encroachment upon the constituent power of the people'.[57]

> The principle of democracy therefore sets content-related limits to the transfer of sovereign power, limits which do not result already from the inalienability of the constituent power and of state sovereignty.[58]

Is the Court here establishing itself as the guardian of the constitution, of 'integration-proof constitutional identity' (Gärditz and Hillgruber 2009: 875)? Or is it hubristically elevating itself above the decisions of a future constituent power (Röper 2010: 285)?

The constitutional anomaly is seemingly resolved by the 'absolutely dominant' (*völlig herrschend*) opinion[59] which reads Article 146 GG in light of Article 79 III GG: 'Parliament cannot free itself from the procedural and material limits the *pouvoir constituant* has set' (Weis 1991: 30). Far from being 'switched off', the majority requirement of Article 79 II GG and the 'warning signs' of Article 79 III GG would guide any draft constitution of the future. 'This limitation is an unwritten part of Article 146 . . . because the constitution does not allow the *pouvoir constitué* to deviate from these elementary principles' (Ress 1991: 114, note 5; see also Hofmann 1995a: 23).

The difficulty with this approach, and it is not at all clear that even if it is the dominant view it is also the most persuasive one, is that it involves a non-literal reading of Article 146 GG. Formally speaking, Article 146 GG is not tied in any way to Article 79 GG (Enders 1995: 47). Reading limitations as an 'implied term' into Article 146 GG involves an analysis of the will of

conditions that it cannot guarantee. It has to influence its own foundations. It has responsibilities for education in all sectors (primary, secondary, tertiary etc.), political education, voluntary, and charitable work (Böckenförde 2002: 20–1). As a result, the state lives off pre-conditions that it cannot guarantee completely, but for which it is to a large extent responsible: Paul Kirchhof, *Frankfurter Allgemeine Zeitung*, 22 May 1999, 8.

[56] *Lisbon*, para. 217.

[57] *Ibid.*, para. 218.

[58] *Ibid.*, para. 247.

[59] Wiederin 1992: 432; see also BVerfGe 89, 155, at 180; see also Scholz 1991: para. 23; Kirchhof 1992: paras. 20–2; Zuleeg 2001a: para. 5.

parliament and assumptions about the superior position of Article 79 GG. Isensee argues that whether or not the *pouvoir constituant* is bound by a simple or a qualified majority cannot be decided by pure, theoretical models of democracy but has to be decided by the historical situation in which the constitution comes about (Isensee 1992a: para. 21). As an illustration, Isensee points out that, post-reunification, a simple majority would not have been accepted by West Germany as the legitimate basis of a new constitution that differed significantly from the Basic Law, but would have been the basis of a state crisis (*ibid.*). Since no definite answer can be given with reference to the provision alone, a contextual answer needs to be constructed. Article 79 III GG is an anti-fascist provision with an historical *raison d'être* that is designed to prevent the insurrection of fundamental norms from within the system. It is backward looking rather than forward looking. It does not fix the entire constitution in eternity. A novel constitution could be drafted under Article 146 GG and take account of Article 79 III GG. Naturally this requires the necessary goodwill on behalf of the drafters; but without such goodwill Article 79 III GG will not be much of a stumbling block either.

VII. The Federal Constitutional Court as Final Arbiter

The Court not only elevates itself to the position of the guardian of German statehood and arguably the constituent power (rather than of the Basic Law), but also assumes the competence to scrutinize whether acts of the European Union comply with the limits set out in the Treaty (see generally Claes 2006; Oeter 2007; and Merli 2007). In *Maastricht* the Court placed itself above the European Court of Justice under the guise of a 'relationship of co-operation' (Hofmann 1999: 1065; Kirchhof 1999a) which in reality looked more like a competitive relationship (Scheuing 1998: 203). The Court reserved for itself the right of final approval (Tomuschat 1993: 489) by asserting that Community law that transcended the ambit of the German Assenting Act (*Zustimmungsgesetz*) would not be binding in Germany.[60]

The exact scope of the Court's jurisdiction is not known, but in practice it can only mean that its jurisdiction is invoked *after* the European Court of Justice has *confirmed* the conformity of European Union law with inalienable fundamental rights through the procedure in Article 267 TFEU. The Court would either have residual jurisdiction over general fundamental rights

[60] *Maastricht*, [1994] 1 Common Market Law Reports 57 and BVerfGE 89, 155 at C I 3, para. 49 and C II 2, para. 65.

deficits or a perpetual controlling function (Everling 1995: 64). Neither case can credibly be described as a co-operative relationship (Zuck 1994: 978). Their respective supremacy claims in a clash of norms are incommensurable and resemble an 'open dissent' (Isensee 1997: 1262). The notion that the relationship is co-operative also fails to point out that German courts are duty-bound to respect the law according to Article 20 III GG.[61]

But what about a scenario in which the European institutions are deemed to have *violated* the fundamental and common values of the Union? There are no prizes for guessing the Court's answer: 'If legal protection cannot be obtained at the Union level, the Court reviews whether legal instruments of the European institutions and bodies . . . keep within the boundaries of the sovereign powers accorded to them by way of conferred power.'[62] On the one hand, this is a brazen assumption of jurisdiction. The Court says that it alone will exercise *ultra vires* review not merely to protect Germany's 'constitutional identity', but also (incredibly!) 'to preserve the viability of the legal order of the Community'.[63] A number of commentators have noted that such hubris is the judicial equivalent of a declaration of war.[64] But on the other hand, it is the *raison d'être* of a Constitutional or Supreme Court to act as the guardian of the constitution: the Court is entrusted to review 'whether the inviolable core content of the constitutional identity of the Basic Law . . . is respected'.[65] In fact, some of Europe's top courts are already following the Court's lead in reserving for themselves a future contingency to control the validity of European Union acts in exceptional situations, and to scrutinize the boundary between proper and improper Treaty interpretation.[66] This contingency power ensures not only the ultimate supremacy of national law

[61] Contrast also the extra-judicial words of Vassilios Skouris, President of the European Court of Justice: 'In relation to the interpretation and application of European Union law . . . [the national constitutional courts'] responsibility is no greater or smaller than that of other courts and tribunals; they are required, under the relevant Treaty provisions, to make a reference to the European Court of Justice if they have doubts as to the interpretation of Union law or the validity of Union legislation': *The Relationship of the European Court of Justice with the National Constitutional Courts,* Symposium celebrating the 20th Anniversary of the Constitutional Court of Hungary, 23 November 2009.

[62] *Lisbon*, para. 240.

[63] *Ibid.*, para. 241.

[64] See 'Wut und Tränen', *Der Spiegel* 28/2009, 6 July 2009; 'Grundgesetz Über Alles', *Frankfurter Allgemeine Zeitung*, 29 July 2009; M. Steinbeis, 'Droht ein "Krieg der Richter"?' *Deutschlandfunk,* http://www.dradio.de/dlf/sendungen/hintergrundpolitik/1014322/ [visited 27 July 2012]; see also the critical comments by Schönberger (2009: 1216–17).

[65] *Lisbon*, para. 240. See also Joerges 2007: 318: is it really 'surprising' that the Court in *Maastricht* and *Lisbon* declares itself competent to interpret the fundamental rights in the Basic Law?

[66] *Lisbon*, para. 338. See also Czech Constitutional Court, judgment of 26 November 2008, file reference Pl. ÚS 19/08; Sadurski 2008; see also the UK High Court decision in *Thoburn v Sunderland City Council* [2002] EWHC 195 (Admin), para. 69.

over Community law, but also the legitimacy of constitutional law (it ensures the inner acceptance by national legal actors as well as the people, who under Article 20 IV GG have 'the right to resist any person seeking to abolish this constitutional order, if no other remedy is available').

Even if the Court is granted a final and exceptional constitutional review function, concerns still arise in relation to its judicial attitude. First, there is growing alarm that the Court may declare European Union law invalid without having first referred the matter to the European Court of Justice under Article 267 TFEU—which the Court has never done. Second, some commentators worry that the Court takes its role as constitutional watchdog too seriously. Expanding the Court's competences has the potential to undermine the democratic process and create a legitimacy deficit, with Germany looking more and more like a 'constitutional adjudicative state' based on the will of the constitutional court (Böckenförde 1991: 190; Abromeit 1995: 60). Finally, there is a worry that European politics in Berlin could become impossible: any decision by German delegates in Brussels will run the risk of being challenged by the Court—an utterly unreasonable position, not least for the delegates from the other 26 Member States.

7

The Structure of the Federal Constitutional Court's Decisions in *Maastricht* and *Lisbon*

> The Federal Constitutional Court decides on questions of political power without commanding any means of political power other than the recognition accorded to it by the political establishment, the state, and society. So it is not surprising that it is as interested, if not more so, in cheap, politically acceptable decisions that placate the parties and preserve its own reputation than in making decisions that are faithful to the letter of the statute, methodologically clear, and in line with the canon of law.
>
> Bernhard Schlink (1989: 169)

I. *Ratio decidendi*

In the two landmark decisions, *Manfred Brunner v European Union Treaty*[1] (the *Maastricht* decision) and *Peter Gauweiler v Treaty of Lisbon* (the *Lisbon* decision),[2] the Court had to resolve whether the German statute approving the respective Treaty was compatible with Germany's Basic Law. In the first case, the Act of 21 December 1992 and the Act of Accession to the Union Treaty[3] was passed with a majority of 543 to 25 votes (greater than the two-thirds required) by the *Bundestag* on 2 December 1992 and unanimously by the *Bundesrat* on 18 December 1992.[4] The Act was subsequently challenged by a group of German individuals in *Maastricht*. In the second case, the Act

[1] BVerfGE 89, 155; all subsequent references are to the English translation published in [1994] 1 Common Market Law Reports 57. For further English-language discussion and analysis of the case see Everling 1994; Foster 1994; Herdegen 1994; Hobe 1994; Hailbronner 1994; Wieland 1994; MacCormick 1995; Boom 1995; Weiler 1997; Everson 1998; Kokott 1998; Grimm 2004.

[2] BVerfG, 2 BvE 2/08, judgment of 30 June 2009.

[3] 30 December 1992, II BGBl. 1251.

[4] Sten. Ber. 12/126, at 10879 *et seq.*

Approving the Treaty of Lisbon (*Zustimmungsgesetz zum Vertrag von Lissabon*) was passed with a majority of 515 to 58 votes (and one abstention) by the *Bundestag* on 24 April 2008,[5] and with a majority of 66 votes and three abstentions (greater than the two-thirds required) by the *Bundesrat* on 23 May 2008.[6] That Act too was challenged by unusual bedfellows from the left and right spectrums of German politics in the *Lisbon* decision.

In both cases, the Court experienced no difficulty at all in rejecting the constitutional challenges. Whereas the Court concluded that the Maastricht Treaty met the 'requirements of certainty', that the future exercise of sovereign powers was 'sufficiently predictable', and that the duties and powers which the European Union might gain in the future were limited by 'sufficiently precise rules',[7] the Court in *Lisbon* needed a mere 14 (from a total 421)[8] paragraphs to deem unconstitutional the Act Extending and Strengthening the Rights of the *Bundestag* and the *Bundesrat* in European Union Matters (*Gesetz über die Ausweitung und Stärkung der Rechte des Bundestages und des Bundesrates in Angelegenheiten der Europäischen Union*)—for which a simple and pragmatic remedy was prescribed that lay in according greater rights of participation in European law-making procedures and Treaty amendment procedures to the *Bundestag* and *Bundesrat*.[9] The Court then spent 127 wide-ranging and long-winded paragraphs on the Assenting Act which, however, gave rise to 'no decisive constitutional objections' (para. 207).[10]

The Court stresses unequivocally the established principle of 'open statehood' (see Chapter 4), which is recast in a grandiose neologism as the principle of 'openness towards European law' (*Europarechtsfreundlichkeit*).[11] The term is attributed to the President of the Second Senate, Andreas Voßkuhle, who had previously introduced it in academic publications (2010: 5; 2010a; see also Ziller 2010). In consequence, the Court makes no pronouncements on 'the final character of the political organization of Europe', and even allows for a differential understanding of democracy at national and at European Union level.[12] It further confirms the principle of

[5] II BGBl (2008), 1038. [6] BRPlenarprot 844, p. 136 B.

[7] *Maastricht*, C II 2, para. 59.

[8] Compared to 165 paragraphs in the *Maastricht* decision.

[9] On 8 September 2009, the *Bundestag* interrupted its summer recess to pass five draft 'accompanying laws', and on 23 September 2009, President Horst Köhler signed the national laws enabling Germany to ratify the Lisbon Treaty.

[10] The Court's reasoned decision is found in paras. 207–419 (*c.* 27,000 words). The passages for the (unconstitutional) Extension Act are paras. 406–19, and for the (constitutional) Assenting Act paras. 274–400. Observation in Jestaedt 2009: 500, note 13.

[11] *Lisbon*, paras. 219–25.

[12] *Lisbon*, para. 227.

conferred powers[13] and the absence of *Kompetenz-Kompetenz*,[14] yet it also acknowledges the inevitability of independent development and 'independent opinion-formation of the institutions of the Union'.[15] Then there is the thorny issue of 'trust': although the Court 'trusts' European Union institutions like Eurojust (a body responsible for investigations and prosecutions in cases of serious cross-border crime),[16] the European police office Europol,[17] and the European Court of Justice,[18] it tacitly confirms John Hart Ely's thesis that democracy and distrust go hand in hand (Ely 1980),[19] and that the Court, therefore, needs to exercise 'very moderate' and 'exceptional' judicial control in relation to the interpretation of the law made under the treaties.[20] Although the Court cannot ascertain 'a will that aims at founding a state',[21] and finds that the Lisbon Treaty does not contain 'elements that establish a state', and therefore does not 'infringe the sovereign statehood of the Federal Republic of Germany in a constitutionally relevant manner',[22] it will also not permit the European Union (it is presently not concerned with any other potential risk) 'to violate the Member States' constitutional identity'.[23] In short, although Germany is open to European integration, which requires 'the willingness to joint action' and 'the acceptance of an autonomous common opinion-formation',[24] integration is not boundless. The two fundamental limitations for Germany are its constitution and its identity. Germany may not 'abandon' the right to self-determination of its people by joining a federal state. This step, the Court confirms, must be the result of a directly declared will of the German people alone under Article 146 GG.

But the summary answer conceals the different directions in which the *Lisbon* decision pulls, as well as the magnitude of the questions: the constitutional limits to European integration; the protection of democracy in a 'system of the federal and supranational intertwining of power' (para. 246); the conditions that make the European Union sufficiently democratic to render constitutionally conformable Germany's continued participation in the process of integration; the power and responsibility of the Court. Since

[13] Article 5(1) and (2) TEU Lisbon: 'The Union shall act only within the limits of the competences conferred upon it by the Member States in the treaties to attain the objectives set out therein'. For further references see para. 301 of the *Lisbon* decision.

[14] *Lisbon*, paras. 233, 239, 322, 324, 328, 332.

[15] *Ibid.*, para. 237.

[16] *Ibid.*, para. 67.

[17] *Ibid.*, para. 68.

[18] *Ibid.*, para. 337.

[19] *Ibid.*, para. 238: 'the trust in the constructive force of the mechanism of integration cannot be unlimited'.

[20] *Ibid.*, para. 238.

[21] *Ibid.*, para. 277.

[22] *Ibid.*, para. 351.

[23] *Ibid.*, para. 239.

[24] *Ibid.*, para. 228.

the Basic Law is inconclusive on those questions, the two main decisions in *Maastricht* and *Lisbon* rest on a number of pillars that have some textual basis in the Basic Law (such as the protection of democracy), but are, more problematically, ultimately rooted in the constitutional ideology of the Court (state, sovereignty, identity, *Volk*). There is a danger (real or perceived) that the Court is exceeding its power and responsibility by identifying and basing its decisions on meta-constitutional and ideological obstacles on two fronts: first, in relation to the correct interpretation of the Basic Law; and second, in relation to its scrutiny of the democratic credentials of the European Union. Both levels will be discussed below, but first we need to examine why the political decisions to endorse the Treaties of Maastricht and Lisbon were open to constitutional challenge at all.

II. Article 38 GG

Following the Court's interpretation, Article 38 GG subjectivizes the constitutionally protected principle of democracy in Article 20 I GG—at least in relation to the legitimacy of the process of European integration. According to Article 38 GG, 'members of the German Bundestag shall be elected in general, direct, free, equal and secret elections'. In substance, this means that every adult citizen on the electoral register has the right to participate in general elections and to legitimate and influence the popular exercise of federal state power.[25] To this end the jurisdiction of the Court can be called upon by institutions or parliamentary groups of the Federation, or by the *Länder*, or—as happened in the *Maastricht* case—by an individual whose basic rights are alleged to have been violated by a public authority or possibly even by a law. Although the constitutional challenge in *Maastricht* was based on several provisions of the Basic Law,[26] the only complaint that was deemed formally admissible was the one brought under Article 38 GG, and the same mechanism was successful in *Lisbon.*

The claim succeeds because the Court understands the right to vote as 'the citizens' most important individually assertable right to democratic participation guaranteed by the Basic Law',[27] and because the principle of democracy includes 'the respect of the constituent power of the people'.[28] The Court recognizes a link between the individual's right to democratic participation and the *Bundestag's* task of making policies in the name of the people

[25] *Maastricht.* B I para. 4.
[26] *Ibid.*, A II, para. 1b.
[27] *Lisbon*, para. 210.
[28] *Ibid.*, para. 208.

(Article 20 II GG). Article 38 GG may be violated by the reorganization of state authority (i.e. a transfer of essential competences from the *Bundestag* to the institutions of the European Union) which no longer reflects and represents the will of a majority of the people. To prevent this, the *Bundestag* and the Federal Government must retain 'a formative influence on the political development in Germany'. The Federal Government, which is answerable to the *Bundestag*, must be 'in a position to exert a decisive influence on European decision-making procedures'.[29] This link is in danger if the transfer of sovereign powers to the European Union were conceived as a loss of sovereign power for Germany (thus skewing the effective representation of German voters in the *Bundestag*).

However, the grounds for the constitutional challenge are relatively narrow and the link with democracy is not necessarily obvious. This is all the more apparent since the claimants have not suffered a specific injury, yet are allowed to engage the Court in an 'abstract' review of the Lisbon Treaty. Article 38 GG appears to give every voter the right to veto the transfer of competences to the European Union! Grimm insists that Article 38 GG was never understood formalistically but instead as trying to ensure elections that allow the *Volk* to exercise real influence on politics (Grimm 2009: 481). Yet many commentators (Tomuschat 1993: 489; 2009; Frowein 1994; Schwarze 1994: 3; Ipsen 1994: 1–2; Jestaedt 2009: 503) expressed surprise at the fact that, or the manner in which, the Court examined the complaint brought under Article 38 GG which not only subjectivizes the principle of democracy by empowering individual citizens, but also protects German statehood, and calls into question the democratic credentials and legitimacy of the European Union.

Article 38 GG is clearly interpreted expansively. At one level, the Court is stretching the legal basis of the constitutional complaint in order to make normative statements on the role of the *Bundestag* (which must keep 'functions and powers of substantive importance'[30]) and on the competences exercised by the European Union institutions (they must be sufficiently certain and be subject to constitutional review by the Court[31]), not to mention its own role. But this is understandable: after more than 50 years of integration, 35 years after *Solange I*, and after 25 years of the *Handbuch des Staatsrechts* (see Chapter 3), the parameters of German membership have been discussed and refined several times over and hold few surprises. The following observation by Gärditz and Hillgruber (2009: 872) in the aftermath of *Lisbon* confirms the regressive direction of *Staatsrecht* and the

[29] *Ibid.*, para. 246. [30] *Maastricht*, C I 2, para. 45. [31] *Ibid.*, C I 3, paras. 48–9.

Isensee/Kirchhof inspired claims: Article 38 GG protects democratic legitimacy which is inextricably linked to the state and entitles the individual to resist the 'destatization' of the Federal Republic. Other than according carte blanche to the European Union, or pulling the plug on German membership, the Court can only reiterate the commitment to European integration (within a constitutionally defined framework), the importance of national elections, and its own role as guardian of the Basic Law.

At another level, and less understandably, stretching Article 38 GG enables the Court to scrutinize violations of Article 20 GG, which, in turn, is mentioned in Article 79 III GG ('eternity clause') and cannot be altered. The Court transforms the right to vote into a proxy for the protection of the new concept of 'constitutional identity' (*Verfassungsidentität*).[32] It is now only a small step to go from constitutional identity to making striking assumptions about sovereign statehood (which is not mentioned in the Basic Law): 'The Basic Law thus not only presumes sovereign statehood for Germany but guarantees it.'[33]

The devil, therefore, lies in the detail, and the heavy criticism the case received was not directed at what the Court said but at the constitutional assumptions that underpin the decision. The following discussion will highlight those parts of the two judgments in which the analysis of European integration is clearly biased by a substantive understanding of the state. These are the parts in which the Court went beyond a literal interpretation of Article 38 GG to create a series of ideological obstacles to further integration.

1. First ideological obstacle: *Staatenverbund*

Even though the late-nineteenth century distinction between statehood and sovereignty, *Staatenbund* and *Bundesstaat*, was rejected by pretty much every constitutional scholar in the Weimar Republic (Heller 1971: 133–6; Kelsen 1925: 194; 1928: 274, 280; Schmitt 1996a: 94–6; Smend 1994: 223 *et seq.*), it reappeared in the outgoing twentieth century in the context of European integration (Oeter 1995: 659, esp. 678–8; Habermas 1997: 264; Schönberger 2004: 96). It facilitated the intellectually hazy and lazy conception of the European Union as 'a non-state entity analogous to the state' (*staatsanaloger nicht-staat*: Schönberger 2004: 84), never mind its ahistorical conception as '*sui generis*',[34] without having to invest serious resources into understanding its federative (Schönberger 2004) or federal (Schütze 2009) qualities.

[32] *Lisbon*, paras. 218, 219, 240, 241, 364. [33] *Ibid.*, para. 216.

[34] For von Bogdandy this formula conceals a failure to adopt and transmit nationally defined terms and institutions for the benefit of the European Union and 'masks classificatory impotence' (2000: 213–14; 2001: 10).

The term *Staatenverbund* came to prominence in the *Maastricht* decision (Part C) as an attempt to characterize the legal nature of the European Union. The term had already been coined by the reporting judge Paul Kirchhof.[35] It does not have any inherent or constitutional meaning (Scholz 1996: para. 33), nor does it have a historical precedent, which makes any meaning it might have difficult to translate and to convey. Trevor Hartley assumes that it was the Court's attempt to find a name for a '*sui generis* entity which is neither a State nor an international organization of the traditional kind' (1999: 139, note 53; see also Rojahn 2001: para. 9), and acknowledges the difficulty of translation by suggesting three alternatives: 'association of states', 'confederation of states', or 'union of states' (Hartley 1999: 155, note 18). The official English translation in the *Maastricht* decision, 'federation of states',[36] is misleading also because 'federation' is the official translation of *Bund* (the federal level of the German state) in the Basic Law (see e.g. Articles 23 I and 24 I GG). The recent *Lisbon* decision renders the term more accurately as 'association of sovereign national states'.[37]

However, none of the above translations and suggestions captures the political significance of the term. *Staatenverbund* must be presumed to be different from the *Staatenbund* (confederation of states) that is associated with the *Deutscher Bund* of 1815, and categorically different from the *Bundesstaat* (federal state). So what meaning can be accredited to the neologism? A generous interpretation would make it harmonize with William Wallace's well-known description of the European Union as 'Less than a Federation. More than a Regime' (Wallace 1983). But because the Court did not instil *Staatenverbund* with definitive substantive legal meaning, and instead emphasized the nature of the European Union as a 'supranational organization' (*Maastricht* case, Part C), the term may also be interpreted as 'Less than a Federation. Even less than a Community' (Joerges 2002: 19): *Staatenverbund* is not a constitutional phenomenon, but a political and ideological coinage that is best understood as 'anything less than a *Bundesstaat*'.

The term *Verbund* has no foundation in the Basic Law. Instead, the term was designed to emasculate the European Union in conceptual terms and to increase its dependency on the Member States. It fails to take account of the wider achievements and ambitions of the European Union and, instead, implies a

[35] Kirchhof had initially (1991: 12) spoken of the European Communities as a 'community of states' (*Staatengemeinschaft*) as well as a *Staatenverbund* (*ibid.*: 47, 60). He consolidated the latter term in an article on European integration written shortly before he drafted the *Maastricht* decision (1992: paras. 38–9, 66, 69; for a recent update see Kirchhof 2003). The 1991 and the 1992 articles already contain important principles of the *Maastricht* decision.

[36] [1994] 1 Common Market Law Reports 57, para. 33.

[37] *Lisbon*, para. 229.

free-standing, non-state entity with public powers that are legally binding on the states which comprise it (Badura 2003: para. 143). In combination with a renewed emphasis on national sovereignty and intergovernmental co-operation the term 'misses the character of the Community' (Frowein 1994: 7) and ignores the language of the European Union and of the Member States. As a scholastic tool of analysis it is worthless (Jachtenfuchs 2002: 21–2) and its usage ought to be 'eliminated' (Ipsen 1994: 21). What is nominally a term that reflects the predicament of having to find a compromise solution (Breuer 1994: 424) turns into an ideological and constitutional fault line where a *Staatenverbund* is either the most the European Union can be or the least it ought to be.[38] No translation can capture its deliberately Europhobic origin and polemical nature.

> The concept of *Verbund* covers a close long-term association of states which remain sovereign, an association which exercises public authority on the basis of a treaty, *whose fundamental order*, however, *is subject to the disposal of the Member States alone* and in which the peoples of their Member States, i.e. the citizens of the states, remain the subjects of democratic legitimization.[39]

The continued and inconsistent use of the term *Staatenverbund* in *Lisbon*[40] does not help matters. The coupling of *Staatenverbund* with a narrow and normatively biased conception of sovereignty (discussed below) is not supported by the traditional openness of the Basic Law towards European integration, and is arguably evidence of a wider underhand and political agenda to redefine the European legal system as an intergovernmental body of delegated competences (such as NATO) as opposed to an autonomous body of law. In fact, contrary to the European Court of Justice's consistent jurisprudence since 1963, the Court states clearly that the European Union is not to be understood as an autonomous legal system.[41] Interestingly, in *Solange I* the Court did refer to the Community legal order as an autonomous legal source.[42] But in *Solange II*, the Court tightened the reins by holding that

[38] Von Bogdandy throws in another term, that of the *Verband*. This is confusing, particularly as he translates *Verband* as 'association' which is the common translation for *Verbund* (which, in turn, he translates as 'compound'). What is reasonably clear is that, according to von Bogdandy, the *Verband* 'is a subject of its own unitary legal regime' whereas the *Verbund* 'does not possess a proper legal order' (1999a: 895, note 41; see also 1999: 12–14; 2000a: 28–9). For von Bogdandy the European Union is a *Verband*, whilst for the Court it continues to remain a mere *Verbund*.

[39] *Lisbon*, para. 229 (emphasis added).

[40] See e.g. paras. 229, 233, 294. Confusingly, the Court also refers to the European Union as an *Integrationsverband* (paras. 233, 287, 322, 332), *Staatsverband* (para. 233), and *föderaler Verbund* (para. 368), as well as 'a treaty union of sovereign states' (para. 249) and an 'an association of sovereign states' (para. 262).

[41] *Lisbon*, para. 231: 'autonomy can only be understood . . . as an autonomy to rule which is independent but derived, i.e. is accorded by other legal entities'.

[42] [1974] 2 Common Market Law Reports 540, at 549; BverfGE 37, 271, at 277–8.

Community law was not valid on its own terms but by reason of the German Assenting Act under Articles 24 I and 59 II GG.[43] Juliane Kokott does not attach much significance to this change in emphasis:

> ... the fact that the Court no longer refers to EC law as an autonomous legal order does not seem to express a different approach or a policy change of the Court towards European integration.... German courts never really supported the theory that Community law flows from an autonomous source, even though early decisions of the Court speak of the autonomy of Community law. (Kokott 1998: 86)

The *Lisbon* decision is further evidence of the lack of autonomy the Court accords the European Union legal order. It is also another example of the inconsistencies in the Court's reasoning, since in a number of instances it does assume the autonomy of the European Union.[44]

A normative objection to *Staatenverbund* is that it ignores the true foundation of the European Union, namely the will of the citizens of the Member States. Though formally a creation of international treaties between the constituent Member States, in substance the European Union is legitimated by the citizens of the Member States: the organs responsible for the Treaty gave effect to the will of the 'people' (Pernice 2000: 208–9; Zuleeg 2001: para. 16). In 1963 the European Court of Justice in *Van Gend en Loos* also found that the Treaty of Rome had created a Community not only of governments but of peoples. Even though the Treaty of Maastricht (like the Treaty of Rome) does not begin symbolically with 'We the people' but instead lists the heads of the Member States ('His Majesty the King of the Belgians' etc.), the citizens of the Member States are clearly its benefactors and beneficiaries (Boom 1995: 208).[45]

But not all interpretations of *Staatenverbund* have been negative. According to Udo Di Fabio, the term points to a 'new, trans-modern form of structural coupling' which emphasizes enduring ties and common tasks but does not entail assimilation and loss of identity (1998: 97–100). Law-making in the *Staatenverbund* is a matter of executive co-operation.

[43] [1987] 3 Common Market Law Reports 225, at 251; BVerfGE 73, 339, 367 (1986).

[44] See, e.g. *Lisbon*, paras. 228, 233.

[45] In respect of opening gambits for a future EU constitution that address the true beneficiaries of the European Union (the citizens rather than the heads of state), Lindahl put forward a programmatic 'We Europeans' (2000: 251), whilst *The Economist* magazine suggested with a characteristic mix of poignancy and scorn that the failed constitutional treaty should have started with 'We the elites...' ('Conventional Wisdom', 28 February 2002).

Technical expertise, and political and economic compromises are, according to Di Fabio, no substitutes for the *volonté générale* of the people. Membership in the *Staatenverbund* leaves final decision-making authority to the 'people and their respective constitutional orders' (Di Fabio 2001: 93). Sovereignty is not kept in abeyance (Kirchhof 2003: 914) but is the 'Archimedean point for the further development of the [European] Union' (Di Fabio 2001: 90).

Stephan Hobe points out that the three-pillar structure of the Maastricht Treaty made it difficult to capture its legal status. Whereas the first pillar was a closely-knit organization with legal personality, the second and third pillars were more loosely intergovernmental and their legal status was subject to debate (Hobe 2000: paras. 10–11). The concept of the *Staatenverbund* seemed to capture something that eluded other terms by defining itself as more than a confederation of states that operated solely on the intergovernmental plane. It could also embrace harmonization tendencies across the second and third pillars whilst simultaneously assuring the identity and sovereignty of the Member States. 'The Union is thus a specific, not itself legally autonomous, form which couples supranational and intergovernmental elements to attain higher goals' (Hobe 2000: para. 11).

Stefan Oeter also favours the treaty-based *Staatenverbund*. Since concepts like 'constitution' and *Staatenverbund* are not invested with any inherent or substantive meaning by *Ius Publicum Europaeum* scholars such as Oeter, the term is no more than a shell and can capture the welfare of European integration (rather than the welfare of the state):

> One can create a confederation under the guise of a formal constitution, which creates few impulses for an effective central power, and, conversely, one can construct a highly centralized system of integrated decision-making within the framework of a treaty-based *Staatenverbund*. (Oeter 2001: 257)

His argument is that the treaty-based polity is often better equipped to build consensus amongst the heterogeneous communities which it embraces than the polyethnic, multinational federal state which tends to suppress consensus in the interest of power. Polyethnic federal states can be susceptible to secessionist movements (see generally Oeter 1997a: 82) whereas treaty-based polities necessarily have to incorporate institutional ways of seeking consensus in their constitutional system. In view of the diversity amongst national and regional cultures, the political communities, economies, and civil societies that form the European infrastructure, the formal constitutional option is not prima facie the most appealing. European integration or unification tends to be viewed as a constitutional process (Frowein 1995:

322;[46] Oeter 1999: 901; Pernice 2001a: 27), not an event by which the European Union becomes a state.[47]

2. Second ideological obstacle: Sovereignty

German federalism, as we saw in Chapter 5, makes it impossible to locate unambiguously where and with whom ultimate authority (understood with Jean Bodin and Thomas Hobbes as the highest, absolute, and illimitable power) lies. The concept of sovereignty is a relic of the constitutional struggles of the nineteenth century in Germany, and its discussion in the context of international law (Kelsen 1925: 106–7; 1970: 166[48]), the rule of constitutional law (Kriele 1981: 111–16), and European Union law (von Simson 1965) reveals its anachronism and irrelevance still further (Boldt 1990: 152). Yet sovereignty has always also been understood as a bundle of individual competences, powers, and responsibilities (the 'sovereign rights') which flow from the institutional fact of being sovereign, and which can be parcelled out or 'transferred' to many holders (like the *Länder* or supranational organizations). Such a material concept (*Rechtsinhaltsbegriff*) was used by the Court in the *Maastricht* decision and was further developed in the *Lisbon* decision.

The reason the European Union is not sovereign is because 'the member-States have established the European Union in order to exercise a part of their functions in common and to that extent to exercise their sovereignty in common' (*Maastricht,* para. 52a). In other words, the European Union groups together certain Member State tasks without touching the core competences belonging to national sovereignty. The core sovereign tasks or powers of the Member States are defined for the first time in the *Lisbon* decision. Accordingly, a constitutional state must be able to shape:

i) decisions on substantive and formal criminal law;
ii) decisions on the disposition of the police monopoly on the use of force towards the interior and of the military monopoly on the use of force towards the exterior;

[46] 'The constitutional process of the Community which is at the same time the constitutional process of the Member States.'

[47] 'The development of the European Union is an open and dynamic constitutional process of (re-)allocation and (re-)definition of powers in a multilevel system of political governance. The goal is not a "super-State". The goal is rather to open statehood and complete it by supra- and, possibly, global structures of public policy and action according to the real needs of citizens' (Pernice 1999: 729).

[48] 'The idea of the sovereign state, i.e. of the state as the highest legal order, is simply irreconcilable with the assumption that the state as the holder of the law is subject to public international law, which binds and entitles the state in relation to other states.'

iii) the fundamental fiscal decisions on public revenue and public expenditure, with the latter being particularly motivated, *inter alia*, by social policy considerations;

iv) decisions on the shaping of circumstances of life in a social state;

v) decisions which are of particular importance culturally, for instance as regards family law, the school and education system, and dealing with religious communities.[49]

The difficulty with conceptualizing sovereignty as a material concept (*Rechtsinhaltsbegriff*) rather than as highest and illimitable power is that any increase in competences at European Union level spells a concomitant reduction of competences at national level.[50] If, moreover, 'de iure communitatis *every* act of Treaty implementation is the realization of constitutional goals' (Ipsen 1969: 6), then the mere principle of European integration inevitably 'threatens' or 'dissolves' the constitutional substance of the Member States. The complainants invite the Court several times to treat the transfer of sovereign powers to the European Union as a 'loss' of statehood.[51] Although the Court does not itself use the language of 'loss' in *Lisbon*, it does expressly ring-fence the above competences as the core competences of a sovereign state. So what exactly is the purpose of this list? Is it only the creation of a European (super-) state (that no one wants) that is prohibited? Or is *any* transfer of sovereign powers prohibited if it undermines the integrity and identity of the national legal order (Murswieck 1993; Huber 1993; Breuer 1994: 423)?

It will be recalled from Chapter 4 that neither membership of the European Union nor the transfer of sovereign rights was experienced as a *loss* of sovereignty but rather understood as an extension of Germany's ability to act and acceptance in an equal partnership (Schwarze 2001: 141). Besides, enumerations of sovereign powers are never comprehensive or authoritative, and the Court's list is conspicuous for its omissions. Legal integration has elevated democracy, the rule of law, human rights, and protection of minorities (traditionally the preserve of the nation state) to membership criteria that determine whether a country is eligible to join the European Union. Economic integration has culminated in the creation of a European Central Bank and a common currency—which Margaret Thatcher once described as the 'core of the core' of national sovereignty (cited in Wallace 1997: 36). Political

[49] *Lisbon*, paras. 252–60.

[50] See Grimm 1997: 248: 'the national constitutions' totality shrinks in proportion to the transfer of sovereign powers to the Community'.

[51] *Lisbon*, paras. 112, 140, 167, 168, 178, 180.

integration has resulted in the establishment of the Schengen Agreement which has simultaneously abolished the physical borders among 29 European countries (including 25 European Union Member States) and has also removed the maintenance of national boundaries from the 'list' of core state functions. Any loss that may have occurred at national level has been compensated by participation rights at European level, as enshrined in Article 23 II GG (Dreier 1998: paras. 95–7). Indeed, the process and history of integration show that Member States can transfer considerable powers to the European Union without losing their sovereign status.

Finally, it should be noted that there is no objective answer to the question how many sovereign rights an entity needs to have to count as sovereign. The Court's enumeration of core competencies or factual power is ultimately arbitrary, theoretically unfounded, and politically problematic. By closing in on a catalogue of competences and individual sovereign rights, by viewing certain attributes of the state as definitive of statehood (see e.g. Koenig 1996: 551), and by creating a *domaine réservé*, sovereignty transmogrifies from a property of state power to state power itself—and becomes worthless.[52] By stipulating that European integration potentially violates core principles (the 'identity') of national constitutional law, the Court distances itself from the *Rechtsstaat* tradition in which state power is constrained by the constitution and, hence, emphatically not sovereign (Kriele 1981: 111–16).

The point to take from this brief section (and from the previous chapter) is the absence of sovereignty from constitutional discourse. Contemporary German politics is not characterized by one locus of sovereign power but by struggles between different loci of power—of which the *Lisbon* decision is another fine example. But that does not stop the Court from using sovereignty to capture the essence of the Federal Republic. The Court's approach gives rise to the question whether the concept of sovereignty has any residual value for the integrated and internationally oriented nation state in the twenty-first century.

The *Görgülü* decision of 14 October 2004[53] dealt with the rights of a father in respect of a son born out of wedlock whom the mother had given up for adoption immediately after giving birth. Germany's constitutional relation to the European Convention on Human Rights (ECHR) fits the dualist theory which gives the ECHR the status of an ordinary law, i.e. it ranks below

[52] See generally and critically Kelsen 1925: 100–11; Koskenniemi 2005: 244–8; von Bernstorff 2002: 55 *et seq.*, 88 *et seq.* See also Halberstam and Möllers 2009: 1251: 'What the Court deems to be protected are merely the leftovers of European integration recycled as necessary elements of state sovereignty. A more devastating bankruptcy of a solipsistic theory of the state is hard to imagine.'

[53] BVerfGE 111, 307 (*Görgülü*). BVerfG, 2 BvR 1481/04, 14 October 2004.

constitutional law,[54] and does not prevail over other ordinary statutes.[55] Moreover, the Court had not in the past allowed individual constitutional complaints in relation to violations of the ECHR.[56]

The Court in *Görgülü* liberalized its previous stance and emphasized the proper relation between the domestic courts and the Strasbourg court whose judgments must be taken into account. The Court acknowledged that 'the guarantees of the Convention influence the interpretation of the fundamental rights and constitutional principles of the Basic Law'.[57] The Court found that all German public authorities are bound by the ECHR under international law, including courts (paras. 45, 46), and that a failure to respect the ECHR may result in a constitutional complaint before the Court:

> . . . the binding effect of statute and law also includes a duty to take into account the guarantees of the Convention and the decisions of the ECHR as part of a methodologically justifiable interpretation of the law. Both a failure to consider a decision of the ECHR and the 'enforcement' of such a decision in a schematic way, in violation of prior-ranking law, may therefore violate fundamental rights in conjunction with the principle of the rule of law. (para. 47)

In an innovative move, the Court accordingly creates 'a new basic right' to have decisions from the Strasbourg court taken into account by national courts (Breuer 2005: 412; Beljin 2005). To do so, the complainant has to show a violation of a fundamental right of the Basic Law in conjunction with the principle of constitutionality (*Rechtsstaatprinzip*).[58] In effect, the Court accords the Convention constitutional status (although the Basic Law would still prevail in a case of conflict).

Beneath the veneer of progressive and innovative rights protection in its *ratio decidendi*, the Court's legal reasoning came under fire for its 'unfriendliness' towards international law in its general considerations (*obiter dicta*). Udo Di Fabio was the reporting judge in *Görgülü*, and is responsible for the following paragraph on the status of the ECHR:

> The Basic Law aims to integrate Germany into the legal community of peaceful and free states, but does not waive the sovereignty contained in the last instance in the German constitution. There is therefore no contradiction with the aim of commitment to international law if the legislature, exceptionally, does not comply with the

[54] *Görgülü*, para. 18; see also Mückl 2005: 407.

[55] *Görgülü*, para. 31.

[56] See BVerfGE 34, 384 (395); BVerfGE 41, 126 (141); BVerGE 64, 135 (157); Hoffmeister 2001a.

[57] *Görgülü*, para. 32.

[58] *Ibid.*, para. 47.

law of international agreements, provided this is the only way in which a violation of fundamental principles of the constitution can be averted.[59]

The constitutional commitment to *Völkerrechtsfreundlichkeit* (Articles 24, 25 GG) is surreptitiously downgraded to an 'aim' or 'objective' (*Ziel*). The effect is to create a *domaine réservé* that allows the legislature, in exceptional cases, not to comply with international law. The Court is trying to square the circle by seeking to combine the formal openness of the Basic Law to international law with a renewed emphasis on state sovereignty[60] that is not protected by the Basic Law. To underline the renewed focus on pre-legal sovereignty, the Court finds limits that are not expressly mentioned in the Basic Law: 'the Basic Law is intended to achieve [extensive] commitment to international law' which 'does not seek a submission to non-German acts of sovereignty that is removed from every constitutional limit and control' (para. 36). The Court refers to the European Union and to Article 23 I GG and, for the first time (!), finds a continuing 'reservation of sovereignty' (para. 36) that is not included in the constitutional text. The reduction of constitutional commitments ('unified Europe', 'European Union') to mere aims of international law which, in any event, can be violated is a 'slap in the face of [Walter Hallstein's] idea of legal community' (Pernice 2004: 706; see also criticism by Hoffmeister 2006).

The renaissance of sovereignty rhetoric is not only a theoretical concern. Since the proclamation of the *Maastricht* judgment in 1993 there has not been a single case where the Court has declared that a judgment of the European Court of Justice violated the German constitutional order and should therefore be discarded.[61] The threat not to implement fully a Luxembourg/Strasbourg judgment may remain theoretical, but it is not clear how this statement, which allows the Court to declare EU/ECHR law inapplicable, can be reconciled with the old constitutional principle of *Völkerrechtsfreundlichkeit* and the new principle of *Europarechtsfreundlichkeit*—to which the Court only pays lip service.[62] The Court's language and approach are in

[59] *Ibid.*, para. 35; *Lisbon*, para. 340.

[60] *Görgülü*, paras. 33, 34, 36. The German original *weitgehende Völkerrechtsfreundlichkeit* is misleadingly translated as 'comprehensive commitment' in the official translation. 'Extensive' is closer to the original.

[61] BVerfGE, 17 February 2000, 1 BvR 1210/98; and BVerfGE, 7 June 2000, 2 BvL 1/97; see Hoffmeister 2001.

[62] European-friendly terms appear on only a few occasions: 'common European polity' (para. 251); 'openness towards European law', 'the political organization of Europe' (para. 227) (observation by Häberle 2010: 321). Also conspicuous by their absence are those scholars 'who have for decades pioneered research into European constitutional law' (Schwarze, Zuleeg, Frowein, von Bogdandy) and are not cited by the Court (criticism by Häberle 2010: 326).

danger of elevating the institution above the democratic law-maker when it should be clear that 'the Federal Constitutional Court is not equipped with "suprema potestas"' (Leibholz 1963: 75).

Moreover, the phrase 'the Basic Law . . . does not waive the sovereignty contained in the last instance in the German constitution', if taken to its logical conclusion, seems to suggest also that popular sovereignty could be used to unhinge Article 1 GG [Human dignity—Human rights—Legally binding force of basic rights]. If the fundamental principle of popular sovereignty enshrined in Article 20 II GG had overriding effect, the stability and integrity of the constitution could be compromised by the will of the people (see Chapter 6). For this reason, German constitutional theory does not accord the popular sovereign that power. Instead, it distinguishes between the constitutive power of the people as *pouvoir constituant* (*Verfassungsgeber*) who are responsible for the creation and continued validity of the constitution as a whole, and the representatives of the people (*Verfassungsgesetzgeber*) who are authorized to amend individual parts of the constitution. The authorization does not extend to the whole constitution, nor to certain fundamental principles which represent the essence of the constitution and could only be revoked by the *pouvoir constituant* (see Schmitt 1928: 98, 101). Once more, the pre-legal language of sovereignty clashes with positive (Article 1 GG) and quasi-positive norms (*Europarechtsfreundlichkeit*) of the Basic Law (criticism by Lenz 2005; Hofmann 2005: 185; Häberle 2010: 327).

The language of sovereignty is resurgent in the Court's jurisprudence. The root '*souverän*', which did not appear at all in *Solange I* or *II*, appeared eight times in the *Maastricht* decision (at C I 2, C II 1) and 49 times in the *Lisbon* decision. The Court does not help matters by conflating 'sovereignty' (on which the Basic Law is silent) and 'democracy' (which is protected but is also subject to interpretation and disagreement by legal actors).[63] The Court's conception of the state is premised on a liberal starting point ('the basis of individual freedom and collective self-determination') and an organic end point ('the historically grown and globally recognized form of organization of a viable political community').[64] Both strands are reflected in German constitutional theory, law, and scholarship, which were discussed in the preceding chapters.

[63] See e.g.: 'The safeguarding of sovereignty, demanded by the principle of democracy' (para. 248). See also critically Badura 2001: 907: 'Democracy as established by the Basic Law is conceived by the Court as *"Demokratieprinzip"*, but in relation to the guarantee of democratic legitimacy it is institutionally conceived as statehood.'

[64] *Lisbon*, para. 224.

3. Third ideological obstacle: Democracy

The concept of democracy in the jurisprudence of the Court has two dimensions. Domestically, democracy is the form of state and government that is prescribed by the Basic Law in Article 20 I and II GG. It is tied to the idea of popular sovereignty that views the will of the people as both the source of political power and as the justification for its exercise. According to the Court, democracy is protected from change under Article 23 I GG (third sentence) in combination with Article 79 III GG.[65] Supranationally, the Court has also concerned itself with the 'democracy deficit' that has been associated with the European Union since the Maastricht Treaty. The Court does not reconceive democracy for a supranational institution in a post-national era, but uses the domestic concept as a benchmark to assess the democratic legitimacy of the European Union (see critically Kohler-Koch and Rittberger 2007).

a. The domestic concept

In *Maastricht* the Court finds that popular sovereignty extends no further than the nation state and that democratic legitimacy and control belong to the domain of national parliaments. For that reason the European Union is 'primarily determined governmentally' and equipped only with individual competences.[66] The argument is that Germany cannot integrate ad infinitum as this would hollow out the constitutional principles safeguarded by Article 79 III GG (Randelzhofer 1992: para. 204) which, according to one body of opinion, includes 'sovereign statehood' (Schilling 1991: 55; Di Fabio 1993: 200; Kaufmann 1999: 817). The accretion and exercise of additional competences would require a treaty amendment which could only be effected with the consent of national parliaments. In short, it looks as though the Court is fulfilling its constitutional role by protecting national democracy. But what kind of democracy is it protecting? What content does the Court ascribe to the concept?

The Court's understanding of democracy assumes a *Staatsvolk*. Since no unitary European people exists in the present, or is likely to exist in the foreseeable future, the central role of controlling and providing legitimacy for the European Union can only be fulfilled by the national parliaments. For this reason, the Court with one hand sets 'limits . . . by virtue of the democratic principle to the extension of the European Communities' functions

[65] *Maastricht*, C I 2, para. 35. [66] *Ibid.*, C I 2, para. 46.

and powers',[67] and with the other hand privileges the state as the hub of political activity 'in order . . . to give legal expression to what binds the people together (to a greater or lesser degree of homogeneity) spiritually, socially and politically'.[68]

There has been a tendency in academic commentary to focus on the Court's emphasis on *Volk*, language, and culture as the *conditio sine qua non* of any constitution. These misgivings are further exacerbated by the Court's disingenuous and misleading selection of Hermann Heller as the authority for the homogeneity requirement (Heller 1971: 427–8; cited in C I 2, para. 44). Heller was a social democrat and a victim of the Nazis who, writing in 1928, emphasized that political unity did indeed depend on the degree of social homogeneity. It ceased to exist 'where all the politically relevant parts of the people are no longer reflected in the political unity, where they are no longer able to identify with the state symbols and representatives' (*ibid.*: 423, 425–6). Far from wanting to remove or 'eliminate' heterogeneous elements, Heller wanted to overcome or lessen economic class discrepancies through democracy and the creation of political unity to further the goal of social homogeneity in the sense of a classless society. The reference to Heller becomes even more absurd when one reads that he viewed political unity as the result of dynamic processes (see also Ipsen 1994: 6; Pernice 1995: 104–6), and was unsure whether the preservation of the nation could best be achieved by the nation state as opposed to a European federal state (Heller 1971: 433). Heller viewed the European federal state as a way of preserving the cultural individualism of the nation state which he saw under threat from political individualism (*ibid.*: 201).

The true source of the idea of homogeneity is Carl Schmitt, the *bête noire* of the Weimar scholars, for whom the prerequisite of democracy is not the general equality of people before the law but a 'specific (substantive) equality' according to which they belong to a political community and which is determined formally and legally by nationality (see also Böckenförde 2004: para. 46). Equality means 'pre-legal sameness' (*vor-rechtliche Gleichartigkeit*), which might be expressed by a common religion, a common language and culture, and common political values (Schmitt 1928: 234; Böckenförde 2004: para. 47). This results in a 'relative homogeneity'[69] which facilitates a democratic state order on the basis of equal rights of political participation.

[67] *Ibid.*, C I 2, para. 44. [68] *Ibid.*

[69] The exact same term (*relativ homogen*) is found in the original decision of the Federal Constitutional Court: BVerfGE 89, 155, at 186. It is translated as 'to a greater or lesser degree of homogeneity' in the official translation: [1994] 1 Common Market Law Reports 57, at 88 (para. 44). The words chosen in translation do not lay bare the spiritual roots of the requirement.

Böckenförde's piece (first published in the *Handbuch des Staatsrechts* in 1987) is probably the inspiration behind the term 'relative homogeneity' in the *Maastricht* case (Pernice 1995: 104). The Court's attribution of the concept to Heller must be seen as a red herring. Politically he is a palatable source because he distanced himself from Schmitt (Ipsen 1994: 17). But in the context of the *Maastricht* case it is deceptive, for the reasons given, to attribute the homogeneity requirement to Heller.

The limits to European integration stem from the principle of democracy which is protected by the Basic Law. However, the meaning ascribed to that principle does not have a basis in positive law. The French Revolution—which provides the historical illustration of what the *pouvoir constituant* can do—was supported by 'the common will to political union under certain constitutional principles' (Hofmann 1999: 1069) and not by ethnic origin or cultural commonality. It is true that Hegel mystified the state, and that the French Revolution deified the law as 'the will of the revolutionary and unifying nation' (*ibid.*: 1070). Yet neither the state nor the people are prescribed by the Basic Law. The external reference point is internalized to form the basis of the Court's own ideology (see Hase and Ruete 1982; Jestaedt 2009: 510; Schulze- Fielitz 2001).

Although one needs to acknowledge that the Court in *Lisbon* did not repeat the requirement of a homogenous people, its conception of democracy and of the people has clear sovereigntist, anti-positive, and essentialist overtones. The Court follows the customary and dominant view amongst German public law scholars that the constitutive power of the people must reveal the link to the people as an ideational or normative unit and, at the same time, the existing political unit: 'the carrying-out of state functions and the exercise of state powers is derived from the people of the state and the persons doing so are fundamentally answerable to the people'.[70] Conceived in romantic and organic terms, the *demos* exists before and above the constitution (Schmitt 1928: 238), and is the prerequisite of the nation state:

> The Basic Law does not grant powers to bodies acting on behalf of Germany to abandon the right to self-determination of the German people in the form of Germany's sovereignty under international law by joining a federal state. Due to the irrevocable transfer of sovereignty to a new subject of legitimation that goes with it, this step is reserved to the directly declared will of the German people alone.[71]

[70] *Maastricht*, C I 2, para. 35. See generally Badura 2004: para. 28; Böckenförde 2004: para. 7; see also Isensee 2004: para. 133: 'The subject-matter of the constitution is not the state as an abstract model but the specific state of a specific people.'

[71] *Lisbon*, para. 228.

The Court assumes the continued existence of a German *Staatsvolk*,[72] which it conceives holistically and collectively as *Deutsches Volk*.[73] In this respect it is significant that the Court elevates *Deutsches Volk* to a proper noun by spelling it with a capital 'D'[74]—albeit not consistently.[75] Critics describe the Court's understanding of the *Staatsvolk* as the basis of representation and legitimacy as the 'folly [*Irrweg*] of democracy' (Bryde 1994).

From the perspective of legal formalism, the Court's approach can be criticized as anti-positive, essentialist, and sovereigntist. However, from a sociological perspective it is understandable why the Court would want to ensure 'the presence of certain pre-legal conditions'. Democracy is dependent for its full realization upon social and cultural glue which ensures that the individual citizen can relate to the political organs exercising sovereign power in her own language.[76] Accordingly, the Court in *Lisbon* requires that the Member States 'retain sufficient space for the political formation of the economic, cultural and social circumstances of life'.[77] This applies in particular to the individual private space (which includes fundamental rights), and to 'political decisions that particularly depend on previous understanding as regards culture, history and language and which unfold in discourses in the space of a political public that is organized by party politics and Parliament'.[78]

This paragraph is the closest the Court comes to repeating its notorious Heller statement in *Maastricht*. By focusing on 'culture, history and language' the Court again opens itself up to criticism that it views democracy in static terms based on a nation's commonalities and the state as the pre-legal assumption rather than legal assignment.[79] But the Court's understanding of democracy also contains dynamic components: democratic rights, it finds, are exercised in relation to 'the school and education system, family law, language, part of the provisions governing the media, and the status of churches and religious and ideological communities'.[80]

To sum up, the Court uses various concepts of democracy inconsistently. On the one hand, the Court demands a dynamic concept of democracy for

[72] *Ibid.*, para. 298. [73] *Ibid.*, paras. 228, 347.

[74] *Ibid.*, paras. 227, 228, 274, 277.

[75] *Ibid.*, para. 217. For this observation and further discussion in relation to past practice see Kottmann and Wohlfahrt 2009: 445–6, esp. note 17.

[76] *Ibid.*, para. 42.

[77] *Ibid.*, para. 249.

[78] *Ibid.*

[79] Paul Kirchhof in particular emphasizes 'linguistic homogeneity [which] constitutes the German *Staatsvolk*' (2004a: para. 82); Isensee 1995a; see also Schmitt 1928: 231; Böckenförde 2004; Grawert 2004; Stern 1980: 4.

[80] *Lisbon*, para. 260.

Europe, based on a common public sphere that consists of political parties, associations, the press and broadcasting organs.[81] On the other hand, it duplicates the need for democracy with the need for a homogeneous people, which results in the problematic and tautological concept of *Volksdemokratie* (Bryde 1994). 'This is a caricature of democracy and the opposite of a living democracy' (Zuleeg 2001: para. 24). Moreover, considering that the Court used to understand democracy neutrally as 'the free self-determination of everyone',[82] suddenly to demand homogeneity in a case concerning the European Union is redolent of foul play. Is the Court resorting to extra-legal/political argument in order to throw a spanner in the works of European integration? This suspicion is not dispelled by the Court's concept of nation. It is widely agreed that a nation must possess certain commonalities such as belief, race, culture, language and so forth. But the Court envisages a nation that is 'constituted by members of the same spirit and political view' (Zuleeg 1997: 517). This contradicts the spirit of European unification and the post-war state experience in which 'homogeneity is the liberty to be different' (*ibid.*: 522).

The inconsistent use of democracy is mirrored by the flexible use of legitimacy, the required level of which varies according to the scope and importance of the exercise of sovereign powers. 'The specific requirements placed on the democratic principles depend on the extent of the sovereign powers that have been transferred and on the degree of independence achieved by European decision-making procedures.'[83] This dynamic understanding in which the degree of legitimacy is offset against 'the extent to which sovereign responsibilities are transferred to the Union and the degree of political independence in the exercise of the sovereign powers transferred'[84] is not based on Articles 20 II and 23 I (1) GG which stipulate a dual requirement of democracy regarding the exercise of state and supranational powers (Jestaedt 2009: 511). The implication once more is that the positive constitutional requirements are being overridden by the Court's own ideology of the state (*ibid.*: 510).

[81] *Maastricht*, C I 2, para. 42. See also the final sentence of *Maastricht* (para. 107): 'What is decisive . . . from the viewpoint both of the Treaties and of constitutional law, is that the democratic bases of the Union will be built up in step with the integration process, and a living democracy will also be maintained in the member-States as integration progresses.'

[82] '*die freie Selbstbestimmung aller*': BVerfGE 44, 125, at 142.

[83] *Lisbon*, para. 261.

[84] *Ibid.*, para. 262.

b. The European democracy deficit

If democracy, nation, sovereignty, and statehood are rolled into a uniform benchmark against which the democratic legitimacy of the European Union is assessed, then the democracy deficit, as well as insurmountable obstacles to redress that deficit, move into sharp focus: the deficit consists of the absence of uniform electoral laws, 'proper parliamentarism' (i.e. free-standing democratic legitimation through the European Parliament), and a single, unified *demos*. 'There is no proper parliamentarism in the European Union and it cannot exist in a Europe of the peoples. But only a Europe of the peoples can be a Europe of the citizens' (Schachtschneider 1999: 227).

Thomas Hobbes made an important distinction between a people and a crowd. '*A people* is a *single entity*, with *a single will*; you can attribute an act to it. None of this can be said of a *crowd*' (Hobbes 1998: 95). The crowd, in other words, is not represented, and therefore lacks political agency. Schachtschneider and the Court in *Lisbon* subscribe to this view in relation to the European Union's democratic ambitions and pretensions: 'the European Parliament is not a body of representation of a sovereign European people. [It] . . . is not laid out as a body of representation of the citizens of the Union as an undistinguished unity according to the principle of electoral equality.'[85] Instead, the Court contends that representation in the European Parliament is based on a nationality requirement, and the Parliament thus represents 'the peoples of Europe organized in their states'.[86]

In any event, this section is riddled with inaccuracies and inconsistencies. First, the criteria that determine whether a citizen of a Member State has the right to vote and to stand as a candidate for the European Parliament are based on residence (not nationality).[87] Adding contradiction to incorrectness, the Court acknowledges that the European Parliament 'cannot, and need not, as regards its composition, comply with the requirements that arise on the state level from the citizens' equal political right to vote'.[88] But nine paragraphs later it does just that: 'Measured against requirements in a constitutional state, the European Union lacks . . . a political decision-making body'.[89] It is a pity about the muddle, but the essence seems to be that if

[85] *Ibid.*, para. 280.

[86] *Ibid.*, paras. 286, 287. The Court need only have taken one more step to dismiss the European Parliament as 'an assembly of states' (Isensee 1995a: 572).

[87] See further Article 22(2) TFEU, and Directive 93/109/EC [1993] OJ L329/34.

[88] *Lisbon*, para. 271.

[89] *Ibid.*, para. 280.

the European Union is not democratic, then it cannot be a state; and since it is not a state, it need not be democratic (Fisahn 2009).

The particulars of the Court's reasoning stem from Article 14 TEU and the Nice Protocol on the Enlargement of the European Union. It proposes an allocation of European Parliament seats on the basis of 'degressive proportionality'.[90] The total number of seats shall not exceed 750, and the maximum number of seats for a Member State is capped at 96 and the minimum threshold is six. According to the Court:

> The result of this is that the weight of the vote of a citizen from a Member State with a low number of inhabitants may be about twelve times the weight of the vote of a citizen from a Member State with a high number of inhabitants.[91]

Degressive proportionality means, in effect, that a Maltese MEP represents 67,000 Maltese, a Swedish MEP 455,000 Swedes, while in Germany the ratio is 1: 857,000.[92] According to the Court, such unequal representation is acceptable for second chambers: a similar imbalance exists in the *Bundesrat* (as well as in the second chambers of Austria, Australia, Belgium, and the United States of America). Yet it is not acceptable for first chambers (like the *Bundestag* and House of Commons) for the following reason: the combination of federal and democratic representation is 'not accepted in the representative body of the people because this body would otherwise not represent the people in a manner that stems from the principle of personal freedom and does justice to equality'.[93]

This argument is confusing, wrong, and lazy. First, the Court obscures the status of the European Parliament. On the one hand, the Court implies that the Parliament is 'a representative body of the people' and therefore should not be constituted on the basis of 'degressive proportionality' as such a form of representation does not respect the principles of personal freedom and equality. But on the other hand, the Court dismisses the claim that the European Parliament is a first chamber: it is not a 'political decision-making body' that rivals national parliaments, but 'factually remains [due to the Member State's allocation of seats] a representation of the peoples of the Member States'.[94] A clear answer as to the status of the European Parliament, and to the standards against which to measure its democratic credentials, is not given.

[90] The principle of allocating to the smaller states a greater per-head representation than the large ones with a proportionate distribution of votes for countries in between.

[91] *Lisbon*, para. 284.

[92] *Ibid.*, para. 285.

[93] *Ibid.*, para. 286; see the criticism by Schönberger 2009: 1214–15; Halberstam and Möllers 2009: 1247–9.

[94] *Ibid.*, para. 284.

Second, Schönberger exposes the fallacy of this argument. He invokes the US Constitution which guarantees a minimum representation (at least one Member) for each state in the House of Representatives, and allows for the less-populated states (like Wyoming and Vermont) to be represented which they would not be based on population strength alone. In short, this elected first chamber combines federal and democratic elements, and does not meet the Court's rigid equality test ('one man, one vote').[95]

Finally, the Court's argument is lazy because there is no single definition of, and standard for, democracy. Nor is there a competition to ascertain the superiority of one form of democracy over another. Arguably, one conception of democracy is not intrinsically more democratic than the next, just *differently* democratic (Schmitter and Karl 1991: 77). Democracy has since Thomas Paine (1995) and Abraham Lincoln's *Gettysburg Address* (1863) been understood as 'government of the people, government by the people and for the people'. Accordingly, the Court finds that the European Union is defective because it does not have a political organ that i) has come into being by equal election of all citizens of the Union, and ii) can uniformly represent the will of the people.[96]

But the *raison d'être* of the European Union has always been to facilitate the coherence and credibility of a policy programme by removing it from national political pressures (Majone 1996). Democracy, as Fritz Scharpf remarked in 1970, is a 'complex concept' (Scharpf 1970): it includes not only a particular organizational form (e.g. representative democracy, 'government *by* the people'), but also principles to ascertain and legitimize the content of decisions that are passed in the common interest ('government *for* the people') (Zürn 2000: 92; Rittberger 2005: 32–3).

> ... democratic governance beyond the nation state is based on a political and moral vision of reflective self-regulation by self-governing individuals and organizations prepared to forgo own short term interests if there are good universalistic reasons for public interest-oriented behaviour. (Zürn 2000: 109)

Depending on one's perspective, it is either reassuring or disconcerting that four decades of research into democracy theory in Germany have been completely ignored by the Court. But that has also contributed to a

[95] Schönberger 2009. A domestic example can also be added. Until recently, Scotland elected 72 MPs to the House of Commons. This amounted to an over-representation in relation to England which was justified to give Scotland a greater voice in Westminster prior to devolution. The results of the Fifth Periodical Report of the Boundary Commission for Scotland became effective for the 2005 general election, so that Scotland now has 59 parliamentary seats (giving Scotland roughly the same average of electors per constituency as England).

[96] *Lisbon*, para. 280.

revelation, namely that the democracy deficit here is not a European problem that can be resolved by tampering with the powers of the European Parliament, but a peculiar and multipronged German problem (see generally Lübbe-Wolff 2001).

First, the constitutional requirement that all state power emanate from the people is reinterpreted by the Court to *suggest* (the Court does not commit itself) that the transfer of sovereign powers to the European Union inevitably leads to a 'loss' of democracy at national level (see Grimm 2009: 475). Second, democratic legitimacy has to be secured twice in the *Staatenverbund*: through national parliaments (who scrutinize their national governments) and the European Parliament (due to the increased competences of the European Union). Third, concepts like 'legitimacy' and 'democracy', which emerged in the context of the state, are projected onto the European Union and used as normative benchmarks. The Court does not attempt to reconceive democracy for a supranational institution in the post-national era, e.g. as 'a compound concept, "duplicate" democracy that stems from, and addresses, the federation of EU and nation state' (Wahl 2005: 139). Fourth, the absence of a European *Staatsvolk* is used as an obstacle that prevents further integration within a more explicitly democratic Europe. The absence of such a *demos* is adduced as evidence for and as the expression of Europe's democracy problem. However, it is not necessarily an insurmountable constitutional obstacle.

> If one uses a neutral conception of people then a European *demos* is not a precondition for Europe's ability to democratize; on the contrary, the degree of European democratization determines the existence of a European *demos*. (Lübbe-Wolff 2001: 263–4)

The diagnosis of a democracy deficit is an artificial and ideological obstacle. It is 'not an argument of constitutional law' (Schönberger 2009: 1214), it is a catch—a Catch-22, actually. Germany is a state that according to its Basic Law has to be democratic. The European Union is emphatically not a state and is not as democratic as Germany. It is not *even though*, but *precisely because* the European Union is i) not a state and ii) democratically deficient that the Court waves through the acts approving the Treaties of Maastricht and Lisbon: the European Union is not a constitutional equivalent. The cure (more European Union democracy) would actually be worse than the disease. Were the European Union to enjoy full democratic legitimacy (as a federal state) it would be unconstitutional under the Basic Law.[97] The European Union's choice, Jestaedt notes acerbically, is between the plague and cholera (2009: 515).

[97] See also Grimm 1997: 254: 'full parliamentarization of the European Union on the model of the national constitutional state will aggravate rather than solve the problem'.

4. Fourth ideological obstacle: Identity

The term 'national identity' appears five times in the *Maastricht* decision. In *Lisbon*, the Court refers to the 'constitutional identity' of the Basic Law 17 times. There are two sources of identity. The first positive law source is Article 4(2) TEU which the Court cites in para. 153 of the *Lisbon* decision.

> The Union shall respect the equality of Member States before the Treaties as well as their national identities, inherent in their fundamental structures, political and constitutional, inclusive of regional and local self-government. It shall respect their essential State functions, including ensuring the territorial integrity of the State, maintaining law and order and safeguarding national security. In particular, national security remains the sole responsibility of each Member State.

Article 4(2) TEU is a correlative to the European-friendliness of the Basic Law. The limits to integration are defined by ultra vires control (*ausbrechender Rechtsakt*) and by integration-proof constitutional identity (see generally von Bogdandy 2005a; von Bogdandy and Schill 2010). But Article 4(2) TEU is obviously not the correct source of national constitutional identity and the Court does not have jurisdiction over that provision anyway. Instead, national identity had previously to be attached to the protection of fundamental rights[98] and guarantee of democracy.[99] In *Lisbon,* the Court claims a competence, on the basis of the right to vote in Article 38 GG, to review 'the inviolable core content of the constitutional identity of the Basic Law' pursuant to Article 23 I (3) GG and Article 79 III GG.[100] National identity is explicitly linked to the 'eternity clause' (Article 79 III GG)[101] which sets apart some fundamental provisions of the Basic Law as being unalterable by constitutional amendment. Among those intangible provisions is Article 20 GG which declares, in its first paragraph, that the Federal Republic of Germany is a democratic and social federal state and, in its second paragraph that all state powers emanate from the people. Does this presuppose that Germany may not cease to be a sovereign state and become part of a European federation? Is Article 79 III GG a constitutional obstacle to further integration? Or should the limits be read in the context of the Basic Law's openness and receptiveness towards European and international law?

[98] See also BVerfGE 37, 271, 279 *et seq.* (1974) (*Solange I*); 58, 1, 40 (1981) (*Eurocontrol*); 73, 339, 376 (1986) (*Solange II*); 89, 155, 174 *et seq.*; and *Maastricht*, B 2, paras. 12, 13.

[99] *Maastricht*, C I 2, paras. 37, 41, 43; C II 3, para. 96; *Lisbon*, paras. 267, 357.

[100] *Lisbon*, paras. 208, 240.

[101] *Ibid.*, paras. 267, 343, 353.

Article 79 III GG provides that:

> Amendments to this Basic Law affecting the division of the Federation into *Länder*, their participation on principle in the legislative process, or the principles laid down in Articles 1 and 20 shall be inadmissible.

Since the text of Article 79 III GG does not address the possibility of Germany acceding to or merging with a supranational state-like polity that has attained constitutional character, the link with the European Union is not immediately obvious. The dominant interpretation suggests that it is an 'introverted' (Lerche 1993: 133) provision that is concerned with the core internal structures rather than with external constitutional options. In their classic commentary on the Basic Law Maunz and Dürig announce with pride that Article 79 III is a reception of Carl Schmitt's theory into positive law (1960: para. 24; see also Mußgnug 1988: 519). It is true that, according to Schmitt, the law-maker could change individual constitutional laws but not the absolute constitution in its 'identity and continuity' (Schmitt 1928: 102 *et seq.*; criticism by Thoma 1929: 38–47), by which he meant the decision (*Gesamt-Entscheidung*) on the manner and form of political unity. However, for the sake of a complete picture it should be added that Schmitt emphatically rejected a catalogue of inalienable principles of the kind that Article 79 III GG enumerates and protects (Schmitt 1929: 2314, cited in Dreier 1998: para. 2), and in any event was not so much concerned with stabilizing the legal order of the Weimar Republic as with undermining it (Möllers 2000: 66, note 62). According to Perels, the source of Article 79 III GG is Hermann Heller's *Rechtsstaat oder Diktatur* (Heller 1971: 443) which sought to protect the democratic legitimacy of the Weimar Republic from the spectre of national socialism (Perels 2001: 132). Whatever the true source might be, the rationale behind Article 79 III GG is the prevention of a future 'legal revolution' which could lead to the perversion of the state order as it occurred from 1933 to 1945 (see Chapter 6). He who intends to breach the principles of human dignity, federalism, and democracy cannot do so by stealth but will be immediately identified as a lawless revolutionary (Roellecke 1991: 2443). The Basic Law is not a document that is neutral towards norms and values but one that is, through Article 79 III GG, expressly bound by them (Maunz/Dürig 1960: para. 29). The fundamental principle behind the provision is 'sober, technocratic anti-fascism' (Roellecke 1991: 2443).

But what exactly does Article 79 III GG protect? This is a difficult question to answer because, like Article 23 I GG, it gives much room to the constitutional interpreter. On the face of it, the provision immunizes Germany's federal structure three-fold by referring to i) the division of the federal state into *Länder*, ii) the participation of the *Länder* in the law-making process,

and iii) the principle of federalism in Article 20 I GG, as well as the principle of human dignity in Article 1. But the Court in the *Solange* jurisprudence set more stringent limits than Article 79 III GG by protecting first the entire catalogue of basic rights[102] and later limiting the scope of protection to the 'legal principles underlying the provisions of the Constitution on fundamental rights'.[103] After *Maastricht* the question arose whether Germany's sovereign statehood fell or should fall within the protective ambit of Article 79 III GG. The dominant opinion confirms this position with a general reference to statehood as the subject-matter and precondition of the constitution (Kirchhof 2004: paras. 25, 69, 84; Murswieck 1993: 162; Huber 1993). But then the question is what kind of statehood is protected? Introspective, nineteenth century sovereign statehood (Forsthoff 1963: 385)? Or post-national, open and integration-friendly statehood (Vogel 1964)?

The dominant opinion suggests that the protection extends to pre-constitutional, political statehood which is 'not at the disposal of the process of European union' (Kirchhof 1992: para. 57). Germany is a federal state that cannot be reduced to 'a country within a European state' (Kirchhof 1992: para. 60). It follows that Article 79 III GG is an 'insurmountable barrier' to further and deeper European integration (Fink 1998: 140). It also explains the political and incoherent distinction between Germany's (legitimate) participation in a European 'association of states' (*Staatenverbund*) and (illegitimate) participation in a European federal state (Schilling 1991: 54; Randelzhofer 1992: para. 204; Kirchhof 1992: para. 60; Murswieck 1993: 175; Di Fabio 1993: 206; Huber 1993: 27; Fink 1998: 133; Pernice 1998: para. 69). This background knowledge is necessary to understand the Court's conclusion in *Lisbon*:

> If however, the threshold were crossed to a federal state and to the giving up of national sovereignty, this would require a free decision of the people in Germany beyond the present applicability of the Basic Law and the democratic requirements to be complied with would have to be fully consistent with the requirements for the democratic legitimation of a union of rule organized by a state. This level of legitimation could no longer be prescribed by national constitutional orders.[104]

But the criticism of the introspective account is damning. Assuming the account is correct, and Article 79 III GG is silent on external constitutional

[102] *Solange I* [1974] 2 Common Market Law Reports 540, at 550 and BVerfGE 37, 271, at 280.

[103] *Solange II* [1987] 3 Common Market Law Reports 225, at 257 and BVerfGE 73, 339, at 376. Maunz and Dürig emphasize that the constitutional immunization relates to Articles 1 *and* 20 GG, and not Articles 1 *to* 20 GG, as was initially assumed (Maunz and Dürig 1960: para. 39). However, since the underlying subject-matter of Articles 2 to 19 GG is the protected principle in Article 1 GG (human dignity), they may *indirectly* fall under the protection of Article 79 III GG (*ibid.*: para. 42).

[104] *Lisbon*, para. 263.

options, then it is all the more unsettling that the process of European integration has to contend with the same constitutional security mechanisms as fascist and totalitarian regimes (Jestaedt 2009: 506). Also, if Article 79 III GG freezes German statehood and prohibits European statehood, on what basis (and with what justification) does the Court discuss the democratic legitimacy of the European Union (Jestaedt 2009: 512)?

The introspective reading of Article 79 III GG is contested and criticized as isolationist and contrary to the spirit of the Basic Law. According to Pernice, the provision needs to be read in its wider context, as:

> The objection that the sovereign nation state, and thus an absolute limit to integration, is protected by Article 79 III in connection with Article 20 I GG begs the question and misunderstands the core of open and transformed statehood which the Basic Law propounds. (1998: para. 35)

The context is provided by the preamble to the Basic Law, the constitutional goal of European union in Article 23 I (1) GG, and the fact that Article 23 GG was designed to reflect the transition from an international organization under Article 24 I GG to a supranational organization.[105] When Vogel coined the term 'open statehood' in 1964 he said that the Basic Law reflected a constitutional 'decision' to open the state up to European and international influences (1964: 30). Nowadays, institutional co-operation and participation in international organizations is not a choice but a 'necessity' (Hobe 1998: 542). Hobe points out that the qualities of the *Rechtsstaat* should not be protected from supranational influences, but should, on the contrary, influence supranational structures (according to the level of institutional co-operation). Article 23 I GG opens up a fundamentally new perspective. It is an 'explicit rejection' of the received state-centred worldview (*ibid.*: 533). Hartmut Maurer accepts that Article 79 III GG protects certain core constitutional principles but does not agree that the provision demands that these principles be realized in a state constituted by the Basic Law. 'The entry or integration in a European federal state, which satisfies these constitutional essentials, would not contravene Article 79 III GG' (1999: para. 21). Article 23 I GG was designed as *lex specialis* to cover the transfer of sovereign powers to a polity other than an international organization under Article 24 I GG, which could also cover the federal state (Kirchner and Haas 1993: 762). The liberal interpretation of Article 79 III GG is a contentious matter and by no means dominant. Unusually for a modern constitution (Roellecke 1991:

[105] *Bericht der Gemeinsamen Verfassungskommission* ('Report of the Joint Constitutional Commission'), *Bundestags-Drucksache 12/6000 and Bundesrats-Drucksache 800/93*, 5 November 1993, at 20.

2443), there is, however, another (and ostensibly easier) way of changing the Basic Law, namely by virtue of Article 146 GG (see Chapter 6).

III. Conclusion

What is the status of *Staatsrecht* and *Ius Publicum Europaeum* after the Court's decisions in *Maastricht* and *Lisbon*? At first sight, the Court's reasoning seems to be steeped within the *Staatsrecht* tradition from which it borrows concepts and terminology. The *Maastricht* decision certainly gives practical, judicial effect to the state and sovereignty-centric orientation of the *Handbuch des Staatsrechts* (Möllers 2008: 74), and to some extent *Lisbon* does too. First, the Court admits the complaint on the innocuous grounds of Article 38 GG (fundamental right to vote), but then launches into 'a breath-taking doctrinal *parcours*' (de Witte 1998: 198) that takes it from democracy and the German people to two idiosyncratic and limited conceptions (of constitutional law and identity that is reminiscent of a nineteenth century sovereign state equipped with unilateral powers, and of the European Union as a *Staatenverbund*). Second, the Court indulges in a description of itself as the final decision-making instance not only vis-à-vis the Court of Justice or the German Parliament, but also potentially in relation to the *pouvoir constituant* (see Chapter 6). Finally, the idea that Article 79 III GG protects a substantive constitutional core from any modification that would '"touch" the substance and identity of the current constitutional order' is a 'Eurosceptic reinterpretation' (Jestaedt 2009: 505) taken straight from the Isensee/Kirchhof school of thought. The Court's decisions appear to have more in common with British political Europhobia than with the *Rechtsstaat* tradition (Abromeit 1998: 14), with predictable results: the European Union cannot become a state but has to remain a *Staatenverbund* at the mercy of the masters of the treaties who as sovereign states have unilateral rights of withdrawal; and Germany has to remain a sovereign state, for surrendering sovereignty would mean surrendering Article 20 II GG. The German state, in short, cannot diminish or disassemble itself as this would be unconstitutional under Article 79 III GG.

But take a closer look, and the Court's decision in *Lisbon* does not really fit the *Staatsrecht* bill. The Court (unlike in *Maastricht*) does not substantiate the central *Staatsrecht* concepts (state, *Volk*). Instead, the decision rests on political concepts that are peripheral to *Staatsrecht*, and do not have a constitutional foundation (sovereignty; constitutional identity). To be fair, the Court does pay lip service to open statehood and the method *Ius Publicum Europaeum* (*Europarechtsfreundlichkeit*), but those concepts remain empty

shells and non-determinative in relation to the European Union (other than in the purely formal sense that the European Union after *Lisbon* is compatible with the Basic Law). By eschewing *Staat* and *Volk* as the determining concepts the Court sounds the death-knell for the traditional *Staatsrecht* method. But by reaching a Eurosceptic outcome on the basis of meta-constitutional concepts it also keeps it alive. The lack of reflection and clear vision is evident also in its citation practice. For instance, the Court confirms *Staatsrecht* dogma that 'territory-related state authority . . . continues to exist unchanged under the changed conditions of cross-border mobility'.[106] But the authority it cites is none other than Georg Jellinek's *Allgemeine Staatslehre* (1921: 394). If final proof was needed of the Court's failure to adjust its conceptual lenses to contemporary circumstances, this would surely be it.

Undoubtedly, the quality of the decision would have been enhanced if the judges had limited themselves to specific constitutional issues, i.e. if they had tried 'to do justice according to law' which translates into 'a duty to give only such decisions as can be justified by a good justificatory argument' (MacCormick 1994: 250).[107] Instead, the Court 'responds to questions that the case does not raise with answers the Constitution does not provide' (Schönberger 2009: 1214). Likewise, Matthias Jestaedt's criticism of *Lisbon* does not draw on any other standard or external legal benchmark than the currently valid Basic Law. His critical conclusion:

> . . . does not relate primarily to the content of its findings, but to the argumentative approach, the manner and form in which the Court deals with the Basic Law as the sole benchmark. (2009: 502)[108]

The discrepancy between the favourable decision and the inconsistent, arbitrary, and hostile reasoning is revealing. It does not merely reflect the problematic relationship of the Court with the European Union. As Schönberger notes, it is the *Lisbon* decision 'that suffers from a constitutional law deficit that cannot be corrected with questionable state theory' (2009: 1214). As a result, the Lisbon decision undermines the Court's own standing—which is ironic, as it is precisely its final authority that the Court was trying to affirm—as well as the integrity of constitutional law.

[106] *Lisbon*, para. 344.

[107] See also Alexy 1986: 25; 2002: 8: 'To a large extent, legal doctrine is the attempt to give rationally defensible answers to the evaluative questions which have been left open by the authoritative materials at hand.'

[108] See Schönberger 2009: 'If the judges actually mean what they say, they should never have approved the Treaty of Lisbon. But, as they do uphold the Treaty, they could not possibly justify their decision on the grounds they put forward'. Cf. Grimm: 'there is nothing constitutionally objectionable about the main features of the decision' (2009: 487).

Conclusion

This book has argued that contemporary German constitutional law scholarship (far from being authoritative, coherent, rational, objective, and 'scientific') is split three ways. It has attempted to contextualize the authoritative contributions of individual scholars by creating three broad categories within which they can be placed—not in an attempt to pigeonhole them, but in order to reveal the particular intellectual tradition within which they work. It has also tried to redress the bias of international recognition by introducing key scholars whose work has never or only partly been translated into English, and whose international profile is non-existent or insignificant, and stands in inverse proportion to the importance they have nationally. In doing so, the book has undertaken a broader inquiry that looks to the established methodologies (*Staatsrecht* and *Verfassungsrecht*) as a way of understanding the underlying changes in the German constitutional doctrine (the new Article 23 GG), judicial interpretation (*Maastricht* and *Lisbon*), and scholarship (*Ius Publicum Europaeum*)—as opposed to reconceptualizing the methodology because of the occurrence of such an underlying change.

Constitutional theories must be credible to acquire authority and influence in the courtroom and in academe. *Staatsrecht* is the dominant theory and has influence in the Court, but its scholarship is the product of a conscious attempt to maintain the state of 1871. It conceives the state as a pre-constitutional, *sovereign nation state*. Internal challenges, external developments, and generational changes have confronted its credibility, and it is gradually but clearly failing to attract a following in academe. *Verfassungsrecht* and *Ius Publicum Europaeum* represent a qualitative break with the past and represent new methods of constitutional law scholarship. They produce new sets of questions and new methods of analysis; the former by introducing Anglo-Saxon conceptions of political liberalism, pluralism, and terminology into post-war scholarship, the latter by examining the similarities and differences in the constitutional orders of European states through the method of comparative constitutional law. *Verfassungsrecht* understands the state as the *constitutional state* of the Basic Law (that is open to European and

international law). *Ius Publicum Europaeum* goes further still: its focus is not national law, traditionally conceived, or the jurisprudence of the Court, but the Treaty of Rome (as amended), as interpreted by the European Court of Justice, and other European constitutional orders. The state, accordingly, is viewed as a post-national *member state*.

In all three constitutional ideal-types the state is still the reference point of political and social development; it remains accountable for processes that are beyond its control. This in no way contradicts the earlier assertion that traditional state-centred legal theory is antiquated. But the question is not whether the state ought to continue to exist (for no member of academe is proposing that it should not continue to exist), but whether it ought to be defined (with Schmitt) as the embodiment of the political existence of the people and the embodiment of sovereignty, and conceived as the sole enforcer of law and sole provider of constitutions, and justified with value-laden interpretations of the nation and the people. In spite of internationalization, Europeanization, globalization, networks, privatization, pluralism, and informalization, the 'state' has not disappeared and *Staatsrecht* is not (yet) an anachronism. The question is whether the 'state' has any currency in future theories of constitutional law. More particularly, does the fate of *Staatsrecht* depend on the fixed centrality of the nation state, or on the variable content of the state concept?

Staatsrecht could continue to insist on the historical inseparability of state and constitution, and continue to self-classify the method as political law: the state is the political unity of people, and the constitution is the political decision over the manner and form of unity. The traditional interpretation is premised on an introspective state as the unit of power, rule, and authority, and as the sole reference point of a constitution. This carefully constructed argument, which is deliberately built around the unity of the state as opposed to its openness to other legal systems, reflects not only legal reasoning but also political rhetoric and ideology.

Alternatively, *Staatsrecht* could go through a process of modernization and critical self-reflection in order to reinvent itself as the dominant method for the twenty-first century. The principal challenge for German constitutional scholarship, therefore, is to overcome the nineteenth century dualisms (practice and theory, fact and norm, social science and legal science, politics and law, state and constitution, power and authority, *Staatsrecht* and *Verfassungsrecht*). They continue to divide constitutional theory (Chapter 3) and the reception of European law (Chapter 4). By reasserting *Staatsrecht* as the dominant interpretation, Kirchhof deliberately throws an ostensibly constitutional, but actually a political, spanner in the works of European integration and the international openness of the Basic Law. By drawing on

Verfassungsrecht and sidestepping the centrality of the state, *Ius Publicum Europaeum* arguably gives an incomplete picture of German constitutional doctrine. Instead of reifying itself as the object of deep disagreement and disassociation, the demystification of *Staatsrecht* might garner broader consensus by viewing the state inclusively as the central link in an interdependent and international community. None of the serious post-war methods of constitutional law has, as was shown, surrendered the state as the central hub of political power; but they have changed the understandings, expectations, and constitutional role of the concept of the state.

The method of constitutional interpretation adopted by the Federal Constitutional Court is central to the modern, democratic constitutional state. Its jurisprudence will inevitably be driven by aspects of the constitution that are fixed (the text, the method) and dynamic (legal, political, and social change). Its panoply of reference points in the context of the European Union stretches from 'state objectives' and 'structural guarantee clauses' in Article 23 GG, to the interpretation of the Basic Law as an 'objective system of values' and external sources of (international and comparative) law (see generally Chapter 6), to an even more pronounced meta-juristic dimension that accommodates political concepts that are peripheral to *Staatsrecht* and do not have a constitutional foundation (see Chapter 7). The Court in *Lisbon* does not endorse *Staatsrecht* in formal terms (by steering away from its central concepts like *Staat*, *Volk*, and 'loss' of sovereignty) altogether, but it produces a *Staatsrecht*-friendly outcome that is noteworthy for its Euroscepticism and which is premised on meta-constitutional concepts.

By formally rejecting, yet substantively approving, the central tenets of the dominant constitutional method the Court does not achieve a happy synthesis. The manner in which the Court succeeds in dividing German academe is also deeply troubling—not least because the ruptures in *Lisbon* (and previously in *Maastricht*) cast scholars on either side of a conceptual divide (state versus non-state, constitution versus treaty) that has existed since the time of the Wilhelmine Empire. The scholastic attempts to overcome the nineteenth century dualisms must themselves avoid creating new unitary approaches and hierarchies as well as prevent the decentralization and fragmentation of political authority and of constitutional discourse (Grimm 2009a: 114; see also Walker 2002). The present inquiry has shown that an open, international law-friendly method of constitutional law is developing at national level that is gradually replacing the formerly dominant state-centred tradition in academe and causing confusion in the courtroom. The export to Europe of German constitutional doctrine and scholarship as a result of the decisions in *Maastricht* and *Lisbon* can, therefore, only be understood if one acknowledges that the underlying constitutional concepts are internally contested amongst

national legal actors, that the contestation has historical roots that can be traced back to the founding of the German Empire, and that it is the contingent unity of law (rather than the autonomy of the respective legal systems) that defines the relation between the Member States and the European Union.

APPENDIX

Excerpts from the Basic Law for the Federal Republic of Germany[1]

PREAMBLE

Conscious of their responsibility before God and man, Inspired by the determination to promote world peace as an equal partner in a united Europe, the German people, in the exercise of their constituent power, have adopted this Basic Law. Germans in the *Länder* of Baden-Württemberg, Bavaria, Berlin, Brandenburg, Bremen, Hamburg, Hesse, Lower Saxony, Mecklenburg-Western Pomerania, North Rhine-Westphalia, Rhineland-Palatinate, Saarland, Saxony, Saxony-Anhalt, Schleswig-Holstein and Thuringia have achieved the unity and freedom of Germany in free self-determination. This Basic Law thus applies to the entire German people.

Article 1

[Human dignity—Human rights—Legally binding force of basic rights]

(1) Human dignity shall be inviolable. To respect and protect it shall be the duty of all state authority.

(2) The German people therefore acknowledge inviolable and inalienable human rights as the basis of every community, of peace and of justice in the world.

(3) The following basic rights shall bind the legislature, the executive and the judiciary as directly applicable law.

Article 16

[Citizenship—Extradition]

(1) No German may be deprived of his citizenship. Citizenship may be lost only pursuant to a law, and against the will of the person affected only if he does not become stateless as a result.

(2) No German may be extradited to a foreign country. The law may provide otherwise for extraditions to a member state of the European Union or to an international court, provided that the rule of law is observed.

[1] Source: *Deutscher Bundestag*, Basic Law for the Federal Republic of Germany; as at October 2010; translated by Professor Christian Tomuschat and Professor David P. Currie. Translation revised by: Professor Christian Tomuschat and Professor Donald P. Kommers in co-operation with the Language Service of the German *Bundestag*.

Article 19

[Restriction of basic rights—Legal remedies]

(1) Insofar as, under this Basic Law, a basic right may be restricted by or pursuant to a law, such law must apply generally and not merely to a single case. In addition, the law must specify the basic right affected and the Article in which it appears.

(2) In no case may the essence of a basic right be affected.

(3) The basic rights shall also apply to domestic artificial persons to the extent that the nature of such rights permits.

(4) Should any person's rights be violated by public authority, he may have recourse to the courts. If no other jurisdiction has been established, recourse shall be to the ordinary courts. The second sentence of paragraph (2) of Article 10 shall not be affected by this paragraph.

Article 20

[Constitutional principles—Right of resistance]

(1) The Federal Republic of Germany is a democratic and social federal state.

(2) All state authority is derived from the people. It shall be exercised by the people through elections and other votes and through specific legislative, executive and judicial bodies.

(3) The legislature shall be bound by the constitutional order, the executive and the judiciary by law and justice.

(4) All Germans shall have the right to resist any person seeking to abolish this constitutional order, if no other remedy is available.

Article 23

[European Union—Protection of basic rights—Principle of subsidiarity]

(1) With a view to establishing a united Europe, the Federal Republic of Germany shall participate in the development of the European Union that is committed to democratic, social and federal principles, to the rule of law, and to the principle of subsidiarity, and that guarantees a level of protection of basic rights essentially comparable to that afforded by this Basic Law. To this end the Federation may transfer sovereign powers by a law with the consent of the Bundesrat. The establishment of the European Union, as well as changes in its treaty foundations and comparable regulations that amend or supplement this Basic Law, or make such amendments or supplements possible, shall be subject to paragraphs (2) and (3) of Article 79.

(1a) The Bundestag and the Bundesrat shall have the right to bring an action before the Court of Justice of the European Union to challenge a legislative act of the European Union for infringing the principle of subsidiarity. The Bundestag is obliged to initiate such an action at the request of one fourth of

its Members. By a statute requiring the consent of the Bundesrat, exceptions from the first sentence of paragraph (2) of Article 42, and the first sentence of paragraph (2) of Article 52, may be authorised for the exercise of the rights granted to the Bundestag and the Bundesrat under the contractual foundations of the European Union.

(2) The Bundestag and, through the Bundesrat, the *Länder* shall participate in matters concerning the European Union. The Federal Government shall keep the Bundestag and the Bundesrat informed, comprehensively and at the earliest possible time.

(3) Before participating in legislative acts of the European Union, the Federal Government shall provide the Bundestag with an opportunity to state its position. The Federal Government shall take the position of the Bundestag into account during the negotiations. Details shall be regulated by a law.

(4) The Bundesrat shall participate in the decision-making process of the Federation insofar as it would have been competent to do so in a comparable domestic matter, or insofar as the subject falls within the domestic competence of the *Länder*.

(5) Insofar as, in an area within the exclusive competence of the Federation, interests of the *Länder* are affected, and in other matters, insofar as the Federation has legislative power, the Federal Government shall take the position of the Bundesrat into account. To the extent that the legislative powers of the *Länder*, the structure of Land authorities, or Land administrative procedures are primarily affected, the position of the Bundesrat shall be given the greatest possible respect in determining the Federation's position consistent with the responsibility of the Federation for the nation as a whole. In matters that may result in increased expenditures or reduced revenues for the Federation, the consent of the Federal Government shall be required.

(6) When legislative powers exclusive to the *Länder* concerning matters of school education, culture or broadcasting are primarily affected, the exercise of the rights belonging to the Federal Republic of Germany as a member state of the European Union shall be delegated by the Federation to a representative of the *Länder* designated by the Bundesrat. These rights shall be exercised with the participation of, and in coordination with, the Federal Government; their exercise shall be consistent with the responsibility of the Federation for the nation as a whole.

(7) Details regarding paragraphs (4) to (6) of this Article shall be regulated by a law requiring the consent of the Bundesrat.

Article 24

[Transfer of sovereign powers—System of collective security]

(1) The Federation may by a law transfer sovereign powers to international organisations.

(1a) Insofar as the *Länder* are competent to exercise state powers and to perform state functions, they may, with the consent of the Federal Government, transfer sovereign powers to transfrontier institutions in neighbouring regions.

(2) With a view to maintaining peace, the Federation may enter into a system of mutual collective security; in doing so it shall consent to such limitations upon its sovereign powers as will bring about and secure a lasting peace in Europe and among the nations of the world.

(3) For the settlement of disputes between states, the Federation shall accede to agreements providing for general, comprehensive and compulsory international arbitration.

Article 25

[Primacy of international law]

The general rules of international law shall be an integral part of federal law. They shall take precedence over the laws and directly create rights and duties for the inhabitants of the federal territory.

Article 38

[Elections]

(1) Members of the German Bundestag shall be elected in general, direct, free, equal and secret elections. They shall be representatives of the whole people, not bound by orders or instructions, and responsible only to their conscience.

(2) Any person who has attained the age of eighteen shall be entitled to vote; any person who has attained the age of majority may be elected.

(3) Details shall be regulated by a federal law.

Article 59

[Representation of the Federation for the purposes of international law]

(1) The Federal President shall represent the Federation for the purposes of international law. He shall conclude treaties with foreign states on behalf of the Federation. He shall accredit and receive envoys.

(2) Treaties that regulate the political relations of the Federation or relate to subjects of federal legislation shall require the consent or participation, in the form of a federal law, of the bodies responsible in such a case for the enactment of federal law. In the case of executive agreements the provisions concerning the federal administration shall apply mutatis mutandis.

Article 79

[Amendment of the Basic Law]

(1) This Basic Law may be amended only by a law expressly amending or supplementing its text. In the case of an international treaty regarding a peace settlement, the preparation of a peace settlement, or the phasing out

of an occupation regime, or designed to promote the defence of the Federal Republic, it shall be sufficient, for the purpose of making clear that the provisions of this Basic Law do not preclude the conclusion and entry into force of the treaty, to add language to the Basic Law that merely makes this clarification.

(2) Any such law shall be carried by two thirds of the Members of the Bundestag and two thirds of the votes of the Bundesrat.

(3) Amendments to this Basic Law affecting the division of the Federation into *Länder*, their participation on principle in the legislative process, or the principles laid down in Articles 1 and 20 shall be inadmissible.

Article 146

[Duration of the Basic Law]

This Basic Law, which since the achievement of the unity and freedom of Germany applies to the entire German people, shall cease to apply on the day on which a constitution freely adopted by the German people takes effect.

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